

CIVIL PROCEDURE I

LEGISLATION/ LAW APPLICABLE

Principal Law

The Constitution of the Republic of Uganda 1995 as amended

Relevant Acts of Parliament

- i. The Judicature Act Cap.13
- ii. The Civil Procedure Act Cap 71
- iii. The Magistrates Court Act Cap.16 as amended
- iv. The Civil Procedure and Limitation (Miscellaneous provision) Act (Cap.72)
- v. The Government Proceedings Act (Cap.77)
- vi. The Local Council Courts Act, 2006
- vii. The Limitation Act (Cap 80)
- viii. The Arbitration and Conciliation Act (Cap. 4)
- ix. The Employment Act 2006
- x. The Statutory Declarations Act (Cap.22)
- xi. The Law Reform (Miscellaneous Provisions) Act Cap.79
- xii. The Oaths Act Cap 19
- xiii. Other relevant Acts to be cited and relied as and when required.

Relevant Rules and Subsidiary Legislation

- i. The Civil Procedure Rules S.I 71-1
- ii. The Judicature Mediation Rules 2013
- iii. The Constitution Commercial Court Practice Directions 1996
- iv. The Judicature (Court Fees and Deposits) Rules
- v. The Judicature (Supreme Court) Rules Directions 1996
- vi. The Judicature (Court of Appeal) Rule Direction 1996
- vii. The Judicature (Habeas Corpus) Rules
- viii. The Magistrates Courts (Magisterial Area) Instrument 2017
- ix. The Government Proceedings(Civil Procedure) Rules S.I 77-I
- x. The Advocates Remuneration & Taxation of Costs Rules
- xi. The Civil Procedure (Amendment) (Judicial Review) Rules 2009

- xii. Other relevant Rules to be cited and relied as and when required.
- xiii. Others to be referred to as and when relevant.

RELEVANT TEXTS

- i. Spry: Civil Procedure in East Africa Revised Edition 2008
- ii. A commentary on Civil Procedure Act Cap 21 (Kenya) by Steve Ouma 2010
- iii. Kiapi: Practice Manual Series; Civil Procedure
- iv. Chataley& Rao: The Code Civil Procedure
- v. Langn: Civil Procedure and Evidence in EAST Africa.
- vi. Harwood : Odgers on Pleading and Practice
- vii. Bullen & Leake: Precedents of Pleading.
- viii. M. Ssekaana & S. N Ssekaana: Civil Procedure & Practice in Uganda

TOPIC 1 (S.A)

Introduction to the Law and Practice of Civil Procedure

To be considered; the law that regulates civil litigation/practice; sources of the law of civil procedure, and the applicable principles; interpretation and scope of the legal rules, procedural and substantive requirements, the approach adopted by courts etc;

1.1 Applicability of the Civil Procedure Act & the Civil Procedure Rules.

- 1. Uganda Broadcasting Corporation versus Sinba (K) Ltd & Others CA Civ Application No. 12/2014 (Ruling of Justice Kakuru; but matter is on appeal to SC)
- 2. Beatrice Kobusingye Versus Phiona Nyakaana SCCA No 05./2004.
- 3. Nakabago Co-operative Society V Livingstone Kyanga [1992] III KALR 137
- 4. Re Kenshavlal Punja Shah (1955) 22 EACA 381
- 5. Oil Seeds (U) Ltd V AG CACA No.127/2003
- 6. Yeseri Waibi v Edisa Lisi Byandala 1972 HCB 28

1.2 Inherent Powers of Court

- 1. Dr. J.B Byamugisha versus NSSF Civ Ref. No. 19/2012.
- 2. Central Electricals International Ltd versus Prestige Investments Limited HCMA No. 625/2011

3. Goodman Agencies Ltd & Anor. versus Highland Agriculture Export Limited HCMA No.364/2012
4. Board of Governors, Kawempe Muslim School versus Hussein Kaskende & others HCMA No. 637/2006
5. Oil Seeds (U) Ltd Versus Uganda Development Bank SCCA NO.09/2009
6. Ayub Suleman Versus Salim Kabambalo SCCA No. 32/1995
7. Standard Chartered Bank V Clouds 10 Ltd [1988-90] HCB 84
8. Adonia V Mutekanga (1970) EA 429,432
9. G.W Katakwardi V Biraro (1977) HCB
10. Rawal V Mombasa Hardware Ltd [1968] EA 392

1.3 Applicability of Article 126 (2) (e) of the Constitution to Civil Procedure & Practice

1. Proline Soccer Academy Vs. Lawrence Mulindwa & 4 Others HCMA No. 0459/2009
2. Uganda Crop Industries Ltd Vs. URA HCCS No. 05/2009
3. Francis W. Bwengye V Haki Bonera HCT-00-CV-CA No.033-2009

1.4 Limitations to Applicability of Article 126 (2) (e)

1. Dr. Kasirivu Atwooki & 4 others Vs. Bamurangye & Others [2009] HCB 42
2. Nelson Sande Ndugo V EC HCT EP 0004/2006
3. Century Enterprises Limited V Green land Bank (In Liquidation) HCT-00-CC-CS-0877-2004
4. Tororo Cement Co. Ltd V Frokina International Ltd SCCA NO.2 OF 2001.

1.5 The Liberal Approach and Consideration of Rules of Procedure by Courts.

1. Uganda Broadcasting Corporation versus Sinba (K) Ltd & Others CA Civ Application No. 12/2014 (*Ruling of Justice Kakuru; but matter is on appeal to SC*)
2. Elias Waziri versus Opportunity Bank (U) Ltd HCMA No. 599/2013
3. Kingstone Enterprises Limited & Others Versus Metropolitan Properties Ltd HCMA No. 314/2012
4. Muhwezi Astone versus Irene Number One & Anor. HCT-05-CV-CA-0066-2009
5. Banco Arabe Espanol versus Bank of Uganda SCCA No. 8/1998

1.6 Subject Matter of Adjudication of Civil Procedure

(Nature of disputes resolved through Civil Proceedings as opposed to other disputes, consider disputes which are hypothetical, moot or academic or non justiciable disputes)

1. Uganda Telecom Limited Versus Wand Telecom Limited HCCA No. 28/2015
2. Legal Brains Trust (LBT) Ltd versus Attorney General Ref. No. 10/2011 and Appeal No. 4 of 2012 (EACJ) (courts adjudicate over live disputes.
3. Mubangizi Julius Versus Uganda Baati CACA No.001/2011
4. Hon. Abdu Katuntu & Anon versus MIN & Others HCCS No. 248/2012
5. Human Rights Network for Journalists & another versus Uganda Communications Commission & Others Miscellaneous Cause No. 219 of 2013
6. An Application For Judicial Review Between Julius Maganda -V- National Resistance Movement High Court High Court Miscellaneous Application No.154 of 2010

Recommended Texts

1. Read; A commentary on Civil Procedure Act Cap 21 (Kenya) by Steve Ouma 2010

TOPIC 2 (S.H)

2.0 Civil Litigation and Alternative Dispute Resolution;

To be considered; Nature of civil litigation, consequences, rationale compared with other forms of resolution of civil disputes like; mediation, arbitration, the modern trend and attitude of courts; etc.

1. W.H.R Wanyama V KCC & Anor. [2008] HCB 111

2.1. Arbitration (whether based on contract or statute)

1. (Read section 5 and 9 of Arbitration & Conciliation Act)

2. Eco Friendly Farming Limited versus Uganda Investment Authority HCCS No. 604/2014
3. Rock Construction Versus Mohammed Hamid CACA No. 0051/2011(2015)
4. Babcon Uganda Ltd vs. Mbale Resort Hotel Limited CACA No. 87/2011 (2015)
5. Power and City Contractors Ltd versus LTL Projects (PVI) Ltd HCT-CV-MA-0062/201 1
6. Yan Jian Uganda Company Ltd versus Siwa Builders & Engineers HCMA No. 1147/2014 (2015)
7. NSSF versus Alcon International Ltd SCCA No.15/2009.
8. Heritage Oil & Gas Limited Vs. URA Civil Appeal No.14/20 1 1
9. Nobert Kahiire Vs. Richard Nsubuga HCMA No. 94/20 10
10. EADB V Ziwa Horticultural Exporters Ltd [1 997-2000] UCLR 247
11. Fulgencious Munghereza V Price Water House Coopers[1 997-2000] UCLR 45

2.2. Court Based Mediation, Evaluative Mediation and Consent Judgments

1. Rules 2, 4 & 5 of the Judicature (Mediation) Rules SI 10/2013
2. Nakanyonyi Development Associations & Others versus Stanbic Bank HCMA No. 611/2013
3. Babcon Uganda Limited versus Mbale Resort Hotel SCCA No. 6/20 16
4. Bokomo Uganda Ltd versus Rand Blair Civil Appeal No. 22/2011 (HC)
5. Betuco (U) Ltd & Anor. V Barclays Bank of Uganda Ltd HCT-00-CC-MA-0507-2009
6. Stanbic Bank Ltd V Uganda Cross Ltd SCCA 4/2004
7. Betuco (U) Ltd & Anor. V Barclays Bank of Uganda Ltd HCT-00-CC-MA-0243-2009
8. Peter Muliira V Mitchell Coils [1 997-2000] UCLR 118
9. British American Tobacco versus Sedrach Mwijakubi SCCA No. 01/2012

Recommended

1. *The Judicature (Mediation) Rules S1 10/ 2013*
2. *Article; Court Based ADR; By the Hon. Mr. Justice Geoffrey W.M. Kiryabwire*
3. *Read; Arbitration and Conciliation Act Cap 4*
4. *ADR, the experience of the commercial court by the Hon. Justice James Ogoola 2004*
5. *The ADR Framework in Uganda by Jimmy Mwanja 2003*

TOIPC 3 (S.A)

a. The Structure & Competence of Courts (Forum for Determination of Civil Actions;

To be considered; Jurisdiction (Both Geographical and Pecuniary, where applicable) of the Local Council Courts, Magistrates Courts, the High Court (including the divisions of the High Court), Registrars of the High Court, other courts and Tribunals.

- ❖ The Magistrates Courts Act Cap as amended;
- ❖ See; s.11 -15 Civil Procedure Act;
- ❖ Practice Direction No.1 of 2002; Judicial Powers of Registrars of the High Court;
- ❖ The Magistrate's Courts (Magisterial Areas) Instrument Jan 2017
- ❖ See; Local Council Courts Act 2006
- ❖ See; Small Claims Courts Rules

b. Establishment, Composition and Competence of Courts

1. Davis Wesley Tusingwire Versus Attorney General; Constitutional Appeal No.04/2016(2017)
2. Davis Wesley Tusingwire Versus AG Constitutional Petition No. 02/2013(Dissenting Judgment of Justice Kavuma Ag. DCJ)
3. Baku Raphael Obudra and Obiga Kania v AG SC court. App No. 1/2005 Mulenga JSC
4. Uganda Law Society & Anor. Vs. AG [2009] HCB Vol.2 13
5. Erias Lukwago Lord Mayor KCCA Versus AG & KCCA Civil Application No. 06/2014 (SC)
6. Mohamed Hamid vs. Roko Constructions Ltd Civil Appeal No.1 of 2013

7. ,Komakech Geoffrey & Anor vs. Rose Akol Okullo & 2 Ors Civil Appeal No. 21/2010

c. Meaning of Jurisdiction of Courts

1. Uganda Revenue Authoty versus M/s Robo Enterprises (U) Ltd V SCCA No. 12/2004 (2017)
2. Among A. Anita Versus AG of Uganda & Anor Reference No.6/2012 (EACJ)
3. Benjamin Ogunyo Andama versus Benjamin Ondola HCMA No. 11/2013
4. Stephen Mubiru Versus Annet Mubiru HCC Rev. No. 04/2012
5. Mukasa V Muwanga HCMA No, 31/1 994
6. Alamanzani Zziwa V Angello Kintu HCMA No.37/1993

d. Sources of Jurisdiction

1. Ahmed Kawooya Kaugu versus Bangu Aggrey Fred and Anor [2007] HCB 35 SC
2. Raphael Baku & Anor. V AG SC Const. Appeal No.1 of 2005
3. East and Southern Africa Trade V Hassan Bassajabalaba & Others HCT-00-CC-CS-0512-2006

e. Jurisdiction and Pleadings

1. Alexander Mutongole V NYTIL CA No. 94 of 1968(1971) HCB 114
2. Bisuti V Busoga District Admin HCCS No. 83/1969

f. Pecuniary Jurisdiction of Magistrates Courts and Local Council Courts.

1. National Medical Stores Vs. Penjuines Ltd HCT-00-CC-CA-29-2010

2. Maxwell Mulesa Onyait versus Michael Serumu & Anor. HCMA No. 87/2006
3. Stephen Mubiru Versus Annet Mubiru HCC Rev. No. 04/20 12
4. Munobwa Muhammed Versus Uganda Muslim Supreme Council
5. Joseph Kalingamire Vs. Godfrey Mugulusi [2003] KALR 408
6. Joweria Nalukwago V Admin, Gen. HCCS No.102/1995 [1997] KALR 139
7. Abbey Semakula V Eldad Rubarenzya [1996] 111 KALR 22
8. Mangalita Namirembe V Kalamatu Tebukola [1995] IIIKALR 84

g. Geographical Jurisdiction of Magistrates Courts and Local Council Courts.

1. Kasoma Fred iersus Sembatya CACA No. 78/2011
2. Lugazi Progressive School & Anor. Vs. Serunjogi & Others [2001-2005] Vol. 2 121
3. Davis Wesley Tusingwire versus AG Constitutional Petition No.02/1013 (Judgment of Justice Kavuma Ag. DCJ on subject matter jurisdiction)

h. Practice & Choice of Forum for Filing of suits.

1. Francis Ouma Mubido versus Oakwod Investments Limited Labour Dispute No. 56312014
2. Uganda Braodcasting Corporation versus Kamukama HC Misc. Application No. 638/2014
3. P. Munyagwa vs. Lucy Kamujanduzi [1972] EA, 332 (U). [1972] HCB 117.
4. Francis sb Mwijage V Boniface sb Kabalemeza Civil Appeal 84-68(HCD) 341

i. Jurisdiction of the High Court

The Jurisdiction of the High Court compared to other relevant fora; Tax Appeals Tribunal, Industrial Court, etc;

Read:

- i. Article 139 (1) Constitution, S. 14 Judicature Act
- ii. The Arbitration & Conciliation Act Cap 4
- iii. The Employment Act 2006 (Section 93)
- iv. Order 50 of the Civil Procedures Rules (The Jurisdiction of Registrars of the High court)
- v. Read Judicial Powers of Registrars (Practice Direction No. No.1 of 2002

i. The unlimited original Jurisdiction of the High Court

1. Babcon Uganda Limited versus Mbale Resort Hotel SCCA No. 6/2016 (2017)
2. Kituuma Magala versus DFCU Bank Ltd SCCA No 09/2010.
3. Naku & 2 Others Versus Commissioner Land Registration HCCA No. 064/2010
4. Davis Wesley Tusingwire Versus AG Constitutional Petition No.02/2013
5. Uganda Projects Implementation & Management Centre Vs. URA SCCA No.02/2009
6. Testimony Motors Ltd Versus The Commissioner Customs URA HCCS No.004/2011 (OS)
7. In the Matter of Odoke (Infant) [2009]HCB Vol2 at page 22

ii. Unlimited Original Jurisdiction of the High Court in Employment Disputes

1. Ozuu Brothers Enterprises versus Ayikoru HCCR No. 000212016

2. Francis Ouma Mubido versus Oakwod Investments Limited Labour Dispute No. 563/2014
3. Concern Worldwide versus Mukasa Kugonza Civ Revn No. 1/2013
4. 201 Former Employees of G4S Vs. G4S Security Uganda Ltd Civil Appeal No. 18/2010
5. Hilda Musinguzi Vs. Stanbic Bank (U) Ltd HCCS No. 124/2008
6. See; section 93 Employment Act 2006 and the Jurisdiction of the Industrial Court
7. Action Aid Uganda versus David Tibekanga Labour Dispute LDA No. 5 /2014

iii. Unlimited Original Jurisdiction of the High Court in Tax Disputes

1. Uganda Revenue Authority versus M/s Robo Enterprises (U) Ltd V SCCA No. 12/2004 (2017)
2. Meera Investments Ltd Versus Commissioner General of URA SOCA No.14/2012
3. Uganda Projects Implementation & Management Centre Vs. URA SCCA No.02/2009
4. M/S Robo Enterprises (U) Ltd V Commissioner General of Uganda Revenue Authority CACA No.55 of 2003

iv. Unlimited Original Jurisdiction of the High Court in Disputes Subject to Arbitration Clauses

1. Power and City Contractors Ltd versus LTL Projects (PVI) Ltd HCT-CV-MA-0062/2011

2. Meera Investments Ltd Versus Commissioner General of URA SCCA No.14/2012
3. Concorp International Ltd Versus Eastern & Southern Trade & Development Bank SCCA No. 11/ 2009 (Okello JSC)
4. AG & UCB V Westmont [1 997-2000] UCLR 191
5. EADB V Ziwa Horticultural Exporters Ltd [1 997-2000] UCLR 247
6. Pheobe Mugabi V Print Pak (U) Ltd (1994) 1 KALR 29
7. Kayondo V The Cooperative Bank Ltd CA No. 19/9 1
8. Fulgencious Munghereza V Price Water House Coopers[1 997-2000] UCLR 45

j. Territorial Jurisdiction of the High Court

A6 be considered; Jurisdiction of the High Court in matters involving an international element, e.g disputes arising out of transactions involving diplomatic missions, cross border disputes etc

i. Jurisdiction of the High Court in Cross-Border Transactions

1. Kasoma Fred versus Sembatya CACA No. 78/2011
2. Nanam Aviation Ltd Versus Sun Air Ltd & Anor HCCS No. 309/2008
3. Ssebagala & Sons Electric Centre Ltd V Kenya National Shipping Lines Ltd HCCS No. 431 of 1999 [1997-2001] UCLR 388.

ii. Jurisdiction of the High Court in Transactions with specific provisions on Jurisdiction

1. Huadar Guangdong Chinese Co. Ltd versus Damco Logistics (U) Ltd 1-ICCS No. 4& 5 of 2012
2. Rapid Shipping & Freight (U) Ltd & Anor. Versus Copy Lines Ltd HCCS No.216/2012

3. Trastrac Ltd versus Damco Logistics (U) Ltd HCMA No. 394/2010
4. Uganda Telecom Ltd Versus Rodrigo Chaco HCMA No. 337/2008
5. East and Southern Africa Trade V Hassan Bassajjabalaba & Others HCY-00-CC-CS-0512-2006
6. Larco Concrete Products Ltd V Transair Ltd (1 988-90) HCB 80

iii. Jurisdiction of the High Court in Transactions where Defendants are subject to Diplomatic Immunity

1. Wokuri v Kassam [2012] EWHC 105 (Ch)
2. Concorp International Ltd Versus Eastern & Southern Trade & Development Bank SCCA No. 11? 2009
3. Eddie Rodrigues V The British High Commission SCCA NO.8/87
4. Ndibarekera V The United States of America HCCS NO.786/97.
5. Somali Democratic Republic v Treon SCCA No.6 of 1998
6. Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402 OF 2002

iv. Jurisdiction of the High Court in case of Conflict btn International law & Municipal Law

1. Concorp International Ltd Versus Eastern & Southern Trade & Development Bank SCCA No. 1112009
2. Among A. Anita Versus AG of Uganda & Anor Reference No.6/2012 (EACJ)
3. Testimony Motors Ltd Versus The Commissioner Customs URA HCCS No.004/2011 (OS)

k. Objections to Jurisdiction, Procedure & Practice

To be considered; when to object to jurisdiction, procedure, consequences, considerations etc.

1. Power and City Contractors Ltd versus [IL Projects (PVI) Ltd HCT-CV-MA-0062/201 1
2. Huadar Guangdong Chinese Co. Ltd Vs. Damco Logistics (U) Limited HCCS No. 4 & 5/2012
3. Modern Holdings (EA) Ltd versus Kenya Ports Authority Ref. No.1 /2008 EACJ
4. Mukisa Biscuits Manufacturing Co. Ltd versus West End Distributors Ltd [1 969] EA 696 at 700
5. Mark Graves V Balton (U) HCMA No.158 of 2008
6. AG & UCB V Westmont Land (Asia) Bhd & Others [1 997-2001] UCLR 191
7. Ssebagala & Sons Electric Centre Ltd V Kenya National Shipping Lines Ltd HCCS No. 431 of 1999 [1 997-2001] UCLR 388.

1. Transfer of suits

To be Considered; the power to transfer, when exercisable, the grounds/relevant considerations, procedure etc

S. 18 CPA

1. Petronella Omal Okoth versus Godfrey Obbo Odhiambo & Anor. HCMA No. 0174-2003
2. Wislon Osuna Otواني Versus Apollo Yen Ofwono HCT-04-CV-MA-77-2012
3. Frednck Kato versus Ann Njoki HCCS No. 10/2007
4. Matayo K. Kaboha V Abibu Bin Abdalla (1942) 6 ULR 121 (U).
5. David Kambugu V Zikalenga Misc. AppI 36/1 995[1 995] KALR 48; Okello J

6. Kagenyi V Musiramo [1968] EA 43(U).

m. Effect of proceeding before a court with jurisdiction

Distinction between a wrong court and court that has no jurisdiction, remedy where suit is filed in wrong court or one that has no jurisdiction, consequences etc.

1. Byanyima Winnie Vs. Ngoma Ngime HOC Revision No. 0009/2001
2. Athanasius Kivumbi V Hon Emmanuel Pinto Constitutional Petition No. 5 of 1997
3. Desai V Warsaw (1967) EA 351
4. Sergeant Kalemera Frank V Uganda SC Cr. App No.19/94
5. Makula International V Cardinal Nsubuga [1982] HCB;
6. Mubiru V Kayiwa[1974] HCB
7. Kagenyi V Musiramo [1968] EA 43(U).

TOPIC 4 (S.H)

1.0 Institution of suits:

Consider the various modes of institution of suits and the relevant considerations.

0.4 r 1 0.36, 0.37, 0. 52 CPRs; etc:

1.1 Suits to be commenced in manner set out in Rules (S. 19 CPA)

1. Matco Stores Limited Versus Grace Muhwezi HCCS No. 90/91 of 2011
2. Jacob Mutabaazi Versus The Seventh Day Adventist Church HCCS No. 54/2009
3. Ochieng Peter Patrick Vs. Mayende Stephen Dede & EC EP No. 15/2011
4. Meera Investments Ltd V Jeshang Popat Shah CACA No. 56 of 2003

1.2 Definition of a Suit; See s. 2 of the CPA.

1. Matco Stores Limited Versus Grace Muhwezi HCCS No. 90/91 of 2011
2. Alayo versus Ogwok CS (OS) No. 10/2013
3. Mansion House Ltd Vs Wilkinson (1954) 22 EACA 98
4. Nakitto & Brothers Ltd V Katumba [1983] HCB 70;

4.3.1 Preliminary Steps and Relevant Considerations before filing Suits

4.3.2 Possibility of concurrence of Civil and Criminal Proceedings and relevance of Criminal prosecution/judgment in civil proceedings;

1. Esso Standard (U) Ltd V Mike Nabudere HC No. 594/1990.
2. Erinesti Ochieng V Obedo Nyambito Civil Appeal No. 92 of 1973

4.3.3 Notice of Intention to Sue

Notice of intention to sue and its distinction from a statutory notice; consequences of not serving a notice of intention to sue or statutory notice and exceptions etc;

1. Wambugu V Public Service Commission [1972] EA 29.
2. Read; R.39 Advocates Remuneration and Taxation of Costs Rules
3. Read; s.22 of the Administrator General's Act on one month's notice of intended suit

4.3.4 Notice of Dishonour Cum Notice of Intention to Sue

1. Simba Motors Ltd V John Sentongo & Anor HCT-00-CC-CS-0733-2000
2. Obdiashobya V DECU Bank Ltd HCT-00-CC-CS-742-2004

4.3.5 Story Notice, Form and Rationale

(See Suits against Government, Scheduled Corporations & Local Governments:

1. See The Civil Procedure & Limitation (Miscellaneous Provisions) Act Cap 72

2. Uganda Development Bank Versus ABA Trade International Ltd, URA & Others HCMA No, 567/2010
3. Greenwatch versus Uganda Wild Life Authority HCMA No.92/2004
4. Dr. Rwanyarare & Others V AG HCMA No.85/i 993
5. Rwakasoro Vs Attorney General HCCS No. 711 of 1977.

4.3.5.1 Requirement to Serve a Statutory Notice

1. Meera Investments Ltd Versus Commissioner General of URA SCCA No.14/2012
2. Uganda Development Bank Versus ABA Trade International Ltd, URA & Others HCMA No. 567/2010
3. Historic Resources Conservation Initiatives & Ors Vs. AG HCCS No. 53/2011
4. Platform for Labour Action and Anti-Corruption Coalition Uganda Vs. NSSF HCCS No. 223/2008

4.3.5.2 Mandatory or Directory Requirement

1. Kabandize&-Others versus KCCA CACA No. 28/2011 (march 2014)
2. Christopher Ssozi Vs. AG HCMC No. 117/2004
3. Uganda Development Bank Versus ABA Trade International Ltd, URA & Others HCMA No. 567/2010
4. Stanbic Bank (U) Ltd Versus Comm Gen. URA HCMA No. 0042/2010
5. Nakawa Naguru Residents Association Versus Attorney General & ULC HCCS No. 146/2011
6. Greenwatch versjis Uganda Wild Life Authority HCMA No.92/2004 è 4.3.4.3

4.3.5.3 Requirement to plead and Attach Statutory Notice

1. Yoweri BãrtIuhiga & 5 others Vs. Christine Mugara & 2 others[2009) HCB Vol2 49
2. Assimwe Kanyaruju Vs. Hon. Grace Namara HCCS No. 198/2010

3. Katwe Butego Division LGC V Masaka Municipal Council MHCCS No. 0011/2005
4. M/S Cheap Super Quality & Fancy Stores Ltd & Another V UCB HCCS No. 9/1992 [1994] IV KALR 18
5. Francis Waniale V Bugisu District Administration [1982] HCB 128
6. NIC V Kafe [1974] EA 477 at 480

4.3.5.4 Requirement to Raise Want of Statutory Notice at Preliminary stage

1. Apollonia Nakirya & Anor V Sekabira CACA No.38 of 2003
2. Yoweri Bamuhiga & 5 others Vs. Christine Mugara & 2 others [2009] HCB Vol 2 49

4.3.5.5 Who to serve & Proof of Service of Statutory Notice

1. Katwe Butego Division LGC V Masaka Municipal Council MHCCS No. 0011/2005
3. Yoweri Bamuhiga & 5 others Vs. Christine Mugara & 2 others [2009] HCB Vol 2 49

4.3.4.6 Effect of Service of a Statutory Notice

1. Kabandize & Others versus KCCA CACA No. 28/2011 (March 2014)
2. Uganda Development Bank Versus ABA Trade International Ltd, URA & Others HCMA No. 567/2010
3. Gulu Municipal Council V Nyeko Gabriel and Others HCCS No. 77/1996 [1997] IKALR 9; Pamba Vs Coffee Marketing Board HCCS No. 186 of 1975
4. Kampala City Council V Nuluyati [1974] EA 400
5. Kateme Ltd V Management Training & Advisory Center [1998] 11 KALR 18;

4.3.4.7 Exceptions

1. Meera Investments Ltd Versus Commissioner General of URA SCCA No.14/2012
2. Nakawa Naguru Residents Association Versus Attorney General & ULC HCCS No. 146/2011
3. John Oketcho Versus AG HCMC 124/2009
4. Green watch versus Uganda Wild Life Authority HCMA No.92/2004
5. TEAN V A-G /NEMA Misc. Application No. 29 of 2001,
6. Sarah Kafrika Mbonabukya V N PART Tribunal Case No. 24 of 1999
7. Dr. Rwanyarare & Othrs V AG HCMA No.85/i 993

TOPIC 5 (S.H)

5.1 Payment of Court Fees

The requirement for payment of court fees, which court documents attract fees, how are the fees determined, when and where to pay, evidence of payment, effect of non payment, payment of insufficient fees, late payment, remedy in case of non payment or late payment; the practice of the courts;

1. Read The Judicature (Court Fees & Deposit Rules (r. 6)
2. Order 9 r. 6 and O. 7 r. 11(c)
3. Read; Land Litigation. Experiences and Best Practices from the Land Division 2012 by Hon. Justice Joseph Murangira pages 10-15

5.2 Assessment, Payment, Time of Payment of Court Fees and the Filing Process

1. Pinnacle Projects Limited versus Business in Motion Consultants Ltd (Misc. Appi. No 362 Of 2010)

2. Kamba Sale versus Hon. Jennit[er Namuyangu EPA No0027/2011
3. Mukoni Collins versus Electoral Commission & Anor HCMA o. 055/2011
4. Noah Bukenya V Global Credit Management Ltd HCCMA No.254 of 2009
5. UNTA Exports ltd —v Commissioner of Customs (1970) EA43(U)
6. Musango v Musango (1979) 226
7. Yese Ruzambina V Kimbowa Builders & Construction Ltd (1976) HCB 278
8. Banco Arabe Espanol-v Bank of Uganda (CACA No.42 of 1998

5.3 Distinction Btn Court Fees & Security for Costs

1. Amrit Goyal V Harichand Goyal and Others CAC Application No. 109/2004

5.4 Effect of Non Payment of Court Fees

1. Central Electricals International Ltd versus Prestige Investments Limited HCMA No. 625/2011
2. Kamba Sale versus Hon. Jenniffer Namuyangu EPA No0027/2011
3. Betuco (U) Ltd & Anor. V Barclays Bank of Uganda Ltd HCT-00-CC-MA-0243-2009
4. Ndaula Ronald V Hajji Nadduli Abdul [2007] HCB 9
6. Lawrence Muwariga V Steven Kyeyune SCCA No. 12 of 2001

5.4 Remedy for Non Payment, Less payment or Late Payment of Court Fees

1. Standard Chatered Bank Ltd versus Mwesigwa Geoffrey Phillip HCMA 477/2012
2. Electoral Commission Versus Betty Nambooze [2007] FICB 52

3. Yese Ruzambina V Kimbowa Builders & Construction Ltd (1976) HCB 278
4. Byabazaire v Mukwano Industries ltd [2002] 2 EA;
6. Katuramu v Maliya (1992-93) HCBI61

a. The process of Filing Suits

1. Okot Ayere Olwedo Justin vs. AG HCCS No. 381/2005
2. W.H.R Wanyama V KCC & Anor. [2008] HCB 111
3. Pinnacle Projects Limited versus Business in Motion Consultants Ltd (Misc. Appl. No 362 of 2010)
4. Athanasius Kivumbi V Hon Emmanuel Pinto Constitutional Petition No. 5 of 1997 (Read; Land

Litigation. Experiences and Best Practices from the Land Division 2012 by Hon. Justice Joseph Murangira pages 10-15)

TOPIC 6-(SA)

6.1 Various Modes of Commencement of Suits

The relevant considerations before adopting a particular mode, the relevant procedure and documents and the relevant legal principles.

- ❖ Aloyo Versus Ogwok HCCS (OS) No.10/2013
- ❖ Testimony Motors Ltd Versus The Commissioner Customs URA HCCS No.004/2011 (OS)
- ❖ Meera Investments Ltd V Jeshang Popat Shah CACA No. 56 of 2003

6.2 Ordinary Complaint and Specially endorsed Summary Complaint

1. Post Bank Uganda Limited versus Abdul Ssozi SCCA No. 08/2015(2017)
2. Abdul Ssozi versus Post Bank Uganda Limited CACA No. 12/2010 (2015)
3. Solomon Baganja & Anor. Versus Henley Property Developers Ltd HCCS No. 47/2012
4. Jacob Mutaabazi Versus The Seventh Day Adventist Church HCCS No. 54/2009
5. Mayanja Bosco versus Kasikururu Lois Okumu OS No.5/2008
6. Testimony Motors Versus Commissioner Customs URAC1vII Suit No 004 OF 2011 (0
7. Hannington Wasswa &Anor. Versus Maa Onyango Ochola & Others. SCCA No.2211993;
8. Matco Stores Ltd & Others versus Grace Muhwezi & Anor. HCCS No. 90 &91/2001
9. Sembuule Investments Ltd Versus Uganda Baati Ltd HCMA No. 664/2009
10. Kingstone Enterprises Limited & Others Versus Metropolitan Properties Ltd HCMA No, 314/2012
11. Shelter Ltd V Anastasia Nakkazi Misc. App.1 15/2007
12. Busingye & Co. Ltd versus Muye HCMA 87/2011
13. Pinnacle Projects Limited versus Business in Motion Consultants Ltd (Misc. Appi. No 362 Of 2010)

6.3 Originating Summons:

Meaning, circumstances of applicability, the law and legal principles for applicability, the practice and documents. O. 37 CPR;

Circumstances under which OS is Applicable

1. Zalwango Eliverson &Anor Versus Dorothy Walusimbi &Anor. HC OS No. 03/2013
2. Testimony Motors Ltd Versus The Commissioner Customs URA HCCS No.004/2011 (OS)
3. Sentongo Harriet versus Esther Gloria Namusisi OS No.22/2009
4. Rock Petroleum (U) Ltd Vs. URA[2009] HCB Vol 2 at 29
5. Tororo Steel Works Ltd V Betty Akikoth HCT OS 000 1/2008
6. Yesero Mugenyi Vs Registrar of the High court & Ors. [1977] HCB 80;
7. Official Receiver V Sudhev [1970] EA 243
8. E V E [1970] 604;

6.4 Circumstances where Originating Summons is not Suitable Procedure

1. Were & Anor versus Administrator General HCT-04-CV-05-001-201 5
2. Janet Ntanya Versus Saida Ssebaduka & Others HC OS No. 020/2009
3. Lubulwa Francis Versus Harriet Lubwama HO OS No. 011/2009
4. Vincent Kawunde t/a Oscar Associates V Kato HCOS No. 0004 of 2007
5. R. Hajji Vs Sulaiman Lule:
6. Patrick Rwekibira V Muwagibu Kamya[1 972] 2 ULR 166
7. Nakabugo Vs Francis Drake Serunjoji [1981] HCB 58:
8. Joseph Bayego V Chief Registrar of Titles

6.5 Originating Summons, Citation of relevant Law and Supporting Affidavit

1. Patrick Rwekibira V Muwagibu Kamya [1972] 2 ULR 166; Saed J
2. Kawooya V Naava [1975] HCB.
3. WW Kaggwa & others V Yowana Kiwanuka [1 993]1 11 KALR 77

6.6 Procedure and Practice of Originating Summons

1. Mayanja Qosco Versus Kasikururu Louis Okumu & Othrs HO OS. No.5/2008

6.7 Notice of Motion: 0 52 CPR:

Meaning, circumstances of applicability, the law and legal principles for applicability, the practice and documents

Form of notice of motion

1. Goodman Agencies Limited versus AG & Anor. Constitutional Appi No. 01/2012 (SC)
2. Dairy Corporation Versus Opiro [2009] HCB
3. Lyakiya Vs Attorney General
4. Joy Kaingana V Dabou Boubou [1986] HCB 59
5. Kaur V City Auction Mart[1 967] EA 108
7. Nangibhai V Standard Bank Ltd [1968] EA 670

6.7 Notice of Motion to Contain Grounds

1. Global Capital Save 2004 Ltd & Anor. Versus Alice Okirol HCMA No. 485/2012
2. Horizon Coaches Limited Versus Edward Rurangaranga & Anor. [2010]1 EA 77
3. Development Finance Co of Uganda Ltd V Stanbic Sank Ltd & Anor. HCMA No. 88 of 1999
4. Kafeero Kifomusana Vs Mugambe Joseph HOT EP Application No... .2011
5. Mugarula Mukiibi V Colline Hotel Ltd [1984] HCB 35

6.8 Notice of Motion & Supporting affidavits

1. Serefaco Consultants Ltd versus Euro Consult & Anor CACA No. 16/2007
2. Global Capital Save 2004 Ltd & Anor. Versus Alice Okirol HCMA No. 485/2012
3. Ready Agro Suppliers Ltd & Othrs versus Uganda Development Bank Ltd HCMA No. 0379/2005
4. Development Finance Co of Uganda Ltd V Stanbic Sank Ltd & Anor. HCMA No. 88 of 1999.
5. Energo Projekt V Brigadier Kasirye Gwanga & Anor. HCMA No. 558/2009
6. Eng. Katwiremu V Mushemeza Elijah [1997] II KALR 66
7. Joy Kaingana V Dabou Boubou [1986] HCB 59;
8. Odongkara V Kamanda [1968] EA 210(U)
9. Notay Engineering Industries V Superior Construction & Engineering Ltd HOGS No. 702 of 1989,
10. Castelino V Leo Rodrigues [1972] EA 233
11. Jetha Brothers Ltd V Mbarara Municipal Council & othrs HCMA No.31 of 2004

6.9 Notice of Motion and Applicable law.

1. DFCU Leasing Co Ltd V Nasolo Faridah HOT MA 0074/2007
2. Kibuuka Musoke V Tour & Travel Centre Limited HCMA No.603/2008
3. Intraship U Ltd V GN Combined (U) ltd (1994) VI KALR 42
4. Peragio Munyangira V Andrew Mutayitwako HCMA No.37 of 1993[19931 V KALR 36
5. Hon. MR. Justice Remmy Kasule V Jack Sabiiti & 2 Others HCCS No, 230 of 2006

6. Alcon International V Kasirye Byaruhanga & Co. Advocates {1995} III KALR 91
7. Saggu V Road Master Cycles (U) Ltd CAC No. 46/2000

6.10 Notice of Motion and Summary of Evidence (0.6 r.2; CPR)

1. Kenfreight (U) v Henry Sebunya HCMA No. 0353 of 1998
2. Sule Pharmacy Ltd V The Registered Trustees of the Khoja Shia Hana Shari Jamat HCMISC. APPL 147/1 999.
3. Hon. MR. Justice Remmy Kasule Vs. Jack Sabiiti HCCS No, 230/2005
4. DFCU Leasing Co Ltd V Nasolo Faridah HCT MA 0074/2000
5. Rajab Kyangwa V Pallisa Town Council & Anor. HC Misc. AppI No. 19/2000
6. Musoke Lwanga Sanyu V Yakobo Nate Mayanja [1997] II KALR 1 SC
7. Jetha Brothers Ltd V Mbarara Municipal Council & othrs HCMA No.3 1 of 2004

6.11 Chamber Summons:

See some of the requirements for valid Notice of Motion

1. Silver Springs Limited Versus UMEME Ltd HCMA No. 291/2013
2. DFCU Leasing Co Ltd V Nasolo Faridah HCT MA 0074/2000
3. Kafeero Kifomusana Vs Mugambe Joseph HCT EP Application No... .2011
4. Francis W. Bwengye V Haki Bonera HCT-00-C V-CA No.033-2009

6.12 Effect of Wrongly Proceeding by Notice of Motion or Chamber Summons

1. Silver Springs Limited Versus UMEME Ltd HCMA No. 291/2013
2. Saggu versus Road Master Cycles (U) Ltd CACA No.46/2000

3. All Sisters Company Ltd Vs. Guangzhou Tiger Head Battery Group Company Ltd HCMA No. 307/2011
4. Uganda Crop Industries Ltd Vs. URA HCCS No. 05/2009
5. Francis W. Bwengye V Haki Bonera HCT-00-C V-CA No.033-2009
6. Kibuuka Musoke V Tour & Travel Centre Limited HCMA No.603/2008
7. Kibuuka Musoke AS V Travobase Center Ltd HCMA No.308/2008
8. Nasanga V Nanyonga [1977] HCB 319

6.13 Suits by Petitions

Dr. James Rwanyararee & Anor V AG Constitutional Appeal No, 1 of 1999

Nelson Sande Ndugo V EC HCT -01-CV-EP 0004/2006

Re Edith Nassaazi Adoption Cause No. 6 of 1996

6.14 Suits by Other modes;

- a) Memorandum of claim in the industrial court
- b) Complaint before the Labour Officer
- c) Statement of claim, leffer
 1. LDC V Edward Mugalu & Anor. [1990-91] KALR 103
 2. Major Roland Kakooza Mutale Versus AG & IGG [2001-20051 HCB 110
 3. Section 39(2) Judicature Act.
 4. Prof. Oloka Onyango and Others and Amama Mbabazi, Yoweri Museveni and EC Supreme court 2016

TOPIC 7 (SH)

Appearance of Parties & Agents

Physical and legal appearance, authorized agents, implications and consequences

7.1 Appearance through Filing Appropriate Response

1. Opa Pharmacy Vs Howse SMC George(1972) ULR 115:
2. AG & UCB versus Westmont (supra)

7.2 Appearance by Party

1. Harriet Kizito v Ggoloba Godfrey CA No. 65/2005.
2. Kyobe Ssenyange Vs Naks Ltd (1980) HCB 31
3. Sekyaya Vs Sebuguli

7.3 Appearance by Party's Counsel

1. Rule 2 & 3 of the Advocates (Professional Conduct) Regulations SI 267-2
2. AG & Peter Nyombi versus Uganda Law Society HCMA No. 321/2013
3. Sinba (K) Limited & 4 Others versus Uganda Broadcasting Corporation Civil Application No. 05/2014
4. Shell (U) Ltd & Others versus Muwema & Mugerwa Advocates SCCA No. 02/20 '13
5. Kituuma Magala & Co. Advocates versus Celtel (U) Ltd [2001 -2005] HCB Vol.3 at 72
6. Kabale Housing Estate Tenants Limited versus Kabale Municipal Local Government Council Civil Application No. 15/2013
7. Harriet Kizito v Ggoloba Godfrey CA No. 6512005.
8. Handoni Daniel V Yolamu Egondi CACA No.67 of 2003
9. Sebunya Vs Attorney General
10. Kawooya Vs Naava:[1 975] HCB 314
11. Beliram Parima & Co-v-Saikind (1954)27 ULR28

7.4 Appearance by a Party's Authorized Agent

1. Co-operative Bank in Liquidation Vs Kashaija N. Imelda and Anor. HC OS No.1 2011.
2. J.B Mpanga V Dr. Nkamuhayo Rwacumika HCC Application No. 019/2009
3. Ayigiyugu & Co Advocates-v-Muteteri (1 988-90) HCB 161

7.5 Manner of Appearance:

1. Stop & See (U) Ltd Versus Tropical Africa Bank Limited HCMA No. 333/2010
2. Mark Graves V Balton (U) HCMA No.158 of 2008
3. Bukenya Vs Attorney General (Supra).
4. Twiga Chemical Industries Ltd V Viola Bamusedde CACA No. 912002
5. Silas Bitaitana V Emmanuel Kananura CACA No.47/1976
6. AG & UCB V Westmont Land (Asia) Bhd & Others. [1 997-2000] UCLR 191

7.6 Extension of Time for entering Appearance

1. Elias Waziri & 2 Others Vs. Opportunity Bank (U) Ltd HCMA No. 599/2013 (HC)
2. Robert Opio & Anor V Edward Kabugo Sentongo HCMA No.166-2002
3. Godfrey Magezi & Brain Mbazira V Sudhir Rupaleria SCCAPP 10/2002.
4. Credit Finance Co Ltd V Makerere Properties SCC AppI No.1 of 2001.

7.7 Effect of Failure to enter appearance

1. AG & UCB V Westmont Land (Asia) Bhd & Others. [1997-2000] UCLR 191
2. Ssetuba C. Misairi versus the Registrar of Titles HCMA No. 55/2011

3. Dembe Trading Enterprises Ltd versus Uganda Confidential Ltd HCCS No. 0612/2006
4. Valery Alia versus Alionzi John (supra)
5. Agasa Mangi v AG HCS No. 95/2002
6. Agadi DidiV James Namakaso HCCS 180/1989
7. Photofocus Ltd Mulenga Joseph [1996 IV KALR 102

TOPIC 8 (S.A)

ISSUE AND SERVICE OF SUMMONS:

Types of summons, who issues summons, relevancy, the process of service in and outside jurisdiction, proof of service, effect of ineffective service etc (0.5, 29, 3ICPR and the Government Proceedings Rules)

8.1 Types of summons:

Ordinary summons, Summons in a summary suit on Complaint, Chamber summons, Originating summons, Witness

Summons etc, Hearing Notices

1. Mugume & Anor. V Akankwasa [2008] HCB 159
2. Dairy Corporation V Opio [2001-2005] HCB 113
3. Edison Kanyabwera V Pastori Tumwebaze[2001-2005] HCB 98
4. Ahmad & Associates V Bauman (U) Ltd CACA 46/2000
4. Nakitto & Brothers Ltd V Katumba [1983] HCB 70;

8.2 Validity of Summons:

1. Dairy Corporation V Opio [2001-2005] HCB 113

2. East African Plans ltd Vs Bick Ford Smitli[1 971] HOB 225
3. A. Bauman and Co. (U) Ltd Vs Nadiope:[1 968] EA 306(U)
4. Nanjibhai and Co. Ltd Vs Standard Bank Ltd: [1968] EA 670[CA-K]
5. Kaur Vs City Auction Mart:[1 967] EA 108(U)
6. Robinson V Olwoch [1971] EA 376(K)

8.3 Purpose of Service

1. Kessington Africa Ltd Versus Pankajkumar Hemraj Shah HCMA No, 687/2012
2. David Ssesanga Versus Greenland Bank in Liquidation HCMA No. 406/2010
3. Geoffrey Gatete & Anor. William Kyobe SCCA No, 7/2005
4. Re. Pritchard (1963] ALLER 873.

8.4 Time within which to serve Summons and effect of service of expired summons

(Time within which to serve, who to serve, consequences of lapse of time, remedy if time for service lapses).

1. Fredrick James Junju & Anor versus Madhivani Group Ltd HCMA No. 688/2015
2. Western Uganda Cotton co. Ltd versus Dr. George Asaba & Others HCCS NO. 353 OF 2009
3. Pinnacle Projects Limited versus Business in Motion Consultants Ltd (Misc. Appl, No 362 Of 2010)
4. Stop & See (U) Ltd Versus Tropical Africa Bank Ltd HCMA No.333/2010

5. Elite International Tobacco (U) Ltd V Marchfair Stationary (U) Ltd [1 997-2000] UCLR 253.
6. Century Enterprises Limited V Green land Bank (In Liquidation) HCT-00-CC-CS-0877-2004
7. Central Electricals International Ltd & Anor Vs. Prestige Investments Ltd HCMA 625/2011

8.5 Who can Serve Court Process?

Abdul Ssozi versus Post Bank Uganda Limited CACA No. 12/2010 (2015)

8.6 Modes of Service of Summons

Determinants of the appropriate mode of service, proof of service and consequences of ineffective service. See also

Practice and approach adopted by courts.

Service on the Defendant in Person

1. Valery Alia Vs. Alionzi John HCCS No. 157/2010
2. Dr. Kasirivu Atwooki & 4others Vs. Bamurangye & Others [2009] HCB 42
3. Electoral Commission Vs. Mbabaali Jude HCT-06-CV-MA-53!2006
4. Jessey Technical Services & Anor. Versus Ajay Industnal Corporation HCMA No, 2013

Service on Agents other than the Defendant

1. Emiru Angose Vs. Jas Projects Ltd HCMA No. 429/2005

2. Proilne Soccer Academy Vs. Lawrence Mulindwa & 4 Others HCMA No. 0459/200

Service on an Advocate with Instructions

1. Twig a Chemical Industries Ltd V Viola Bamusedde CACA No. 9/2002
2. Beliram V Salkind [1954] 27 KLR 28;
3. AG & Peter Nyombi versus Uganda Law Society HCMA No, 321/2013

Service on Partners in a Partnership

1. Geoffrey Gatete & Anor. Vs. William Kyobe (Civil Appeal No. 7/2005 (SC)

Service by Affixing Summons on Defendant's address

1. Erukana Kavuna V Metha [1960] 305 (U)
2. Re. Pritchard (1963) ALLER 873
3. Katukulu V Transocean[1 974] 276 (CA-U)

Service on Adult Member of Defendant's Family

1. Lalji v Devji [1962] EA 306
2. Betty Owaraga V George William Owaraga CA No.60 of 1992
3. Bulenzi Vs Wandera:[HCCS No.1047/90
4. Waweru V Kiromo[1 969] EA 172(K)
5. Erikanah Omuchilo V Ayub Machiwa [1966] EA 229(K)
6. M.B Automobiles V Kampala Bus Service [1966] EA 480.

Service on Several Defendants

1. EAGEN V Ntende [1979] HCB 227,;

Day and Hour of service

1. Wasswa Vs Ochola, SCCA No.05/i 990; (191) HCB 80
2. Pinnacle Projects Limited versus Business in Motion Consultants Ltd (supra)

8.7 Service on a Company or Corporation

1. Uganda Broad casting Services Versus NBS Television Ltd HCMA No. /2013
2. Tindarwesire Vs Kabale T.C (1980) HCB 33
3. Jessey Technical Services Ltd & Anor. Versus Ajay Industrial Corp HCMA No. 2013
4. Frank Katusiime V Business Systems Ltd HCSC 717/1993 (Duplicate to be delivered)
5. Nzioki S/o Muturnenta Vs Akamba Handcraft industries Ltd]
6. James Musajjalumbwa V Bitumastics Ltd [1982] HCB 103;
7. Augustine Okurut Vs Gerald Lwasa (1 988-1990) HCB 164

8.8 Service on the Attorney General

James Bahinguza and Others versus Attorney General of Uganda Court of Appeal
Misc. Application No. 269 of 2006

8.9 Acknowledgment and Proof of Service

1. Goodman Agencies Ltd & Anor. versus Highland Agriculture Export Limited HCMA No.364/2012
2. Uganda Broad casting Services Versus NBS Television Ltd HCMA No. /2013
3. Lusiano Lippi v Venice (U) Ltd [1992] IV KALR 7.
4. Erukana Kavuma Vs Metha(supra)
5. Osuna Otwani V Bukenya Ssalongo [1976] HCB 62;

8.10 Proof of Service

6. Edison Kanyabwera V Pastori Tumwebaze SCCA No.6 of 2005

8.11 Contesting Service of Summons

1. Tweheyc Ecison Versus Barurengyera Kamuslime Hilary HCT-05-CV-CA 01112010
2. Busingye, Bamutonda & Othrs V William Katotsire [2001-2005] HCB 108
3. UTC Vs Kewaza [1975] EA:
4. Muss Kudaga V NIC (1977) HCB 243

8.12 Effect of Failure to Serve Summons

1. Bazanye Fazil Vs. Nankunda Rose [2009] HCB Vol.2 atp. 20
2. Craig V Kansan [1943] 1 ALLER 108
3. Electoral Commission Vs. Mbabaali Jude HCT-06-CV-MA-53/2006

8.13 Substituted Service

1. Elias Waziri & 2 Others Vs. Opportunity Bank (U) Ltd HCMA No. 599/2013 (HO)
2. Tweheyo Edson Versus Barurengyera Kamusiime Hilary HCT-05-C V-CA 011)2010
3. Al Hajj Abidi & Others Versus Tropical Africa Bank Ltd HCMA No. 360/2006
4. David Ssesanga Versus Greenland Bank (in Liquidation) Ltd HCMA 406)2010
5. Valery Alia Vs. Alionzi John HCCS No. 157/2010
6. Jessey Technical Services Ltd & Anor. Versus Ajay Industrial Corp HCMA No. 2013
7. Violet K. Mukasa V Erizafani Matovu[1992-93] HCB 235

8. Kearsley (Kenya) Ltd V Anyumba & Others [1974] EA 112
9. UTC Vs Kewaza [1975] EA:
10. Magerav-Kakungulu (1976) HCB 28
11. Ezeza Namirembe-v-Musa kizito (1973)

8.14 Service out of Jurisdiction

Read; The Civil Procedure (Service of Notice of summons in Foreign Countries Order SI 71

1. Al Hajj Abidi & Others Versus Tropical Africa Bank Ltd HCMA No. 360/2006
2. Eddie Rodriguez v The British High Commission ca 8/87
3. Ndibarekera v The Embassy of the USA HOCS 786/97
4. Alemayehu Degafa V Kim Buwerman [1994] IV 27
5. Kuwait Airways V Iraq Airways & Others [1995] 3 ALLER 694

TOPIC 9(SH)

The Law Relating to Capacity to Sue or Be sued

To consider the various parties that can sue or be sued, the applicable law and procedure to such parties, consequences of suing a non existing party or wrong party among others

9.1 Difference Btw Capacity & Locus to sue

1. Major Roland Kakooza Mutale versus AG & IGG [2001-2005] HCB 110
2. Gordon Sentiba Versus IGG SCCA No.06/2008

9.2 General Principles Governing Capacity to sue or be sued

1. The Registered Trustees of the Muslim World League versus Tom Luwalira & Victoous Educational Services Ltd HCMA No.723/2014
2. V.G Keswala & Sons versus M.M Sheikh Dawood HCCS No.43/20110
3. Meera Investments Ltd versus Commissioner General of URA SCCA No.14/2012
4. Kakooza Mutale versus AG & Anor. [2001-2005] HCB 110

9.3 Deference Btn Legal & Physical Capacity:

1. Kilembe Mines Ltd Versus Uganda Gold Mines Ltd HCMA No. 312/2012
2. RTD Col Dr. Kiiza Besigye & Others V The DPP & AG Constitutional Petition No.12 of 2006
3. Eddie Rodrigues V The British High Commission SCCA NO.8/87. Odoki JSC
4. Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402 OF 2002

9.4 Individuals

1. Kilembe Mines Ltd Versus Uganda Gold Mines Ltd HCMA No. 312/2012
2. George Paul Emenyu & Anor. V AG [1994] V KALR 109
3. Kiga Lane Hotel v UEDCL CS 557/2004
4. Abdul Basit Sengooba & Others V Stanbic Bank HCT -00-CC-CS 0184-2001[2006]
5. LomaxV Landels [1848]1136 ER 1374

9.5 Administrators /Legal Representatives

1. Michael Mulyanti & Anor. Vs. Jackline Bataringaya & Others HCCS No.434/2008
2. Khalid Walusimbi v Jamel Kaaya & AG CS No 526 / 1989

9.6 Beneficiaries

1. Jacob Mutabaazi Versus The Seventh Day Adventist Church HCCS No. 54/2009
2. Lugeya Samuel & Anor V UCB Ltd HCMA No. 893/2004
3. John Buteraba V Edrisa Serwanga & Anor. HCCS No.222 of 2008
4. Kabwa V Martin Banoba Musiga [1996] II KALR 109 SC
5. Wycliffe Kiyangi V Augustine Kajuna [1994] v KALR I
6. Jabir and Another v Jabir and Others (Civil Appeal No. HCT 02 CV. AC 0001/03) [2007] UGHC 10

9.7 Donees of Power of Attorney

1. Co-operative Bank in Liquidation Vs Kashaija N. Imelda and Arior. HG OS No.1 2011.
2. Alice Okiror Vs. Global Capital Save 2004 Limited and othrs HCCS No.149/2010
3. J.B Mpanga V Dr. Nkamuhayo Rwacumika HCC Application No. 019/2009
4. Narrottam Bhatia and Anor V Boutique Zhazim Limited HCCS No. 411 of 1992
5. M/s Ayigihugu & Co. Advocates V Munyankindi Muteeri [1 990-91] KALR 194
6. Turn Sidpra & Anor. V Uganda Rehabilitation Development Foundation [1994] 1 KALR 25

9.8 Companies & Directors! Shareholders and Companies Limited by Guarantee

1. DFCU Bank Limited versus Mukiibi Yudaya & Others HCCS No. 195/2012
2. Uganda versus Shanita Namuyimba & Anor. Case No. CR.SC. 102/2011
3. Nanam Aviation Limited Vs. Sun Air and Anor Civil Suit No. 309 Of 2008
4. Lea Associates Limited V Bunga Hill House Limited HCCMA NO. 348/2008
5. Lukyamuzi James V Akright Projects Limited & Anatoli Kamugisha HCCS No. 319/2002
6. Kiga Lane Hotel v UEDCL CS 557(2004)
7. Sentamu V UCB [1982] HCB 32
8. Nsangiranabo Erasmus t/a Nsangira Auctioneers and Court Bailiffs versus Messieurs Associated Properties Ltd, Jagdshchangra Jashibhai Patel and Bhupendera Jashibhai HCMA No 953of 2001
9. The Registered Trustees of the Muslim World League versus Tom Luwalira & Victorious Educational Services Ltd FICMA No.723/2014
10. Contraction Engineers & Builders Ltd V The New Vision & 3 Others [1994] 111 KALR 37
11. Fam International Ltd & Anor. V Mohamed El Fatih [1994] 111 KALR 108 SC
12. N.K Raclia Vs. Kakhubhai & Co. Ltd [1995] I KALR 87

9.9 Authority to commence a suit in the names of a Company

1. Kabale Housing Estates Tenants Ltd Vs. Kabale Municipal Council SCCApp No. 15/2013
2. Nile Safaris Ltd Versus Warsaw Adams Construction Ltd HCCS No. 659/1995
3. Bugerere Coffee Growers V Ssebaduka [1970] EA 147;
4. United Assurance Co. AG SCCA No. 1 of 1986, Wambuzi C.

5. Tobacco & Commodity Traders International Incorporated Vs. Mastermind Tobacco (U) Ltd Companies Cause No. 18/2002

9.10 Unincorporated entities, Associations, NGOs, Churches, Registered Trustees etc

1. The Registered Trustees of the Muslim World League versus Tom Luwalira & Victorious Educational Services Ltd HCMA No.723/2014
2. Kilembe Mines Limited versus Uganda Gold Mines Limited HCMA No. 312/2012
3. Uganda Freight Forwarders Association & Anor. Vs. AG and Anor. CS. No, 22/2009
4. The Trustees of Rubaga Miracle Centre V Mulangira Simbwa V The board of Trustees Miracle Centre & Pastor Kayanja HCCMA No.576 /2006 AND 655 OF 2005
5. Okwonga Vs Anywar & Another [1984 HCB] 45,
6. Makula international V Cardinal Nsubuga [1982] HCB 11
7. Butemuka Vs Anywar and Another. [1977] HCR 77;

9.11 Government

1. Sinba (K) Ltd versus Uganda Broadcasting Corporation Civil Application No.5/20 14 SC
2. AG & Peter Nyombi versus Uganda Law Society HCMA No. 321/2013
3. Yustus Tinkasimire & 18 Others versus AG & Dr. Malinga Stephen HCMC No. 35/2012
4. Wakiso Cargo Transporters Ltd V Wakiso District Council & AG HCT 00-CCCS 070/2004;
5. Alice Katungaza V AG[2002] EA

6. Charles Harry Twagira V AG, DPP & Sam Kyomukama, Civil Appeal No.2 of 2007 SC.

9.12 Local Government Council, Town Council, Municipal Council

- 1) Kitgum District Administration V Print and Stationary Suppliers CACA 44 of 1998.
7. Wakiso Cargo Transporters Ltd V Wakiso District Council & AG HCT O0-CCCS 070/2004;

9.13 Statutory Corporations

8. Investments Ltd Versus Commissioner General of URA SCCA No.14/2012
9. F Uganda Development Bank Versus ABA Trade International Ltd, URA & Others HCMA No. 567/2010
10. Uganda Pentecostal University Ltd V The National Council for Higher Education and AG HCCA No.36 of 2005
11. M/S Robo and Another V Comm. Gen of URA CACA No.55 of 2003
12. Bagamuhunda Vincent V UEB [In Liquidation) HOT 00 CV-CS-0400-2007
13. Okello Okello V UNEB [1993] 11 KALR 36;
14. Apolo Hotel Corporation Ltd v Geoffrey Oryema CA No. 12/2006

9.14 Government Bodies/ Departments

15. Charles Harry Twagira V AG, DPP & Sam Kyomukama, Civil Appeal No.61 of 2002.
16. Chaes Harry Twagira V AG, DPP & Sam Kyomukarna, Civil Appeal No.2 of 2007 SC.
17. Col Dr. Kiiza Besigye & Others V The DPP & AG Constitutional Petition No.12 of 2006.
18. Muwonge V AG [1967] EA 13. See S.3 of the Government Proceedings Act

19. Amos Mugisha & Sons V Chemical Industries V DAPCB & NRM Secretariat
[1 990-91] KALR 38

20. Byabazaire v Mukwano Industries ltd [2002] 2 EA;

9.15 Foreign Missions and Diplomatic Agencies

21. Eddie Rodrigues V The British High Commission SCCA NO.8/87

22. Ndibarekera V The United States of America HCCS NO.786/97.

23. 'omali Democratic Republic v Treon SCCA No.6 of 1998

24. uwait Airways V Iraq Airways & Others [1995] 3 ALLER 694

25. See Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402 OF

26. Bitwire Emmanuel V The Representative of the Zaire Represented by its
Embassy [1998] 1 KALR 21

9.16 Partnerships

27. Geoffrey Gateete versus Kyobe & Anor SCCA No.

28. Yunusu Ismail T/A Bombo City Stores V Alex Kamukama & Othrs [1992] III
KALR 113

29. Nterekeya Bus Service V Rep of Kenya 196691) ALR Comm 452,

30. See Benjamin Sajjabi/T/A Namataba V Timber Manufacturers Limited [1978]
HCB 202;

31. 1-lorra Vs Horra [1959] EA 981 (K).

32. Sarwan Singh Vs Karan Singh [1963] EA 423 (K).

33. Kasana Produce Vs Kato [1973]).

34. Johnson VS Moss (1969) EA 654.

35. Reliable African Insurance Agencies V NIC (1979) HCB 58

36. K,wa V Sohan Singh & Co.(1972) HCB

9.17 Minors & Persons of Unsound Mind

The Law

1. Semyalo Michael versus The Registered Trustees of Kampala Arch Diocese
SCCA No. 12/2009
2. j 5dul Basit Ssengooba & Others Versus Stanbic Bank Uganda Ltd HCCS
No.184/2001
3. Thomas A.K Makumbi (Through Next Friend Patrick Makumbi Vs.
Josephine Katumba HCMA No. 316/2014

Who is a Minor

(Read Article 31 and 274 of the constitution

1. Kabandize & Others versus KCCA CACA No. 28/2011 (march 2014)on
interpretation of Article 274 of the Constitution)
2. Loi Bagyenda & Anor. Vs Loyce Kikunja Bagyenda [1994] VI 46
3. Kiddu Musisi Vs Lyamulemye and Another 1977] HCB 88;

Prerequisites of a next Friend

1. ThomasA,K Makumbi (Through Next Friend Patrick Makumbi Vs.
Josephine Katumba HCMA No. 316/2014
2. Wasswa & Anor. V Daniel Sentenza (1977) HCB 88;
3. Geihuge V Gibbs [1897] ICH 479.

Requirement to attach Authority of the Next Friend

1. Kabatoro Vs Namatovu (1975) HCB 159;
2. Jingo Vs Kabagiza (1974) HCB 294

3. Musoke Vs Uganda Co-op. Savings [1978] HCB 189.

9.18 Legal effect of non Compliance

1. Nasozi v Water Resources Development Ltd [1972] HCB 210
2. Credit finance Corporation Ltd Vs Kamali [1965] EA 545 (K).
3. RE Brockle bank (1877) 6 Ch 358: 360
4. Gingo v Kamugisha (1974) HCB 294
5. Barclays Bank v Patel (1959) EA 214
6. Kanani v Desal (1954) ULR 135
7. Semakula v Musoke (1981) HCB 46

9.19 Others like Government and Private Schools, Universities, Traditional institutions etc

1. Harriet Grace Bamale (suing through her next friend) Kituma Magala V The Board of Governors of Makerere College
1. school[1994} 1KALR 10
2. Management Committee Mengo Primary School & Others V Ngabo Newspaper [1993] 1 KALR 115
3. S.3 Uganda Registration Services Bureau Act CAP 210
4. Administrator General V Uganda Posts & Telecommunications Corporation; [1993] IV KALR 108
5. Traditional institutions; Article 249 of the 1995 constitution.

9.20 Effect of a suit against a wrong or Non Existent Party & Remedy

1. The Registered Trustees of the Muslim World League versus Tom Luwalira & Victorious Educational Services Ltd HCMA No.2014
2. The Trustees of Rubaga Miracle Centre V Mulangira Simbwa V The board of Trustees Miracle Centre & Pastor Kayanja OCMA No.576 /2006 AND 655 OF 2005
3. John Kibiyami V Mission and Relief Transport Ltd HCCS No.236/2006
4. Makula International V Cardinal Nsubuga[1 9821 HCB 32
5. Mubiru V Byensiba [1985] HCB 106
6. SajjabiV Timber Manufacturers Ltd[1978] HCB 202
7. Lea Associates Limited V Bunga Hill House Limited HCT OOCMA-0292-2007
8. The Trustees of Rubaga Miracle Centre V Mulangira Simbwa V The board of Trustees Miracle Centre & Pastor Kayanja HCCMA No.576 /2006 AND 655 OF 2005.

TOPIC 10 Joinder of Parties as Plaintiffs and Joinder of Causes of Action (SA)

1. HalsburyS Code Of Civil Procedure 12th Edn Vol. 1 Page 543
2. Pathak -V- Mpekwe (1964) EA24
3. AG & Peter Nyombi versus Uganda Law Society HCMA No. 321/2013
4. Semyalo Michael versus The Registered Trustees of Kampala Arch Diocese SCCA No, 12/2009
5. IGG & Jinja District Administration Versus Blessed Contractors Limited HCCA No. 21/2009

10.1 Joinder/Parties as Defendants and Joinder of Causes of Action

1. John Buteraba V Edrisa Serwanga & Anor. HCCS No.222 of 2008

2. Lea Associates Limited V Bunga Hill House Limited HCT OOC-MA-0292-2007
3. Allied Bank International (U) Ltd V Sadru Karah [2001-2005] HCB Vol.2 79
1. 4 4. Yowana Kahere & Others V Lunyo Estates Limited (1959) EA 319
4. Stephen Lubega V Barclays Bank (U) Ltd (1992) III KALR 51
5. Kananura Melvin Consultant Engineers V Conee Labanda [1992] KALR 61
6. Fatuma Osman Hussein V Mahendra Umadbai Patel [1995] 1 KALR 29
7. Bank Of India V Shah (1959) EA 18
8. Sempa Mbabali V Kidza [1985] HCB 46
9. Stround-V-Lawson (1898) 2 QB44
10. Barclays Bank -V-Patel (1959) EA214
11. A.M.Okwonga-V-James Anywar (1984) HCB 45
12. Paulo Kayima-V-Rugoor (1980)HCB 3
13. Makula Internation-V- Cardinal Nsubuga (1982) HCB 85
14. Johnson -V- Moss (1969) EA 654
15. Ssonko & Others-V-Haluna & Anor (1971) EA 469
16. Kenani-V-Desai (1954)7 ULR 13

10.2 Striking out Addition and or Substitution of Parties

1. Nabyonga versus Zion Construction Limited (Jan. 2016)
2. Stanbic Bank (U) Ltd & Anor Versus Commissioner General URA HCMA No. 0042/2010
3. 3, Kakooza Mutale Versus AG & Anor. [2001-2005] HCB 110
4. Lea Associates Limited V Bunga Hill House Ltd HCT-OOC-MA 0348-2008
5. DAPCB V Jaffer Bros Ltd SCCA No. 9 of 1998
6. Shamsherali Zaver Virji Vs. F.L. Kadebhai and Others CACA NO. 81/2004

7. David Kayondo V Resty Nantongo [1994] VI KALR 114
8. Kananura Melvin Consultant Engineers V Conee Lambanda [[1992] 111 KALR 61
9. Kawempe Division Council V Mary Masembe CACA NO.81/2004
10. Lugeya Samuel & Anor. Vs UCB Ltd HCMA No. 893/2004
11. Kololo Curing Co. Ltd V West Mengo Co-operative Union (1991) HCB 60
12. Sajjabi-V- Timber Manufacturers (1978) HCB 202
13. Gaholdas LaxiHodas Tana V Sorter Rose Muyinja HCCS No, 1076 of 1987 (1990-99) KALR
14. Ally Route Ltd C UDB Ltd HCT-00-CC-MA 459-2007
15. Danesvar V Metha V Manual M. Shah CACA No.3 of 1964 (1965) EA 3
16. 16, Matovu-V- Post Master General (1973) HCB 114
17. Forthall Barkery-V-Muigia (1959) EA474
18. Pak V Mpekwe (1964) EA 24

TOPIC 11 Representative Action (SH)

See Chitale & Rao in AIR Commentaries; The Code of Civil Procedure 7th Ed Vol. II Pages 1886 and 1997; See Mulla; The Code of Civil Procedure 17th Edition Vol.2 Page 36-37I

11.0 The Law on Representative Suits

1. Kasozi Joseph & Others Vs. UMEME (U) Ltd HCCS No. 188/2010
2. Idumu Marcellellinus Vs. UMEME HCCS No.24/2010

11.1 Circumstances Giving Rise to Representative Action

3. Matovu & Matovu Advocates Versus Uganda Electricity Generation Company HCMA No.0172/2003
4. Uganda Freight Forwarders Association & Anor. Vs. AG and Anor. CS. No. 22/2009
5. Rwanyarare James V AG [1997] VI KALR 61

11.2 Mandatory Requirement to Obtain Prior Leave of Court

6. Hermezdas Mulindwa & Anor. Vs Stanbic Bank U Ltd HCT-00-CS-0426-2004
7. Makula Int-V- Nsubuga & Anor (1982) HCB 85
8. Johnson-V-Moss (1969) EA 654

11.3 Notice of Representative Suit to be advertised and appearance by Parties

9. Tarloghan Singh V Jaspal Phaguda & Others [1997-2001] Ucl 408
10. Ibrahim Buwembo Versus M/s UTODA Limited HCCS No.664/2003
11. PR Nallathambi Goundan Vs. Vijaya Raghavan AIR 1973 Mad 25

a. Requirement to Plead and Attach Representative Order

12. Wariform V Standard Chartered Bank Kenya Ltd & Othrs (2003) 2 EA 701
13. Maximov Oleg Petrovitch V Premchandra Shenoï [1998] 1 KALR 52

11.4 Consent of persons sought to be Represented

14. Yustus Tinkasimire & 18 Others versus AG & Dr. Malinga Stephen HCMC No. 35/2012
15. Matovu & Matovu Advocates Versus UEGCL & AG HCMA No. 0172/2010
16. Rwanyarare James V AG [1997] VI KALR 61
17. Herman Ssemujju versus AG Constitutional Petition No.1/98
18. Lewis-V- Daily Telegraph (1964) 2qb 601
19. Campbell-V- Thompson (1953)1QB 445

11.5 Pre-requisites for a Representative Suit

20. Smith-V-Cardiff Corp. (1954)1 QB 210
21. Paulo Kanyima-V-Rugoor (1982) HCB 33

11.6 Rationale for a Representative Suit

22. Ssonko & Others-V-Haruna & Anor (1971) EA 443
23. Hermezdas Mulindwa & Anor. Vs Stanbic Bank U Ltd HCT-00-CS-0426-2004

11.7 Procedure, Forum and Relevant Documents

24. Kasozi Joseph & Others Vs. UMEME (U) Ltd HCCS No. 188/2010
- Matovu & Matovu Advocates Versus UEGCL & AG HCMA No. 0172/2010

11.8 Exceptions

25. Tean-A.G/NEMA Misc. Application No.39 Of 2001
26. Batu-V- Tean Civil Application No.27 Of 2003

27. Greenwatch Vs. AG and NEMA HCMA No. 140/2002

11.9 Third Parties

Law Reform (Miscellaneous Provisions Act)

1. Michael Richardson versus Rand Blair & Bokomo Uganda Ltd HCMA No. 51/2012
2. Winnie Okidi & Others Vs. Fina Bank (U) Ltd HCMA No. 90/2013
3. Uganda Railways Corporation Versus Bushenyi Commercial Agencies CACA No. 94/2010
4. NBS Television Limited Versus UBC HCMA No..2012
5. Charles Okia V Uganda Consolidated Properties Ltd [1992] 1 KALR 112
6. Ronald Kayala V Hussein Ali Ahmed [1993] V KALR 63 SC
7. Panyahulu Trading Company versus Now Ocean shipping Co Ltd HCCS No
8. Transami (U) Ltd V Transocean (U) Ltd [1994] 1 KALR 175
9. Lake Victoria Bottling Co. V Crown Bottlers [1994] II KALR 27
10. Yafesi Walusimbi-V- Ag. (1959) EA 223
11. Edward Kironde Kaggwa-V- L. Constaperal (1963) EA212
12. Obango-V-U.T.C. (1975) HCB 118
13. East Mengo Growers Co-Op Union Ltd-V-Nic (1985) HCB 94
14. Total Oil Products Ltd -V- William M.K Malu [1965] EA 164
15. Birmingham-V-London (1887) 34 Ch.D 216
16. Easternn Shipping-V-Quall (19240 EA 42\
17. Champion Moto Spares-V- Phadke (1969 EA 42
18. Sango Bay Estates Ltd-V- Dresdnmer Bank (1971) EA 17
19. Barclays Bank-V-Tom (1923) IKB 221

11.10 Interpleader Proceedings

1. Standard Chartered Bank (U) Ltd V Gapco U Ltd and Barclays Bank PLC HCT-00-CC-MA-0049-2007
2. Sergeant V Gautama (1968) EA 338
3. Re Katende Ssempebwa HCMA No.
4. Famous Cycle Agency Ltd V Manshular Ramji & othrs [1994] V KALR 58

11.11 Amicus Curiae and Intervenors

1. Among. A. Anita versus AG and Sec. General EAC (EACJ) Application No.6/2012
2. IGG & Jinja District Administration Versus Blessed Contractors Limited HCCA No. 21/2009

3. Re; Nakivubo Chemists [1977] HCB 311
4. Inspector General of Government versus Kikonda Butema Farm Ltd & AG Constitutional Application No. 12/2006
5. Dritoo V West Nile District Administration [1968] EA 428
6. Edward Fredrick Ssempebwa V AG [1992] VI KALR 160
7. Attorney General versus Silver Springs & Others SCCA No.1/1989

Read; Article; Constricting the Amicus Curiae Procedure in Human Rights Litigation. What can Uganda learn from South Africa by John C. Mubangizi & Christopher Mbazira

TOPIC 12-PLEADINGS & AMENDMENTS OF PLEADINGS (SA)

SIR JACK JACOB “The present importance of pleading” 2- 1960 current legal problems

SIR JACK JACOB Reforming civil procedural Law by sweet & Maxwell 1982.

ODGERS’ Principle of Pleading & Chap. 6.

BULLEN & LEAKER & JACOB precedents of pleading 11th Edn.1975

S. THENALWALL; determining the subject for decision 10 EAL 41

12.1 Meaning and Relevancy of Pleadings

1. Reliable Trustees Ltd V George Semebugya HCCS No. 601/92
2. Peter Bakaluba Mukasa Versus Betty Nambooze SCCA No.4/2009
3. Motorcare (U) Ltd V AG HCCS No. 638/2005
4. Kasule –V- Makerere University (1975) HCB 376 At 378
5. Talikuta-V- Nakendo (1979) HCB 276
6. Busuti-V- Busoga District Adm. (1982) HCB 60

12.2 Material Particulars in Pleadings

7. Paineto Mubiru-V- UCB (1971) ULR 144
8. Mutongole –V- Ntil (1971) HCB 114
9. Acra & Ors-V- Acar Aliro (1931) I KB

10. Level Bros Ltd-V- Bell (1931) I KB 357
11. Mbarara Coffe Curing-V- Grindlays (1975) HCB 57
12. Kahwa-V- UTC [1978] HCB 318
13. Okello Vs UNEB SCCA No.12 Of 1987]
14. Bisuuti Vs- Busoga Administration (1971) ULR129:

12.3 Signing of Pleadings

1. Mugabi V AG [1991] HCB 65
2. Greenland Bank Ltd V H.K Enterprises Ltd & Othrs [1997-2000] UCLR 283
3. Darlington Bakunda V Dr. Kinyatta CACAppl No. 27 of 1996
4. Habre International Trading Co. Ltd V KCC HCT00-CV-CS 0763/1994
5. Prof Huq V I.U.I.U SCCA No. 47 of 1995
6. Alfred Olwora V Uganda Centre Co-op Union Ltd [1993] 111 100 SC

12.4 Plaintiff; General Requisites

1. Motorcare (U) Ltd V AG HCCS No. 638/2005
2. Erinesti Ochieng V Obedo Nyambito Civil Appeal No. 92 of 1973
3. Lea Associates Limited V Bunga Hill House Limited HCT 00CC-MA-0292-2007
4. GW Wanendeya v Stanbic Bank ltd HCT CS No 486/2005
5. Byabazaire v Mukwano Industries ltd [2002] 2 EA;

12.5 Particulars in Plaintiff

6. Belex Tours & Travel Ltd versus & Anor versus Crane Bank & Anor. CACA No.071/2009
7. Peter Bakaluba Mukasa versus Betty Nambooze, Supreme Court Election Petition Appeal No. 04/2009
8. Tororo Cement Co. Ltd vs. Frokina International Co. Ltd C.A No. 2/2001
9. Bosa & Co. Advocates V Vero Nassanga & Others [1994] V KALR 166
10. Okello Okello V UNEB [1993] 11 KALR 133 SC
11. Israel Kabwa V Martin Banoba Musiga [1996] II KALR 109 SC
12. Sheikh Katereggga V AG [1995] III KALR 143
13. Sarah Nakabate Serubugo V Robina Nakidali [1994] VI KALR 24
14. Kebirungi Justine V M/s Road Tainers Ltd and 2 others HCMA No.285 of 2003
15. Hermezdas Mulindwa & Anor. Vs Stanbic Bank U Ltd HCT-00-CS-0426-2004

12.6 Cause of action, Rejection of a Plaintiff and Striking out of Pleadings

16. Semakula & Co. Advocates Versus URA HCCS No. 252/2011

17. Wabudeya Peace & Anor. Versus Margaret Nabwire HCCA No. 0017/2011
18. Micro Finance Support Centre Ltd Vs Uganda Micro Enterprises Association Ltd HCT 00-CC-CS-1007-2004
19. Mavunwa Edison & Others V UEGCL CACA No.96/2004
20. Baku Raphael Obudra & Anor. Vs AG SCCA No. 1 of 2003
21. Wycliff Kigundu V AG [1993] V KALR 80 SC
22. Byabazaire v Mukwano Industries Ltd [2002] 2 EA;
23. H.MB Kayondo V AG [1987] KARL 37
24. Opik Opoka V Muno Newspaper & 2 Others [[1990-91] KALR 15
25. Jeraj Sharriff & Co V Chotai Fancy Stores [1960] EA 374 CA
26. Drummond Jackson Vs British Medical Association & Others [1970] 1WLR 688
27. Maximov Oleg Petrovitch V Premchandra Shenoï [1998] 1 KALR 52
28. Tikani V Moyui [2002] SBHC 10;HC-CC-029/2001
29. Norman V Mathews 1916 85 L.J K.B 857
30. Ghella M. Shah-V- Abdulla (1962) EA 765
31. Mutungi-V- Kabuchi (1966) EA 454
32. Nkalubo Vs. Kibirige [1973] EA 102
33. Letang-V- Copper (1965) 2QB 232 (Diplock At 252)
34. Sempa Mbabali-K-Kidza (1985) HCB 46
35. Mavuma Edison & 2 Others V UEG Co. Ltd CACA No.96 of 2004
36. Mukasa V Singh & Ors [1969] EA 442
37. H.J Stanley And Sons Ltd V Akberali Saleh [1963] EA 574
38. Ugacof Vs Interfreight Forwarders 1997-2001] UCLR 447
39. Nkalubo-V- Kibirige (1970) EA466
40. Sullivan-V-Ali Mohammed Osman (1970) Ea 239
41. Odd Jobs-V- Mubia (1970) EA476
42. Libyan Arab Bank-V- Interpco Ltd (1985) HCB 73
43. Kizito Mubiru-V-Byensiba[1982] HCB
44. Mikidadi Kawesa-V-A-G (1973) I ULR 1221 ;(1973) HCB 115
45. Bamuwayire-V-A-G.(1973) HCB 87
46. Birakwate-V-Kilembe Mines (1975) 93
47. Acar-V-Acar Aliro (1982) HCB 60
48. Yafesi Katimbo-V-Grindlays Bank (1973) HCB
49. Nyadoi-V-E.A Railways Corpn (1974) HCB 122
50. Eruniya Ebyetu-V-Gusberito (1985) HCB 63
51. Mrs Kazoora-V-A.G (1973) HCB 116
52. Auto Garage-V-Motov No. 3 (1971) KB 514
53. Bukenya-V-A.G (1972) EA 326
54. Brigadier Smith Opon Acak V Ag [1997] 111 KALR 69

55. Greenland Bank Ltd V H.K Enterprises Ltd & Others [1997-2000] UCLR 283

12.7 Reliefs and Particulars of Special Damages

1. Muhwezi Astone Versus Irene Number One & Anor. HCT-05-CV-CA-0066-2013
2. Komakech Geoffrey & Anor vs. Rose Akol Okullo & 2 Ors, Civil Appeal No. 21/2010
3. Kabu Auctioneers & Court Bailiffs vs. F.K Motors Ltd Civil Appeal No. 19/2009
4. Goustar Enterprises Limited Vs. John Kokas Oumo SCCA No.08/2003
5. Francis Sembuya Versus All Ports Services (U) Ltd SCCA No. 6 of 1999
6. Valla bhudas Vithaldas & sons Ltd vs Mateeka [2001-2005] 2 HCB 69
7. Wakiso Cargo Transporters Ltd V Wakiso District Council & AG HCT 00-CCCS 070/2004;
8. Foods & Beverages Ltd V Srael Musisi Oponya [1993] 111 KALR 110
9. DAPCB V Isa Bukenya [1993] V KALR 13 SC
10. Kasule-V- Makerere University (1975) HCB 376
11. Take Me Hyome-V-Apollo Construction
12. Kisige-V-Muzakami Batolewo (1981) HCB 67
13. Francis Butagira V Deborah Namukasa [1992] VI 6

12.8 Summary of evidence and Annextures to Plaints; O6r.2 and O.7 r. 14

1. Eastern & Southern Ltd V Hassan Bassajjabalaba & Others[supra]
2. Suffish International Food Processors & Anor. V Egypt Air Corporation SCCA No.15 of 2001
3. Hajji Subair Magomu V UP &TC Corporation HCCS No. 2044/1997
4. Sule Pharmacy Limited V The Registered Trustees of the Khoja Shia Itana Shari Jamat Hcma No. 147 Of 1999.
5. Unicof Ltd V Interfreight Forwarders [1997-2001] UCL 447
6. Philips-V- Phillips (1878) 4 QB 127 At 139
7. Okello Eric & Anor. V Wade Adams Ltd [1998] I KALR 126
8. Lukyamuzi-V- House Tenant Agencies Ltd (1983) HCB 75

12.9 Written Statement of Defence, Counter Claim, Extension of Time, Striking out WSD, Failure to file Defence, Admissions in WSD etc

Appearance by Filing WSD

1. AG & UCB V Westmont Land (Asia) Bhd & Others. [1997-2000] UCLR 191
2. Bazanye Fazil Vs. Nankunda Rose [2009] HCB Vol.2 at p. 20

Time for Filing WSD

1. Mark Graves V Balton (U) HCMA No.158 of 2008
2. Stop & See (U) Ltd Versus Tropical Africa Bank Ltd HCMA No. 333/2010
3. Elias Waziri versus Opportunity Bank (U) Limited HCMA No. 599/2013
4. AG versus Sengendo

Nature of WSD

1. Nile Bank ltd v Thomas Kato & others [1997 – 2001] UCLR 325
2. Francis Sebuya V Allports Services (U) Ltd SCCA No. 6/1999

Effect of Failure to File WSD

1. Efulaimu Kasiwukira Vs. Samuel Serunjoji HCCS No. 380/2008
2. Elizabeth Imagara & Ors V AG [1995] V1 KALR 126
3. Cleaves Hams Ltd V British Tutorial College Africa Ltd
4. AG V Sengendo [1971] HCB 304
5. J.K Patel V Spear Motors Ltd [1993] 1 KALR 40 SC
6. Makerere Properties Ltd V Mansukhlal Ranji Karia [1995] III KALR 25
7. Uganda Whole salers V Impex House Ltd[1971] EA 245

Extension of Time to File Written Statement of Defence

8. Robert Opio & Anor V Edward Kabugo Sentongo HCMA No.166-2002
9. Godfrey Magezi & Brain Mbazira V Sudhir Rupaleria SCCAPP 10/2002.
10. Credit Finance Co Ltd V Makerere Properties SCC Appl No.1 of 2001.

Procedure where No WSD is Filed

11. Ssetuba Misairi versus The Registrar of Titles HCMA No. 55/2011
12. Agasa Maingi v AG HCS No. 95/2002
13. Bhabilia Habib Ltd V Commissioner General URA [1997 – 2001] UCLR 202
14. Dembe Trading Enterprises Ltd V Uganda Confidential Ltd and Anor. HCT-00-CC-CS-0612-2006
15. Hajji Asuman Mutekanga V Equator Growers (U) Ltd SCCA No. 1995

WSD with Counter Claim

16. Geoffrey Ouma V Kaledonia Karuragire HCCS No. 418 of 2000
17. Nile Breweries V Bruno Ozunga T/A Nebbi Boss Stores HCT-00-CC-CS 0580-2006

Service of WSD and Counter Claim & Remedy for late filing

1. Rwalanda John versus Bakulu Johnson HCMA No....2014
2. Standard Chatered Bank Ltd versus Mwesigwa Geoffrey Phillip HCMA 477/2012
3. Mwesigwa Phillip versus Standard Charted Bank Limited HCMA 200/2011
4. Nile Breweries vs. Bruno Onzunga t/a Nebbi Boss Stores HCT – 00 – CC – CS 0580 of 2006
5. Protection Security Services versus Eastern Builders and Engineers Ltd miscellaneous application number 566 of 2011 arising from High Court civil suit number 101 of 2011.
6. Silvanus Bob Turyamwijuka versus Compassion International and Dr. Mbanda Laurent HCCS NO 0115 of 2010
7. Simon Tendo Kabenge vs. Barclays Bank (U) Ltd and Phillip Dandee MA 0623 of 2010 arising from HCCS 0281 of 2010

12.10 REPLY AND DEPARTURE

8. Katuramu V AG (1986) HCB 39 CA
9. Eric Ntungura Vs. Jane Mwesigwa HCCS. No.71/2005
10. His Worship Bwire V AG [2009]HCB Vol.2 Page 10
11. Byabazaire v Mukwano Industries ltd [2002] 2 EA;
12. Uganda Whole salers V Impex House Ltd[1971] EA 245
13. Kabaseke Stores Company Ltd V AG[1993] 1 KALR 15

Parties Bound by their pleadings

14. Aisha Nantume V Emmanuel Lukyamuzi HCC Appeal No011 of 2002
15. Inter freight Forwarders (U) LTD v EADB SCCA No.13/1993
16. Musisi Ddirisa & 3 Others V Sietco (U) Ltd [1993] 1V KALR 67
17. John Nnagenda V The Editor of the Monitor Newspaper [1995] VI KALR 126 SC

Denial

1. Joshi V Uganda Sugar Factory Limited [1968] EA 570

2. Ben Byabashaija & Anor. V AG [1992] 1 KALR 161

12.11 AMENDMENT TO PLEADINGS

1. Michael Richardson versus Rand Blair & Bokomo Uganda Ltd HCMA No. 51/2012
2. Winnie Okidi & Others Vs. Fina Bank (U) Ltd HCMA No. 90/2013
3. Mulowooza & Brothers Versus N. Shah Ltd SCCA No.
4. Bufallo Tingstein Inc Versus SGS Uganda Limited HCMA No. 06/2012
5. Hajji Semakula Haruna Vs. Stanbic Bank Uganda Ltd HCMA No. 642/2011
6. Lea Associates Limited V Bunga Hill House Limited HCT 00CC-MA-0292-2007
7. Francis Drake Lubega Vs. Barnabas Taremwa [2009] HCB Vol2 44
8. Shamsherali Zaver Vs. Kadibhai & 3 Ors. [2007] HCB Vol.1 page 62
9. John Kibyami V Mission and Relief Transport Ltd HCT/ CC-CS 236 OF 2006
10. Mbayo Jacob Robert V Electoral Commission & Anor. Elecetion Petition Appeal 07/06
11. Bhadelia Habib V Commissioner General, URA [1997-2000] 202
12. AG & UCB V Westmont [1997-2000] UCLR 19
13. Bhabilia Habib Ltd V Commissioner General URA [1997 – 2001] UCLR 202
14. Brigadier Smith Opon Acak V AG [1997] 111KALR 69
15. Jack W. Wamayi V Interfreight Forwarders (U) Limited [1993]I KALR 13
16. Kayondo V AG (1988-90) KALR 127
17. Talikuta V Nakendo[1979] HCB 127
18. Gaso Tranpsort Services (Bus) Limited V Martin Adala Obene SSCA No.4 of 1994
19. Edward Secinde V Fred Luwaga (1995) IV KALR 149
20. Edward Kabugo Sentongo V Bank of Baroda HCT00-CC-MA 0203-2007
21. Coffee Marketing Board V Fred Kizito (1992-93) HCB 175
22. D.D Bawa Ltd Vs Didar Singh [1961] EA 282
23. Reliable Trustees Ltd V George Semebguya HCCS No. 601/92
24. Faucett Arthur Ocatum Engole V AG [1992] 11 KALR 52
25. Mugabi V AG [1991] HCB 65
26. Ssalongo V Kasese Town Council (1992-93) HCB 159
27. Clarapede & Co. Vs Commercial Union Association (1882) 32 WLR 262
28. Sebunya Gerald V UCB (1992-93) HCB 224
29. Gale Vs Sper Drug Stores [1996] 3 ALLER 468
30. Preston Banking Co. V William Allusp & Sons [1985] 1 ch 141
31. John Ntambi V AG & Anor. [1992] V KALR 90
32. Matico Stores Limited V James Mbabazi & Others [1995] 111 KALR 31

12.12 UNPLEADED ISSUES

1. Standard Chartered Bank (U) Ltd V Grand Hotel Ltd CACA No.13/1999
2. Muhammad Hamid Versus Rock Construction Co. (supra)
3. Kahwa & Bikorwenda V UTC [1978] HCB 316
4. Inter freight Forwarders (U) Ltd v EADB [1993] IV 124 SC
5. Nkalubo V Kibirige[1973] EA 102
6. Plotti V The Acacia Co. Ltd [1959] EA 248
7. Kahigiriza V Sezi [1982 HCB 148
8. Damji V Rambhai [1970] EA 515
9. Shah V Patel & Others [1961] EA 397
10. Odd Jobs V Mubia [1970] EA 476
11. Take Me Home Ltd V Appollo Construction [1981] HCB 43
12. Fenades V The People's Newspapers [1971] 1 ULR 119
13. AG V Baranga [1976] HCB 45
14. Makula International V Cardinal Nsubuga [1982] HCB 11
15. Acar V Aliro [1982] HCB 60
16. Kaweesa V AG [1973] HCB 114

TOPIC 12 LIMITATION OF ACTIONS (SH)

See Limitation Act Cap 80.

1. Charles Mpiima V AG [1993] 1 KALR 1
2. Uganda Railways Corporation V Ekwaru & Others CACAppl No. 185/2007
3. M. Buwule Kasasa Versus Japsher Buyonga Bwogi CA
4. Hermezdas Mulindwa & Anor. Vs Stanbic Bank U Ltd HCT-00-CS-0426-2004
5. URA V Uganda Consolidated Properties Ltd [1997-2001] UCL 148
6. Sayikwo Murone V Yovani Kuko and Anor (1985) HCB 68
7. Sour Fap Famous, RZ V AG [1997] UCLR 396
8. In the matter of an application by Mustafa Ramathan CACA No.25 of 1996
9. Kenfreght (U) Limited V URC [1997-2000] UCLR 299
10. URA V Uganda Consolidated Properties Ltd [1997-2000] UCLR 149
11. Sour Fap Famous, RZ & Anor. V AG[1997-2000] UCLR 396
12. Lovell V Lovell (1970) 3 ALLER 412
13. Mabro V Eagle Stan & British Dominions Insurance Company (1932) 1 KB 485
14. Bush Vs Steven (1962) 1 ALLER 413
15. Danesvar V Metha V Manilal M. Shah (1965) EA 3
16. Mramago Vs A-G (1979) HCB 24

17. National Pharmacy Ltd V KCC CA No. 2/79
18. Otabong V AG SSCA 6/90 (1992) V KALR 14
19. Mpiima Charles V AG C/S No. 980/90
20. Auto garage and Anor. V Motokov [supra]
21. Iga V MUK (1972) EA 65
22. Francis Nansio Micah V Nuwa Walakira (1993) VI KALR 14

TOPIC 13 INTERROGATORIES, DISCOVERY, INSPECTION, FURTHER AND BETTER PARTICULARS (SA)

1. Namubiru Lyton V Uganda Telecom Ltd HCMisc. Application No.4 of 2004
2. Unicof Ltd V Intefreight Forwarders [1997-2000] UCLR 447
3. Said Tibazarwa V UCB[1997-2000] UCLR 383
4. Hon. MR. Justice Remmy Kasule V Jack Sabiiti & 2 Others HCCS No. 230 of 2006
5. Andrew Lutakome & Anor. V Edward Rugumayo & Othrs [1993] 1 KALR 118
6. Esperito Mubiru V UCB (1972) HCB 302
7. Joshi V Uganda Sugar Factory Ltd [1968] EA 570
8. Motar Mart Exchange V Standard General Insurance co Ltd
9. Effren Guerra V Standard General Insurance Co. Ltd
10. White V Spafford & Co. [1991] 2 K.B 241
11. Juma Kenyi V Grindlays Bank (U) Ltd [1982] HCB 16
12. Dresdenor Bank V Sango Bay Estates [1971] ULR
13. EAGEN Co. Ltd V Standard Bank Ltd HCS No. 888/1971
14. Eastern Radio services V Tiny tots [1967] EA
15. UCB V Akamba Ug Ltd(1972) 4 KALR 28
16. Horizon Coaches Limited V Francis Mutabazi, Kamara Deodota Mutabazi, Sharon Mutabazi &

TOPIC I

1.0 INTRODUCTION TO CIVIL PROCEDURE AND PRACTICE IN UGANDA.

The law of civil procedure deals with the process through which legal disputes are resolved, either through formal court system or alternative dispute resolution mechanism. Civil procedure as opposed to substantive law deals with the enforcement of legal obligations and rights that accrue under substantive law.

Civil litigation connotes a process through which civil disputes are resolved through the court system; right from pre-trial, trial, judgment, and post judgment and appellate or remedial system.

1.1 Importance of the law of civil procedure.

- i) The law of civil procedure regulates the steps, which must be taken by the party in litigation
- ii) From the time the party commences the legal proceedings up to the time of enforcement of judgment, the law entails determination of a document a party must use to set the law in motion i.e. filing documents by the party
- iii) It entails the ways in which the party must bring the proceedings to his adversary (exchange of pleadings)
- iv) It promotes transparency throughout the trial. To this end the rules are intended to bring light in all matters in dispute to enable parties prepare their cases appropriately as opposed to be taken by surprise or being ambushed.

1.2 Applicability of the civil procedure Act and the Rules.

The law of civil procedure is principally regulated by the civil procedure Act and the Civil Procedure Rules as well as the Magistrate's Court Act and the Rules made under the 3rd Schedule.

The Civil Procedure Act and the Rules apply to the High Court, Chief Magistrate's Court and Grade 1 Magistrate Courts. However in so far as Grade II magistrate Courts are concerned, the applicable rules of procedure are set out in the 3rd Schedule of the Magistrate's Court Act.

According to section 219 MCA, every suit or appeal in the court of a chief magistrate or a magistrate grade I shall be instituted and proceeded with in such manner as may be prescribed by rules applicable to suits and appeals instituted in the High Court, and every suit in the court of a magistrate grade II shall be instituted and proceeded with in the manner prescribed by the rules set out in the Third Schedule to the Act.

Read **Nakabago Co-operative Society vs. Livingstone Kyanga [1992] III KALR 137** for the principle that the CPR (specifically 0.36 on summary procedure) are inapplicable to a court presided over by a magistrate Grade II.

Read **Yeseri Waibi vs. Edisa Lisi Byandala 1972 HCB 281** for the principle that the CPR are not applicable to courts presided over by a Grade II magistrate, the applicable rules are in 3rd schedule to the MCA.

Scope of the CPA and Rules and other Applicable legislations and Rules of Procedure.

The CPA and the rules are not exhaustive on all procedures in civil legal disputes, reference may be made to other applicable legislations and rules especially where such legislation specifically expressly provides for special procedure to be adopted in matters arising under the legislation.

Read, Re Kenshavlal Punja Shah (1955) 22 EACA 381 for the principle that it is a rule of construction that every procedure is to be understood as permissible till it is shown to be prohibited by law.

Procedure in the CPA and CPRs may apply if a remedy is created but no procedure is provided for in any other specific legislation. *Read Oil Seeds (U) Ltd vs. A.G CACA No. 127/2003* for the principle that where no specific procedure is provided for under a particular legislation, the appropriate procedure in the CPA may be adopted.

Read Charles Harry Twagira vs. AG [2008] HCB 28 for actions under Article 50 for enforcement of human rights being commenced by either a plaint or for declarations by way of Notice of Motion.

Where no procedure is available, the High Court may adopt procedure that is appropriate in the circumstances. Section 39(2) of the Judicature Act provides that where in any case no procedure is laid down for the High Court by any written law or by practice, the court may, in its discretion, adopt a procedure justifiable by the circumstances of the case. *Read LDC vs. Edward Mugalu & Anor [1990-91] KALR 103* on the procedure of revision not provided for by any law and can be by way of a formal letter. *Also Kakooza Mutale vs. AG and Anor [2001-2005] HCB 110* on applicability of s. 39 Judicature Act.

1.3 Inherent powers of the court and limitations (s.33 judicature Act and s.98 CPA)

In case no remedy is provided for in the Act or the rules, recourse is had to s.98 of the CPA which permits court to grant any remedy or make order as interest of justice may dictate.

Read **Aya Investments vs. M/s. Kibeedi & Co. Advocates [2008] HCB 130**, *Adonia v Mutekanga* (1970) EA 429, 432; *G.W Katakwardi vs. Biraro* (1977) HCB; *Standard Chartered Bank vs. Clouds 10 Ltd* [1988-90] HCB 84 for the principle that the inherent jurisdiction enshrined in s.98 of the CPA cannot be invoked where an express remedy is provided for under any law.

1.4 Rules of Procedure and Substantive Justice (Article 126(2) (e) of the Constitution

The rules of procedure laid down the process and documents required to obtain a particular relief through the courts of law. The rules therefore regulate the manner in which suits are commenced in courts of law and requisite documents and form that must be adopted. The issue that arise is whether non compliance with the procedure and form set out in the rules is capable of invalidating such proceedings. The rules apply subject to the constitution. Art. 126 (2) (e) is normally invoked to cater for administration of justice without undue regard to technicalities.

Read **Francis Bwengye vs. Haki Bonerav HCT-CV-CA No. 033/2009**

Uganda Crop industries Ltd vs. URA HCCS No. 05/2009

Proline Soccer Academy vs. Lawrence Mulindwa & 4 Ors HCMA No. 0459/2009

Limitation of Art 126(2) (e)

In administration of justice and determination of substantive disputes, courts are enjoined not to compromise justice by placing significant reliance on rules of procedures. Nevertheless Art. 126(2) (e) is not intended to wipe out the applicable rules of procedure

In **Utex Industries Ltd vs. A.G SCCA NO.52/1995** regarding how slavishly Art. 126(2)(e) of the constitution has been and continues to be applied when questions to follow procedure arises in a proceeding, the Supreme Court had this to say;

‘Regarding Art 126(2)(e)....we are not persuaded that the constituent Assembly Delegates intended to wipe out, the rules of procedure of our courts by enacting Article 126(2)(e). Para (e) contains a caution against undue regard to technicalities. We think that the article appears to be a reflection of the saying that rules of procedure are handmaids of justice-meaning that they, should be applied with due regard to the circumstances of each case’.

The above observation was repeated by Supreme Court of Uganda in **Kasirye, Byaruhanga & Co. Advocates v. UDB SCCA No.2/1997** and added; ‘that a litigant who relies on the provision of Art. 126(2)(e) must satisfy court, that in the circumstances of the particular case before court it was not desirable to pay undue regard to a relevant technicality. Art 126(2) (e) is not a magic wand in the hands of a defaulting litigant”.

Read **Athanassus Kivumbi Lule vs. Hon. Emmanuel Pinto CA const. Petition No. 5/1995** for the principle that Art. 126(2)(e) was not intended to wipe out rules of procedure of courts but the rules should be applied as hand maids of justice depending on the circumstances.

Art. 126(2) is not of general application and will only be invoked in fitting circumstances. Read **Tororo Cement Co. Ltd vs. Frokina International Ltd SCCA No. 2 of 2001**. –Art. 126 was not meant to encourage sloppy drafting of pleadings.

1.5 Subject Matter of Adjudication of Civil Procedure

It is a cardinal doctrine of jurisprudence that a court of law will not adjudicate hypothetical questions – namely, those concerning which no real, live dispute exists, or one which is purely academic or speculative in nature.

In the case of **Legal Brains Trust (LBT) Ltd versus Attorney General Ref. No. 10/2011 and Appeal No. 4 of 2012 (EACJ)** the East African Court of Justice Appellate division at Arusha stated as follows;

In this regard, it is a cardinal doctrine of our jurisprudence that a court of law will not adjudicate hypothetical questions- namely, those concerning which no real, live dispute exists. A court will not hear a case in the abstract, or one which is purely academic or speculative in nature-about which there exists no underlying facts in contention. The reason for this doctrine is to avoid the hallow and futile scenario of court engaging its efforts in applying a specific law to a set of mere speculative facts. There must be pre-existing facts arising from a real live situation that gives rise to, for instance, a breach of contract, a tortuous wrong, or other such grievance on the part of one party against another. Absent such a dispute, the resulting exercise would be but an abuse of the court's process."

In the case of **Uganda Telecom Limited Versus Wand Telecom Limited HCCA No. 28/2015** the judge cited Musota Stephen J in *An Application for Judicial Review between Julius Maganda vs. National Resistance Movement High Court Miscellaneous Application No. 154 of 2010* with the learned judge having this to say;

"Courts of law do not decide cases where no live dispute between parties are in existence. Courts do not decide cases or issue orders for academic purposes only. Court orders must have practical effects. They cannot issue orders where the issues in dispute have been removed or merely no longer exists". That this position was confirmed by the Court of Appeal in the case of *Human Rights Network for Journalist and Another vs. Uganda Communications Commission &*

Others Miscellaneous Cause No. 219 of 2013. That it would appear clear that the instant appellant is engaged in an exercise in futility for it is evident that the main cause from which the instant appeal arise are no longer in existence and the rights of the parties have since been determined. That to peruse an appeal on matters which have since lost its backbone would in my view be an exercise in futility and thus merely academic and would add no value to the jurisprudence of the courts.

1.6 Standard of proof in civil cases

It is trite law that proof in civil matters which is sufficient to justify a finding of fact is on the balance of probabilities. In the case of **Nsubuga vs. Kavuma [1978] HCB 307** it was held that in civil cases the burden lies on the plaintiff to prove his or her case on the balance of probabilities.

Section 101(1) of the Evidence Act (Cap.6) provides that whoever desires any court to give judgment as to any legal right or liability on the existence of facts which he or she asserts must prove that those facts exist.

In the case of **Baluku & Anor vs Bwambale HCCA 49/2016** held that in all civil cases the burden of proof lies on the plaintiff or appellant to prove their case on a balance of probabilities. A party can only be called to dispute or rebut what has been proved by the other side. This is so because the person who alleges is the one who is interested in court believing their contention. [See *Nsubuga vs. Kavuma [1978] HCB 307*, *Sebuliba vs. Co-op Bank (1982) HCB 19* and *Lugazi Progressive School & Ors (2001-2005) HCB 121*.

Meaning of balance of probabilities

The civil standard of proof is on a balance of probabilities. Saying something is proven on a balance of probabilities means that it is more likely than not to have occurred.

In the case of **Kala vs Ogobilo Civil Appeal No. 0009 of 2014** Justice Mubiru stated that it is trite law that in civil matters which is sufficient to justify a finding of fact is on the balance of probabilities. The meaning of this standard was explained by **Lord Birkenhead L.C. in Lancaster v Blackwell Colliery Co. Ltd 1918 WC Rep 345**, thus:

‘If the facts which are proved give rise to conflicting inferences of equal degree of probability so that the choice between them is a mere matter of conjecture, then, of course, the applicant fails to prove his case because it is plain that the onus in these matters is upon the applicant. But where the known facts are not equally consistent, where there is ground for comparing and balancing probabilities as to their respective value, and where a reasonable man might hold that the more probable conclusion is that for which the applicant contends, then the Arbitrator is justified in drawing an inference in his favour.’ That this standard is satisfied if, and only if, the court upon considering the evidence adduced by the party on whom the burden lies, alongside all the other evidence before it, believes that the existence of the fact sought to be proved is so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it does exist. Where a reasonable man might hold that the more probable conclusion is that, for which the plaintiff contends, then the court is justified in making a finding in the plaintiff’s favour.

Standard of proof of fraud.

The proof of fraud requires a standard beyond the balance of probabilities. In the case of **Sebuliba versus Coop bank Ltd (1987) HCB 130**, it was stated that;

‘The standard of proof in fraud cases is beyond mere balance of probabilities required in ordinary civil cases though not beyond reasonable doubt as in criminal cases.’

In the case of **Kazzora vs. Rukuba SCCA No. 13 of 1993** Order JSC held that fraud must be strictly proved; and although the standard of proof may not be so heavy as to require beyond reasonable doubt, something more than a mere balance of probabilities is required.

Similarly, in **Kampala Bottlers v Damanico, Civil Appeal No. 22 of 1992** Wambuzi CJ stated that fraud must not only be proved to a degree higher than a mere balance of probabilities, but must be proved against the beneficiary, either directly by actual fraud on the part of the beneficiary or indirectly with his knowledge or consent or participation in some way.

Pre-Entry Exam 2010/2011

Qn. 39 While in criminal cases, prosecution must prove a case beyond reasonable doubt, in civil suits, the plaintiff must prove the case.....”

Pre-Entry Exam 2012/2013

Qn. 50 A Plaintiff filed an application by motion instead of summons in chambers as prescribed by the relevant rules. Is the mistake fatal? Give a reason for your answer

Pre-Entry Exam 2013/2014

Qn. 50 List the courts to which the Civil Procedure Rules ordinarily apply

Pre-Entry Exam 2017/2018

Qn. 1 What is your understanding of the expression rules of procedure are handmaidens of justice?



TOPIC II (Not updated yet)

Civil litigation and Alternative Dispute Resolution (ADR).

Alternative Disputes Resolution is a process designed to help the parties amicably resolve disputes without need for formal legal proceedings. The new world order has moved away towards ADR rather than competition and rivalry. The conception of a lawyer as a gladiator who must fight to death is disappearing and is being replaced by the newer conception of a lawyer as a mediator, a problem solver, an architect and an engineer of the appropriate dispute resolution technique. This has prompted provision of the ADR at an early stage.

Parties are encouraged to use ADR procedure wherever appropriate, the goal is to preserve for the court only those disputes which are better suited by the courts and to avoid overloading and paralyzing the courts with cases that do not necessarily require the unique capabilities of courts.

When a lawyer is faced with a dispute, he need not have to run to court, his first duty is to evaluate a variety of possible actions for resolving the dispute and must advise on the options that seem appropriate for solving the problem.

Lawyers must learn about the scope of options that are available and how each works. They must learn how to use a combination of strict adjudicating rules as well as new non adjudicating techniques. He must know the alternative methods of dispute resolution and know their advantages and disadvantages.

ADR is a range of processes designed to aid the parties in resolving disputes without a need to a formal judicial proceedings and may take a form of mediation, a process by which a neutral third person facilitates communication between parties to a dispute and assists them in reaching a mutually agreed resolution of the dispute. The Judicature (mediation) rules 2013 requires courts to refer every civil action for mediation before proceeding for trial. See the essence of mediation in High Court Commercial Division, Read the case of **Betuco (U) Ltd & Anor. Vs. Barclays Bank of Uganda Ltd HCT-00-CC-MA-0507-2009.**

It may take the form of Arbitration and conciliation. Arbitration is a process in which a third party who is neutral and knowledgeable in the area of dispute after hearing evidence and arguments of the parties in a relatively informal hearing makes a binding decision resolving a dispute. See, the Arbitration and Reconciliation Act Cap 4. EADB Vs. Ziwa Hotcultural Exporters Ltd [1997-2000] UCLR 247; Fulgencious Munghereza vs. Price Water House Coopers [1997-2000] UCLR 45; see the attitude of courts towards parties compliance with arbitration clauses.

Mediation and arbitration at conferencing and the significance of scheduling conference, see; **Tororo cement Co. Ltd vs. Frokina International Ltd SCCA No. 2 of 2001.** *Tsekooko JSC holding that O.11CPR provides for the holding of a scheduling conference in civil cases and that the requirement is mandatory. That the principal objective being to enable court to assist parties to dispose of cases expeditiously by sorting out points of agreement and disagreement*

or assessing the possibility of mediation, arbitration and other forms of settling a suit. See; Stanbic Bank Ltd Vs. Uganda Cros Ltd SCCA 4/2004.

ADR is necessary for the following reasons;

- i) For a speedy trial and resolution of disputes. Parties are involved in finding a common ground. Resolution of disputes is bound to be quick and acceptable by the parties as opposed to a conventional trial.
- ii) ADR reduces the case load in court
- iii) ADR reduces the legal costs of parties. It is cheaper in terms of expenses and eases the pressure on the public expenses as the state will commit lesser funds on the judiciary
- iv) ADR serves to enhance public satisfaction with the judiciary as parties participate in ensuring that the decision arrived at is beneficial to them. Resolution is tailored to each person's needs.
- v) ADR makes it easier with parties to comply with resolutions with which they participated.
- vi) Even where ADR may not resolve the dispute conclusively, it may serve to narrow the dispute and tailor the remaining litigation procedure.
- vii) Unlike conventional litigation, ADR focuses on substantial issues. In practice the Centre for Arbitration and Dispute Resolution has been created to conduct the dispute resolution. It is closely linked to the Commercial Division of the High Court that it complements its work although it is not part of the court institutionally.
- viii) Enables privacy

When all these methods of resolving disputes fail then the parties return to litigation.

TOPIC III

THE STRUCTURE & COMPETENCE OF COURTS -JURISDICTION OF COURTS:

Read;; Article 139 (1) Constitution, S.14 Judicature Act

Read; also the Arbitration & Conciliation Act Cap 4

Read; The Employment Act 2006

Read; Jurisdiction of Registrars of the High court; O.50 CPRs and Judicial Powers of Registrars (Practice Direction No. No.1 of 2002

Read; Kuloba; Judicial Hints on Civil Procedure

Read; The Magistrates Courts (Magisterial Areas) Instrument No.45/2007

The Magistrates Courts (Magisterial Areas) Instrument Jan/20 17

The High Court (Circuits) Instrument No.20/2004

Meaning of Jurisdiction of Courts

Any person proceeding to defend his rights in the courts of law otherwise referred to as litigation has to take into account certain factors before commencement. The first aspect is about jurisdiction. Jurisdiction in simple language means the power of court or a judge to hear and entertain an action , matter or other proceedings *Alamanzani Zziwa v Angello Kintu HC MIS app No 37/1993; See also; Mukasa v Muwanga HC Misc App No. 31 / 1994.*

In the case of **Uganda Revenue Authority (URA) vs. Rabbo Enterprises (U) Ltd & Anor SCCA No. 12 of 2004** the Supreme Court defined the term jurisdiction as

defined in Words and Phrases Legally defined, Volume 3, I-N at page 13 to mean; *Authority which court has to decide matters that are before it or take cognizance of matters presented in a formal way for its decision. The limits of this authority are imposed by statute, charter or commission under which court is constituted and may be extended or restricted by the like means. If no restriction or limit is imposed the jurisdiction is said to be unlimited. A limitation may be either as to the kind and nature of the actions and matters which the particular court has cognizance or as to the areas over which the jurisdiction shall extend, or it may partake both these characteristics. If the jurisdiction of an inferior court or tribunal... depends on the existence of a particular state of facts, the court or tribunal must inquire into the existence of the facts in order to decide whether it had jurisdiction;...where the court takes it upon itself to exercise a jurisdiction which does not possess, its decision amount to nothing.* That following the above definition, it is trite principle of law that the jurisdiction of a court must be found in statute.

In the case of **Ozoo Brothers Enterprises vs. Ayikoru Milka H.C.C.Revision No. 2 of 2016** Justice Mubiru stated that Jurisdiction is a term of comprehensive import embracing every kind of judicial action. The term may have different meanings in different contexts. It has been defined as a limit imposed on the power of a validly constituted court to hear and determine issues between person seeking to avail themselves of its process by reference to the subject matter of the issue or to the persons between whom issues are joined or to the kind of relief sought (*See: A.G of Lagos State v Dosunmu (1989) 3 NWLR pt. 111, pg. 552 SC*) It therefore means and includes any authority conferred by the law upon the court to decide or adjudicate any dispute between the parties or pass a judgment or order.

Competence, Composition of Courts and their Establishment

A court must have both jurisdiction and competence in order to be properly seized of a cause or matter.

In the case of **Erias Lukwago Lord Mayor KCCA Versus AG & KCCA Civil Application No. 06/2014 (SC)** it was held that the Supreme Court has no jurisdiction to entertain an appeal from a decision of a single justice of an appeal given the express provisions of section 12 Judicature Act. That the right of Appeal from Court of appeal to the Supreme Court is provided for under s.6(1) J.A. The quorum of the Court of Appeal is provided in Art. 135(1) in constitution of un even number not being less than 3 members of the Court. That while the quorum of court of Appeal is three judges, section 12 J.A enables a single judge of Court of Appeal to exercise any power vested in the Court of Appeal in any interlocutory cause or matter before the Court of Appeal. That a person dissatisfied with a decision of a single justice shall be entitled to have matter determined by a bench of there justices of the Court of Appeal. The substantial issue was whether a decision or order of a single judge of the Court of Appeal is appealable to the Supreme Court. It was held that such an appeal is not possible because of section 12(2) J.A. That the appropriate action the applicant can take is to refer the matter to a bench of three judges of the Court of Appeal for review. That bench has powers to vary, reverse or confirm the decision of a single judge. Thereafter, the applicant can appeal to the Supreme Court against the decision of the three judges of the Court of Appeal.

In the case of **Ozuu Brothers Enterprises vs. Ayikoru Milka H.C.C.Revision No. 2 of 2016** Justice Mubiru stated that a court must have both jurisdiction and competence in order to be properly seized of a cause or matter. That whereas jurisdiction is a creature of a statute and is the power conferred on a court by statute or the constitution, a court is competent when;

- 1) It is properly constituted with respect to the number and qualification of members

- 2) The subject matter of the action is within its jurisdiction and there is no feature in the case which prevents the court from exercising its jurisdiction (such as limitation or lack of capacity of the parties)
- 3) The action is initiated in compliance with the rules of procedure
- 4) Any condition precedent to the exercise of its jurisdiction has been fulfilled.

Sources of Jurisdiction.

Jurisdiction of a court is not a matter for implication but must be prescribed by law. The jurisdiction of court of record is set out in the constitution and such courts can appropriately determine matters falling within their jurisdiction. ; In the case of *Ahamed Kawooya Kangu V Bangu Aggrey Fred and Anor [2007] HCB 35 SC*. Justice Bart Katureebe held that jurisdiction of the Court is not a matter of implication but must be prescribed by law.

Courts are established directly or indirectly by the constitution and their respective jurisdictions are accordingly derived from the constitution or other law made under the authority of the constitution. *Baku Raphael Obudra and Obiga Kania v AG SC court. App No. 1/2005 Mulenga JSC* held that courts are established directly or indirectly by the constitution and that their respective jurisdiction are accordingly derived from the constitution or other laws made under the authority of the constitution.

Jurisdiction and Pleadings

In pleadings, it is a requirement that the parties plead facts which bestow jurisdiction upon the court;-O.7 r 1 (f).

In the case of James **Fredric Pool Nsubuga C/o. Kizito & Co. Advocates vs. A.G H.C.C.S No. 1296/87** Justice Okello (as then he was) held that O.7r1 (f) CPR clearly

imposes on the plaintiff a duty to state in his pleadings facts showing that the court has jurisdiction in the matter and a mere assertion by the plaintiff in the pleadings that the court has jurisdiction is not enough, the important thing is that facts showing that the court has jurisdiction must be stated in the pleadings. This view was applied in *Alexander Mutongole V NYTIL* CA No. 94 of 1968(1971) HCB 114; See also *Bisuti V Busoga District Admin* HCCS No. 83/1969

Where a court entertains a matter falling outside its constitutional or statutory mandate, it will be assuming jurisdiction not given to either by Parliament or any other law; A court cannot and should not exercise jurisdiction not given to it by law; *Athanasus Kivumbi Lule v Hon. Emmanuel Pinto* CA const. Petition No. 5 /1995-the court found that a court cannot confer jurisdiction upon itself and where a court that has no jurisdiction entertains the matter, any proceedings arising there from is a nullity.

No court can confer jurisdiction upon itself and if it does, such proceedings are a nullity, and it is well established principle of the law that judgment of a court which acts without jurisdiction is a nullity. *Desai v Wansaw (1967) EA 351*

However, the courts are obliged and mandated to exercise their respective jurisdiction in accordance with the law: *Makerere University V Rajab Kagoro [2008] HCB 103*

General rule on Jurisdiction in Civil Matters:

S.5 CPA. Any court shall subject to the provisions of this Act have jurisdiction to try all suits of civil nature excepting suits of which its cognisance is expressly or impliedly not barred by the law. *Read and Compare S. 208 of the MCA.*

Pecuniary and Geographical Jurisdiction.

Jurisdiction constitutes both geographical and pecuniary jurisdiction; *Abbey Semakula V Eldad Rubarenzya [1996] II KALR 22 Mangalita Namirembe V Kalamatu Tebukola [1995] IIIKALR 84;*

Geographical jurisdiction, 'Lex lousu rule', S.12 CPA provides that suits are instituted where the subject matter is situate subject to the pecuniary or other factors in law. Pecuniary jurisdiction is also provided for under S.4 CPA that the Act shall not operate to give court jurisdiction over amount in excess of pecuniary limit.

SIKIA

Jurisdiction of local council Courts.

Jurisdiction of local council courts is regulated by the local council Act 2006 that sets out the hierarchy of local council courts from L.C.1 to L.C. III and subsequently to the Chief magistrates Court.

Section 10 of the Local Council Courts Act provides for the legal jurisdiction of L.C courts.

Local council court have jurisdiction for the trial and determination of

- (a) Causes and matters of a civil nature specified in the Second Schedule to this Act provided the value of the subject matter in dispute does not exceed one hundred currency points (UGX.2,000,000/-.) These include; Debts, Contracts, Assault or assault and battery, Conversion, Damage to property, and Trespass
- (b) Causes and matters of a civil nature governed only by customary law specified in the Third Schedule and not restricted by the monetary value of the subject matter in dispute. These include; disputes in respect of land held under customary tenure,

disputes concerning marriage, marital status, separation, divorce or the parentage of children, disputes relating to the identity of a customary heir, and Customary bailment.

Read; Joweria Nalukwago v Admin. General HCC No 102 /1995 / 1997 IU KALR 139 for the principle that Local council courts exercising jurisdiction in land disputes relating customary tenure are not restricted by the monetary value of the subject matter.

In the case of **Alanyo & Anor vs. Angut & Anor HC Civil Appeal No. 0025/2009** held that the jurisdiction of local council courts regarding land matters is provided for under s. 10 of the local council Act, 2006 and the 3rd schedule to the Act restricts jurisdiction to customary land. That the proceedings in the LC II were null and void abinitio for lack of jurisdiction as the subject matter of the suit was title land in Gulu municipality. Much as the agreement described it as customary land, the fact remains it was not a customary land. LCII court has original jurisdiction in case it was a customary land of which it was not. That a court without jurisdiction cannot make any legally binding orders.

(c) Causes and matters arising out of infringement of bye-laws and Ordinances duly made under the Local Governments Act;

(d) matters specified under the Children Act;

(e) matters relating to land.

Section 11 of the Local Council Courts Act provides for where to institute suits.

That every suit shall be instituted in the first instance in a village local council court, if that court has jurisdiction in the matter, within the area of whose jurisdiction—

- (a) the defendant actually resides at the time of the commencement of the suit;
or
- (b) where the cause of action in whole or in part arises; or
- (c) in the case of a dispute over immovable property, where the property is situated.

However S.76A (1) of the Land (Amendment) Act 2004 provides as follows;

“Notwithstanding the provisions of Sections 5,7 and 29 of the Executive Committee (Judicial Powers) Act, the parish or Ward Executive Committee Courts shall be courts of first instance in respect of land disputes.”

Justice Musota Stephen stated considering the jurisdiction of Local Council court in the case of **Mutonyi Margaret Wakyala & Ors Vs. Tito Wakyala & Ors HCT-04-CV-CR-0007-2011** stated as follows;

Jurisdiction is determined by S.10 and 11 Local Council Courts Act (LCCA) and by implication S.32 which determines how appeals lie from LC.I to LC.II to LC.III etc. But more specifically, jurisdiction of LC Courts in land matters is conferred by S.76A (1) of the Land (Amendment) Act 2004.

It provides “Notwithstanding the provisions of Ss 5,7 and 29 of the Executive Committee (Judicial Powers) Act, the parish or Ward Executive Committee Courts shall be courts of first instance in respect of land disputes.” That S.5, 7 and 29 are similar to S.10, 11 and 32 of the LCCA which amended the Executive Committee (Judicial Powers) Act.

The issue was Whether S.22 (5) of the Local Council Courts Act confers upon LC.III Court powers to determine land disputes as a court of first instance and If so, how does that affect S.76A of the Land (Amendment) Act, 2004 and how does it affect the jurisdiction of the LC.II Courts.”

That the law which establishes and outlines the composition of Local Council Courts is The Local Council Courts Act 2006. This Act has to be read together with The Local Council Courts Regulations 2007 which lays down the procedure to be followed while filing cases in the local council courts and how the hearing of the said cases have to be conducted in the respective courts. That under S.10 LCCA, subject to any other written law every local council Court shall have jurisdiction for the trial and determination of---

- a) Causes and matters of a civil nature specified in the second schedule to the Act. The second Schedule lists the matters as. 1. Debts 2. Contracts 3. Assault of Assault and battery 4. Conversion 5. Damage to property 6. Trespass.
- b) Causes and matters of a civil nature governed by customary law specified in the third schedule and these are (i) disputes in respect of land held under customary tenure; (ii) disputes concerning marriage, marital status, separation, divorce or the parentage of children; (iii) disputes relating to the identity of a customary heir; (iv) customary bailment.
- c) Causes and matters arising out of infringement of bye laws and ordinances duly made under the Local Government Act.
- d) Matters specified under the Children Act.
- e) Matters relating to land.

That S.10 LCCA goes ahead to specify the pecuniary jurisdiction for matters specified in the second schedule to be of a value not exceeding one hundred currency points and those in schedule three to be of unrestricted monetary value. According to the first schedule of the LCCA a currency point is equivalent to twenty thousand shillings. That S.11 of the LCCA provides for where to institute suits thus:- “(1) *Every suit shall be instituted in the first instance in a village local council court if that court has jurisdiction in the matter.....*”

That this jurisdiction envisages territorial and pecuniary jurisdiction and location where the defendant actually resides at the time of commencement of the suit or where the cause of action in whole or in part arises; or in the case of immovable property, where the property is situated. Therefore regarding whether an LC.III Court has original jurisdiction, the answer is found in Regulation 32 of the Local Council Courts Regulations which amplifies S.11 LCCA. It provides that:- “(1) *Every suit shall be instituted in the first instance in a village local council court, within the area of whose jurisdiction the defendant resides at the time of the suit or where the cause of action in whole or part arises or where the immovable property in dispute is located.* That neither S.22 (5) LCCA nor Ss.10 and 11 confer upon the LC.III Court powers to act as a court of first instance. The jurisdiction of the LC.III Court is found in S.32 which deals with the mode of appeal. A party dissatisfied with a judgment or order of a local Council Court may subject to the provisions of S.32 or any other written law appeal against the judgment or order (b) *of a parish local council court to a town division or sub-county council court.*” That the respective LC.III Courts acted without jurisdiction when they heard the above cases as courts of first instance. Their actions were null and void *ab initio* and will be set aside on that account respectively.

That regarding the second question (*If so, how does that affect S.76A of the Land (Amendment) Act, 2004 and how does it affect the jurisdiction of the LC.II Courts*) this has to be considered in light of the enactment of the Local Council Courts Act which has been extensively considered herein above *vis-a-vis* S.76A of the Land Amendment Act 2004 which gave the LC.II Courts power to handle land matters as courts of first instance. That there appear to be concurrent in land matters given to both the LC II Courts under the Land Amendment Act and LC I Courts the Local Council Act because the latter Act did not expressly repeal the former. S.10 (1) of the LCCA commences thus:-

“(1) Subject to the provisions of this Act and of any other written law every local council court shall have jurisdiction for the trial and determination of matters relating to land.”

That it is trite law that where an earlier statute is in conflict with a later one, the later statute prevails. This is a conclusion based on the assumption that the Legislature keeps abreast with the needs of the time and is wiser as time passes. ***Uganda Revenue Authority v. Uganda Electricity Board HCT-CA-001-2006***. In ***Re Williams (1887) 36 ch. D 537 at 578*** held, “*And it appears to be a Constitutional necessity as well as an established rule of construction that the last utterances of the legislature should prevail over earlier statutes inconsistent with it.*”

That the Land (Amendment) Act No.1 of 2004 did allow the LC.II Court to handle matters concerning land disputes as a court of first instance removing jurisdiction from the LC.I Court. However by virtue of S.11 of the LCCA No.13 of 2006 this matter was revisited by the Legislature and as of now jurisdiction was restored to the LC.I Court. Suits have to be commenced in the LC.I court as a court of first instance. While there is no express repeal of the powers of the LC.II Courts under the Land

Act in the LCCA, there is implicit or implied repeal thereof rendering the powers of LC.II Courts stale which cannot be enforced by any court of law. Therefore the LCCA which is a later statute repealed S.76A of the Land Act by implication thus removing powers from the LC.II Courts acting as court of first instance in land matters. It also completely reformed the appeal process in land matters as provided for under S.32 of the LCCA. Consequently LC.II Courts no longer have jurisdiction in land matters as courts of first instance.

However Read and Compare with the case of **Dima DomnicPoro Vs Inyani & Anor (CIVIL APPEAL No. 0017 OF 2016)** Justice Mubiru held that at the time of these proceedings, the law in force was *The Local Council Courts Act, 2006* which under section 11 (1) provided as follows; (1) Every suit shall be instituted in the first instance in a village local council court if that court has jurisdiction in the matter.....” That the implication of that provision was that the proceedings ought to have begun at the L.C.1 Court level. However, section 76A of *The Land Act* (introduced by section 30 of *The Land (Amendment) Act, 2004*), divested L.C. I Courts of primary jurisdiction over disputes in land, providing instead that “the Parish or Ward Executive Committee Courts shall be the courts of first instance in respect of land disputes.” That the impact of that amendment was considered in *BusingyeJamia v. Mwebaze Abdu and another, H. C. Civil Revision No. 33 of 2011*, which was cited with approval by the Court of Appeal in *NalongoBurashe v. Kekitiibwa, C. A. Civil Appeal No. 89 of 2011* where it was held that as a result of that amendment, the L.C.II Court had original jurisdiction to hear and determine disputes over land.

Jurisdiction of the Magistrates’ Courts:

See the distinction between pecuniary and geographical jurisdiction of Magistrate’s courts; See also considerations in determining the court that has jurisdiction.

In the case of **Ozuu Brothers Enterprises vs. Ayikoru Milka H.C.C.Revision No. 2 of 2016** Justice Mubiru stated that the subject matter civil jurisdiction of Magistrate Courts is conferred by s. 208 of the MCA Cap 16 which provides as follows;

‘Every magistrate’s court shall, subject to this Act, have jurisdiction to try all suits of a civil nature excepting suits of which its cognizance is either expressly or impliedly barred; but every suit instituted in a magistrate’s court shall be instituted in the court of the lowest grade competent to try and determine it. ‘ That the import of this provision is that the civil jurisdiction of Magistrate Courts is all embracing except to the extent it is excluded by an express provision of law or impliedly by such a provision. Magistrate courts have no authority to preside over cases where their jurisdiction is explicitly or implicitly barred [by statute]. They have inherent jurisdiction to hear any civil matter unless it is expressly or impliedly excluded from their jurisdiction. This general rule is subject to various limitations found in sections 207, 212-215 MCA relating to the nature, value, or the locality of the subject matter, the residence of the defendant, and so forth.

That as regards the jurisdiction of District Labour officers and Magistrate’s courts in civil matters relating to employment disputes the following can be deduced,

- i) In case of an employment dispute which does not relate to enforcement of any rights under the Employment Act, 2006, the remedy lies only in the Magistrate’s Courts.
- ii) In case of an employment dispute arising out of a right or liability under the general or common law and not under the Employment Act, 2006, the remedy lies only in the Magistrate’s Courts
- iii) In case of an Employment dispute arising exclusively out of a right or liability under the Employment Act, 2006, and not the general or common law, the jurisdiction of the Magistrate’s court is concurrent and alternative to

that of the District Labour Officers, leaving it to the election of the plaintiff concerned to choose his or her remedy for the relief which is competent to be granted in a particular remedy available from either forum

- iv) In case of an employment dispute arising out of a right or liability under the Employment Act, 2006, as well as the general or common law the remedy lies only in the Magistrate's Courts.

Pecuniary Jurisdiction of the Magistrates' Courts:

MCA as amended limits the pecuniary jurisdiction of Magistrates courts to matters whose pecuniary value does not exceed 50m/= for a Chief Magistrate, 20/= for Grade 1 Magistrate and 500,000/= for Grade II Magistrate. See s. 207 (1) a-c

In the case of **National Medical Stores Vs Penjuines Ltd HCT - 00 - CC - CA – 29**, the issues for determination was; whether the trial Magistrate had powers to award damages and interest over and above the pecuniary jurisdiction, and secondly, whether the damages awarded by the Magistrate were excessive. Justice Geoffrey Kiryabwire first considered whether the Magistrate, considering the subject matter of the suit, had the jurisdiction to try the suit in the first place. That the principle of law is that jurisdiction is a creature of statute. In the case of **BAKU RAPHAEL OBUDRA & ANOR V AG (SCCA No. 1 of 2005)**, the Supreme Court found that courts are established directly or indirectly by the constitution and that there respective jurisdictions are accordingly derived from the constitution or other laws made under the authority of the constitution. Furthermore, in the case of **ATHANANSIAS KIVUMBI V HON. EMMANUEL PINTO (Const Pet No.5 of 1998)**, the court found that a court can not confer jurisdiction upon itself and where a court that has no jurisdiction entertains the matter, any proceedings arising there from are a nullity. That Section 207(1) (b) MCA [as amended by Act No. 7 of 2007]

provides for the pecuniary jurisdiction of a Magistrate Grade 1 as follows; “(1) *Subject to this section and any other written law, the jurisdiction of magistrates presiding over magistrates courts for the trial and determination of causes and matters of a civil nature shall be as follows—*

(b) a magistrate grade I shall have jurisdiction where the value of the subject matter does not exceed twenty million shillings;” In addition to this, S. 4 of the Civil Procedure Act (Cap 71) provides as follows; “*Pecuniary jurisdiction. Except insofar as is otherwise expressly provided, nothing in this Act shall operate to give any court jurisdiction over suits the amount or value of the subject matter of which exceeds the pecuniary limits, if any, of its ordinary jurisdiction.*”

That the general damages were not quantified and therefore, could not be used as a basis for calculating the value of the subject matter. The value of the subject matter as noted in the plaint was the sum of Ushs 13,914,088/= which fell within the pecuniary jurisdiction of the Magistrate Grade one. That the trial magistrate had the jurisdiction to entertain the suit. What was left for determination was whether the award made by the Magistrate was in excess of his pecuniary jurisdiction. That the magistrate made the following orders in the judgment; *Special damages of Ushs 13,914,088/=,.... general damages of Ushs 25,000,000/= would suffice, Interest rate of 25% per annum on (a) above from 25th October 2007 till payment in full is awarded, Interest rate of 25% per annum on (b) above from 25th October 2007 till payment in full is awarded, Costs of the suit to be paid by the defendant to the plaintiff, Ushs 200,000/= being security for costs paid in MA No. 63 of 2010 to be refunded to the representative of the plaintiff.*”

That it is a settled principle of law that costs are not considered in determining the pecuniary jurisdiction (**ABBAY SEMAKULA v. ELDAD RUBARENZYE** [1996] 2 KALR 22). With regard to damages on the other hand, the law is that a magistrate cannot award damages over and above the pecuniary jurisdiction. In the case of **JOSEPH KALINGAMIRE V. GODFREY MUGULUSI** [2003] KALR 408, at

410, **Musoke-Kibuuka J** found as follows, “*It follows, therefore, that when a Grade one magistrate makes an order awarding general damages the sum of which exceeds the monetary jurisdiction of Ushs 2,000,000/= (now Ushs 20,000,000/=) set by the law in S. 219 of the Magistrate’s Court’s Act 1970 (now S. 207(1) (b) MCA as amended by Act No. 7 of 2007), such magistrate would be exercising jurisdiction not vested in him.*” That the learned Judge further found that, “In **MUBIRU & ORS V KAYIWA** (1979) HCB 212 (CA), the Court of Appeal of Uganda held that, “an order made without jurisdiction is a nullity”. In the instant case, since the order of the trial magistrate awarding general damages in the sum of Ushs 2, 400,000/= to the plaintiff was made without appropriate jurisdiction. It was a nullity ab-initio.” That basing on the authority, the order of the trial magistrate awarding general damages of Ushs 25,000,000/= in excess of the pecuniary jurisdiction of a grade one magistrate was erroneous in law and, is a nullity.

In the case of **Koboko District Local Government v Okujjo MISCELLANEOUS CIVIL APPLICATION No. 0001 OF 2016**, the contention was that the Magistrate Grade One exercised a jurisdiction not vested in it in law or acted in the exercise of its jurisdiction illegally or with material irregularity or injustice when it entered a consent judgment awarding a sum of shs. 85,000,000/= which is beyond its pecuniary limit of shs. 20,000,000/= set by s 207(1) (b) of *The Magistrates Courts Act* (as amended by Act No.7 of 2007), which provides for the pecuniary jurisdiction of a Magistrate Grade One Court. The question to be determined in this application was whether **having been sanctioned by a court and become a determination of the controversy which has the force and effect of a judgment, a contract in which parties make reciprocal concessions in order to resolve their differences and therefore avoid litigation or where litigation has already commenced, bring it to an end, is subject to the rules of pecuniary jurisdiction**

of courts and therefore can be challenged for lack of such jurisdiction. This has to be determined within the context of a revision. Justice Stephen Mubiru stated that *One of the “policies of court” is the question of jurisdiction that it is at once fundamental and over-arching as far as any judicial proceeding is concerned. That Jurisdiction is the first test in the legal authority of a court and its absence disqualifies the court from exercising any of its powers.* Jurisdiction means and includes any authority conferred by the law upon the court to decide or adjudicate any dispute between the parties or pass judgment or order. A court cannot entertain a cause which it has no jurisdiction to adjudicate upon. That Jurisdiction must exist at the time of filing suit or latest at the commencement of hearing. It cannot be conferred at the time of delivery of judgment for Jurisdiction does not operate retroactively. That whereas the general pecuniary jurisdiction of a Magistrate Grade One court is limited to shs 20,000,000/= set by s 207(1) (b) of *The Magistrates Courts Act* (as amended by Act No.7 of 2007), by virtue of s 207 (2), the court has unlimited jurisdiction with regard to disputes relating to a cause or matter of a civil nature governed only by civil customary law. That where there is a high likelihood that general damages, when assessed may be beyond the pecuniary jurisdiction of the magistrate’s court, the correct procedure is to invoke s. 218 (1) (b) (i) of *The Magistrates Courts Act*, and / or s 18 (1) (b) (i) of *The Civil Procedure Act* and apply for the suit to be transferred to a court with competent jurisdiction, otherwise if the court proceeds to award damages beyond its pecuniary jurisdiction, the award will be a nullity. That *Jurisdiction cannot be conferred on court by consent of the parties and any waiver on their part, cannot make up for the lack of jurisdiction (See Assanard and Sons (U) Ltd v East African Records Ltd [1959] EA 360).* In *Edith Nantumbwe Kizito and three others v Miriam Kuteesa C.A. Civil Application No. 294 of 2013*, the Court of Appeal cited the following authorities with approval; The Canadian case of **Manitoba Windmills v Vigier [1909] 18 Man LR.427**, where it was held that; “*It is not competent*

for parties to a contract to agree to confer jurisdiction upon court of any judicial division other than one in which under statute any action arising out of a breach of the contract may be brought, and if such action is brought in any other court the judge should refuse to try it on the ground of want of jurisdiction” And the decision of **Bramwell LJ** in **Foster vs Usher Wood [1877] 3 Ex D1** in which he stated as follows: *‘It is argued that consent has waived the objection. I do not understand what is meant by waiving the objection. In this case the Registrar had no jurisdiction to make the order or try the action in a country court. The parties cannot by consent confer a jurisdiction which does not exist’*. It was also held by **Lord Asher MR** in **Re, Aylmer Exp. Bischoftsheim [1887] 20 QB 258** that; *The consent of parties cannot give the court jurisdiction which it does not otherwise possess*. The English Court of Appeal in *Hinde v. Hinde [1953] 1 ALL ER. 171* held as follows:- *‘The parties could not by consent give the court a jurisdiction which it did not otherwise possess while the Court would recognize a consensual arrangement between the parties it would not lend its process to enforce an order that which was drawn up in the form of an order but which in reality was the statement of an agreement in terms which the court would have no jurisdiction to impose.’* Court finally held that the Grade One Magistrate’s Court at Koboko exercised its jurisdiction irregularly and illegally when it allowed the parties to enter a consent judgment which was beyond its pecuniary jurisdiction rendering that consent judgment to be an agreement contrary to the policy of court. The judgment and decree was a nullity and are therefore set aside.

- ❖ Chief Magistrate to have unlimited jurisdiction in disputes relating to conversion, damage to property and trespass see s. 207 (1) (a).
- ❖ In all causes or matters governed only by civil customary law, the jurisdiction of the Chief Magistrate and Magistrate Grade 1 shall be unlimited Read s.207 (2) MCA as amended.

- ❖ See Hierarchy in terms of filing suits in respective magistrate's courts; *read s.208 MCA. Read also The Transfer of Jurisdiction to Magistrates Courts Circular No. 1/2007*

Geographical Jurisdiction of the Magistrates' Courts:

Geographical jurisdiction is dependent on the subject matter of the suit; Read; sections 11 to 15 of the CPA and S. 212 to 215 of the MCA; ***Read; The Magistrate's Courts (Magisterial Areas) Instrument 2017***

In the case of **Remo v Juma HC CIVIL REVISION No. 0006 OF 2015**; Justice Mubiru stated that local jurisdiction is the power of the court with reference to the territory within which it is to be exercised. That the territorial jurisdiction of magistrates' courts is delimited by way of statutory instruments issued from time to time by the Minister of Justice, after consultation with the Chief Justice, in accordance with section 2 of *The Magistrates Courts Act*. That according to section 6 of *The Magistrates Courts Act*, every magistrate appointed under the Act is deemed to have been appointed to, and have jurisdiction in, each and every magisterial area but may be assigned to any particular magisterial area or to a part of any magisterial area by the Chief Justice. And according to section 3 of *The Magistrates Courts Act*, within each magisterial area, magistrates' courts are designated and are known as the magistrates court for the area in respect of which they have jurisdiction. That the purpose of these provisions is to ensure that the authority of the various magistrates is limited to certain well defined territory. That a close scrutiny of the provisions relating to geographical jurisdiction reveals that local jurisdiction is vested in the court and not in the magistrates. As such, when the magistrate is transferred, no transfer of territorial jurisdiction results since this continues to be vested in the court by virtue of the power of defining or apportioning the territory over which a particular magistrate

exercises jurisdiction vested in the Chief Justice. That it is the practice that judicial officers transferred, who at the time of transfer had cases pending before them where the proceedings had advanced to that level, are expected to carry the files with them to their newly assigned territorial jurisdiction and write the judgments. But when the judgment is ready, it is delivered not at the court of their new assignment, but rather the court where the evidence was recorded by the magistrate who wrote the judgment or by the successor magistrate. All subsequent proceedings are undertaken by that court within whose local jurisdiction the suit was filed and tried. That this practice is consistent with section 7 (1) (a) of *The Magistrates Courts Act* which requires a magistrate's court to sit "at any place within the local limits of its jurisdiction." If a magistrate's court is to sit at any place outside the local limits of its jurisdiction, then section 7 (1) (b) of *The Magistrates Courts Act* requires that written authorization of the Chief Justice be sought and that authorization will be given only if it appears to the Chief Justice that the interests of justice so require, in which case the proceedings may be held in such building as the Chief Justice may, from time to time, assign as the courthouse. That the alternative is for invoking the powers of the Chief Magistrate under section 171 of *The Magistrates Courts Act* (in respect of criminal cases) or that of the High Court under section 128 of *The Magistrates Courts Act* (in respect of civil suits) to have the suit transferred from one court to the other. When any of these provisions is invoked, territorial or local competency will not be a prerequisite, necessary or required of the court to which the suit is transferred. That in absence of written authorization of the Chief Justice or transfer by the Chief Magistrate or the High Court, a magistrates' court seized with jurisdiction over a matter cannot transfer any aspect of the disposition of the matter, including the delivery of judgment and post judgment proceedings, from one local jurisdiction to another, unless authorised to do so by law or in accordance with the law, such as where a decree is sent to another

court for execution under Order 22 rules 4 to 7 of *The Civil Procedure Rules*. Otherwise, a Court without local jurisdiction is not competent to dispose of any aspect of the suit. To have jurisdiction is to have the power to inquire into the fact, to apply the law and to declare the relief in a regular course of a judicial proceeding. Jurisdiction does not in any way depend upon the regularity of its exercise or upon the rightfulness of the decisions made. The authority to decide a case and not the decision rendered therein is what makes up jurisdiction. Therefore, a court taking cognisance of any aspect of the suit, in violation of the law governing territorial jurisdiction and transfer of decrees for execution, is an abuse of process. That providing for the jurisdiction of courts on the basis geographical location is meant to give structure to the system of justice by ensuring that there is orderly disposal of cases. It also helps to create efficiency within the system by reducing conflicting cognisance of cases by different courts at the same time. It is for this reason that every suit should ordinarily be instituted in the Court of the lowest grade competent to try it as required by section 208 of *The Magistrates Courts Act*. This explains why in decisions such as *Pastoli v Kabale District Local Government Council and others* [2008] 2 E.A 300, *Kagenyi v Musiramo and another* [1968] E.A.43 it has been decided that an order of court made without jurisdiction is a nullity and that an order for the transfer of a suit from one court to another cannot be made unless the suit has been in the first instance brought to a court which has jurisdiction to try it. Therefore that a suit instituted in a court without jurisdiction is incompetent and cannot be transferred to the High Court for hearing and determination. These decisions though have all addressed the pecuniary rather than the local limits of the jurisdiction of courts. That the four aspects of civil jurisdiction; the nature and pecuniary value of the subject matter, personal, temporal, and territorial are of equal importance. A court that lacks one lacks jurisdiction and competence entirely to try the suit, irrespective of whether or not it is operating

within the same Chief Magisterial area. Proceedings undertaken by a court without jurisdiction are a nullity, be it subject matter (*rationemateriae*), personal (*ratione personae*), temporal (*rationetemporis*), or territorial (*ratione loci*).

Jurisdiction of the High Court

- ❖ Jurisdiction derived from Article 139(1) of the constitution. High court vested with unlimited original jurisdiction in all civil and criminal matters subject to the constitution. **Read; *Larco Concrete Products Ltd vs Transair Ltd (1988 – 90) HCB 80***; The High court in its civil and criminal jurisdiction is vested with power over all persons and over all causes and matters in Uganda criminal or civil and in spite of the contract being made in England, that alone could not oust the jurisdiction of the high court unless it has been stipulated in the agreement to that effect in no uncertain terms.
- ❖ The constitution read together with the Judicature Act S.14 (1) grant the High court original jurisdiction in all matters. In the absence of a provision in the contrary, the High court has unlimited jurisdiction; ***Eastern and Southen African Trade and Anor vs Hassan Basajjabalaba and Anor HCT -00-CC-CS – 0512 – 2006***;
- ❖ The High Court can't dismiss a matter before it merely because other lower Magistrates courts may have jurisdiction to entertain it; ***See consequences; Read P. Munyagwa Vs Lucy Kamujanduzi [1972] EA, 332 (U).[1972] HCB 117***. In this case a suit which could have been commenced in a magistrate court was commenced in the High Court. Counsel for the defendant objected that the suit was bad on ground of jurisdiction. **Held:** That the High Court is a court of unlimited jurisdiction, which could entertain any action and this, does not render

the suit defective. That all what the plaintiff would suffer was to be awarded costs at the rate of the lower court scale.

- ❖ **NB;** as general rule: Actions must be instituted in lower courts otherwise a party who files the suit in a higher court, where a lower court has jurisdiction, the party would stand the risk of a low award of costs.

In the case of *Francis s/o Mwijage V Boniface s/o Kabalemeza Civil Appeal 84-68(HCD) 341*; the Plaintiff sued the defendant in District Court for refund of bride price allegedly paid by him to defendant. The trial court found that no bride price had been paid and dismissed the suit. On appeal, a question arose as to the jurisdiction of the District Court to try the suit. Court held that the law applicable to the suit is customary law, which under section 14 of the Magistrates Court Act, Cap 537, is justifiable in Primary Courts. Under section 13 of the Civil Procedure Code, every suit shall be instituted in the court of the lowest grade competent to try it, which was, in this case, a primary court. Section 13, however, is a rule of procedure, not of jurisdiction [citing Mulla, 1934 10th Edition, pp.98-100], and does not deprive higher courts of jurisdiction which they already possess. Further, under section 35(2) of the Magistrates Courts Act, District courts have limited original jurisdiction in proceedings save where it is conferred exclusively on some other court; and section 14 of the Act does not appear to give primary district courts exclusive jurisdiction over suits involving customary law. Thus the district court had jurisdiction to try the suit.

Read and compare s. 208 MCA

- ❖ The Jurisdiction of the High Court in Tax Disputes

The proper procedure is that all tax disputes must first be lodged with the Tax Appeals Tribunals and only taken before the High Court on appeal.

In the case of **Uganda Revenue Authority (URA) vs. Rabbo Enterprises (U) Ltd & Anor SCCA No. 12 of 2004** the Supreme stated that Article 139 of the constitution provides that the high court shall subject to the provisions of the constitution, have unlimited jurisdiction. That on the other hand Article 152(3) of the constitution provides that parliament shall make laws to establish tax tribunals for the purposes of settling tax disputes. Pursuant to the constitutional provision, parliament enacted the Tax Appeals Tribunals Act cap 354. That the High court exercises its unlimited jurisdiction subject to other provisions of the constitution. One of such provision envisaged in Art 139(1) is Art 152(3) of the constitution which provides for Tax Appeals Tribunal. That it is the Constitution itself which, through Article 152(3) limit the original jurisdiction of the High court and empowered the Tribunal with jurisdiction. The powers of the High court are subject to the constitution. That the proper procedure therefore is that all tax disputes must first be lodged with the Tax Appeals Tribunals and only taken before the High Court on appeal. That in the case of **The Commissioner General Uganda Revenue Authority vs. Meera Investments, SCCA No. 22 of 2007** Kanyeihamba JSC held inter alia that the case was about the conflict between the provisions of the Income Tax Act and the Value Added Tax Act, and that their interpretation and nature of application is a matter for a court of law and not for the parties or a tax tribunal. That having found that the case was not concerned with the mere assessment, demand and refusal to pay tax but with the interpretation of the relationship between the Uganda Revenue Authority Act and the Uganda Investment Act, the need to first present the matter to the Tax Tribunal did not arise. That the holding of the learned justice of the supreme Court that Meera dispute properly belongs to the jurisdiction of the High court and not of a tax tribunal, and that Art 139(1) of the Constitution which gives the High Court unlimited original jurisdiction in all matters remain superior and mandatory, must therefore be

understood in the context of the case. Consequently that the decision in Meera Investment is distinguishable from the matter before them since the matter in issue before them constituted a tax matter / dispute.

Professor Dr. Lilian Tibatemwa –Ekirikubinza further took note that in Meera Investments, Kanyeihamba JSC did not discuss the meaning of the phrase ‘subject to the provisions of the constitution’ found in Art. 139(1) of the constitution, a phrase that places the powers of the High court within a wider context of the constitution as an entire document. That further still, the learned justice did not address his mind to the cardinal rule that while adjudicating matters touching the constitution, a court must read the constitution as an integrated whole with no particular provision destroying the other. That Art. 139 deals with the power of the High court to resolve disputes and so does Art. 152(3). That for the two identified lapses, Meera decision was made per incurium and not bound to follow the Meera decision. That she was obliged to proceed under Art 132(4) of the constitution which provides that the supreme court may, while treating its own previous decisions as normally binding, depart from a previous decision when it appears to it right to do so.

Unlimited Original Jurisdiction of the High Court in Employment Disputes

The High Court has unlimited original jurisdiction in employment matters.

In the case of **201 Former Employees of G4S Security Services Uganda Ltd vs. G4S Security Services Uganda Ltd SCCA No. 18/2010** the Supreme Court held that s.93(1) of the Employment Act clearly intended to oust jurisdiction of the ordinary civil courts in Uganda by ensuring that employment matters are only handled by labour officers and industrial court. That it is evident that these sections conflict with Art. 139(1) of the constitution in so far as they limit the unlimited original jurisdiction of the High Court to hear employment matters as a court of first instance.

That Art. 139(1) of the constitution confers on the High Court unlimited jurisdiction and the position is reiterated in section 14(1) of the Judicature Act.

In the case of **Hilda Musinguzi vs. Stanbic Bank (U) Ltd HCCS No. 124/2008**, the issue was whether the High court has original jurisdiction in employment matters in light of the provisions of the Employment Act 2006. Court held that the unlimited original jurisdiction of the High Court granted under Article 139(1) of the Constitution cannot be ousted by granting of jurisdiction by a statute to another body.

In the case of **Uganda Broadcasting Corporation v Kamukama (MISC. APPLICATION NO. 638 OF 2014)** Court held that it is trite law that jurisdiction of the High Court is exercised in conformity with a written law as provided in the Judicature Act. Therefore by parliament enacting other subordinate legislation conferring jurisdiction to different forum to adjudicate over disputes does not in any way diminish the fact that the High Court has unlimited jurisdiction. Section 93(1) of the Employment Act 2006 provides that:- *“Except where the contrary is expressly provided for by this or any other Act, the only remedy available to a person who claims an infringement of any of the rights granted under this Act shall be by way of complaint to a Labour Officer”*. Section 94 of the same Act provides for appeals as follows: *“A party who is dissatisfied with a decision of the Labour Officer on a complaint made under this Act may appeal to the Industrial Court in accordance with the section. An appeal under this section shall lie on the question of law and with leave of the Industrial Court on the question of fact forming part of the decision of the Labour Officer”*. The import of these provisions is not that this court has no jurisdiction to entertain the respondent’s claim. This is because the Constitution of Uganda confers unlimited jurisdiction on the high court in all matters as provided in article 139 (1) of the constitution. Section 93 of the Employment Act which gives jurisdiction to the

Labour Officer does not in any way oust the unlimited original jurisdiction of the High Court. This is the position enunciated in the case of *M/s Rabo Enterprises (U) Ltd and M/s Elgon Hardware Ltd Vs Commissioner General Uganda Revenue Authority CA No. 51 of 2003* wherein the lead judgment of Okello J. A (as he then was) held *inter alia* that “An Act of Parliament cannot oust the jurisdiction of the High Court except by an amendment of the Constitution”. In the same way, the conferment of the appellate jurisdiction on to the Industrial Court does not in any way affect the original jurisdiction of the High Court. The same applies to the conferment of jurisdiction on the Labour Officer in regard to Labour disputes by the Employment Act. That much as this court has unlimited jurisdiction, if one looks at the intention of parliament in conferring jurisdiction on the Labour officer and the creation and operationalisation of the Industrial Court with appellate jurisdiction it would be prudent if these two institutions are put to good use. This is our current court policy. Avoiding these institutions would be defeating the intentions of the legislature since the Industrial Court is now operational. That it is proper to refer the matter to the Labour Officer for appropriate handling.



Unlimited Original Jurisdiction of the High Court in Disputes Subject to Arbitration Clauses

Provisions of the Arbitration and conciliation Act requiring matters subject to arbitration clauses do not oust the jurisdiction of the High Court; ***Read Pheobe Mugabi V Print Pak (U) Ltd (1994) 1 KALR 29; Kayondo V The Cooperative Bank Ltd CA No. 19/91***

However, the High Court may refer the matter to arbitration where there is a valid, operative and enforceable arbitration clause if a proper application is made by a party thereto;

In the case of ***Power and City Contractors Ltd v LTL Project (PVT) Ltd HCMA 62 of 2011*** an objection was raised on ground that the parties had by agreement undertaken to refer disputes arising out of their contractual obligation to arbitration and that as such court is enjoined by law to refer the matter to arbitration in accordance with the parties agreement. Court held that arbitration is governed by the Arbitration and Conciliation Act 2000. That section 41 of the Act presupposes that before the court can refer a dispute to arbitration it must be ‘seized of an action’. That the Court has jurisdiction to receive a suit even if the agreement binding the parties has an arbitration clause, that this is what can enable it refer the matter to arbitration unless valid exceptions exist. That the fact that the clause had been put into the consortium agreement in clear and unambiguous terms and the parties expressly agreed to submit disputes arising out of their contract to arbitration, for all intents and purposes arbitration was recognized as an effective means of solving all the disputes out of the binding contract and the clause is binding on the parties to the contract. That it was held in *National Social Security Fund and WH. Ssentongo T/A Ssentongo & Partners v Alcon International Ltd CA No. 02 of 2008* that;- ‘An arbitration clause a contract has an enduring and special effect, that if parties decide to adopt a different resolution mechanism for a particular dispute that arise under a contract, the arbitration continues in force and is not thereby totally repudiated unless there is a solid reason for doing so. Courts will always refer a dispute to arbitration where there is an arbitration clause in a contract.’ That according to Russell on Arbitration 22nd Edit Sweet & Maxwell paragraph 2-119 page 80. ‘...a party may mardon its right to arbitrate, for Example by delay or inaction, or by commencing court proceedings in breach of an arbitration agreement. However the courts are slow to find such repudiation or abandonment without very clear evidence of an intention to abandon the right to arbitrate together with reliance by the other party to its detriment. Even if the right to arbitration a particular dispute has been abandoned, that does not necessarily mean that the arbitration agreement itself has been abandoned.’

That by incorporating an arbitration clause in their contract both parties hereto for all intents and purposes recognized arbitration as effective means of solving any dispute that could arise. That reference of dispute to arbitration was not an optional clause but a binding clause.

In the case of *Fulgencious Munghereza V Price Water House Coopers Africa Central SCCA No. 18/2002 [1997-2000] UCLR 45* Jurisdiction of the High Court was contested asserting that the issue in dispute was subject to a mediation and arbitration under clause 29 of the Agreement for which procedure the respondent intended to seek stay of proceedings in the suit. The issue was whether the appellant came within the exceptions to section 41 of the Arbitration and Conciliation Act 2000. Court held that there is nothing to stop the parties referring the matter to mediation if there is a chance of it being resolved amicably. That the appellant was a party to the frame work agreement and he was entitled as a member to have this dispute resolved in accordance with the framework agreement.

In the case of *EADB V Zima Hotcultural Exporters Ltd [1997-2000] UCLR 247*; **held** that section 6 of the Arbitration and Conciliation Act, provides for mandatory reference to arbitration of matters before court which are subject to an arbitration agreement; where court is satisfied that the arbitration agreement is valid, operative and capable of being performed, it may exercise its discretion and refer the matter to arbitration.

NB; The High Court has inherent power to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court; *Aya Investments (U) Ltd V M/S Kibeedi & Co. Advocates [2008] HCB 130*

The Registrars (including Deputy Registrars/ assistant registrars of the High court also have jurisdiction over specified matters like specified interlocutory applications; Read; *Gomil (U) ltd v Latax (u) Ltd 1990 – 91 KALR 194* on whether a High court registrar or a district registrar can entertain interlocutory application such as application to grant an interim injunction.

- *Read; Jurisdiction of Registrars of the High court; O.50 CPRs*
- *Judicial Powers of Registrars (Practice Direction No. No.1 of 2002;*
- *Read; The High Court (Circuits) Instrument No.20/2004*
- *Read; Dairy Corporation V Opio [2001-2005] HCB 113 for the other functions of registrars*

Jurisdiction of the High Court in Cross-Border Transactionor matters with an international elements;

- ❖ The question that arises is whether the High Court has jurisdiction in matters having an international element.

Section 12 CPA provides for institution of suits where the subject matter situate and section 15 provides for institution of suits where the defendant reside or cause of action arose.

In the case of **Kasoma vs Sembatya CACA 78/2011** the respondent who worked in Japan bought vehicles there but later deported to Uganda. Later found that the vehicles had been disposed off and changed the frame who reported to Interpol. The vehicles were impounded by police in possession of the appellant who contended to have purchased them in Japan. On appeal the ground was whether the learned trial

judge erred in law and fact in holding that there was a subsequent failure to justice because of the matter being tried and heard in Uganda outside the jurisdiction of cause of action. Court of appeal held that the appeal arose in a chief magistrates court and appropriate to refer to the law that governs magistrate courts. Section 212 suits to be instituted where the subject matter situate and section 215 other suits to be instituted where the defendant reside or cause of action arose. That in the instant case, the cars which are the suit property where in Uganda by the time the suit was filed in court, both defendant were living in Uganda within the jurisdiction of court and the court was justified in the finding that the trial court had jurisdiction to resolve the dispute brought before the court.

In the case of *Sebagala & Sons Electric Centre Ltd V Kenya National Shipping Lines Ltd HCCS No. 431 of 1999 [1997-2001] UCLR 388* the issue was whether court had jurisdiction to entertain a matter involving the defendant which operated business outside Uganda. **Held;** that following the provisions of s.15 (3) of the Civil Procedure Act, the question of whether or not a court has jurisdiction in a matter arising from the contract is dependent on where the cause of action arose in terms of where the contract was made, or where it was performed and completed, and where payment was effected. In this case, completion of the contract was to be effected in Kampala hence the court had jurisdiction. That secondly, the defendant having filed a defence submitted to the jurisdiction of the court and could not dispute its jurisdiction at the hearing.

Read; *Larco Concrete Products Ltd vs Transair Ltd (1988 – 90) HCB 80; Eastern and Southern African Trade and Anor vs Hassan Basajjabalaba and Anor HCT - 00-CC-CS – 0512 – 2006;*

Jurisdiction of the High Court in Transactions with specific provisions on jurisdiction.

A clause to submit to the exclusive jurisdiction of the foreign court is enforceable by the High Court of Uganda. However, the High Court does not lose its jurisdiction to entertain the action if the Plaintiff can show some just cause why the proceedings should not be stayed or dismissed.

In the case of **Transtrac Ltd vs Damco Logistics (U) Ltd HCMA No. 394/2010** the applicant objected to jurisdiction and sought a declaration that the High Court had no jurisdiction over him in respect of the subject matter of the claim for relief or remedy sought by the respondent. In that case the governing clause provided as that the agreement shall be governed, construed and enforced in accordance with English law and the parties submit to the exclusive jurisdiction of the English courts. Justice Madrama considered the case of *Uganda Telecom verses Rodrigo Chaco t/a Andes Alps Trading in HCMA 337 of 2008 in which Honourable Lady Justice Stella Arach, Amoko, judge of the High Court as she then was, held that the clause which provided that: "this agreement shall be construed in accordance with English law and subject to the exclusive jurisdiction of the English courts", was clear and certain. Under that clause the parties had not only chosen English law to govern the agreement but unequivocally submitted to the exclusive jurisdiction of the English courts. She held that the High Court had no jurisdiction to adjudicate in the dispute, the parties having chosen the exclusive jurisdiction of the English courts. She further held that the fact that the agreement was negotiated, performed and possibly breached in Uganda was immaterial. She held that the clause ousted the jurisdiction of the High Court.* The judge agreed with the holding of the judge to the extent that the parties agreed to submit to the jurisdiction of the English courts and to refer their disputes for adjudication in that forum but disagreed that the contract ousted the jurisdiction of the court. His decision was based on the construction of article 139 clause 1 of the constitution which confers unlimited original jurisdiction in all matters on the High Court. Furthermore the unlimited original jurisdiction is reproduced under section 14 of the Judicature Act.

Furthermore he felt bound by the decision of the Court of Appeal in *David Kyadondo versus Cooperative Bank civil appeal number 19 of 1991* where it was held that the Cooperative Societies Act and the section that under which it was provided that all disputes shall be referred to arbitration did not oust the jurisdiction of the High Court. Consequently it his finding that the court has jurisdiction to interpret and enforce the contract of the parties in a similar way as it does with the provisions for the parties to submit their dispute to arbitration. In other words the court can insist that the parties should abide by the contract unless the Plaintiff can justify filing the action in the High Court.

In the case of **Rapid Shipping and Freight Uganda Ltd and another versus Copy Lines Ltd HCMA 216 of 2012** the applicants objected to jurisdiction. In overruling the objection, the court held that the clause providing for the submission of any dispute to the English courts was contained in the bill of lading which was a unilateral document signed by the ship owner or master or other agent of the ship owner which states that certain specified goods have been shipped in a particular ship and which purports to set out the terms on which the goods have been delivered to and received by the ship. It was held that there was no evidence of the consensus to submit any dispute relating to the carriage of goods to the exclusive jurisdiction of the English courts and not other courts. The court therefore held that in the absence of evidence of consensus between the parties, the objection to jurisdiction was overruled for being premature.

In the case of **Huadar Guangdong Chinese Co. Ltd v Damco Logistics Uganda Ltd HCCS NO 4 and 5 of 2012** concerned contract between the plaintiff and defendant for the transportation of goods from Kampala to Hong Kong, Haiphong, China. Clause 54 (b) of the standard trading conditions provides: "These conditions,

and any claim or dispute arising out of or in connection with the services in respect of services provided anywhere else in the world, are subject to English law and the exclusive jurisdiction of the English High Court of Justice in London." The ruling arose from a preliminary objection to the Plaintiff's suit by the Defendant ground that the High Court of Uganda has no jurisdiction to try the suit. The issue was whether the High Court of Uganda has jurisdiction in the matter? Justice Madrama held that the Plaintiff has not moved the court justifying filing the action in Uganda. Further held that in cases of arbitration clauses, the Arbitration and Conciliation Act gives grounds for justifying the filing of an action in the High Court irrespective of the arbitration clause and found the rationale useful and applicable to clauses of the parties agreed to submit their dispute to the exclusive jurisdiction of the foreign court. That section 5 of the Arbitration and Conciliation Act permits the court not to refer the dispute to arbitration where the agreement is null and void, in operative or incapable of been performed. Secondly that it is not in fact any dispute between the parties with regard to the matters agreed to be referred to arbitration. The Plaintiff must show that the Defendant is using the clause to submit their disputes to the exclusive jurisdiction of the foreign court as a means of avoiding liability. In the absence of the above, the High Court will enforce the contract.

Jurisdiction of the High Court in Transactions where Defendants are subject to Diplomatic Immunity

If a government or one of its departments goes into the market places of the world and engages in straight forward commercial transactions, then it is within the territorial jurisdiction of the courts of the foreign sovereign and can't claim immunity in respect of such transactions.

In the case of **Wokuri v Kassam [2012] EWHC 105 (Ch)** the claimant worked for the applicant, who was the Deputy Head of Mission at the Ugandan High Commission in London, as a chef and domestic servant and had made claims that the applicant had not issued her with an employment contract and had failed to pay her salary in full. The applicant alleged that the claimant was employed under an existing contract when she worked for the applicant in Uganda and following a previous hearing Newey J had directed that there be a hearing to determine whether or not a valid contract had been signed. The applicant then sought to stop that hearing by issuing an application to dismiss the claims for want of jurisdiction on the grounds that the relationship "falls within the Defendant's 'functions' as a 'member of the Ugandan mission' in the UK" and therefore subject to diplomatic immunity. In this judgment Newey J reviews the relevant provisions of the Diplomatic Privileges Act 1964 and the relevant authorities. He observes that while a diplomat may have immunity even when they have moved to another post (as is the case here) that immunity, following *Swarna*, "does not apply to actions that pertain to [a diplomat's] household or personal life and that may provide, at best, 'an indirect' rather than a 'direct ... benefit to' diplomatic functions". He then dismisses the application largely because it was agreed that the claimant had been employed in 1998 by the applicant, before she was a diplomat, and therefore any contract could not have been entered into "in the exercise of ... functions as a member of" the High Commission of Uganda to the United Kingdom". There was also no evidence that the claimant's job changed on arrival in the UK.

Read *Eddie Rodrigues V The British High Commission SCCA NO.8/87*; Read *Ndibarekera V The United States of America HCCS NO.786/97*; *Somali Democratic Republic v Treon SCCA No.6 of 1998*; *Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402 OF 2002*

Jurisdiction of the High Court in case of Conflict b/n International law & Municipal Law

The jurisdiction of the High Court extends only to the boundaries of Uganda. The High Court should refrain from interpreting the provisions of the international Acts for purposes of uniform application of the law in all the Partner States.

In the case of **Testimony Motors Ltd. Vs. Commissioner Customs Uganda Revenue Authority (Civil Suit No. 04 Of 2011) ((Civil Suit No. 04 Of 2011))** the **issue was** whether the matter was properly before the High Court in terms of jurisdiction and forum. The plaintiff's application sought to interpret the provisions of the East African Community Customs Management Act 2004. Justice Madrama held that the East African Community Customs Management Act, 2004, is an Act of the East African Community and the Act is meant to apply to all the Partner States of the East African Community and it takes precedence over national laws. The East African Community Customs Management Act, 2004 is for all intents and purposes a creature of the East African Community Treaty and therefore part of international law. Its provisions have to be uniformly applied across all the Partner States. For that reason and in theory, the interpretation of its provisions by the High Court of Uganda would if allowed affect the application of the law for all the Partner States a proposition which is without jurisdiction. That the High Court should refrain from interpreting the provisions of the Act for purposes of uniform application of the law in all the Partner States of the Community. The jurisdiction of the High Court extends only to the boundaries of Uganda. The High Court of Kenya, Tanzania, or the courts of Rwanda and Burundi may if different interpretations are permitted come up with different interpretations of the same provisions. Though the East African Community Customs Management Act, 2004 is an Act of Parliament, it is just a domestication of International treaty Law for application and enforcement by

national agencies of Partner States in the East African Community Treaty. That for purposes of consistency, questions as to interpretation of the Act should be left to the organs of the East African Community Treaty so that the enactment has a uniform application. Obviously for purposes of enforcement, the High Court of Uganda reads and interprets the East African Community Customs Management Act 2004. However this interpretative jurisdiction does not involve deciding questions involving controversy as to the proper meaning of any particular provision which may be in dispute. The interpretation of the High Court should be limited to questions of enforcement of the Act. The rationale for this is obvious. The Act overrides domestic legislation in case of conflict. Its provisions are therefore international or regional in application. Its domestication by enactment by the National Parliament does not change the character of the enactment as the East African Community law. The plaintiff was at liberty to refer the questions stated for interpretation to the East African Court of Justice at Arusha.

Read Concorp International Ltd Versus Eastern & Southern Trade & Development Bank SCCA No. 11/ 2009

Objections to Jurisdiction and Procedure

Read; O. 9.r 3(1) (g) CPRs

The Defendant wishing to object/ dispute to the Jurisdiction of court may give his/her intention to defend the proceedings or apply within the time limited for service of a defence to court.

In the case of **Ozuu Brothers Enterprises vs. Ayikoru Milka H.C.C.Revision No. 2 of 2016** Justice Mubiru stated that any objection as to jurisdiction being so central to the authority of the court to undertake proceedings in a case before it, must be raised at the earliest opportunity so that the court does not engage in a futile exercise (*see Owners of the Motor Vessel 'Lillian S' v Caltex Oil (Kenya) Ltd [1989] KLR 1*). That any

issue of jurisdiction has to be considered first so that in the event of the court coming to the conclusion that it has no jurisdiction, the exercise of going into the merits of the suit would be unnecessary.

That the procedure of raising an objection to the jurisdiction of court in civil matters is provided for under O. 9 r 3 (1) CPR that a defendant who wishes to dispute jurisdiction of the court in the proceedings shall give notice of intention to defend the proceedings, within the time limited for service of the defense, apply to the court for a declaration that in the circumstances of the case the court has no jurisdiction over the defendant in respect of the subject matter of the claim or relief or remedy sought in the action or such other relief as may be appropriate and the application shall be by summons in chambers. That it follows that instead of filing a written statement of defense, the applicant should have instead filed notice of intention to defend the proceedings and thereafter a chamber summons supported by affidavit, within fifteen days of receipt of summons to file a defense, seeking a declaration that in the circumstances of the case the court had no jurisdiction over the defendant in respect of the subject matter of the claim or relief or remedy sought in the action. The consequence of this failure is found in O.9 r 3(6) CPR that the filing of the defense by a defendant shall, unless the defense is withdrawn by leave of the court be treated as submission by the defendant to the jurisdiction of the court in the proceedings.

That O.9 r 3(6) CPR relates to challenges of competence (which is a procedural aspect of jurisdiction) rather than subject matter, personal, territorial or temporal jurisdiction (which is substantive jurisdiction). This is because O.9 r 2 CPR provides that filing of a defense by the defendant is not to be treated as a waiver by him or her of any irregularity in the summons. Reading the two provisions together (i.e. O9 r 3(6) and O 9 R 2), the conclusion is inevitable that filling a defense in the circumstances of this nature, is submission to the procedural rather than the substantive jurisdiction of the

Court. A party who files a defense in those circumstances is not precluded from raising the issue of jurisdiction in the defense or as a preliminary point of law. That while a litigant may submit to a procedural jurisdiction, he or she cannot confer subject matter jurisdiction on a court where the Constitution or a statute or any principle of common law is to the effect that the court does not have jurisdiction

- ❖ **Note;** Where a defendant does not file a defence, it is deemed that he/she excluded him/herself from court and has no locus standi before the court; and can not sustain any application in the proceedings. *AG & UCB V Westmont Land (Asia) Bhd & Others [1997-2001] UCLR 191*
- ❖ The filing of a defence where the defendant has filed an application under O.9 r. 3 is not treated as a submission to the jurisdiction unless court orders so or dismisses the application. *Mark Graves V Balton (U) HCMA No.158 of 2008.*

Effect of proceeding before a court with no jurisdiction;

It is settled law that a judgment of a court without jurisdiction is a nullity and as such it is something which a person effected by it was entitled to have it aside ex debits justitiae.

In the case of **Ozuu Brothers Enterprises vs. Ayikoru Milka H.C.C.Revision No. 2 of 2016** Justice Mubiru stated that a Court either has the requisite jurisdiction or it does not. It is well settled principle of law that the court cannot confer upon itself jurisdiction where there is none and neither can the parties confer jurisdiction upon a court by consent, either express or implied (e.g. by absence of objection at appropriate

time). A decree without jurisdiction whether it is pecuniary or territorial or whether it is in respect of the subject matter of the action strikes at the very authority of the court to pass any decree, is therefore a nullity and may be questioned at any stage including execution or even in collateral proceedings. It is such a defect which cannot be cured even by consent of parties or failure to comply with the procedure for raising an objection to the jurisdiction of courts in civil matters provided for under O. 9 r 3 (1) CPR. It is a fundamental principle that is also well established that a decree passed by a court without jurisdiction is a nullity and that its invalidity could set up whenever and wherever it is sought to be enforced or relied upon, even at the stage of execution and even in collateral proceedings. A defect in competence is extrinsic to adjudication, hence a challenge to jurisdiction can be entertained at any stage of the proceedings, at first instance, or on appeal even by way of revision sought by any of the parties and even by the court itself *suomotuto* (on its own motion), to prevent an obvious miscarriage of justice.

In the case of **Stephen Mubiru vs. Annet Mubiru HC Revision Cause No. 4 of 2012** an application was to set aside a decision of the Magistrate Court Grade 1 on ground that the land was valued over Ugx. 280,000,000/-. Court held that the respondent's failure to successfully challenge the lower court's jurisdiction did not and could not itself have vested jurisdiction in the trial court which did not have the same. That even if the trial magistrate had overruled the applicant on the matter, it still would not have conferred jurisdiction on his court. That it is settled law that a judgement of a court without jurisdiction is a nullity and something which a person affected is entitled to have set aside *ex debito iudiciali*. See *Karoli Mubiru & 21 Others V Edmond Kayiwa* [1979] HCB 212; *Peter Mugoya V James Gidudu & Anor* [1991] HCB 63. That the Principal Magistrate Grade 1 exercised jurisdiction not vested in him in

entertaining and delivering judgement, his judgement in respect of the said case was therefore a nullity, set aside.

- ❖ Read; *Mubiru & vs Kayiwa (1979) HCB 212. Also read; Byanyima Winnie v Ngoma Ngime Civil Rev No. 9/2001*
- ❖ That anything done by court without jurisdiction is a nullity. **Read; *Makula International V Cardinal Nsubuga [1982] HCB;***
- ❖ Jurisdiction is a creature of the constitution and statute and where a matter is filed in a court that has no jurisdiction, it must be struck out. **Read; *Sgt Kalemara Frank vs Uganda SCCA No. 18 /94; Athanasius Kivumbi V Hon Emmanuel Pinto Constitutional Petition No. 5 of 1997***
- ❖ Note the distinction between a wrong court and a court that has no jurisdiction;

Transfer and Withdrawal of Cases:

S. 18 CPA provides for transfer and withdrawal of cases. **Read also s. 217 and 218 of the MCA;** Power exercisable by the High Court;

- ❖ Considerations include; balance of convenience of the parties, the expense involved, the interest of justice, the possibility of undue hardship. **See *Matayo K. Kaboha V Abibu Bin Abdalla (1942) 6 ULR 121 (U);***
- ❖ Cost or expense and witness are relevant considerations; **In *David Kambugu V Zikalenga Misc. Appl 36/1995[1995] KALR 48;*** Okello J held that the

Plaintiff has a right to choose his court. The expense which the plaintiff was likely to incur in transporting and maintaining numerous public officers from Kampala to Kabale to attend as witnesses was bound to be prohibitive as to deny him justice. Therefore if the application was not allowed, it would amount to shutting the plaintiff behind the doors of justice.

- ❖ A suit that is instituted in a court that lacks jurisdiction cannot be transferred and will be dismissed; *Kagenyi V Musiramo [1968] EA 43(U)*. The order for transfer of a suit cannot be made unless the suit has been in the first instance instituted in a court, which has jurisdiction. *Read; Sgt Kalemere Franck vs Uganda SCCA No. 18 /94*

In the case of **Cyprian Obbo vs. Alafari Onyango & Ors HCCA No. 130/2012** the issue was whether the duty to allocate the file to a competent magistrate lay with the Chief Magistrate. Court held that the position of the law is that a subordinate court cannot on its own initiative transfer a case to another subordinate court, or try a case which is not within its territorial or magisterial area. That in the case of **David Kabungu vs. Zikarenge High Court Misc. App. 36 of 1995 [1995] 3 KALR 48**-it was held;

‘A subordinate court has no jurisdiction to transfer a suit. On the other hand a subordinate court to which a suit is purportedly transferred by another subordinate court, if he hears the case and decides it, takes the case without jurisdiction as the case was not filed in that court nor transferred to it by the order of the High Court.’

That also in **Kigenyi v. Musiramo (1968) EA 43** *it was held that an order for transfer of a suit cannot be made unless the suit had in the first instance been brought to a court which has jurisdiction to try it.* That it was clearly right for the learned magistrate to decline the option to transfer the suit since he had no jurisdiction to try the matter, and has no jurisdiction to try the same. The suit was filed in a wrong court and could not be heard by the Chief magistrate, neither could it survive to be transferred, its natural fate was to be dismissed.

The jurisdiction of the constitutional court.

Article 137 of the 1995 constitution provides for the jurisdiction of the constitution court. Any question as to the interpretation of the Constitution shall be determined by the Court of Appeal sitting as the constitutional court consisting of a bench of five members of that court. A person who alleges that (a) an Act of Parliament or any other law or anything in or done under the authority of any law; or (b) any act or omission by any person or authority, is inconsistent with or in contravention of a provision of the Constitution, may petition the constitutional court for a declaration to that effect, and for redress where appropriate. Where any question as to the interpretation of the Constitution arises in any proceedings in a court of law other than a field court martial, the court (a) may, if it is of the opinion that the question involves a substantial question of law; and (b) shall, if any party to the proceedings requests it to do so, refer the question to the constitutional court for decision.

In the case of **The Attorney General vs Major General David Tinyefuza Supreme Court Constitutional Petition No. 1 of 1997** WW Wambuzi C.J (as by then) had this to say at page 24 of his judgment;

“In my view, jurisdiction of the Constitutional Court is limited in Article 137(1) of the constitution to interpretation of the Constitution. Put in a different way no other jurisdiction apart from interpretation of the Constitution is given. In these circumstances I would hold that unless the question before the Constitutional court depends for its determination on the interpretation or construction of a provision of the constitution, the Constitutional Court has no jurisdiction.”

The learned Chief Justice in the same judgment went on to observe as follows;-

“Indeed in the subsequent decision in Uganda Journalists Safety Committees and Anor versus Attorney General Constitutional Petition No. 6/97 (unreported) upholding an objection to jurisdiction, the Court held, quite rightly in my view as follows;-

“The Constitutional Court is thus a new Court created by Article 137 of The Constitution for the sole purpose for the interpretation of the Constitution either following a reference under Legal Notice 3 or by means of a petition under Legal Notice No. 4 of 1996. The jurisdiction of Court to entertain both matters i.e, ‘Reference’ and ‘Petition’ are derived from Article 137 of the Constitution. The Constitutional Court is therefore not a proper forum for a person seeking redress under Article 50 of the Constitution. This is clear from the provision of the Article itself...”

Read: Ismail Serugo versus Kampala City Council and The Attorney General, Supreme Court Constitutional Appeal No. 2 of 1998.

The Jurisdiction of Small claims- Judicature (Small claims procedure) rules 2011
Small claim is a civil claim whose subject matter value does not exceed Ug. Shs. 10,000,000. For example, small claims procedure can be used for matters arising out of the supply of goods, debts and rent.

S.5 of the Judicature (Small claims procedure) rules 2011 provide for the jurisdiction of small claims. It is applicable to claims not exceeding Ug.shs. 10,000,000 in value. However small claims exclude; claims exceeding Ug.shs. 10,000,000/-, claims against the government, family disputes relating to the management of an estate, contract of service and contract for service, suits for defamation, wrongful arrest, wrongful imprisonment, malicious prosecution, and seduction, petition for divorce, nullification of marriage or separation of spouse, claims concerning validity of a will, a claim in which specific performance is sought without an alternative claim for payment of damages, except in the case of a claim for rendering an account or transferring movable property and disputes arising out of a tenancy agreement not exceeding Ug shs 10,000,000/- in value.

Every suit shall be instituted in a court in whose jurisdiction the property is situated or where the defendant resides. It is only a natural person who may institute an action in court, but a body corporate may become a party to an action as a defendant.

In the case of **Lubanga vs Baina HCCR No. 13/2015** the applicant was sued in the small claims and judgement given against him of which was dissatisfied with the findings and judgement of the trial court. In an application for revision in the High court the issue was whether the trial court exercised jurisdiction not vested in

it by law and in so doing occasioned an injustice to the applicant. Court held that according to rule 5(1) of the Judicature (Small Claims Procedure) Rules SI 25 of 2011, a small claim procedure shall cover a case whose subject matter does not exceed ten million Uganda shillings and under sub rule 2 it gives exception under which this matter does not fall. Further held that according to the record of proceedings this was a claim involving a refund of the security deposit in a tenancy agreement which was equivalent to shs. 4,800,000/- and by virtue of the rules the court was within the range of jurisdiction vested.

Pre-Entry Exam 2010/2011

Qn. 42 Identify the different ways through which a matter can be taken to the constitutional court for determination.

Pre-Entry Exam 2015/2016

Qn. 46 Araali sued Akiiki in the High Court at Arua for trespass to his land at Fort Portal. Akiiki wants to raise a preliminary objection of lack of geographical jurisdiction. What should Araali do in the circumstances?

Pre-Entry Exam 2016/2017

Qn. 7 A court with supervisory civil jurisdiction over a lower court may:

- A. Write judgement for the lower court
- B. Discipline judicial officers of the lower court
- C. Appoint judicial officers of the lower court
- D. Draft rules of procedure for the lower Court
- E. None of the above

TOPIC IV.

Institution Of Suits:

The Procedure of commencing suits:

Institution of Suits:

Read; S. 19 CPA O.4 r 1, O.36, O.37, O. 52 CPRs; etc:

Definition of a Suit; See s. 2 of the CPA.

A Suit is defined under section 2 of the Civil Procedure Act (CPA) as all proceedings in whatever manner commenced.

Mansion House ltd Vs Wilkinson (1954) 22 EACA 98**Held:** A suit is any civil proceedings commenced in any manner prescribed by rules made by the Rules Committee to regulate the procedures of courts under the civil procedure Act.

Nakitto & Brothers Ltd V Katumba [1983] HCB 70; that the suit is defined as all proceedings commenced in any manner prescribed. That this included a notice of motion.

Read the case of Meera Investments Limited V Jeshang Popat Shah CACA No. 56 of 2003

In the case of **Matco Stores Ltd & 2 Ors v Muhwezi H C CIVIL APPEAL NO. 09 OF 2012** it was held that under section 2(X) of the Civil Procedure Act “suit’ means all civil proceedings commenced in any manner prescribed.” That Section 2(q) defines the term ‘prescribed’ as ‘prescribed by rules’, while the term ‘rules’ is defined in section 2(t) of the same Act as ‘rules and forms made by the rules committee to regulate the procedure of courts.’ That it would appear from the foregoing rule that the suit envisaged by section 2 of the CPA is a substantive suit as opposed to miscellaneous applications, as is the case presently. That indeed in Mityana Ginners

Ltd vs. Public Health Officer, Kampala (1958) 1 EA 339 at 342 the honourable judge drew a distinction between decrees and orders of courts in so far as they relate to the definition of a suit, and held: *“It seems clear that, whereas decrees arise only in suits, orders may arise in proceedings which are not suits, to which class of proceedings I have referred to above. If therefore, as I believe, the application to the Supreme Court was not a ‘suit’, it could not result in a decree, but only in an order.”* That bringing the *ratio decidendi* in **Mityana Ginners Ltd vs. Public Health Officer, Kampala** (supra) home to the application, clearly the orders of Magezi J. in miscellaneous application No. 38 of 2009 arose from civil proceedings that do not constitute a suit. The proceedings from which those orders accrued were an application for the discharge of a temporary injunction not considered to be a suit for purposes of the bar of *res judicata*.

S.3 CPA; In all cases when there is no special procedure resort should be had to the Civil Procedure Rules and its application can only be excepted by procedure contained in any other Act. The first thing is to look for any specific provision to the contrary, e.g. the constitution in constitutional matters, Acts like the Divorce Act etc.

Suits to be commenced in manner set out in Rules (S. 19 CPA)

General rule on procedure of instituting suits is laid down in S.19 CPA; Every suit shall be instituted in such a manner prescribed by the in the *rules* [CPR; *rules apply as far as practicable to all matters arising under the CPA*;

Meera Investments Ltd V Jesgang Popat Shah CACA No. 56 of 2003

Relevant steps / Considerations before commencement of suits

Concurrence of Civil and Criminal Proceedings; In some instances, an aggrieved party may be in a dilemma as to whether to take civil or criminal proceedings against the intended defendant.[examples include negligent driving and bounced cheques] The question is whether it is possible to pursue criminal and civil proceedings concurrently arising from the same claim;

A criminal court may order compensation for material loss or personal injury under sections 197 and 126 of the Magistrates Court Act and Trial on Indictment Act respectively. This is not a bar to a subsequent civil action for damages and the principle of *res judicata* shall not be a defence in an action for recovery of damages and other reliefs. A person is at liberty to set both criminal law and civil law in motion to recover damages. However at the time of awarding any compensation in any subsequent civil suit relating to the same matter, the court hearing the civil suit shall take into account any sum paid or recovered as compensation under this section.

Read *Esso Standard (U) Ltd V Mike Nabudere HC No. 594/1990*. The defendant applied to stay civil proceedings on ground that there were pending criminal proceedings derived from the same facts; *Karokera J*: Held that the plaintiff's demand for damages in the civil suit did not in any way prejudice the criminal proceedings in the criminal court and there is no justification for staying the civil suit. Additionally, the plaintiff was only to prove his case on the balance of probabilities and the resultant judgement had no evidential value in the prosecution of the defendant, since there, proof was required beyond reasonable doubt. In any case, police investigations take too long to be completed and such delay should not constitute a bar against the plaintiff's rights of action. The common law rule that barred commencement of a civil suit during the pendency of criminal proceedings is no longer applicable to Uganda

In the case of **Kakira Sugar Works Ltd v Patrick Masombo & Anor HC CIVIL SUIT NO. 120 OF 2004** the “*plaintiff*” company sought the recovery of Shs.1, 429,000,000/= (*One billion four hundred and twenty nine million Uganda Shillings*) the 1st and 2nd “*defendants*” respectively the company’s former employees. They are sued jointly and severally for alleged fraudulent acts committed during the course of their employment from 1995 and 2000, which include making false claims for money paid on account of weigh bridge and motor vehicle road licensing fees to Uganda Revenue Authority (URA), obtaining fake URA receipts as well as fraudulently altering approved requisitions or accountabilities. Concerning their acquittal in the Criminal Court, Justice Bashaija held that with regard to the criminal charges of embezzlement, acquittal of the defendants in the criminal case does not exonerate them from civil liability, if any, or stop the plaintiff from seeking a civil remedy. The civil suit and criminal case are primarily different cases under different laws and procedures, and the standard of proof in criminal cases is quite higher than that in civil cases. Therefore, acquittal of the defendants for the offence of embezzlement does not necessarily prohibit the plaintiff from instituting civil action for recovery of monies lost due to their fraudulent actions, if evidence is adduced and their liability proved to the required standard.

The other relevant consideration relates to the relevancy and effect of Criminal proceedings /judgement in Civil Suits; Read; ***Erinesti Ochieng V Obedo Nyambito Civil Appeal No. 92 of 1973***; it is trite and rudimentary that proceedings in a criminal case could not be used to prove a cause of action in a civil suit – although the record in the criminal court case could be used for certain purposes such as contradicting a witness by facing him with what he stated in the trial of a criminal case.

Notice of intention to sue and Statutory Notice

Read: R.39 Advocates Remuneration and Taxation of Costs rules

Read: Section 22 of the Administrator General's Act

Read: The Civil Procedure & Limitation (Miscellaneous Provisions) Act Cap

Notice of intention

There is no mandatory legal requirement to serve an ordinary notice of intention to sue. S.19 CPA, all suits to be commenced in the manner provided in the rules; The Civil procedure rules have no provision for Notice of intention to sue.

However, where no notice of intention is served, taking into circumstances of the failure, the plaintiff may be penalised in costs. In **Wam bugu V Public Service Commission [1972] EA 29, Chanan Singh** J held that a notice of intention should always be given in all cases unless the plaintiff's interests are likely to be harmed by the notice if given, the rationale being that failure to serve a notice could prejudice the position of the defendant in as much as he would wish to settle or admit liability and avoid court action. Costs would therefore not be awarded to the plaintiff.

R.39 Advocates Remuneration and Taxation of Costs rules provides that ***'If the plaintiff in any action has not given the defendant notice of his or her intention to sue, and the defendant pays the amount claimed or found due at or before the first hearing, no advocate's costs shall be allowed except on an order of the judge or magistrate'***.

Section 22 of the Administrator General's Act provides that ***'if any suit be brought by a creditor or any other claimant against the Administrator General, the creditor or***

claimant shall be liable to pay the costs of the suit unless he or she proves that not less than one month previous to the institution of the suit he or she had applied in writing to the Administrator General, stating the amount and other particulars of his or her claim, and had given such evidence in support of the claim as, in the circumstances of the case, the Administrator General was reasonably entitled to require.'

Note; The ordinary Notice of intention to sue is served on any intended defendant other than those specified in *The Civil Procedure & Limitation (Miscellaneous Provisions) Act Cap 72*

Notice of Dishonour Cum Notice of Intention to Sue

In suits founded on dishonoured negotiable instruments/ cheques, the failure to take relevant steps to serve a notice of dishonour of a bill of exchange may discharge the drawer from liability; Such failure disentitles the payee from the right of recourse against the drawer on the bill/cheque; **Read S.50(2) Bill of Exchange Act cap 68;**

In the case of **Obed Tashobya v DFCU Bank Ltd HCT-00-CC-CS-742-2004;** held **that** although the usual recourse is to return the dishonoured bill to the customer, where it is not available like in this case, other evidence may be relied upon as proof and/or notice of dishonour. That the telex message and the personal communications of the dishonour to the plaintiff by the defendant are sufficient evidence that the suit cheque was dishonoured.

In **Nanji Khodabhai –Vs- Sohan Singh [1957] EA 291**, a cheque was dishonoured on 25/4/1955 and notice of dishonour was not given until 29/4/1955. The Court

held that the defendant was discharged because there were no special circumstances to justify any delay and notice should have been given on 26/4/1955.

See also Simba Motors Limited V John Sentongo & Anor HCT-00-CC-CS-0733-2000

Note; An ordinary Notice of intention to sue is by way of a formal letter.

Statutory Notice

Requirement to Serve a Statutory Notice

Section 2 (1) of the Civil Procedure and Limitation (Miscellaneous Provisions) Act Cap. 72 provides for Notice prior to suing. It thus provides;-

“After the coming into force of this Act, notwithstanding the provisions of any other written law, no suit shall lie or be instituted against—

(a) the Government;

(b) a local authority; or

(c) a scheduled corporation,

until the expiration of forty-five days after written notice has been delivered to or left at the office of the person specified in the First Schedule to this Act, stating the name, description and place of residence of the intending plaintiff, the name of the court in which it is intended the suit be instituted, the facts constituting the cause of action

and when it arose, the relief that will be claimed and, so far as the circumstances admit, the value of the subject matter of the intended suit.”

In the case of the ***Commissioner General and Uganda Revenue Authority Vs. Meera Investments Ltd*** Supreme Court civil appeal number 22 of 2007 the judgment of court delivered by Honourable Kanyehamba J.S.C. at page 10 of the judgment decided that:

"in my opinion, it is only in the relation to what the law specifically provides for as its purpose and functions that the Uganda Revenue Authority may sue and be sued in its corporate name. In this respect and as a scheduled corporation, it would be entitled to the right of receiving a statutory notice under the Civil Procedure and Limitation (Miscellaneous Provisions) Act cap 72..."

Also in ***Pamba Vs. Coffee Marketing Board (1975) HCB 369***, The Plaintiff sued the defendant as scheduled corporation for damages for personal injuries. The defendant denied liability contending that the suit was incompetent, as no statutory notice had been served as required under S.1 of the CP and Limitation Miscellaneous Provisions Act. Held that; *"by virtue of section 1 of CPL (Misc Provisions) Act 1969, no suit can be instituted against a scheduled corporation unless written notice has been delivered or left at the office of Secretary of the corporation. Where service of statutory notice is denied, the onus of proof of service of such notice is on the plaintiff...where no such evidence is shown, the procedure was not followed, no suit could lie or be instituted against the defendant corporation..."*

Rationale of Statutory Notice.

The object of a statutory notice is to give government the opportunity of settling the claim or enable government to investigate the alleged cause of complaint.

In the Supreme Court case of **Kampala Capital City Authority v Kabandize & 10 Ors (CIVIL APPEAL No. 013 of 2014)** the Supreme Court stated the rationale for service of the Statutory Notice that it was to enable a statutory defendant investigate a case before deciding whether to defend it or even settle it out of court and held that it is still relevant and should not be done away with. That an individual does not require as much time as the Attorney General or Statutory body to investigate a matter before defending it. That while the individual may have the facts on which to defend a suit readily available, the Attorney General has to consult and seek instructions from the various departments of Government before deciding on whether or not to defend a suit.

Mandatory or Directory Requirement

The requirement for service of statutory notice is directory and need not vitiate a suit. In the Supreme Court case of **Kampala Capital City Authority v Kabandize & 10 Ors (CIVIL APPEAL No. 013 of 2014)** the Supreme Court stated that the question that remains to be answered is whether the desirability of the requirement necessarily makes it mandatory. Court held that failure to serve the Statutory Notice does not vitiate the proceedings and Article 126 (2) of the Constitution is instructive. That the provision is directory and need not vitiate a suit. The facts and circumstances of each case must be taken into account. That a party who decides to proceed without issuing the Statutory Notice only risks being denied costs or cause delay of the trial if the Statutory defendant was unable to file a defence because she required more time to investigate the matter. That the emphasis should not be on the failure to serve the Statutory Notice but on the consequences of the failure so long as both parties are able to proceed with the case and Court can resolve the issues. That parliament could not have intended that a plaintiff with a cause of action against a Statutory defendant

would be totally denied his right to sue even where the defendant knew the facts and was able to file a defence as it was in this case simply because of the failure to file a statutory notice. Further held that it would be an absurdity to interpret Section 2 of the Civil Procedure (Miscellaneous Provisions) Act to mean that even where the Government, a Local Authority or a Scheduled Corporation was already aware of the facts of the claim and may even have taken steps to deal with the claim, it can then turn around and plead that because no Statutory Notice was served on it, the claim is vitiated and no suit can be filed in court against it. That this would be a case where legal interpretation of a statute defeats substantive justice. That could not have been the intention of the legislature.

Similarly in special circumstances, the word 'shall' in the Act had been earlier construed as directory and not mandatory; *Sarah Kafrika Mbonabukya V NPART Tribunal Case No. 24 of 1999*. A suit filed before the NPART Tribunal against NPART, which was a scheduled corporation. Objection raised that the suit was premature and unmaintainable because the notice of 60 days prescribed under the CP & Limitation [Miscellaneous Provisions Act was not given to the defendant.[An ordinary notice of intention to sue had been served]. **Held;** that the provision requiring service of a statutory notice must be construed in relation to the NPART Statute and its objects. The Act was a special enactment, which in case of conflict must be given effect over the other enactments, which existed before it in order that its special scheme may be attained. That the court would thus construe the word 'shall' as directory in order to achieve the objects of the NPART Act. That insufficiency of the notice was a procedural irregularity, which could only be said to be fatal if it would cause substantial prejudice;

NB; scheduled corporations may be included in the Act by a subsequent Statutory Instrument. Read; *Sarah Kafrika Mbonabukya V NPART Tribunal Case No. 24 of 1999*.

See the Civil procedure and Limitation (Miscellaneous Provisions) Act (Amendment of schedule 3) order inserting the Electricity Regulatory Authority, (ERA)

- ❖ Also note that; not all statutory corporations/corporation are scheduled corporations.
[See Administrator General]
- ❖ Note the distinction between a company, a statutory corporation and a scheduled corporation.

Form of a statutory Notice;

Section 2(2) of the civil procedure and limitation miscellaneous provisions Act provides for the form of the statutory notice. The written notice shall be in the form set out in the Second Schedule to the Act, and every plaint subsequently filed shall contain a statement that such notice has been delivered or left in accordance with the provisions of the section.

The notice shall state the name, description and place of residence of the intending plaintiff, and intending defendant, nature of relief sought, the name of the court in which the suit is to be filed and facts constituting the cause of action, value of subject matter.

See ***Rwakasoro Vs Attorney General HCCS No. 711 of 1977***. The plaintiff filed a suit against the A-G and sent a statutory notice to the A-G but the defendant's counsel raised a preliminary point of law that the notice did not disclose a cause of action. Unless sufficient facts are disclosed in the statutory notice Government may not know what the claim is about. In the instant case the information given in the notice was meaningless because nothing was shown about the deceased and the accident to make the government vicariously liable for damages. It was good practice for the advocate to annex a copy of the intended plaint to the statutory notice so that all relevant and necessary facts are known to the person to whom the notice is given. No valid notice was given to the A-G and time has not lapsed.

A statutory notice should ordinarily constitute facts giving rise to the cause of action and should be consistent with the pleadings. ***Dr. J.W Rwanyarare & ors v AG HMA No 85/93***

- ❖ However, the contents of a statutory notice are directed or limited by the peculiar circumstances of each case; ***See Katwe Butego Division LGC V Masaka Municipal Council MHCCS No. 0011/2005*** See also S.43 of the Interpretation Act on substance of statutory forms.

Service of a statutory Notice;

Section 2(1) and the First schedule of the CP and Limitation Miscellaneous Provisions Act provides for persons at or to whose office notice to be delivered or sent. In case of the Attorney General notice is delivered to the Attorney General, in case of local

administration the notice is delivered to the Chief Administrative Officer, in case of a municipal council the notice is delivered to the Town clerk of the council, in case of a scheduled corporation notice is delivered to the corporation secretary.

See Katwe Butego Division LGC V Masaka Municipal Council MHCCS No. 0011/2005;The statutory notice was served upon the chairman of the defendant who allegedly transmitted it to the Town Clerk and the question was whether service was duly effected. Service deemed to be effective in view of the available evidence that the notice was received by the Town clerk for action.

- ❖ Whether notice must be delivered to specified officer;***Katwe Butego Division LGC V Masaka Municipal Council MHCCS No. 0011/2005;***Held; that the provisions of S.2 of the Act in as far as it relates to delivering or leaving the notice at the specified office of the specified officer is only directory and not mandatory.[see Article 126(2)(e)]

Proof of Service of a Statutory Notice; The burden of proving that the notice was duly served is on the plaintiff;In *Pamba Vs. Coffee Marketing Board (1975) HCB 369*,Held that; “...Where service of statutory notice is denied, the onus of proof of service of such notice is on the plaintiff ...”See also *Kampala City Council V Nuluyati [1974] EA 400*

- ❖ Effect of failure to plead that Statutory Notice was served; it is good practice to always indicate in the pleadings that statutory notice was served and a copy of the served notice must be attached; *Kateme Ltd V Management Training & Advisory Center[1998] 11KALR 18;* Kibuuka Musoke Ag J. held that failure to

plead that statutory notice was served and to annex it on the plaint was breach of a mandatory requirement. However, it was ancillary to the requirement to serve the notice, which was in this case served. The omission to plead service was therefore curable by way of amendment and the application for leave to amend would be granted.

- ❖ Objection to a suit based on want of service of a statutory Notice must be raised as a preliminary objection[except where it may require formal proof]; **Read; *Apollonia Nakirya V Ssekataba and Anor CACA No. 38 /2003*** for the proposition that the question of statutory notice being wanting should be raised as a preliminary point of objection for determination and should not be raised after trial. Read *Katwe Butego Division LGC V Masaka Municipal Council MHCCS No. 0011/2005*;

Exceptions to the requirement of a Statutory Notice;

Statutory Notice may be waived in cases involving applications for enforcement of fundamental rights and freedoms guaranteed by the constitution;

In the cases of *Dr. Rwanyarare vs. Attorney General (Constitutional Petition No. 3 of 2002)* and *Greenwatch vs. Uganda Wildlife Authority (Misc Application No. 92 of 2004)* are that where the rights and freedoms of people are being infringed or about to be infringed and there is “need for court to take pre-emptive action in order to prevent or forestall damage from the alleged violations” the requirement of the Statutory notice cannot apply.

See TEAN V A-G /NEMA Misc. Application No. 29 of 2001, BATU V TEAN HCC Application No. 27/2003; action founded on provisions of the constitution in relation to protect and prevent violation of human rights not to be constrained by statutory procedural requirements as such provisions would hinder administration of substantive justice.

Circumstances where a statutory notice is waived on ground of unfairness and public interest; See Kanyeihamba JSC **In the case of The Commissioner General Uganda Revenue Authority v Meera Investments Ltd ((CIVIL APPEAL NO.22 OF 2007 held that** it is only in relation to what the law specifically provides for as its purpose and functions that the Uganda Revenue Authority may sue and be sued in its corporate name. In this respect and as a scheduled corporation, it would be entitled to the right of receiving a statutory notice under the Civil Procedure and Limitation (Miscellaneous Provisions Act, Cap 72. However, the rights, powers and obligations prescribed under the Uganda Revenue Authority Act are not exclusive to the Authority. It is thus abundantly clear that the Commissioner General is a competent party to a suit under these Acts. Certainly, if he or she can sue to recover tax, he or she can be sued by a party unhappy with the tax assessments made by the Commissioner General or officers under him or her.

TOPIC IV

COURT FEES

Assessment, Payment, Time of Payment of Court Fees and the Filing Process

- ❖ Court fees must be paid in accordance with the Judicature (Court Fees, Fines & Deposit Rules SI 13-3. *[See copy of the fees structure]* Read Order 9 r.16 and O.7 r.11(c) on implications of non payment of fees and payment of insufficient fees.

- ❖ Court fees depend on the value of the subject matter of the suit and proceedings are deemed to be filed when the fee is paid; ***Musango Vs Musango(1979) HCB 226 Held:*** That the proceedings were deemed to be filed when the appropriate fees is paid in court such fees being dependent on the value of the suit.

- ❖ General rule is that as a matter of the law, documents cannot validly be filed in the civil matter until fees have either been paid or provided for by a general deposit from the filing advocate which authority has been given to decide court fees.

In **Unta Exports Ltd-vs- Customs**([1970] EALR 648) the plaint was lodged in the registry for filing on the 14th September 1968 and the court fees were paid on the 16th September 1968 which was already out of time.

Goudie, J observed at page 649 that;

“I have no doubt whatsoever that both as a matter of practice and also as a matter of law documents cannot validly be filed in the civil registry unless fees have been paid or provided for by a general deposit from the filing advocate from which authority has been given to deduct court fees”. He then ruled that the plaint was filed out of time, having not been properly filed until fees paid on 16th September 1968.

The principle in **Unta Exports Ltd-vs- Customs** ([1970] EALR 648) was applied in the case of **Central Electricals International Ltd & Anor vs Prestige Investments Ltd HCMA No. 625** of 2011 Justice Hellen Obura holding that every lawyer ought to know that documents are only validly filed upon payment of court fees. That there are many authorities to that effect. See the case of *Babibuga Winnie v Matsiko Winfred, Election Petition Application No. 14 of 2002* where the Court of Appeal held that documents are properly filed in court after payment of court fees. See also *Ndaula Ronald vs. Hajji Naduli Adbdul & Anor Electoral Petition Appeal No. 20/2006* and *Pinnacle Projects Ltd v Business in Motion Consultants Ltd, Miscellaneous Application No. 362 of 2010*

where the court quoted with approval the observation of Goudie J in *UNTA Exports Ltd vs Customs* [1970] EALR 648 at page 649. Court held that in view of the settled principle of law, the amended WSD and Counter claim was filed on 24th October 2011 when it was lodged at the court registry and sealed by the Registrar after the court fees were paid, that the endorsement made on the 20th October 2011 was therefore irregular since court fees had not been paid. However that notwithstanding, the court on its own motion was inclined to exercise power given by court by section 98 CPA and section 33 Judicature Act to enlarge time for filing the amended WSD consequently validated the WSD and counter claim that was filed on 24th October 2011 and further ordered for payment of the correct amount in accordance with the rules that govern payment of court fees.

Remedy for Non Payment, Less payment or Late Payment of Court Fees

The proviso to R.6 of the court fees, fines and Deposits rules confers discretionary power to court to make orders for a defaulting party to pay the proper fees. Such an order is made in the in the interest of justice and must be done judiciously. The circumstances of any particular case must be weighed.

In the Supreme Court case of *Lawrence Muvanga v. Stephen Keyune, S.C.Civil Appeal No. 12 of 2001 Maliya & 3 Ors* [1992-1993] wherein Tsekoko, JSC cited with approval Manyindo J's (as he then was) holding in *Yese Ruzambira v. Kimbona Builders & Construction Ltd* (1976) HCB 278, in which the learned judge stated:- "None payment of Court fees could not affect a judgment entered by Consent and that the remedy for non-payment of fees was to rely on rule 6 of the Court Fees, Fines and Deposit Rule (Cap 41) to order the defaulting party to pay the necessary fees to the Court." The Learned justice also upheld Justice Engwau's holding in an earlier appeal before the Court of Appeal wherein he held:- "A complaint against non - payment of court fees is a minor procedural and technical objection which does not; and should not, affect the

adjudication of substantive justice as envisaged in Article 126 (2)(e) of the 1995 Constitution of Uganda. The remedy for non-payment of Court fees would have been the invocation of Rule 6 of the Court Fees and Deposit Rules (Cap.41) to order the defaulting party to pay the necessary fees to the Court". Justice Tsekoko cited Rule 6 and held that the proviso to Rule 6 gives discretionary power to court to make orders for a defaulting party to pay the proper fees. Such an order is done in the interest of justice and must be done judiciously.

- ❖ Court fees may be paid subsequent to the lodgement of the suit provided the party is still within time to file the document, though the document will be deemed to have been filed on the date of payment not lodgement [***Bank Arabe Espanol V Bank of Uganda SCCA No.48 of 1998***:A court may allow any payment of fees later on as long as the time within which payment must be made has not lapsed. In that case, the fees were paid shortly after filing the notice of appeal, but within the 14 days limitation. Court held the notice of appeal as valid provided the fees were paid within the time allowed by the rules. [See. O 33, suits by paupers].

In the case of *AmamaMbabazi & A' nor v. MusinguziGaruga James, C.A. Civil Appeal, No. 12 of 2002*; it was held, *inter alia*, that court can order for payment at any stage of the proceedings where it finds that fees were not paid, and if fees are paid the document and/ or any proceedings relating thereto shall be as valid as if the proper fees had been paid in the first instance.

- ❖ Non payment of court fees resulting from a mistake by the court registry[both WSD and Counterclaim attract separate fees;See also; ***Christopher Katuramu Vs Mariya:(1991-92) HCB 161***;the applicant challenged a ruling entered for the

respondent by contending that no counter claim existed at the time of the ruling as no filing fees had been paid. *[Mistake of the court official]* Held: That there was no action filed unless fees had been paid. The records of the court file only indicate that fees paid by the WSD, which embodied the counter claim. There was an irregularity on the part of the registry staff compared with the fact that the format was not followed and the respondent could not suffer due to such irregularity.

- ❖ A plaintiff may only be struck out under O.7 r. 11(c) where court orders a party who had paid insufficient fees to pay the balance but such a party fails to comply; ***Byabazaire Grace Thaddeus v Mukwano Industries HC Misc. Application 909/2000 [2002] 2 EA***; for the proposition that where insufficient fees is paid and the same is brought to the attention of court, court should just order the defaulting party to pay and if the order is disobeyed then an order rejecting the plaintiff.

In the case of **Namatovu Susan vs. Baguma Augustine HCMA No. 1073 of 2013** Justice Madrama held that there were insufficient fees paid for the counterclaim. That the file be forwarded to the accounts section of the court for assessment of fees of the counterclaim and proceedings in the counterclaim stayed until any assessed fees due have been paid. That a counterclaim is a separate suit and attracts the same fees as a plaintiff. Further held that the rest of the suit shall proceed and not affected by the order of stay of the counterclaim. That in case the applicant fails to pay fees for the counterclaim within 14 days from the date of assessment, the counterclaim shall be struck off the record.

- ❖ Non payment of court fees may not affect the validity of a judgement or court order; *Yese Ruzambina V Kimbowa Builders & Construction Limited (1976) HCB 278*; Non payment of court fees could not affect a judgement entered by consent and the remedy for non payment of fees was to rely on r.6 of the Court Fees, Fines and Deposits Rules to order the defaulting party to pay the necessary fees to the court.
- ❖ Non payment of court fees may be remedied by late payment; **Amrit Goyal V Harichand Goyal & Othrs CACA No. 109/2004**; That non payment of fees is a minor technicality that which can be cured by Article 126(2) (e) of the constitution; The omission to pay fees may be rectified by late payment;

In the case of **Kato & 12 Ors v International Holdings (U) Ltd (MISC. APPLIC. No. 247 Of 2013)** Court held that As far as non payment of court fees is concerned, Order 9 rule 16 of the CPR provides; *“Where on the day fixed for filing a defence or to appear and answer, it is found that the summons has not been served upon the defendant in consequence of the failure of the plaintiff to pay the court fee or charges, if any, for the service, the court may make an order that the suit be dismissed.”* That going by the dictum in the case of *Unta Exports Ltd v Customs* (supra) a document is not properly filed until the fees are paid. However, in the case of *Lawrence Muwanga v Stephen Kyeyune* CACA No. 20 of 2000 which was upheld on appeal in SCCA No. 12 of 2001, it was held; *“A complaint against non payment of court fees is a minor procedural and technical objection which does not and should not affect the adjudication of substantive justice as envisaged in Article 126 (2) (e) of the 1995 Constitution of the Republic of Uganda. The remedy for non payment of court fees would have been invocation of rule 6 of the Court Fees, Fines*

and Deposit Rules to order a defaulting party to pay the necessary court fees.” That the court file was endorsed with a payment stamp for the chamber summons. A fee of 1500 under receipt No. 1827451 was paid on 11/4/2013 and endorsed with a stamp of this court although the chamber summons was filed on 10/4/2013. That based on the above authority, the applicants validated the filing of the summons the following day by paying the requisite fees.

In the case of *Winnie Babihuga vs Winnie Matsiko Election Petition No.13 of 2002*) which concerned the effect of non-payment of court fees in time accompanied by late payment, Court held that:-

(a) On the authorities available to us, non-payment of court fees is a minor technicality which can be cured by article 126(2)(e) of the Constitution because the Notice of Appeal was given orally in court which did not require payment of court fees. (b) In any case, omission to pay court fees by the respondent was rectified by late payment of the court fees.



- ❖ See procedure of remedying the non/late payment of fees; *Read; Electoral Commission V Namboozie Betty Bakireke [2007] HCB 52* for the principle that there is no illegality in late payment of court fees, it's a minor technicality curable under Article 126(2)(e)
- ❖ Non payment of court fees may be overlooked in an endeavour not to defeat justice *Betuco (U) Ltd & Anor. V Barclays Bank of Uganda Ltd HCT-00-CC-*

MA-0243-2009; A complaint against non payment of court fees is a minor procedural and technical objection which does not and should not affect the adjudication of substantive justice as envisaged in Article 126(2) (e) of the 1995 constitution of Uganda. It does not serve justice for a judgement reached to be nullified merely for non payment of the court fees. Justice would be defeated by just a mere procedural and technical a normally which can be remedied by ordering the requisite fees to be paid.

The process of Filing Suits

- ❖ Suits are filed in the relevant court registry by lodging the relevant court papers [pleadings] within the stipulated time [see *limitation of actions*] **Read W.H.R Wanyama V KCC & Anor. [2008] HCB 111** *for the principle that an offer to negotiate terms of a settlement between the parties to an action has no effect whatsoever on when to serve a statutory notice or file an action. It is incumbent on those who need to file documents to do so in time.*
- ❖ **Note;** when and where to file suits; court documents are required to be filed in the registry of the appropriate court [see *divisions of the High Court*] **Athanasius Kivumbi V Hon Emmanuel Pinto Constitutional Petition No. 5 of 1997**

TOPIC V

Modes of commencement of suits

S. 19 of the CPA provides that every suit shall be instituted in such a manner as may be prescribed by the rules. In the Supreme Court case of **General Parts (U) Ltd & Haruna Semakula vs. NPART SCCA No. 9 of 2005** it was stated that it is trite that in civil matters the only mode of instituting suits are by plaint, originating summons and petition.

Court actions/suits may be prescribed by any of the following process which may be prescribed by law;

- (a) Ordinary suit /Plaint
- (b) Summary Plaint
- (c) Originating summons
- (d) Petition
- (e) Notice of Motion
- (f) Chamber summons
- (g) Others may include: Memorandum of claim in the industrial court, Complaint before the Labour Officer, Statement of claim, letter

The forms used for purposes of the Act shall with such variations as the circumstances of each case may require, be those to be found in the appendices and

such other forms as may be from time to time be approved by the High court-**Order 49, rule 3CPR.**

Ordinary suit / Complaint-O.4 CPR

This is the usual method of commencement where there is a substantial dispute as to the facts. O.4 r.1 provides that every suit shall be commenced by way of a complaint. [Only applicable to suits requiring considerable amount of oral evidence, suits requiring specific pleading of particulars like negligence, fraud e.t.c) Every complaint shall comply with rules contained in Orders 6 and 7 so far as applicable-O.4 r 1(2)

In the case of **Medi vs Wandera HCC Appeal No. 102 of 2011** held that this was a matter involving substantial issues of facts and should have been instituted by way of ordinary suit in accordance with Order 4 rule 1 of the Civil Procedure Rules. Reference was made to the case of *General Parts (U) Ltd & Haruna Semakula vs. NPART SCCA No. 9 of 2005* where it was held that the only modes of instituting suits is by complaint, originating summons or petition. That a notice of motion is not an alternative mode of instituting suits. That Order 4 r 1(i) of the civil procedure rules provide that every suit shall be instituted by presenting a complaint to the court or such officer it appoints for this purposes. Su-rule (2) thereof requires that such complaint shall comply with the provisions of Orders 6 and 7 of the Civil Procedure rules. The said Orders 6 and 7 of the Civil Procedure Rules regulate the form and content of the said complaint. That it is accordingly clear that the only mode of instituting suits is by complaint. Other modes in specific circumstances provided by law are Originating Summons or by Petition.

In the case of **Jacob Mutabaazi vs. The Seventh Day Adventist Church HCCS No. 54/2009** it was held that O. 4 r.1 of the CPR requires ordinary civil suits to be instituted by plaint. That O.5 r.1 provides for service of summons upon a defendant, against whom a suit has been instituted, requiring him/ her to file their defence thereto. The time within which such summons must be filed upon a defendant is stipulated in O.5 r.2 and the mode of service is outlined in rules 8, 9 and 10 of the same Order.

Every plaint shall contain the following particulars-O7r1.

- (a) the name of the court in which the suit is brought;
- (b) the name, description and place of residence of the plaintiff, and an address for service;
- (c) the name, description and place of residence of the defendant, so far as they can be ascertained;
 - (d) where the plaintiff or defendant is a minor or person of unsound mind, a statement to that effect;
 - (e) the facts constituting the cause of action and when it arose;
 - (f) the facts showing that the court has jurisdiction;
 - (g) the relief which the plaintiff claims;
 - (h) where the plaintiff has allowed a set off or relinquished a portion of his or her claim, the amount so allowed or relinquished; and
 - (i) a statement of the value of the subject matter of the suit so far as the case admits.

In the case of **Edward Kakuba vs. Kamukama Steven & Stanbic Bank HCCM No. 16/2007** an application brought by notice of motion under Art 139 of the

constitution, sections 33, 39(1) and (2) of the Judicature Act, Section 98 of the Civil Procedure Act, and Order 52 of the Civil Procedure Rules for orders directing the second respondent bank to transfer a sum from account of the first respondent to applicant's account. Court held that the procedure adopted was unusual way of instituting a suit, contrary to the procedure established by the Civil Procedure Rules. Further held that Section 19 of the Civil Procedure Act provides that every suit shall be instituted in such manner as may be prescribed by the rules. That the Civil procedure rules have an order devoted to institution of suits. Order 4 r 1 (1) states that every suit shall be instituted by presenting a plaint to the court or such officer as it appoints for this purpose. The plaint must comply with the requirements set out in Order 6 of the Civil Procedure Rules. Further held that it is possible to commence other actions by plaint, but this must be specifically provided for at law. That the approach of the applicant in these proceedings does not comply with any known procedure authorised by law to commence civil proceedings of the nature he has commenced. That he has commenced proceedings by way of notice of motion and wants judgement on the basis of such a proceeding. That the applicant has failed to satisfy court the law authorise an ordinary action for recovery of money to be commenced, proceeded with and concluded in this manner, as though it was an interlocutory matter. The applicant ignored express provisions of the law as to institution of suits and instead extensively called in aid provisions of the constitution, the Judicature Act, the civil procedure Act and Civil procedure rules that are not helpful to the cause.

Summary Procedure-O.36 CPR

O.36 CPR restricts suits to claims based only on contract or land. Summary procedure is instituted by presenting a plaint in the form prescribed endorsed 'Summary

Procedure Order XXXVI' and accompanied by an affidavit made by the plaintiff, or by any other person who can swear positively to the facts, verifying the cause of action, and the amount claimed, if any, and stating that in his or her belief there is no defense to the suit-O.36 r 2 CPR.

In the Supreme Court case of **Post Bank (U) Ltd vs. Ssozi SCCA No. 8/2015** Tumwesigye JSC held that O. 36 was enacted to facilitate expeditious disposal of cases involving debts and contracts of a commercial nature to prevent defendants from presenting frivolous and vexatious defenses in order to unreasonably prolong litigation. That apart from assisting the courts in disposing of cases expeditiously, O.36 also helps the economy by removing unnecessary obstructions in financial or commercial dealings. Court further held that there is no doubt that O.36 r2 restricts suits to claims based only on contract or land as spelt out in rule 2. Therefore, any claim based on a different cause of action would have to be brought by way of an ordinary suit and not under O.36.

Summary suit to be commenced by a specially endorsed summary plaint accompanied by a valid affidavit Shelter ltd v Anastazia Nakkazi HCMA No. 113 /2005

[NOTE:Summary Procedure will be covered as an independent topic in semester II)

Originating Summons-O.37CPR.

Order. 37 CPR; states that the circumstances and categories of persons who may take out originating summons.

Originating summons is a term of art referring to a limited and special class of summons and means a motion that originates the proceedings in question. *St Benoist Plantations Ltd V Jean Emile Adrien Felix [1954] 21 EACA 105*

Circumstances under which Originating Summons is Applicable

Originating summons should be adopted where the matters are simple and straight forward otherwise where the suit relates to disputed facts and complicated question of law, the plaintiff should proceed in the ordinary way by plaint.

It is meant to be a simple and speedy procedure and its merits are based on the fact that there are no pleadings involved or in general no witnesses the questions for decision being raised directly by the summons itself and the evidence given by affidavit.

In the case of *In Vicent Kawinde T/A Oscar Associates V Kato HCCS 4/2007*(unreported) relying on *Kulsubai V Abdulhussein (1957) EA 699* it was held that: “*Such procedure was intended so far as we can judge to enable simple matters to be settled by the court without the expense of bringing an action in the usual way, not to enable the court to determine matters which involve a serious questions.*”

In a Zanzibar High Court case, reported in the Eastern Africa Law Reports, viz; **KulusumbaiVrs. Abdul Hussein (1975) EA 708**. It was held that the procedure by Originating Summons was intended to enable simple matters to be settled by the Court without the expense of bringing an action in the usual way, not to have Court determine matters which involve a serious question. Similarly in **NakabugoVrs. Serunjogi (1981) HCB 58**, it was held that it is trite law that when

disputed facts are complex and involve a considerable amount of oral evidence, an Originating Summons is not the proper procedure to take.

In the case of Sentongo Harriet V Esther Gloria Namusisi (ORIGINATING SUMMON NO. 22 OF 2009) the applicant sought court to declare the child, OmallaGoria Valentine as an orphan and beneficiary of the estate of the late Charles Goria as evidenced by Annexure “A”, the Baptism Certificate and the photographs attached as Annexure “B” on the court file. Court citing O.37 r 1 CPR held that court was satisfied that the applicant is the mother of the child, Omalla Valentine, the son of Goria Charles, deceased, who has brought this application for determination of whether the child is an orphan and a beneficiary of the estate of his late father, Goria Charles (deceased) and that this is a fitting case.

Circumstances where Originating Summons is not Suitable Procedure

Originating Summons is inapplicable to complex cases that involve a considerable amount of oral evidence. Where the matter is contentious and would need to receive or take evidence to prove or disapprove the allegations then Originating summons is not applicable. Simple and speedy procedure and its merits are that no pleadings or witnesses are involved. Questions for decision are raised directly by the originating summons and evidence given by the affidavit. *[a deponent may however be cross examined on the contents of the affidavit see Order. 19 R 2 CPR]*

In the case of ***Nakabugo Vs Francis Drake Serunjoji [1981] HCB 58***: Held: It is trite law that the disputed facts give complex and involve a considerable amount of oral evidence; originating summons is not the best procedure to take. That the procedure of originating summons was to enable simple matters to be settled by court

and take up the matter in the usual but not to determine the matter involving serious questions.

Official Receiver V Sudhev [1970] EA 243; Originating summons is not a procedure by which decisions on disputed questions of fact ought to be obtained; that its ordinarily not advisable to employ an originating summons for hostile proceedings against a trustee and the procedure is quite unsuitable where the facts are in disputes the evidence is by way of affidavit.



In the case of *Kaggwa and 10 others HCCS NO. 175 of 1993*, arising from Miscellaneous No. 27/85, J. Ntabugoba held that, since the application for revocation was based on fraud, it is not enough to rely on O34 r 10, now O.37 r 1, affidavits allows court to proceed by ordinary suit to prove allegations of fraud.

In the case of *Humphrey Opio vs. Jasfer Okot, HCMC 051/02* Justice Kagaba held that, originating summons deal with matters which are not contentious. That an application to have a grant of Letters of administration revoked is a contentious matter requiring evidence and an application by originating summons is wrong. He went on to say, the suit brought under O34 r 1 now O37 r 1, is for the court to determine whether or not to determine whether to revoke the Letters of Administration to the plaintiffs and whether the defendant is guilty of gross misconduct and has willfully wasted and misappropriated monies and should be ordered to render an account of the monies due in the estate, that has come to his possession on account of being an administrator of the estate or Whether cost of the proceedings be met by the defendant personally. The Learned Justice held that the

procedure in O34 (now 37) of the Civil Procedure Rules is created and intended to deal with simple and non contentious matters. That it is intended in situations where there would be no need of rendering or taking evidence in order to arrive at the relief prayed for. It deals with reading and interpreting a document on its face value without resource to supplementary evidence. That where the matter is contentious and would need to receive or take evidence to prove or disapprove the allegations in the Originating summons, then the particular procedure is not applicable.

Originating Summons suitable in construction of a deed, will or other written instrument O.37 r 6 CPR. Other instrument means instruments related or similar to deeds or wills. In the case of Testimony **Motors Ltd vs. Commissioner of Customs URA civil Suit No. 4/2011** held that an analysis of O.37 r 6 discloses pertinent ingredients, the first of which is that there has to be a person claiming to be interested under a deed or will or other written instrument. Secondly the originating summons should be for determination of a question of construction arising under the instrument in issue. The term instrument encompasses all categories of instruments mentioned under O.37 r 6 CPR. Thirdly the question of construction must result in declaration of the right of a person interested in the construction of the instrument. Fourthly, the person applying the originating summons for determination of the question must have an interest in the outcome of the question. That a question of construction under O.37 r 6 CPR only arises when there is a controversy as to the meaning, scope, purpose, intention, ambit or application of instrument or any part thereof. The purpose of the construction is to have the correct meaning, purpose, scope, intention, ambit etc applied in the interest of person having an interest in the question of construction. That the words or other instrument under O.37 r 6 do not include an Act of parliament. The word has to be construed ejusdem generis as referring to other things such as wills, deeds and other private documents not

statutory instruments or Acts of parliaments. That the power of court to decide whether to issue an originating summons is vested in the judge under O.37 r 8 (2) CPR. Where the judge signs the originating summons, the act of issuing summons is complete. A judge is functus officio as far as the issuance by signing of the originating summons is concerned. A judge is however not functus officio for purposes of determining other matters after issuance of the originating summons for simple reason that the rules allow the judge to dismiss the originating summons after it has been issued for not being appropriate in the circumstances. The court assesses the pleadings of both parties to determine this question under O. 37 r 11 CPR but prior to that court considers the pleadings of the plaintiff only.

In the case of *Yesero Mugenyi Vs Registrar of the High court & Ors. [1977] HCB 80*; Words other instrument in rule 5 of order 34[now 37] to be read ejusdem generic meaning that general words must be restricted to those mentioned. Other instrument means instruments related or similar to deeds or wills and a practising certificate fell outside that category. Procedure adopted in cases requiring determination of a point of law or construction of certain questions of law and straight interpretation of statutes.

In the case of **Sesam Energetics Ltd v Electricity Regulatory Authority High Court Civil Suit Originating Summons No. 003 of 2014** the Plaintiff brought suit by Originating summons for the interpretation of **The Electricity (License Fees) Regulations, 2003 SI 20//2003** and **The Electricity (License Fees) (Amendment of Schedule) Instrument 2011 SI 24/2011** to determine their legality. The issue for determination before the honourable court was whether the dispute was properly brought to court by way of an originating summons. Court held that originating

summons are envisaged in matters to do with determination of issues of trust, administration of estates, sale and purchase of land, mortgage, dissolution of partnerships which limits its scope since the laid out categories cannot be by any imagination stretched and hence no room by the rules themselves is given for other matters to utilize it. That it seems that the term "*instrument*" encompasses all categories of instruments mentioned under Order 37 Rule 6 of the said Rules. The term "written instrument" is construed *e jusdem generis* as being of the nature of things such as deeds or wills, powers of attorney or other written instruments. Court finally held that the questions raised by the Plaintiffs are not questions of construction of any other instrument. Secondly, that the words "or other instrument" under order 37 rule 6 do not include a Statutory Instrument. The words "*or other instrument*" purported to be called into action a here would, have to be construed *e jusdem generis* as referring to things such as wills, deeds and other such private documents. It does not refer to a Statutory Instrument.

- ❖ Applicable to relief for vesting orders in clear cases where the purchase is not contested; **R. Hajji Vs Sulaiman Lule:** A purchaser of land sought a vesting order to transfer land into his names and since had not yet been completed he proceeded under originating summons, O.37 r 3. **Held:** That a purchaser of immovable property may take out originating summons for determination of questions that may arise irrespective of any claim or questions connected with the fact of sale not being a question affecting the existing validity of the contract.
- ❖ Applicable where the statute requires a proceeding to be originated by summons, **E V E [1970] 604;** that where the statute requires a proceeding to be originated by

summons, this means originating summons. A summon may either be a summons by court to a defendant to do an act or it may be an application to a court for a relief.[*Compare Joseph Bayego V Chief Registrar of Titles on the difference between summons and may summon*

❖ Nature of Originating Summons;

Patrick Rwekibira V Muwagibu Kamya [1972] 2 ULR 166; Saed J that O.34 R.7[Now O.37] CPR required that O.S to be presented ex parte to a judge in chambers with an affidavit setting forth concisely the facts upon which the rights to relief sought is founded.

- ❖ **NB**[The application must cite the law under which the applicant is proceeding though failure to do so or citing the wrong law may not be fatal if the application is clear as to what remedy is being sought and there is a law providing for the same. *Kawooya V Naava [1975] HCB.*

Procedure & Practice of O.S.

In the case of **Mayanja Bosco vs. Kasikururu Louis Okumu & Ors HC OS. No. 5/2008** held that the procedure for making an application to court to foreclose a mortgaged property is by O.S under O.XXXVIII R 4 CPR. That rule 8 of the same order provides for practice upon application of summons

Suits by Petition:

In the Supreme Court case of **General Parts (U) Ltd & Haruna Semakula vs. NPART SCCA No. 9 of 2005** it was stated that it is trite that in civil matters the only mode of instituting suits are by plaint, originating summons and petition.

Applicable in Divorce matters

The Divorce Act Cap. 249 and Divorce rules provides for filing a petition for dissolution of marriage.

Applicable in constitutional petitions.

Article 137(1) & (3) of the 1995 Constitution as well as Rules 3,4,5 and 12 of the Constitutional Court (Petitions and References) rules. See *Mabirizi & Ors vs Attorney General Consolidated Constitutional Petitions Nos. 49 of 2017, 3 of 2018, 5 of 2018, 10 of 2018 and 13 of 2018*.

In the case of *Charles Harry Twagira vs A.G & Ors SCCA No. 4/2007* held that where a claim of redress of a right or freedom is subject to interpretation of the provisions of the constitution, the claim should be via the constitutional court under Article 137 by petition. Where the claim is in respect of a right or freedom that is clearly protected, it should be by a plaint in any other competent court.

Applicable in Insolvency proceedings

See the Insolvency Act, 2011

Applicable in Company causes

See section 247, 248 and 249 of the Companies Act No. 1 of 2012. See also *Kigongo vs Mosa Courts Apartments Ltd* (Company Cause No. 01 of 2015)

Petitions in Company matters are made under **Order 38** of the Civil Procedure Rules for certain causes or matters specified therein.

Applicable in election petitions

See the Parliamentary Elections Act

See also the Presidential Elections Act.

Petitions either accompanied by affidavits or verified and should be commissioned; *Dr. James Rwanyararee & Anor V AG Constitutional Appeal No. 1 of 1999 Nelson Sande Ndugo V EC HCT -01-CV-EP 0004/2006; Re Edith Nassaazi Adoption Cause No. 6 of 1996*

Suits by Originating Notice of Motion:

Ordinarily an originating motions or originating chamber summons is prescribed by statute as the procedure for commencing an action in a court of law. Notices of motions and chamber summons are for interlocutory applications and cannot

commence civil proceedings or suits unless specifically prescribed by the law under which they are made in which case they are originating summonses or motions.

See the Judicature (Judicial Review) Rules 2009.

In the case of **Kawuki v Commissioner General Uganda Revenue Authority (Miscellaneous Cause No 14 of 2014)** the Applicant filed an originating Notice of Motion under section 98 of the Civil Procedure Act. The Applicant's application was made by way of Notice of Motion under the provision presumably of Order 52 of the Civil Procedure Rules which prescribes the procedure by notice of motion though it was not cited. The Applicant's application was by definition an originating motion because it purported to commence an action in the High Court when there was nothing pending before the court. It was not an interlocutory application but purported to be an original action commencing proceedings. Madrama J (as by then) held that ordinarily an originating motions or originating chamber summons is prescribed by statute as the procedure for commencing an action in a court of law. An action can only be commenced in court in a manner prescribed as envisaged under the Civil Procedure Act. That **ordinarily** Order 52 of the Civil Procedure Rules **deals with notices of motion and is often taken to be for purposes of interlocutory applications**. In fact Order 4 rules 1 (1) of the Civil Procedure Rules **provides** that: "Every suit shall be instituted by presenting a plaint in the court or such officer as it appoints for this purpose." That the rule strongly suggests that actions in courts of law are commenced by presenting a plaint to the prescribed officer appointed for that purpose. Exceptions to commencement of an action in the High Court by way of a plaint under Order 4 rule 1 (1) of the Civil Procedure Rules have to be prescribed by enactment which prescribes the procedure for commencing an action in the court. Other modes of commencement of actions are provided for by the Civil Procedure Rules. Section 19 of the Civil Procedure Act merely provides that a suit may be

instituted in any manner prescribed. Section 2 of the Civil Procedure Act defines a suit as all civil proceedings commenced in any manner prescribed. The word *prescribed* is also defined by the section 2 of the Civil Procedure Act. It means *prescribed by the rules*. The conclusion on this point is that an action has to be commenced in court in the manner prescribed by the rules or other statutory provision. That it is ordinarily necessary to cite the rule which prescribes how a particular civil proceeding commenced. Common law emphasizes the fundamentally of the procedure for the commencement of proceedings. Non-compliance with the rules for commencement of proceedings is normally fatal. Suits are instituted under order 4 rules 1 of the Civil Procedure Rules by presenting a plaint to the court or such officer as the court appoints. A suit may be presented under Order 36 by summary procedure (Specially endorsed plaint). A suit is originated under Order 37 by Originating summons by executors, administrators, trustees under deed or instrument, and any other person as creditor, devisee, legatee, heir or cestuique trust (beneficiary), legal representative of a deceased person or representative of any of them by assignment. Petitions in Company matters are made under Order 38 for certain causes or matters specified therein. It also provides that certain specified causes or matters may be commenced by motion or summons. That other categories of suits are commenced under statutory provisions which prescribe the mode or manner of commencement of an action in court. That notices of motions and chamber summons are for interlocutory applications and cannot commence civil proceedings or suits unless specifically prescribed by the law under which they are made in which case they are originating summonses or motions. The Applicant's application is not an application for judicial review under the Judicature (Judicial Review) Rules 2009 for an order of mandamus, prohibition or certiorari or for an injunction under rule 3 thereof. Applications for judicial review are made by notice of motion in the form specified in

the rules. Furthermore it is not an application for enforcement of fundamental rights and freedoms under Article 50 of the Constitution. It is simply an anomaly not prescribed by any rules or statutory provision.

Form of notice of motion

The law; *Read; Order. 52(1)* on applications by Notice of Motion supported by a valid affidavit; **Kibuuka Musoke v Tour and Travel Center Ltd HCT -00-CC-MA-0603-2008**; All application to court except as otherwise expressly provide in the rules shall be by motion citation of wrong law if the procedure is correct is not fatal.

- ❖ Form of notice of motion; The notice of motion has to be in the form in the schedule; ***Lyakiya Vs Attorney General*** The Employer received a written notice, which he returned to the plaintiff's advocate for signature. When the suit was called for hearing, the state attorney contended that no notice had been given. **Held:** That a written notice had to be in the form of schedule to which included space for the signature of the plaintiff or his advocate and an unsigned notice was defective and the action would be dismissed since the provision is mandatory.
- ❖ ***But See Katwe Butego Division LGC V Masaka Municipal Council MHCCS No. 0011/2005*** See also S.43 of the Interpretation Act on substance of statutory forms.
- ❖ Signature and seal on Motion;

Joy Kaingana V Dabou Boubou [1986] HCB 59; whereas in practice, the notice of motion carries signatures of the judge [now registrars] and the seal of court, these are not a legal requirement and omission doesn't render the application fatal.

- ❖ The practice of the court is to treat the Notice of Motion as the summons, thus the Notice of motion ought to be issued by the Registrar/ deputy registrar and should be signed and sealed as required by 0.5 r.1(5) CPRs; ***Read; Dairy Corporation V Opio [2001-2005] HCB 113***

Notice of Motion & Supporting affidavits

- ❖ Where the application is grounded on evidence by affidavit, a copy of that affidavit intended to be used must be served with the motion. In such cases, the affidavit becomes part of the application and the notice of motion is incomplete without the affidavit. In the case of ***Joy Kaingana V Dabou Boubou [1986] HCB 59***; it was held that “where an application is grounded on evidence by affidavit, a copy of the affidavit intended to be used must be served with the action. In such a case, the affidavit becomes part of the application. ***The Notice of motion cannot of its own be a complete application without the affidavit.*** Therefore in the instant case the notice of motion alone was not enough”
- ❖ There is no need for an affidavit where the application rests on a matter of law; ***Odongkara V Kamanda [1968] EA 210(U)***
- ❖ The rules are to be observed but irregularities of form may be ignored or cured by amendment when they have occasioned no prejudice. In these matters of form, courts are

less strict [see article 126(2)(e) of the constitution. *See also Castelino V Leo Rodrigues [1972] EA 233;*

- ❖ However, in *Notay Engineering Industries V Superior Construction & Engineering Ltd HCCS No. 702 of 1989*, it was held that where the notice of motion sufficiently makes reference to grounds contained in the affidavit filed with the notice of motion, by that reference the contents of affidavit were incorporated in the notice of motion.
- ❖ *Development Finance company of Uganda Ltd vs Stanbic Bank Uganda Ltd & Anor cc Misc. application No 88/99*; Affidavit accompanying notice of motion was headed “affidavit in reply” held that this was a minor irregularity which was of no consequence (mere slip of the pen. But they don’t include where a party fails to attach the lists mentioned in order 6 r 2 CPR . In effect, non attachment means a party would have foregone his right to rely on the witnesses documents or authorities not listed.
- ❖ Effect of distinct date on Motion and affidavit; *Read Eng. Katwiremu V Mushemeza Elijah [1997] II KALR 66*
- ❖ Whether motion must state the grounds on which the application is based; *Mugarula Mukiibi V Colline Hotel Ltd [1984] HCB 35*; That the grounds of application have to be set out in the notice of motion because O.48 r.3 CPR is mandatory. If the notice of motion doesn’t contain the grounds of the application, then it is fatally defective. That the affidavit is a separate document containing a sworn statement of facts in support of the grounds of the application.

Notice of Motion and Applicable law.

- ❖ Whether the notice of motion must state the law applicable; Although the rules do not specifically require a notice of motion to state the order and rules or other law under which it is made, that it is usual practice and should be followed. *Salim V Boyd [1971] EA 550[KJ]. See Hon. MR. Justice Remmy Kasule V Jack Sabiiti & 2 Others HCCS No. 230 of 2006*
- ❖ However, the citing of the wrong law doesn't render the application invalid, as courts will treat it as a mere technicality. *See Kawooya V Naava [supra]*
- ❖ Notice of motion under wrong law; *Paragio Munyangira v Andrew Mutayitwako HCMA No. 37/1993* . Application brought under S. 18 CPA and no rule was cited. Held that the application was defective for failure to cite the rule under which it was brought to court. See Odonkara vs Kamande (1968) EA 210

In the case of Intraship (U) Ltd Vs- G.N Combine (U) Ltd [1994] VI KALR 42 having established that the application therein had been brought under the wrong law Justice Sempa-Lugayizi ruled that the question should be whether the irregularity is serious enough to prevent the court from hearing and determining it on its own merit. That the answer would depend on whether non observance of the procedural rules in issue would lead to injustice. If it would not, then the Court should be willing to over-look it otherwise it should not. Chief Justice Benjamin Odoki in his judgment in Col. (Rtd) Dr.BesigyeKiiza -Vs- Museveni Kaguta& Electoral Commission SC. Electoral Petition No. 1 of 2001. Observed that a liberal approach is in line with the Constitutional enactment in Article 126 of the Constitution that courts should administer substantive justice without undue regard to technicalities. That rules of

procedure should be used as handmaids of justice but not to defeat it. In **Alcon International –vs- KasiryeByaruhanga& Co Advocates [1995] 111 KALR 91** Justice MusokeKibuuka held that procedural defects can be cured by the invocation of Article 126 (2) (e) of the Constitution. See also **Allen NsubugaNtanaga –vs- Uganda Microfinance Ltd & other HCT-00-CC-MA-0426-2006.**

Whether citation of the wrong law renders the application fatally defective; ***DFCU leasing Co. Ltd v Nasole Faridah HCT -00-CC-MA 0074 -2007*** Application brought by chamber summons for consolidation of suit under 0.11 r. 1 and 2 CPR SI 75 – 1 – questions whether citation of wrong instrument was fatal; **Held** Misquotation of the statutory instrument number could not cause any injustice and could not have misled the respondent. Just a minor technicality capable of being cured by articles 126 of the constitution.

- ❖ Wrong Procedure being adopted; ***Kibuuka Musoke as v Travobase Centre Ltd HCT -00-CC –MA 308 /2008*** applications dismissed because it was wrongly brought under 0.27 r 10 and 12 CPR and commenced by chamber summons rather than notice of motion.
- ❖ ***Hajati M Nagawa v Paulo Kajubu & Anor HCCS No.348/1976;*** Application by notice of motion under the wrong law; and instead of chamber summons. Proceedings to be vitiated for non compliance with rules of procedure only if injustice is done to parties .Non compliance with the rules of procedure of the court which are directory and not mandatory rules would not usually result in the proceedings being vitiated, if in fact no injustices has been done to the parties.

- ❖ *Salime namukasa v Yosefu Bulya (1966) EA 433* UDO Udoma C.J that before the provisions of section (98) can be invoked, the matter or proceedings concerned must have been brought to the court, the proper way in terms of the procedure prescribed by the rules .
- ❖ The applicable test is whether the irregularity is serious enough to prevent the court from hearing the application and determining it on its own merit. If the non observance of the procedural rules in issue would not lead to injustice, court should be willing over look it, otherwise should to sanction it would be to uphold technicalities; *Alcon international v Kasirye Byaruhanga and Co Advocates 1995) III KALR 91 – see Intra ship (U) Ltd V GM combined Ltd 1994/ VI KALR 42*

In the case of **Silver Springs Ltd vs. UMEME Ltd HCMA No. 291/2013** the Court relied on the case of *Saggu vs. Road Master Cycles (U) Lrd CACA No. 46/2000* that a court should not treat any incorrect act as a nullity with the consequence that everything founded thereon itself is a nullity unless the incorrect act is of a fundamental nature. That the applicant here cited a wrong law and failed to bring the application by chamber summons, however, no injustice has been shown to have been occasioned to the parties. Therefore, the delusionary conduct by the applicant is not fundamental nature to warrant court dismissing the appeal.

Notice of Motion and Summary of Evidence (0.6 r.2; CPR)

- ❖ Whether Notice must be accompanied by summary of evidence; O.6 r.1 requires pleadings to be accompanied by a summary of evidence; the question is whether failure to do so in an application by notice of motion is fatal; *Sule Pharmacy Ltd V The Registered Trustees of the Khoja Shia Hana Shari Jamat HCMISC. APPL 147/1999*. It was held that notice of

motion is a pleading and should be accompanied with the named attachments. The application of O.6 r.1 in this case becomes a mere moot because of the case requires no witnesses, documents or even authorities except O.48 r.3 [now 52 r.3]. **Ogoola P.J**; that there are special circumstances that are recognized with CPR in which the rule does not and can not apply with full force and effect. Non compliance is not fatal.

- ❖ **Richard Mirirumbi**; Order 6 r .2 CPR was intended to avoid a situation in which parties ambush their opponents with matters not contemplated
- ❖ The requirement that pleading shall be accompanied by a list of authorities is subject to their being necessary for that pleading. What is to be relied upon is what should be listed hence where there are no witnesses, no documents nor authorities to rely on, there is no logic to list NIL though if they are ant not listed, the applicant risks not being allowed to rely on them. **Rajab Kyangwa v Pallis Town council and Anor HC M. App. No 19 of 2000 Maniraguha J** held
- ❖ Non compliance with the equivalent of order 6 r2 rendered an application improperly filed before court and could be dismissed **Richard Mwirumbo v Jada Ltd HCCS NO. 978/96**

Suits by Originating Chamber Summons:

A chamber summons which is the procedure prescribed for commencing a matter under a statute is an originating chamber summons where there is no suit in existence.

In the case of **Orient Bank Ltd v Avi Enterprises Ltd HC CIVIL APPEAL NO 002 OF 2013** the issue was whether the Respondents appeal is properly before court?

Madrama J (as by then) held that an appeal under the Advocates (Taxation of Costs) (Appeals and References) Regulations is commenced under regulation 3 (1) prescribes that it shall be by way of summons in Chambers supported by affidavit which are set forth in paragraphs numbered consecutively particulars of the matters in regard to which the taxing officer whose decision or order is the subject of appeal is alleged to have erred. In other words it is an originating chamber summons that commences an action in the High Court by way of appeal for the first time and it is not interlocutory. That Spry VP of the Court of Appeal in *Boyes v Gathure* [1969] 1 EA 385 held that a chamber summons which is the procedure prescribed for commencing a matter under a statute is an originating chamber summons where there is no suit in existence. He held as follows at page 386: *“With great respect, I think the learned judge was wrong and I think much of the confusion arises from the heading “Chamber Summons” which is commonly used for interlocutory summonses in Kenya but not, I think, in England; certainly it does not appear in the forms contained in the Annual Practice or Atkin’s Encyclopaedia of Court Forms and Precedents. In fact, both originating and interlocutory summonses are heard, at least in the first instance, in chambers, and “chamber summons” is not a term of art to distinguish the one from the other. In the present case, where the Respondent desired to move the court, where no proceedings were in being and where the Act required him to proceed by summons, such a summons could only, as I see it, be originating.”* And at page 387: *“As I see it, procedure by way of summons may be originating or interlocutory and when s. 57 of the Registration of Titles Act speaks of applying “by summons”, it means by originating summons, if there is no suit in existence, or by interlocutory summons, if there is.”* Further held that the appeal is a "suit" been commenced for the first time, where there is no suit pending and the chamber summons under the Advocates

(Taxation of Costs) (Appeals and References) Regulations and particularly regulation 3 (1) thereof is an originating summons in Chambers.

- ❖ Parties are summoned in chambers where the application is heard.
- ❖ See O.41 on injunctions[*compare requisites for notice of motion*]
- ❖ When to proceed by chamber summons or Notice of motion; Chamber summons is only resorted where the law expressly provides for the same; Where a party proceeds by chamber summons rather than notice of motion, that renders the application incurably defective; *Salume Mukasa V Yozefu Bukya [1966] EA 433[s.98 could only be resorted to if the procedure was correct and that rules of procedure were not made in vain but to regulate the practice of the court; Kibuuka Musoke V Tour & Travel Centre Limited HCMA No.603/2008; Kibuuka Musoke AS V Travobase Center Ltd HCMA No.308/2008; Nasanga V Nanyonga [1977] HCB 319; Read Article 126(2) (e)*
- ❖ Chamber summons to be supported by valid affidavit and summary of evidence especially where essential documents are referred to where affidavit is not enough, compliance with 0.6 r 1(b) is a must and non compliance renders the application liable to be struck off *Jetha Bros Ltd v Mbarara Municipal Council .*
- ❖ **NB:** Notice of motion and chamber summons relate to interlocutory applications; However, note originating motion and originating chamber summons;[miscellaneous causes rather than misc. application; *Salume Mukasa V Yozefu Bukya [1966] EA 433*

Suits by Other modes include:

- d) Memorandum of claim in the industrial court
 - e) Complaint before the Labour Officer
 - f) Statement of claim, letter
5. LDC V Edward Mugalu & Anor. [1990-91] KALR 103
 6. Major Roland Kakooza Mutale Versus AG & IGG [2001-2005] HCB 110
 7. Section 39(2) Judicature Act.
 8. Prof. Oloka Onyango and Others and Amama Mbabazi, Yoweri Museveni and EC Supreme court 2016

Pre-Entry Exam 2012/2013

Qn. 50 A Plaintiff filed an application by motion instead of summons in chambers as prescribed by the relevant rules. Is the mistake fatal? Give a reason for your answer

TOPIC VII

Issue of Summons: O.5 CPR:

❖ What is a summon?

This is an official order of court requiring a person to attend court either to answer a claim/ charge or give evidence. It is issued by court with a signature and seal of the court.

❖ Types of Summons:

- **Ordinary Summons: O.5:** Issued by a court pursuant to a party presenting a summons and it directs a defendant to file a defence in court within 15 days if he wishes to defend the claim of the plaintiff.
- **Summons in a summary suit: O.36 r 4:** Document issued by court in cases where the plaintiff has filed a summary suit. It requires the defendant to apply for leave of court to defend the suit within 10 days after service.[see distinction between ordinary summons and summons on a summary plaint] *Read Mugume & Anor. V Akankwasa [2008] HCB 159*
- **Originating Summons: Order. 37** CPR; states that the circumstances and categories of persons who may take out originating summons.
- **Notice of Motion;** The practice of the court is to treat the Notice of Motion as the summons, thus the Notice of motion ought to be issued by the Registrar/ deputy registrar and should be signed and sealed as required by 0.5 r.1(5) CPRs; *Read; Dairy Corporation V Opio [2001-2005] HCB 113. Order. 52(1)* CPR applications by Notice of Motion are supported by a valid affidavit. Ordinarily an originating Notice of motions summons is prescribed by statute as the procedure for commencing an action in a court of law. See *Kawuki v Commissioner General Uganda Revenue Authority (Miscellaneous Cause No 14 of 2014)*

- **Chamber summons;** Parties may be summoned in chambers where the application is heard. See O.41 on injunctions. Chamber summons which is the procedure prescribed for commencing a matter under a statute is an originating chamber summons where there is no suit in existence. See regulation 3 (1) of the Advocates (Taxation of Costs) (Appeals and References) Regulations. See also section 24 RTA.
- **Hearing notice;** requires a party to attend court on a particular day if he wishes to take part in the proceedings. The notice must be served on the defendant. ***Ahmad & Associates V Bauman (U) Ltd CACA 46/2000;*** The applicant did not serve the hearing notice for leave to appear and defend on the defendant in a summary suit. Held; that the applicant didn't know of the hearing date of the application to appear and defend in a summary suit. Thus he or his counsel could not prosecute it. Court allowed the appeal and remitted the application to the High court to be heard on its merits before another judge. Read; ***Edison Kanyabwera V Pastori Tumwebaze[2001-2005] HCB 98*** for the principle that the rules applicable to service of summons apply to hearing notices
- **Taxation Hearing Notice:** Issued against the Defendant in taxation matters to attend taxation proceedings *consider the Advocates Remuneration and Taxation of Costs Rules*
- **Witness summons:**O.15 CPR. The summons requires for attendance of a person to give evidence or produce a document-O.15 r 5 CPR. O.5 CPR regulating proof of the service of summons applies-O.15 r 8CPR.
- **Notice of presentation of petition:**A notice of presentation of a petition is issued pursuant to the filing of a petition and it requires a person to enter appearance by filing an answer to the petition or an affidavit in opposition within the time stipulated therein or by the date indicated.

❖ **Validity of Summons:**

O.5 r 1(5) CPR requires every summon to be signed by the judge or such officer as he or she appoints, and shall be sealed with the seal of the court. **E.A Plans Ltd V Roger Allan Birkford-Smith [1971] HCB 225;** According to O.5 r.1 (5) CPR a summon is a command from the court and must therefore always be signed by the court itself or such officer to whom the court delegates such power. An advocate was not one such officers and summons signed by him thus lacked any force of law.

- The practice of the court is to treat the Notice of Motion as the summons, thus the Notice of motion ought to be issued by the Registrar/ deputy registrar and should be signed and sealed as required by 0.5 r.1(5) CPRs; In the case of **Dairy Corporation V Opio [2001-2005] HCB 113** the applicant M/s. Dairy Corporation sought by notice of motion for orders that execution of the taxation orders be stayed pending hearing of substantive motion of motion. When the application came up for hearing counsel for the respondent raised a preliminary objection to the effect that the motion was incompetent because it was not signed and sealed by the registrar. Court held that in practice, a notice of motion is treated as summons and O.5 r 1(5) CPR requires that every summons be signed by the judge or such officer as appointed and it is sealed with the court seal. A notice of motion lacking these essential features is a nullity. The reason for this requirement is to show that fees have been paid and showing that it is issued under proper authority and out of proper office.
- In the case of **Kaur Vs City Auction Mart:[1967] EA 108(U)** by notice of motion an application was made to vacate a caveat lodged against the land. A

preliminary objection by the respondent was that a notice of motion was a suit within the meaning of s.2 CPA which should have been signed and sealed by the court under O.5 r 1(5). Court held that the requirement of signing and sealing the summons under O.5 r 1(5) CPR are mandatory and failure to comply with them renders the summons a nullity.

- In the case of **Nakitto & Brothers Ltd vs. Katumba [1983] HCB 70**, held that a notice of motion falls within the meaning of a suit. That a notice of motion not signed by the judge and sealed by the court doesn't fall within O.5 r 1(5) CPR and therefore the application was a nullity.
- The learned judge in **Hussein Badda v Iganga District Land Board and Others Misc. Applic. No. 479 of 2011** Zehurikize, J dealing with applications for interim orders and temporary injunctions held that an application is valid only when it has been signed by the judge or such officer as he or she appoints and it is sealed with the seal of the court within the meaning of Order 5 rule 1 (5) of the Civil Procedure Rules. He referred to ***Nakito Brothers Ltd v Katumba [1983] HCB 70***. He pointed out at page 12 of his ruling that:- ***“An application is by its nature a summons issued by court requiring the respondent to attend court on the appointed date and time. It becomes valid only when it has been given a date, signed and sealed. It is after the above has been done by the court that the application is capable of validity giving rise to another application”***.
- There is a rebuttable presumption that a person signing a summons as acting Deputy Chief Registrar has been duly authorized. ***A. Bauman and Co. (U) Ltd Vs Nadiope:[1968] EA 306(U)***;

- That effect of an incorrect seal; the affixing of an incorrect seal of one court on a document instead of the seal of another court is mere irregularity and does not render the summons a nullity. In *Nanjibhai Prabohusdas & Co. Ltd vs Standard Bank Ltd [1968] EA 670* that: *“The court should not treat any incorrect act as a nullity with the consequence that everything founded thereon is itself a nullity unless the incorrect act is of a most fundamental nature. Matters of procedure are not normally of a fundamental nature.”*

❖ Purpose of summons;

O.5 r 1(1) CPR provides that when a suit has been duly instituted a summons may be issued to the defendant—

- Ordering him to file a defence within the time specified therein.*
- Ordering him to appear and answer the claim on the day specified therein*

The function of summons is to fix the day for appearance. Read; *Re. Pritchard (1963) ALLER 873*

❖ Service of Summons

- Section 20 CPA provides that where a suit has been duly instituted, the defendant shall be served in the manner prescribed to enter an appearance and answer the claim.
- O.49 r 1 requires every process issued under the civil procedure Act to be served at the expense of the party at whose behalf it is issued unless court otherwise directs. O.49 r 2 requires all orders, notices and documents required

by the civil procedure Act to be given to or served on any person to served in the manner provided for the service of summons.

- Besides filing a written statement of defense, the defendant needs at the same time to proceed and serve the plaintiff with a duplicate of the same at the plaintiff's address as required under the rules-O.8 r 19. Service of an interlocutory application to the opposite party shall be made within fifteen days from the filing of the application, and a reply to the application by the opposite party shall be filed within 15 days from the date of service of the application and be served on the applicant within 15 days from the date of filing the reply-O.12 r 3(2); O 51 r 9 such time may be enlarged by consent of the parties under O 51r 7 CPR.

❖ Purpose and Rationale of Service of summons.

- Effective service of summons must make the defendant aware of the suit.
- In the case of **Geoffrey Gatete and Another v William Kyobe SC Civil Appeal No.7 of 2005** the judgment of the court was delivered by Mulenga JSC with concurrence of the rest of the panel of Supreme Court Judges that held that there can be no doubt that the desired and intended result of serving summons on the defendant in a civil suit is to make the defendant aware of the suit brought against him so that he has the opportunity to respond to it by either defending the suit or admitting liability and submitting to judgment.
- In the case of **David Ssesanga v Greenland Bank Ltd HCMisc.App.No.406 Of 2010 Madrama J (as by then)** stated that *“whether or not there was proper service is a fundamental question affecting the right to be heard and should be tried first. It deals with the basic principles of natural justice, which principle is one*

of fundamental rights and freedoms enshrined under article 28 (1) of the Constitution of the Republic of Uganda. Clause 1 thereof provides that: “In the determination of civil rights and obligations or any criminal charge, a person shall be entitled to a fair, speedy and public hearing before an independent and impartial court or tribunal established by law.” The question of fair hearing includes an element of a right to be heard in the matter. The common law adage for this is “no one should be condemned unheard”. It is not only the right to be heard but a right to a fair hearing”. The judge relied on the case of **Geoffrey Gatete and Angela Maria Nakigonya versus William Kyobe Supreme Court Civil Appeal No. 7 of 2005** and held that there was no effective service on the applicant because he was not aware of the suit. He only became aware when he was served with notice to show cause why a warrant of arrest should not issued against him.

❖ **Time within which to serve Summons and effect of expired summons.**

- O.5 r 1(2) CPR provides that service of summons shall be effected within twenty-one days from the date of issue; except that the time may be extended on application to the court, made within fifteen days after the expiration of the twenty-one days, showing sufficient reasons for the extension. O.5 r 1(3) is to the effect that where summons have been and (a) service has not been effected within twenty-one days from the date of issue; and (b) there is no application for an extension of time; or (c) the application for extension of time has been dismissed, the suit shall be dismissed without notice.
- In the case of **Stop and See (U) Ltd v Tropical Africa Bank Ltd HC MISC. APPLICATION NO 333 OF 2010** Madrama J stated that generally time is

reckoned from the time of filing of a plaint and the issuance of summons by the court. A summons should be served on a defendant within 21 days from issuance.

- In the case of **Western Uganda Cotton Co. Ltd V Dr. George Asaba & 3 Ors. HC CIVIL SUIT NO. 353 OF 2009** a preliminary objection was raised that the counterclaim filed against the plaintiff and other counter defendants was not duly served in accordance with the law and therefore should be dismissed with costs. Counsel stated that he accessed a copy by himself from the court records and filed a response having learnt about it during the mediation process when counsel for the defendant referred to it. The issue for court to determine was whether failure to serve the counterclaim on the plaintiff was fatal so as to warrant striking off the counterclaim as against the plaintiff. Court stated that the *object of service of a summons in whatever way it may be effected as stated in Mulla, The Code of Civil Procedure, Volume 2, 17th Edition at page 231 is that the defendant may be informed of the institution of the suit in due time before the date fixed for the hearing.* Court held that since no prejudice or injustice has been occasioned to the plaintiff, the omission to serve can be treat as an irregularity which for purposes of Article 126 (2) (e) of the Constitution can be safely ignored to ensure that substantive justice is done. Court was persuaded by the holding in the Kenyan case of **PragjiBhagwanji and Company Ltd V Michael Krags and Others, Civil Suit No. 338 of 1995**, to the effect that; *“The service of a process becomes effective when a party who is targeted by that service becomes aware of the existence of that matter, which he has to respond to”.* That the object of service in this case was achieved by counsel for the plaintiff’s action. As regards service on the other three defendants to counterclaim who were not parties to the original suit the situation was quite different. Court held that the rules for regulating service of a summons was found under Order 5 of the CPR

where rule 1 (2) thereof provides that service of summons issued under sub-rule (1) shall be effected within twenty one days from the date of issue. That this rule allows extension of time upon an application to the court made within fifteen days after the expiry of the twenty one days. That the procedure for this application is by summons in chambers as provided in rule 32 of Order 5. That conclusion was still in line with what the Supreme Court had earlier stated in the case of *EAGEN v EAGEN S.C.C.A. No. 2 of 2002* that where the legislature prescribes something in mandatory language the relevant provision is imperative and obligatory. Non-compliance would affect the validity of the act done in disobedience of them. That Order 5 r 1 (2) is couched in a mandatory language and Order 5 r 1 (3) clearly provides for sanction where summons are not served within twenty one days and there has been no application for extension of time. The sanction is dismissal of the suit without notice. That this makes Order 5 r 1 (2) mandatory because failure to comply with it has consequences. That Counsel's prayer that the court exercises its power under sections 96 and 98 of the CPA to validate the service is misconceived in view of the finding, and recourse to Article 126(2) (e) of the Constitution in the circumstances of the case was an over stretch and an abuse of this well intended provision. That the reasoning of the Supreme Court was instructive in *UTEX Industries v Attorney General S.C.C.A. No. 52 of 1995* which was adopted in *Kasirye Byaruhanga & Co. Advocates v UDB S.C.C.A. No. 2 of 1997* to the effect that; "*A litigant who relies on the provisions of article 126 (2) (e) must satisfy the court that in the circumstances of the particular case before the court it was not desirable to have undue regard to a particular technicality. Article 126 (2) (e) is not a magic wand in the hands of defaulting litigants*".

- In the case of **Mulaggussi v Katabalo HC Misc. APPEAL No. 006 of 2016** the respondent raised a preliminary objection against the application that it violates the provisions of O.49 r 2 CPR. The contention was that summons were issued on 20th October 2016 and served on the respondent on the 23rd November 2017. Court relied on the supreme court case of *Kanyabwera versus Tumwebaze (2005) 2 EA 86*, that what the rule stipulates about service of summons, applies equally to service of hearing notices and held that the provisions means that the reference to the procedure of service of summons under O.5 r 1(2)(2) of the CPR applies to service of hearing notices and applications for purposes of the provisions relating to the issuance and service. Court further held that chamber summons were duly endorsed by the registrar on the 20th day of October 2016 and that's the date for which computation of time for service began to run. That the application raises a specific provision of the law which must be observed and cannot be circumvented using the provisions of Article 126 of the Constitution. The provisions of O.5 r 1 are couched in mandatory terms and that has been the opinion in *Orient Bank Ltd versus Avis Enterprises HCCA No. 2/2013*, and followed in *Lubega Robert Smith & Ors versus Walonze Malaki; Civil Appeal No. 036/2016* , all the above cases followed the supreme court in *Kanyabwera versus Tumwebaze (2005) EA 86* which held this rule is of strict application. Court further held that service effected out of the prescribed time without seeking extension, renders the application liable for dismissal without notice and thus application is incompetent and ought to be dismissed.
- Where a defendant/respondent is not served but appears, the court may exercise its discretion and allow the suit to proceed.

- A notice of Motion is served in manner provided for service of summons under the provisions of O.5 which governs issue and service of summons. In the case of ***Century Enterprises Ltd v Greenland Bank (in Liquidation) HCMA 0916 of 2004*** a preliminary application was raised that in an application filed under O.33 (now O.36) r 3 and 4 CPR the applicant was obliged to serve the respondent with notice and supporting affidavit within the time stipulated under O.5 r 1. That the Notice of motion issued on 8/12/2004 and served on 3/2/2005 was out of time. He invited court to have it struck out and order that judgment be entered for the plaintiff as prayed in the summary plaint. Court held that under O.33 (now O.36) r4, all that the Defendant has to show is that there is a triable issue of fact or law. The defendant can do so by filing an application for leave to appear and defend the suit. The application takes the form of Notice of Motion. That there is no stated procedure under that order for service of such application on the opposite party. However, under O.45 r 2, all such orders, Notices and documents shall be served in manner provided for service of summons. That it is noteworthy that the word used in the order is 'shall' and in the absence of any other rule to the contrary, this takes us to O.5 which governs issue and service of summons. Court further held that the time frame stipulated in O.5 r 1 were certainly the mischief, or the unsatisfactory state of affairs, which the amendment to the Rules in 1998 was meant to remedy. That it was targeted at people who after getting summons for service on the opposite party just went to sleep thereby contributing to unnecessary build up of case back log. That it was imperative that in order to comply with the rules, an application had to be made to court within 15 days from the expiry of the 21 days, showing sufficient reasons, to extend the time within which to serve the notice of motion. That the rules of procedure enjoin court to administer law and equity concurrently and that Article 126 of the constitution enjoins courts to administer substantive justice without undue regard to technicalities, however, the law did not intend to do away with the rules of procedure and it was not meant to be a magic wand in the hands of defaulting litigants and should not be used to side step rules of procedure. (***Utex Industries Ltd vs Attorney***

General SCCA No. 52/95). However relying on the case of Nassanga vs Nanyonga [1977] HCB 318, court held that the Civil Procedure rules are a guide to the orderly disposal of suits and a means of achieving justice between the parties and the same should not be used to deny a party desirous of contesting. That while there is merit in the respondent's point of law regarding service of summon, court will hesitate to allow this procedural lapse to over shadow the substantive concern of the applicant and in the spirit of Article 126(2)(e) of the constitution, court was inclined to disregard the irregularity. That while there is, on the one hand, the necessity for the rules to be followed, there is, on the other hand, the need for the courts to control their proceedings and not to be unreasonably inhibited by the rules of procedure. That the idea is that the administration of justice should normally require that the substance of all disputes be investigated and decided on their merits, and that errors and lapses should not necessarily debar a litigant from the pursuit of his rights (Banco Arabe Espanol vs Bank of Uganda SCCA No. 8/1998) That while lack of adherence to the rules has been noted with the seriousness it deserves, the circumstances of the case require that the same be overlooked for the sake of administering the greater interests of justice.

❖ Who can Serve Court Process

- O.5 r 7 civil procedure rules provides that where the court has issued a summons to a defendant it may be delivered for service to any person for the time being duly authorized by the court, to an advocate or an advocate's clerk who may be approved by the court generally to effect service of process; or it may be sent by post or messenger to any magistrate's court having jurisdiction in the place where the defendant resides.
- Any person authorized by court or advocate or advocates clerk may effect service of court process. Not any clerk can effect service. An advocate clerk needs special

permission of court. *Mugume & Anor vs. Akankwasa [2008] HCB 159 [See procedure of being approved as a court process server/clerk]*

Rd Abdul Ssozi versus Post Bank Uganda Limited CACA No. 12/2010 (2015)

❖ **Mode Of Service Of Summons:**

- O.5 r 8 of the civil procedure rules provides for the mode of service. Service of the summons shall be made by delivering or tendering a duplicate of the summons signed by the judge, or such officer as the judge appoints for this purpose, and sealed with the seal of the court.
- The duplicate is to be delivered and acknowledgement of service to be given. When a duplicate has been delivered and tendered to the defendant personally, his agent of the defendant or such other person is required to acknowledge the original summons provided that if the defendant or his agent refuses to sign, court may declare such summons to have been served. The requirement that a duplicate be delivered or tendered is mandatory and if not complied with, the service is bad. In the case of *Erukana Kavuna V Metha [1960] 305 (U)* held that the requirement that a duplicate be delivered or tendered is mandatory and if not complied with the service is bad.
- O.5 r 14 of the civil procedure rules provides that where a duplicate of the summons is duly delivered and tendered to the defendant personally or an agent or other persons on his behalf, the defendant or such agent or other person shall be required so to endorse. This rule is mandatory and non compliance means that

service has not been effected-*Narshidas M Mehta and Company Limited v Baron Verheyen (1956) 2 TLR 300.*

- **Items to accompany summons**

- O. 5 r 2 Summons shall be accompanied by a copy of the plaint, a brief summary of the evidence to be adduced, a list of witnesses, a list of documents and a list of authorities to be relied on; except that an additional list of authorities may be provided later with the leave of court.
- In the case of **Valery Alia Vs Alionzi John (HCCS NO. 157 OF 2010)** Madrama j (as by then) held that service of summons under order 5 of the Civil Procedure Rules is not satisfied by service of the summons signed by the registrar of the court only. Certain items are meant to accompany the summons. The summons is an order of the court requiring the defendant to file a defence within the prescribed time of 15 days and warning of the consequences of non-compliance with the filing of a defence. It is a fundamental rule of justice that before anybody can defend himself or herself, he or she has to be notified of the particulars of the claim against him or her. Article 28 of the Constitution of the Republic of Uganda provides that in the determination of civil rights and obligations or any criminal charge, a person shall be entitled to a fair, speedy and public hearing before an independent and impartial court or tribunal established by law. Further held that non-compliance with order 5 rule 2 of the Civil Procedure Rules renders the proceedings an irregularity.
- The summons in substituted service however should indicate that the defendants will obtain copy of the plaint at the registry of the court. **In the case of Jessy**

Technical Services Ltd & Anor v Ajay Industrial Corporation Ltd &Anor(MISC. APPL. NO. 0617 OF 2012 AND MISC. APPLI. NO. 616 OF 2012) Madrama j held that as far as the substituted service is concerned, my decision in **Valery Alia versus Alionzi John High Court civil suit number 156 of 2010** refers. In that case I held that summonses issued under order 5 rule 1 of the Civil Procedure Rules were an order of the court. That Order 5 rule 1 (1) (a) of the Civil Procedure Rules is explicit that the summons shall contain an order for the defendant to file a defence within the time to be specified in the summons. Secondly Order 5 rule 2 provides that every summons shall be accompanied by a copy of the plaint, a brief summary of the evidence to be adduced, a list of witnesses, a list of documents and a list of authorities to be relied on. Rule 2 make it imperative that the summons shall indicate the time within which the defendant shall file a defence and secondly what must accompany the summons. In the case of **Valery** (supra) the summons were advertised just as in this case but were not accompanied by the items specified by rule 2 of the Order. Consequently in that case it was found that there was no proper service because there was no plaint and attachments thereto accompanying the summons advertised in the newspapers. More so the summons advertised advised the defendants that there is "copy of the plaint attached hereto". However no copy of the plaint was attached to the summons advertised in the newspaper. That apparently attaching a copy of the plaint may be expensive to litigants. However it would be a compromise of the law not to attach the plaint to the summons as provided by the mandatory provisions of order 5 rule 2 of the Civil Procedure Rules. Perhaps, and this is not indicated in the forms which are prescribed, the summons should indicate that the defendants will obtain copy of the plaint at the registry of the court. This seems to be the practice.

- **Service on the Defendant in Person**

- O.5 r 10 civil procedure rules provides for service to be on defendant in person or his or her agent. Wherever it is practicable, service shall be made on the defendant in person, unless he or she has an agent empowered to accept service, in which case service on the agent shall be sufficient.
- In the case of **Jessy Technical Services Ltd & Anor v Ajay Industrial Corporation Ltd & Anor (Misc. Appl. NO. 0617 OF 2012 and Misc. Appli. No. 616 of 2012)** Court held that there was no personal service on the second applicant as prescribed by order 5 rule 10 of the Civil Procedure Rules. That the rule provides that service shall be effected personally on the defendant or on an agent duly empowered to accept service. Rule 10 reads as follows: "10. Service to be on defendant in person or on his or her agent. Wherever it is practicable, service shall be made on the defendant in person, unless he or she has an agent empowered to accept service, in which case service on the agent shall be sufficient." Court further held that where it is not practicable to effect service on the defendant personally, it may be made on an agent empowered to accept service. The words "empowered to accept service" is read in the context of recognized agents as prescribed by order 3 of the Civil Procedure Rules. An empowered agent is an agent recognized under order 3 of the Civil Procedure Rules. Court further held that the receptionist was not proved to be an empowered agent of the second applicant/defendant by the affidavit of service of the process server. It was not proved that the 2nd Applicant empowered the receptionist at the offices of the first Applicant to accept service on his behalf. Acceptance of service in the context of order 3 rule 1 is an "act" which is required in any court to be done by a party. This is because service has to be made on the defendant personally and therefore acknowledgement of service is an act to be done by a

party i.e. the defendant. Consequently the definition of recognized agents by order 3 rule 2 of the Civil Procedure Rules is applicable. In that rule agents are defined as persons holding powers of attorney authorizing them to make appearances and applications and do such acts on behalf of the parties. Secondly it means persons carrying on trade or business for and in the names of the parties not resident within the local limits of the jurisdiction of the court. Finally order 3 rule 5 of the Civil Procedure Rules provides that besides the recognized agents described in rule 2 of the order, any person residing within the jurisdiction of the court may be appointed an agent to accept service of process. Order 3 rule 5 (2) specifically provides that the agents so appointed shall be either special or general and the appointment shall be by an instrument in writing signed by the principal and a certified copy of which shall be filed in court. That the receptionist described by the process server does not fit the description of an agent authorized or empowered to accept service by the second respondent. Court finally held that there was no personal service on the second applicant/defendant as prescribed by the rules. In practical terms therefore the registrar was right to advise service of summons by substituted service as far as the second applicant is concerned.



- The function of summons is to fix the day for appearance and must be served on the defendant in person *Re. Pritchard (1963) ALLER 873.*
- Proper effort must be made to effect personal service; *Katukulu V Transocean[1974] 276 (CA-U)Held;* That service of a plaint and summons to enter appearance should be effected on the defendant personally and where it is nor possible or practicable, the plaintiff should always proceed by way of

substituted service in accordance with the CPRs. The fact that the defendant was never served personally with court process was sufficient to show that they had never served the summons.

❖ **Service on several defendants.**

- O.5 r 9 civil procedure rules provides that where there are more defendants than one, service of the summons shall be made on each defendant. In the case of *EAGEN V Ntende [1979] HCB 227*; Held that since the plaintiff had decided to join all the six defendants, the plaintiff brought upon himself the duty to effect service on each of them. Failure to serve all of them was a good cause to set aside the decree

❖ **Service on Agents other than the Defendant**

- O.5 r 11: Service must be effected on the person upon whom the summonses are directed unless he has an authorized agent. Service on an agent is effectual. *Erukana Kavuma Vs Metha[supra]* The process server for the plaintiff stated that he did not find the defendant at his shop and served the summons on the defendant's wife and obtained an ex parte judgment which was challenged. **Held:** That **O.5 r 9 and O.5 r 11** was not complied with because the duplicate copy of the summons was tendered or delivered to the defendant's wife, service was therefore bad. The process server did not inquire as to the address of the defendant in India and for how long he will stay there.
- In the case of **Jas Projects Ltd v Emiru Angose HCT - CS - 280 – 2005** the issue was whether there was indeed effective service of summons on the applicant. Court held that Order v of the civil procedure rules (CPR) as amended provides

order v r 11. “Wherever it is practicable, service shall be made on the Defendant in person, unless he has an agent. Empowered to accept service, in which case service on such agent shall be sufficient”. The rule of thumb here therefore is that service of summons should be effected on the Defendant in person. Where service on the Defendant is not practicable then service should be on the Defendant’s agent empowered to accept service. That in this case there was no service on the Defendant in person but rather on a receptionist. Court further held that in order to have effected service upon the said receptionist, the receptionist would not only have to be the agent of the Defendant but a recognized one at that within the meaning of order III r 1 & 2; and in particular rule 2 thereof which states; “The recognized agents of parties by whom such... acts may be made or done are:- (a) Persons holding Powers of Attorney authorizing them to make... and do such acts on behalf of parties; (b) Persons carrying on trade or business for and in the names of parties not resident within the local limits of Jurisdiction of the Court... etc (not relevant to this case)”. That the evidence before Court does not suggest that the service of summons on the Applicant/Defendant through the receptionist was that by way of an authorized agent, indeed there is no mention of any Power of Attorney to that effect. Court further held that where service cannot be effected in the ordinary way then the Plaintiff or his Counsel should apply for substituted service rather than go ahead with an ineffective or desperate method of service to remain within time. That there was no effective service.

❖ **Service on an Advocate with Instructions.**

- O.5 r 10, 11 civil procedure rules recognize service on agents. Summons may be issued to an advocate duly instructed. An advocate by virtue of his or her representation of a party in court proceedings is entitled to accept service on

behalf of the client. O.3 r 4 civil procedure Act provides for Service of process on advocate. Any process served on the advocate of any party or left at the office or ordinary residence of the advocate, whether the process is for the personal appearance of the party or not, shall be presumed to be duly communicated and made known to the party whom the advocate represents, and, unless the court otherwise directs, shall be as effectual for all purposes as if the process had been given to or served on the party in person.

- In the case of **LakhmanBhimji versus Manor Developments Ltd MA 105 of 2010 (arising from Civil Suit No 35 of 2013)** service had been effected on the applicant's counsel who was away upcountry. He was called on phone and later on found the summons in his office. Court held that the Advocate could not receive service of summons for a fresh suit on behalf of the Defendant. Firstly, being a fresh matter, he would need instructions of his client in terms of the contents and merits of the application in order to represent him effectively. Secondly, and more fundamentally, is the ethical question of how an Advocate can take up any matter without instructions of a client. A lawyer has no authority to act for anybody without instructions. That **the Advocates (Professional Conduct) Regulations**, Statutory Instrument 267—2, regulation 2 (1) forbids an advocate from acting without instructions. Court further held that the Advocate *could not be instructed because the defendant/applicant had not yet been served. In terms of the rules of procedure, there was no effective service on the Applicant. To put it simply he had not yet received the documents of service from the plaintiff and he was incapable of giving instructions to any lawyer of his choice.*

- In the case of **Mulenga V Stanbic Bank (U) Ltd (No. 200 of 2013)** Court held that a lawyer could not receive court process on behalf of his client unless he is a duly authorized agent under the provisions of Order 3 of the Civil Procedure Rules. A lawyer cannot take action without instructions.
- The duty of the advocate to accept service subsist until conclusion of the suit. The suit is not concluded until judgment is entered and bill of cost taxed. This liability further subsist until a notice of change of advocates is filed in court. The withdrawal must follow the rule on withdraw from cases set out in the advocates rules-R.3 Advocates professional conduct rules SI 267-2 ***Beliram V Salkind [1954] 27 KLR 28***; There was no notice of change of advocate on the file. Service was effected on the advocate who had withdrawn about a year ago. Held that because of O.1 r.1 & 2, by entering an appearance and giving the address, the advocate became liable for service, which was deemed as effective as if it was served on the defendant in person. ***Twiga Chemical Industries Ltd V Viola Bamusedde CACA No. 9/2002***
- NB. Service on an agent in charge of immovable property in the suit for relief for respecting immovable property is good service-O.5 r 12 CPR.

- **Service on Adult Member of Defendant's Family**

- O.5 r 13 civil procedure rules provides that where in any suit the defendant cannot be found, service may be made on an agent of the defendant empowered to accept

service or on any adult member of the family of the defendant who is residing with him or her.

- **In the case of Wadamba v Mutasa & 2 Ors (HCT-04-CV-CA-0032-2015)** the issue of contention was whether service was effectively done to warrant court's findings that the appellant's application had no merit. According to O.5 r. 13 of the Civil Procedure Rules, service of summons must be personal, but where it is not possible to serve the defendant service can be done on his agent or adult member of his family. See: *Betty Owaraga v. G.W. Owaraga HCCA No. 60 of 1992*. That also in *Erukana Kavumu v. Metha (1960) EA 305*, service was effected on an adult member of the family when defendant was reportedly in India. Court ruled that an inquiry was necessary regarding defendant's address before it concluded that he can't be found. That the law is that where defendant denies having been served, the onus is on him/her to prove to the satisfaction of court that the service was ineffective as per *Busingye & Ors v. Williams Katotsire (2001-2005) HCB 108*. That the law also recognises the role of the local authorities to help in having the defendant understand the contents of the summons per *Magela v. Kakungulu (1976) HCB 289*. The Process Server in this case enlisted the support of the LC.I Chairman of the area, and also ensured that defendant is summoned to the LC's offices.

Service on an adult member of the family; If the defendant cannot be found service on an agent or adult member of the defendant's family is good service, *see, Omuchilo's case, See Balenzi Vs Wandera*

- Service upon an adult member of the defendant's family including a wife; ***Bulenzi Vs Wandera:[HCCS No.1047/90]*** The affidavit of service stated that service was made onto the Defendant's wife who had revealed to the process server that she was not living with the applicant as he was then staying outside the country and that she would make efforts to send the summons to him. The defendant contended that service was not in accordance with **O.5, r 14** which requires that service on the person residing with the person named in the summons. **Held:** At the time service was purported to be made on to the wife of the defendant the wife was not residing with the defendant therefore this was no service as contemplated by **O.5 r 14** when the defendant was not found at his home. ***Waweru V Kiromo[1969] EA 172 K;***
- The question whether service on an adult member of the defendant's family residing with him is proper service may be a mixed question of law and fact and sometimes of law or fact alone;***See also Waweru V Kiromo[1969] EA 172(K)***
- Need for sufficient inquiry about the defendant's whereabouts; In the case of ***Lalji v Devji [1962] EA 306a*** a clerk of the plaintiff's advocate made several attempts to serve a summons upon the defendant at his house in vain and served the summons on the defendant's wife under **O.5 r 14**, judgment was challenged on ground that service of summons was bad. **Held:** That no proper or sufficient inquiry was made as to the defendant's whereabouts or whether the defendant could not really be found. Accordingly service on the defendant's wife was not effective.

- NB: That certain steps must be complied with before leaving summons with another person or affixing it on the premises. Other alternative modes are not applicable unless there is evidence that the defendant could not be found; In the case of *Waweru V Kiromo [1969] EA 172 K* the defendant applied to set aside service on him summons. The affidavit of the process server stated that the summons had been left with the defendant's wife with instructions that she should keep it for her husband as he was not present at the time. Trevelyan J. held that as the process server made no inquiry about the defendant's whereabouts it could not be said that he could not be found, so as to allow service on his wife under O.5 r 12 (now O.5 r 14) CPR. See also **Okoth Alex vs Lwanyaga Edwin HCCS No. 32/2003.**
- Service on a member of the defendant's family must be effected on an adult; Service upon a minor found at the defendant's home is bad; *Betty Owaraga V George William Owaraga CA No.60 of 1992.*
- Service by Affixing Summons on Defendant's address
- O.5 r 15 civil procedure rules provides that where the serving officer, after using all due and reasonable diligence, cannot find the defendant, or any person on whom service can be made, the serving officer shall affix a copy of the summons on the outer door or some other conspicuous part of the house in which the defendant ordinarily resides or carries on business or personally works for gain, and shall then return the original to the court from which it was issued with a report endorsed on it or annexed to it stating that he or she has so affixed the copy, the circumstances in which he or she did so, and the name and address of

the person, if any, by whom the house was identified and in whose presence the copy was affixed.

- In the case of *Eliakanah Omuchilo V Ayub Machiwa [1966] EA 229(K)* The process server accompanied by an agent of the plaintiff failed to find the defendant at a resident where he ordinarily stayed to serve a summons on him but the defendant could not be found there. The process server affixed a copy of the summons on the entrance door to the house and swore a brief affidavit to that effect. Later judgment was entered exparte for the plaintiff. **Haris J** held that before a process server can validly effect service by affixing the copy of the summons to the premises, he must by virtue of O.5 r 14 first use all due and reasonable diligence to find the defendant or his agent empowered to accept service; or any defendant in charge of the suit premises or any adult member of the family residing with him. It is only when, after using such diligence, none of them can be found that he can affix a copy of the summons on the premises, particulars of which should be given. The service upon the defendant was wholly ineffective as the process server had not used all due and reasonable diligence to find the defendant and person mentioned in O.5 r 9,11 and 12, accordingly judgment should be set aside without terms being imposed on the defendant.
- The disclosure of the name and address of the person who identified and witnessed delivery or tender of the summons to the defendant at the material time is a statutory duty. In the case of *M.B Automobiles V Kampala Bus Service [1966] EA 480* Court held that the disclosure of the name and address of the person who identified and witnessed the delivery or the tendering of the summons to the defendant at the material time was a statutory duty, and that failure to

disclose the name of such person in the affidavit sworn by the process server rendered the affidavit defective.

- In contrast in the case of **Galiwango Fred vs Asuman Kavuma HCMA No. 131/2003** Court held that the process server clearly names both the plaintiff and the wife of the applicant or at least the woman that he thought was the wife of the applicant albeit by description who were witnesses to the actual service which was executed in the compound of the applicant's home and in the absence of the plaintiff and that both would fall under the ambit of Order 5 r 17 of the civil procedure rules. Further held that in any case the statutory requirement imposed upon a process server under Order 5 rule 17 appear to operate only in cases where the execution of service of summons has been witnessed by someone. Where no person witnesses the service the requirement to name the witness does not apply. The words 'the person if any' used in rule 17 of order 5 renders credence to this interpretation.
- O.5 r 17 of the civil procedure rules provides for examination of serving officer where a summons is returned under rule 15.

❖ **Proof of Service**

- O.5 r 16 of the civil procedure rules provides that the serving officer shall, in all cases in which the summons has been served under rule 14 of this Order, make or annex or cause to be annexed to the original summons an affidavit of service

stating the time when and the manner in which the summons was served, and the name and address of the person, if any, identifying the person served and witnessing the delivery or tender of the summons.

- In the Supreme Court case of **Edison Kanyabwera v Pastori Tumwebaze ((Civil Appeal No.6 of 2004))** Oder JSC (R.I.P) held that the absence from record of an affidavit of service on the defendant or his counsel was an error or mistake on the face of the record justifying a review of the trial judge's refusal to set aside the ex parte judgment against the defendant. That there was no evidence on record that the defendant was served. The absence of such affidavit leads inevitably to the conclusion that the defendant was not properly served with the hearing notice before the suit was heard in his absence. The provisions of Order 5, rule 17 of the C.P.R is mandatory, it was not complied with in the instant case. What the rule stipulates about service of summons, applies equally to service of hearing notices.
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- The person alleging proper service must have and prove in his or her return of service the following;
 - i) The time when service was effected on the said person;
 - ii) The manner in which the summons were served;
 - iii) The name and address of person identifying the person served; The process server must show that he knows the defendant and if not, the person identifying the defendant must be mentioned in the affidavit. In the case of

Frank Katusiime V Business Systems Ltd HCSC 717/1993; Katutsi J

held; that the disclosure of the name and address of the person who identified and witnessed delivery or tender of the summons to the defendant at the material time is a statutory duty. Failure by the process server to disclose the name of the receptionist who allegedly pointed out the managing director to him had the effect of rendering them defective for non-compliance with the provisions of 0.5 r.16

- iv) The exact place where service was effected;
- v) Whether or not the person served is known to the person the summons is meant for if the person is not known to the process server;
- vi) If no personal service, the person should indicate the relationship between the person served and the person summons were directed at;
- vii) The source of information in (vi) must be stated;
- viii) That he required his / her signature and response;

- In the case of **Wadamba v Mutasa & 2 Ors (HCT-04-CV-CA-0032-2015)** Court held that the Process Server satisfied the basic requirements for ensuring proper service as listed in the *Uganda Civil Justice Bench Book (1st Edn 2016)* **page 25** that effective features of a valid affidavit of service should contain:

- A statement to the effect that the deponent is a Process Server of the Court.
- A statement to the effect that the defendant/Respondent was personally known to him or her at time of effecting service.
- A statement to the effect that the Defendant not being known to him or her, another person accompanied the Process Server and pointed out the person

to be served. That the above check list was dully satisfied in the facts of the application and the Process Server conducted effective service.

- In the case of **Good Man Agencies Ltd & Nicholas Were vs. Highland Agriculture Export Ltd HCMA No. 364/2010** Kiryabweire J held that proof of service of summons is by affidavit of service according to O.5 r 16. That the filing of an affidavit of service as proof of service is mandatory under the provisions of O.5 r 16 of the civil procedure rules and is designed to ensure that there was actual service and that it was carried out properly. That it would be dangerous for court to accept the fact that there was service of summons when summons were not signed by the defendant. (See Allen J in *Osuna Otwani v Bukenya Salongo* [1976] HCB 62. Court further held that it was inclined to believe that the applicant was served and that is why a defence was filed in response but that the only irregularity was no affidavit of service was put on court record which would defeat the interest of substantive justice and there is equally no prejudice to the applicant who was found on notice to defend the suit.
- In the case of ***Osuna Otwani V Bukenya Ssalongo* [1976] HCB 62; O.5 r.17** is mandatory and is designed to ensure that there is actual service and that it is carried out properly. Hence it would be dangerous for courts to accept the fact that there was service of summons when summons were not actually signed by the defendant/appellant.

- As a general practice, the court should require an affidavit of service of summons in every case before entering judgment in default of appearance.

Kanji Naran V Ramji 21 EACA 20; Edison Kanyabwera V Pastori Tumwebaze [2001-2005] HCB 98

Service of summons , the affidavit must show that a copy of the plaint and affidavit in support were served with the summons. ***Lusiano Lippi v Venice (U) Ltd [1992] IV KALR 7 .***

- The rule in order 5 r.16 that an affidavit of service has to be sworn where the summons have been served equally applies to hearing notices. The provisions of the rule are mandatory. The absence of an affidavit leads inevitably to a conclusion that the defendant was not properly served. ***Edison Kanyabwera V Pastori Tumwebaze [2001-2005] HCB 98***
- Illiteracy in English is no ground for ignoring summons and the person served cannot rely on that as a ground for not entering appearance; ***Read F. Magera & Anor. V Kakungulu [1976] HCB 289***

❖ Day and Hour of service

- O.51 r 9 civil procedure rules provide that service of pleadings, notices, summonses, other than summonses on plaintiffs, orders, rules and other proceedings shall normally be effected before the hour of six in the afternoon, except on Saturdays when it shall normally be effected before the hour of one in the afternoon. Service effected after the hour of six in the afternoon on any week day except Saturday shall, for the purpose of computing any period of time subsequent

to the service, be deemed to have been effected on the following day; service effected after the hour of one in the afternoon on Saturday shall for the like purpose be deemed to have been effected on the following Monday.

- Day of service, excludes Sundays and Public holidays; ***Wasswa Vs Ochola, SCCA No.05/1990; O. 51 r 9***; The applicant moved to set aside an ex parte judgment on grounds of non-service, which was purportedly made on Sunday. The affidavit of service did not disclose how the process server knew the person to be served. The plaintiff had ex parte remedies. Service on Sunday is void within the meaning of O.51 r 9 CPR as no service can be effected on Sunday. The affidavit of service should comply with O. 5 r 17 where service is effected under O.5 r 15, the address of the person identifying the individual to be served should be annexed to the affidavit.

❖ Substituted Service

- O.5 r 18 of the civil procedure rules provide for substituted service. Where the court is satisfied that for any reason the summons cannot be served in the ordinary way, the court shall order the summons to be served by affixing a copy of it in some conspicuous place in the courthouse, and also upon some conspicuous part of the house, if any, in which the defendant is known to have last resided or carried on business or personally worked for gain, or in such other manner as the court thinks fit. Substituted service under an order of the court shall be as effectual as if it had been made on the defendant personally.

- The object of substituted service of summons was considered in **Satvinder Singh vs. Saridner Kaur HCDC No. 2 of 2002** before Justice Rwamizazi-Kagaba of the High Court of Uganda (See (2002) **KALR 616 at 617**). Where the Hon Judge of the High Court held as follows: *"I must observe that substituted service is granted with a purpose or goal to achieve. It is granted when the court is satisfied that there exists a practical impossibility of actual service that the method of substituted service asked by the plaintiff/petitioner is one which will in all reasonable probability, if not certainty, be effective to bring knowledge of the plaint/petition to the respondent/defendant, (whether substituted service is granted for the defendant who is within the jurisdiction of the court or outside its jurisdiction) the primary objective is to ensure that the defendant should receive knowledge of the existing suit against him or her and thereby eliminate the violation of his rights which requires that a person shall not be condemned unheard."*
- In the case of **David Ssesanga v Greenland Bank Ltd Misc.App.No.406 Of 2010 Madrama J** held that Order 5 rule 18 assumes that the defendant sought to be served by substituted service is within the jurisdiction of the court when summons are issued. The intention of the substituted service is to make the defendant aware of the suit in another way because he or she cannot be served *personally*. The defendant can only be served personally when he or she is within the jurisdiction of the court. Common law authority is that for substituted service to be valid, the defendant has to be within jurisdiction of the court when the writ for which order for substituted service is made. Substituted service under Order 5 rule 18 (1) of the CPR applies where the defendant cannot be served in the ordinary way. Ordinary service is personal service or service on the defendant personally.

- Order 5 rules 18 of the Civil Procedure Rules is clear about the circumstances where substituted service may be ordered. First of all the court is to be satisfied that summons cannot be served in the ordinary way. Secondly the affixing of a copy in a conspicuous place in the court house or on part of the residence or house of the persons sought to be served or where the person last resided or carried on business or personally worked for gain or in some other manner as the court thinks fit, presupposes that the person would be made aware of the summons by affixing of a copy or by the service in the manner that the court thinks fit. The underlying rationale for every service is that the defendant would become aware of the matter contained in the notice or summons. A summons is an order of the court directing a party to appear in court.
- In the case of **Tweheyo Edson vs Barurengyera Kamusiime Hillary HCCA No. 11/2010** arising from MA No. 98/2009 and CS No. 343/2009 Justice Bashaija held that the trial court was satisfied that summons could not be served in the ordinary way and ordered substituted service instead, by affixing the summons on court notice board and advertising on the Orumuri newspaper. That based on the provisions of order 5 r 18(2) CPR the appellant's argument are implausible that he was not duly served because service by way of substituted service, and that the respondent knew where the appellant could be found but opted for this particular mode of service. Court held that there was evidence that the process server could not trace the appellant at his home, and was informed by his neighbors that the appellant had left the place without evidence rebutting these facts.
- The advertisement of summons without prior leave of court does not substitute for personal service of such summons on the defendant but is mere notice; ***Read Kearsley (Kenya) Ltd V Anyumba & Others [1974] EA 112***

Service of court process by substituted service is deemed as good as service on the person personally *Violet K. Mukasa V Erizafani Matovu*[1992-93] HCB 235; *However Read; Read; Geoffrey Gatete & Anor. V William Kyobe* [2007] HCB Vol.1 54

That service should be personal or substituted with leave of court otherwise there will be no proper. *UTC Vs Kewaza* [1975] EA:see *procedure of applying for substituted service*.

Service by Electronic means.

This is another mode of service which courts can allow any party under “*such other manner as the court thinks fit*”. This therefore means a party can ask court for alternative means of service if physical personal service cannot be effected such as service by facsimile or service by other means of electronic communication especially if such parties have ever had such mode of communication in their dealings or it forms part of their contract address. Under the companies Act, this mode of service has been recognized as a way of service on a company under section 274 of the companies Act, 2012. Internet lawyers could further consider the return receipt option or hire verification service so as to prove to court that the email reached and opened.

Service by Post.

The summon is sent to the defendant at his usual and last known place of abode by registered mail. In some jurisdictions service is presumed to have been effected

on the 7th day of posting though it can be rebutted. See Order 5 r 7(1)(b) and Order 5 r 19 of the civil procedure rules. See *India Vedeorgram Association Limited vs Patel* [1991] 1 WLR 173

- **Service on Partners in a partnership.**

O.30 r 3 of the civil procedure rules provides for service of partners. Where persons are sued as partners in the name of their firm, the summons shall be served—(a) upon any one or more of the partners; (b) at the principal place at which the partnership business is carried on within Uganda upon any person having, at the time of service, the control or management of the partnership business there; or (c) as the court may direct. The service shall be deemed good service upon the firm so sued, whether all or any of the partners are within or without Uganda; except that in the case of a partnership which has been dissolved to the knowledge of the plaintiff before the institution of the suit, the summons shall be served upon every person in Uganda whom it is sought to make liable. O.30 r 6 provides for appearance by partners. Where persons are sued as partners in the name of their firm, they shall appear individually in their own names, but all subsequent proceedings shall, nevertheless, continue in the name of the firm. O.30 r 7 provides that where a summons is served in the manner provided by rule 3 of this Order upon a person having the control or management of the partnership business, no appearance by him or her shall be necessary unless he or she is a partner of the firm sued.

- The case of **Geoffrey Gatete and Angela Maria Nakigonya versus William Kyobe** Supreme Court Civil Appeal No. 7 of 2005 is instructive. The judgment

of the court was delivered by Mulenga JSC with concurrence of the rest of the panel of Supreme Court Judges. Court held that rules 3, 6 and 7 of Order 30 relate to service of, and appearance to summons. From reading the three rules together, it is evident that “*deeming service*” in any of the modes provided by r.3 to be “*good service upon the firm*” is premised on an assumption that the person served will ensure that all the partners sued under the firm name ultimately receive the summons. Hence the mandatory requirements under rr.6 and 7, that the partners, and only the partners, have to enter appearance in their individual names. This is so because a suit against a partnership firm is in essence a suit against the individual partners jointly and severally. Obviously, the partners cannot comply with the requirement to enter appearance where they are not made aware of the summons and the suit. That O.30 r.3 does not constitute a partnership firm into a corporate legal person nor does it vest in the person served, power of attorney to act for all the partners of the firm sued. The rule provides the alternative modes of service only for expediency. It must not be construed as compromising the right of any partner to know of a suit instituted against him or her under the firm name and to have opportunity to decide whether or not to enter appearance and defend; or in the case of a summary suit, to decide whether or not to apply for leave to appear and defend. At page 8 second paragraph to page 9 quote: “*It is apparent that in concluding that assumed service on Matsiko Kasiimwe was effective service, the courts below took the expression “deemed good service” referred to in order 30 rule 3 and the expression “effective service” referred to in order 36 rule 11 to mean the same thing and actually use them interchangeably. In my view, the two expressions are significantly different. The Oxford advanced learner’s dictionary defines the word “effective” to mean “having the desired effect; producing the intended result”. In that context, effective service of summons means service of summons that produces the desired or intended result. Conversely, in ineffective service of summons means service*”

that does not produce such result. There can be no doubt that the desired and intended result of serving summons on the defendant in the civil suit is to make the defendant aware of the suit brought against him so that he has the opportunity to respond to it by either defending the suit or admitting liability and submitting to judgment. The surest mode of achieving that result is serving the defendant in person. Rules of procedure, however, provide for such diverse modes for serving summons that the possibility of service failing to produce the intended result cannot be ruled out in every case.

For example, in appropriate circumstances service may be lawfully made on the defendant's agent. If the agent omits to make the defendant aware of the summons, the intended result cannot be achieved. Similarly, the court may order substituted service by way of publishing the summons in the press. While the publication will constitute lawful service, it will not produce the desired result if he does not come to the defendant's notice. In my considered view, these examples of service envisaged in order 36 rule 11 as "service (that) was not effective." Although the service on the agent and substituted service would be "deemed good service" on the defendant entitling the plaintiff to a decree under order 36 rule 3, if it is shown that the service did not lead to the defendant becoming aware of the summons, the service is "not effective" within the meaning of order 36 rule 11. (See Pirbhai Lalji vs. Hassanali (1962) EA 306). The word "deemed" is commonly used in legislation to create legal or statutory fiction. It is used for the purpose of assuming the existence of the fact that in reality does not exist. In St Aubyn (LM) vs. Attorney General (1951) 2 All England reports 473, at page 498 Lord Radcliffe describes the various purposes for which the word is used where, he says – "the word "deemed" is used a great deal in modern legislation. Sometimes it is used to impose for the purpose of the statute an artificial construction of the word or phrase that would not otherwise prevail. Sometimes it is used to put beyond doubt a particular construction that might otherwise be uncertain. Sometimes it is used to give a comprehensive description that includes what is of use, what is and certain and what is, in the ordinary sense, impossible." In my view, the expression "service that is

deemed to be good service” is so broad that it includes service that would not produce the intended result, which therefore is not effective.”

❖ **Service on a Company or Corporation**

- Section 274 of the Companies Act 2012 provides for Service of documents. A document may be served on a company by personally serving it on an officer of the company, by sending it by registered post to the registered postal address of the company in Uganda or by sending an email to the known electronic address or by leaving it at the registered office of the company.
- O.29 r 2 of the civil procedure rules provides for service on corporation. That subject to any statutory provision regulating service of process, where the suit is against a corporation, the summons may be served— (a) on the secretary, or on any director or other principal officer of the corporation; or (b) by leaving it or sending it by post addressed to the corporation at the registered office, or if there is no registered office, then at the place where the corporation carries on business.
- ***James Musajjalumbwa V Bitumastic Ltd [1982] HCB 103;*** Service upon company secretary, director or principal officer or by leaving the summons at the registered office or place of business. ***Read also J.F Ijjala V Corporation Energo Projekt [1988-90] HCB 157*** *For the principal that if summons are left at the principal place of business or head office of the defendant, that is effective service.*
- ***Augustine Okirol Vs Gerald Lwasa and PMB;*** Service was effected on the secretary of the general manager of the company reliance being placed on O.29 r 2

and the defendants contended that service was bad. **Held:** That the secretary of the general manager was not within a class of persons intended by the rule and could not fall within the ambit of the principal officer of the corporation hence the service was not effected.

- In the case of **Kisubi High School Ltd vs. NSSF HCMA No. 505/2012** the affidavit of service read that the deputy head teacher had been served with the summons. The narrow issue was whether service on the deputy head teacher of the applicant school amounted to leaving the document at the registered office of the company. Alternatively whether the school is the place where the corporation carries business. Madrama J held that there is no difference in quality between handing over summons to the head teacher and also leaving it at the principal place of business or registered office of corporation. Further held that service on the deputy headmaster was as good as leaving the documents at the registered office of the company.
- In the case of **National Forestry Authority vs Kasese Cobalt co. Ltd HCMA No. 110/2012** the issue was whether service on the liaison officer was effective service. Madrama J held that it is permissible to serve summons on the secretary, any director or other principal officer of the corporation. That the expression principal officer has to be determined on the basis of the facts as to whether the person or officer is the principal officer in the circumstances of the case.
- *In the case of Kampala City Council vs. Apollo Hotel Corporation [1985] HCB at page 77, it* was argued that the applicant had not been served with summons and was not aware of any pending suit and therefore could not enter appearance. In an application to set aside the decree Odoki J as by then held that summons

have to be served on the secretary to the board, or the chairman of the board or any director or other principal officer in that category of responsibility. That such process must be served on senior officers of the corporation responsible for the management of the corporation and in a position to take legal action on behalf of the corporation. In that case the person served as a manager of the corporation was not a principal officer of the corporation competent to accept service of the process.

- Service on Corporations: NB: R 14, 16 and 17 do not apply to the corporations and service on corporations can not be effected in accordance with those rules *[Nzioki S/o Mutumenta Vs Akamba Handcraft industries Ltd]* O.29 r 2: Service on corporations is made upon the secretary, directors, principal officer of the company (like the general manager) on whom summons may be left or sent by post to the corporation's registered office. If no registered office, then to their premises.

❖ Service on the Attorney General

- *Article 250(2) of the constitution* provides that civil proceedings by or against the Government shall be instituted by or against the Attorney General; and all documents required to be served on the Government for the purpose of or in connection with those proceedings shall be served on the Attorney General.
- *Sec 11 of the Government Proceedings Act* provides that all documents required to be served on the Government for the purpose of or in connection with any civil

proceedings by or against the Government shall be served on the Attorney General.

- ***R. 5 of the Government proceedings (Civil procedure) rules*** provide for Service of documents. Service of a document on the Attorney General for the purpose of or in connection with civil proceedings by or against the Government shall be effected by delivering or sending the document to be served and a duplicate or copy of the document to the office of the Attorney General, and shall be deemed not be complete until the Attorney General or another officer of the Government entitled to practice as an advocate in connection with the duties of his or her office has endorsed an acknowledgement of service on the document to be served. In this rule, “document” includes a notice, pleading, order, summons, warrant and any written proceeding or communication.
- ***Under R. 8 of the Government proceedings (Civil procedure) rules*** in the case of civil proceedings against the Government—(a) the provisions of rule 1(1)(b) of Order V of the principal Rules and the provisions of rules 3, 4, 20, 21, 22, 23, 24, 25, 26 and 27 of that Order shall not apply; and (b) where a summons is issued under rule 1(1)(a) of that Order the time limited by the summons for entry of appearance shall be not less than thirty days.

❖ **Service out of Jurisdiction**

- O5. r 22 of the civil procedure rules provides that Service out of the jurisdiction may be allowed by the court wherever (a) the whole subject matter of the suit is immovable property situated within the jurisdiction, (with or without rents and

profits); (b) any act, deed, will, contract, obligation or liability affecting immovable property situate within the jurisdiction is sought to be construed, rectified, set aside or enforced in the suit; (c) any relief is sought against any person domiciled or ordinarily resident within the jurisdiction; (d) the suit is for the administration of the personal estate of any deceased person, who at the time of his or her death was domiciled within the jurisdiction, or for the execution (as to property situate within the jurisdiction) of the trusts of any written instrument, of which the person to be served is a trustee, which ought to be executed according to the law of Uganda; (e) the suit is founded on any breach or alleged breach within the jurisdiction of any contract wherever made which, according to the terms of the contract, ought to be performed within the jurisdiction; (f) any injunction is sought as to anything to be done within the jurisdiction, or any nuisance within the jurisdiction is sought to be prevented or removed, whether damages are or are not also sought in respect thereof; (g) any person out of the jurisdiction is a necessary or proper party to a suit properly brought against some other person duly served within the jurisdiction; or (h) the suit is founded on a tort committed within the jurisdiction.

- Order 5 rule 24 provides that applications should be supported by evidence. Every application for leave to serve the summons or notice on a defendant out of the jurisdiction shall be supported by affidavit or other evidence, stating that in the belief of the deponent the plaintiff has a good cause of action, and showing in what place or country the defendant is or probably may be found, and whether the defendant is a Commonwealth citizen or British protected person or not.

- Order 5 rules 26 provides where leave to serve a summons out of the jurisdiction has been granted under rule 22 of this Order and the defendant is a Commonwealth citizen or British protected person or resides in a Commonwealth country out of Uganda, the summons shall be served in such manner as the court may order.
- Order 5 rules 27 provides that where the defendant is neither a Commonwealth citizen nor a British protected person and is not in a Commonwealth country, notice of the summons and not the summons itself is to be served upon him or her.
- Order 5 r 28 of the civil procedure rules provides for the procedure to be adopted where leave is given to serve notice of summons in any foreign country (not being common wealth country) to which rule 28 of this Order applies may by order of the Chief justice from time to time be applied. Order 2 of the Civil Procedure (Service of Notice of Summons in Foreign Countries) Order provides that rule 28 of Order 5 of the civil procedure rules shall apply to the foreign countries specified in the schedule to this Order. These are: Democratic Republic of Congo, Republic of Burundi, Republic of Rwanda, and Republic of the Sudan.
- In the case of **David Ssesanga v Greenland Bank Ltd HCMisc.App.No.406 Of 2010 Madrama J (as by then)** held that Order 5 rule 18 assumes that the defendant sought to be served by substituted service is within the jurisdiction of the court when summons are issued. The intention of the substituted service is to make the defendant aware of the suit in another

way because he or she cannot be served *personally*. The defendant can only be served personally when he or she is within the jurisdiction of the court. Common law authority is that for substituted service to be valid, the defendant has to be within jurisdiction of the court when the writ for which order for substituted service is made. Further held that service outside jurisdiction is under order 5 rule 22 which gives instances where the court may make an order for service outside jurisdiction. This includes sub rule (c) which provides that where the relief is sought against any person domiciled or ordinarily resident within the jurisdiction. That applicant qualifies to be called a person domiciled in Uganda at the time of the suit. That the Rules 26 – 30 deal with the procedure applicable. Where the Court allows service to be made outside jurisdiction, the relevant procedures have to be complied with. These include: An application to be made to court supported by affidavit evidence under order 5 rule 24; the Court making the order for service outside jurisdiction will indicate the period within which a defence will be filed depending on the geographical location and accessibility of the foreign country where the defendant resides. (See order 5 rule 25); the Court will order the manner of service (see order 5 rule 26) and the procedure for service in a foreign country is provided for under rule 28.

- **In the case of Abidi & 3 Ors v Tropical Africa Bank HCMA No. 360 Of 2006** the plaintiff was given leave to advertise the notice of the next hearing of the suit t in the New Vision and the East African newspapers and further to be served on an adult member of the defendant's family in Uganda. At the time of the order of the court to serve the defendant through the provisions for substituted service, the defendant was a resident of the United Arab Emirates.

Court held that under common law rules, substituted service can only be valid if the defendant is within the local limits of the court's jurisdiction when the order for substituted service is made. That in the case of **Myerson v Martin [1979] 3 All ER 667** the Court of Appeal dealt with the question of substituted service on a person outside the local limits of the court's jurisdiction. Lord Denning held at page 670 that substituted service is only valid where the defendant is resident within the local limits of the Court's jurisdiction and not outside jurisdiction. Court further held that Order 5 makes a clear distinction between substituted service under Order 5 rule 18 of the Civil Procedure Rules and service outside jurisdiction under rule 22 thereof. This is read in conjunction with Order 5 rule 29 of the CPR which provides that the court may direct that any summons, order or notice shall be served on any party or person in a foreign country and the procedure prescribed by rule 28 of the order with reference to service of notice of the summons shall apply to the service of any summons, order or notice so directed to be served. That the applicant was served as if he was resident within the local limits of the court's jurisdiction whereas not. That rationale for service outside jurisdiction in the applicant's case would be to make the applicant aware of the hearing of the suit. That service outside jurisdiction is clearly governed by Order 5 rules 22 and 29 of the Civil Procedure Rules. That in the case of **Karachi Gas Co Ltd v H Issaq [1965] 1 EA 42** the Court of Appeal of East Africa sitting at Nairobi per Newbold Ag V-P held at page 53 that service of summons outside jurisdiction are made in the circumstances defined by (Order 5 rule 22 of the Uganda CPR): "As regards the first of these issues the defendant was out of the jurisdiction and was neither domiciled nor ordinarily resident in Kenya. In such a case the courts of Kenya will not assume jurisdiction in relation to any matter

arising out of contract unless the circumstances fall within the provisions of O. V, r. 21 of the Civil Procedure (Revised) Rules, 1948 (K). *This rule details the circumstances in which service of a summons or a notice of summons may be allowed out of the jurisdiction in order to give effect to a jurisdiction which the courts have assumed.*” That given the analogous application of the rules to hearing notices, the circumstances set out under Order 5 rule 22 thereof. Rule 22 (g) includes in the circumstances the person is out of jurisdiction and is a necessary or proper party to the suit properly brought against the person duly served within the jurisdiction. That by analogy a person resident outside jurisdiction has to be served outside jurisdiction for the service to be effective.

- In the case of **Abudlrahmna Omar t/a Bahan Commercial Agencies V Content Tobacco (U) Ltd & Anor HC Misc. Application No 298 of 2009** was an application for Summons to file a defence in a foreign country to issue. The affidavit in support was sworn by the Applicant shows that the 2nd Respondent, a limited liability company operates in Nairobi, and Mombasa Kenya. Kenya is a Commonwealth Country and the Applicant deponed that service cannot be effected normally in Uganda. Court considered the affidavit in support of the application and the provisions of Order 5 rules 22 and 26 CPR for requirements for the under issue and held that the Applicant has satisfied the requirements for summons to file a defence to issue outside jurisdiction. Court ordered that summons to file a defence be issued against M/s Mastermind Tobacco (K) Ltd, the second defendant in Civil Suit No. 192 of 2009 to be served on it in Kenya.

- Read O.5 r 22-28 civil procedure rules. Also **Civil Procedure (Service of Notice of Summons in Foreign Countries) Order.**

❖ Contesting Service of Summons

- The law is that where defendant denies having been served, the onus is on him/her to prove to the satisfaction of court that the service was ineffective as per *Busingye & Ors v. Williams Katotsire (2001-2005) HCB 108.*

❖ Effect of Failure to Serve Summons

- Failure to serve the process where service is no doubt required is a failure which goes to the root of any conception of proper procedure in litigation. **In the case of BamanyeFazil v Nankunda Rose HC-CV-CA-0007-2009 Court held that** it is obligatory on the part of the defendant to serve a copy of his Written Statement of Defence on the plaintiff, particularly so where the Written Statement of Defence contains a counter-claim which legally is a suit in its own right. That failure to serve the process where service is no doubt required is a failure which goes to the root of any conception of proper procedure in litigation. *See: Nicholas Roussos vs G. H. Virani & Anor HCCS No. 360 of 1982* where court observed *“Apart from proper ex parte proceedings the idea that an order can validly be made against a man who had no notification of any intention to apply for it is one which has never been adopted in this country. To treat that an order of this kind made in this case should be treated as a mere irregularity, and not something which is affected by a fundamental vice is an argument which in my opinion cannot be sustained.”* Court further held that the ex parte judgment entered against the appellant was affected by a fundamental vice in that he was never served with a

copy of the Written Statement of Defense and the counter – claim. The service the defendant/respondent purported to effect, that is, of leaving a copy in the court file for the appellant’s collection on his own was wrong in law and was no service at all. The resultant ex parte judgment was therefore a nullity. That Lord Greene M. R. considered the authorities on this point in *Greig vs Kanseem [1943] 1 ALL ER 108* and concluded as follows at 113: *“Those cases appear to me to establish that an order which can properly be described as a nullity is something which the person affected by it is entitled ex-debitojustitiae to have it set aside. So far as the procedure for having it set aside is concerned, it seems to me that the court in its inherent jurisdiction can set aside its own order; and that an appeal from the order is not necessary.”* Having held that the improper mode of service adopted by the respondent/defendant rendered the resultant ex parte judgment a nullity, court held that the appellant is entitled ex debitojustitiae to have it set aside.

❖ **Pre-Entry Exam 2012/2013**

- Qn.42. The plaintiff sued the defendant for trespass, seeking an eviction order. The defendant did not file a defence. There is an affidavit of service on record. What step should the plaintiff take?

❖ **Pre-Entry Exam 2015/2016**

- Qn.48. Explain the purpose of a hearing notice?

❖ **Pre-Entry Exam 2017/2018**

- Qn.5. Who is a process server?

TOPIC VIII

APPEARANCE OF PARTIES & AGENTS.

Section 20 CPA provides that where a suit has been duly instituted, the defendant shall be served in the manner prescribed to enter an appearance and answer the claim. (O.5 r 3) *See different modes of responding to summons; vide; filing a defense, an application for leave to appear and defend, an affidavit in reply all depending on the type of summons.*

O.3 r 1 civil procedure rules provides for appearances, etc. may be in person, by recognized agent or advocate. Any application to or appearance or act in any court required or authorized by the law to be made or done by a party in such court may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person, or by his or her recognized agent, or by an advocate duly appointed to act on his or her behalf; except that any such appearance shall, if the court so directs, be made by the party in person.

❖ What constitutes Appearance

Appearance is both legal and physical depending on the stage of the proceedings.

a) Legal Appearance

O.9 r 1 of the civil procedure rules provides for the mode of filing a defense. A defendant shall file the defense by delivering to the proper officer a defense in writing.

In the case of *Opa Pharmacy Vs Howse SMC George(1972) ULR 115*: **Held:** The appearance under O.9 r 1 connotes legal rather than physical appearance. That appearance under O.9 r 1 meant simply the delivery of a written word and memo of appearance stating that the defendant would appear in person. *[Position then, current position is to file a WSD rather than a memorandum of appearance.]*

❖ Manner of Appearance

- **Order 8 r 1:** A defendant may, if so required by court at a time of the issued of summons or any time thereafter as prescribed by court file a defense within 15 days unless otherwise ordered by court. *[30 days for Attorney General. Read Rule 6 of the Government Proceedings Civil Procedure Rules]*
- **O.9 r1:** This is done by delivery of a written statement of defence dated on the day it is filed, stating the name of the defendant if he is to appear in person or his advocate and the address of service. The defendant shall file and sent it, showing the date and return it to the person filing it and the defence shall be served onto the plaintiff. *See copy of the defence.*
- In the case of *Mark Graves vs Balton (u) Ltd HCMA 158/2008* an application under O.9 r 3 CPR disputing jurisdiction of court. Counsel for respondent raised a

preliminary point of law that the applicant had not filed a defense. That to bring an application under O.9 r 3 CPR the applicant must first file a defense and then file the application. The issue was whether an application under the above rule can be filed by a defendant without filing a Written Statement of defense. Court held that the filing of a defense prior to filing an application under rule 3, is optional. Where a defense is filed, such filing will not be a waiver to filing of the application (rule 2). Further the filing of defense where the defendant has filed an application under rule 3 is not treated as submission to the jurisdiction unless court makes no order on the application or dismisses it (rule 5). And where the defendant who filed a defense, does not make the application such defense will be treated as submission by the defendant to jurisdiction of the court in the proceedings unless the defense is withdrawn with leave of court under rule 1 (3) of Order 25 CPR. That the second point of objection was that the application was after lapse of the time for service of a defense. Court held that under O.8 r 1(2) and O.8 r 19 filing of a defense is completed by delivering a defense to court for placing the court record and delivering a duplicate thereof at the address for service of the plaintiff (O.8 r 19). That this was supposed to be done within 15 days from the date of publication of the advertisement (O.8 r 1(2) CPR).

❖ **Extension of time for entering an Appearance.:**

- Extension of time may be when parties have consented or where the party has applied to court.[see s.96 CPA] **Godfrey Magezi & Brain Mbazira V Sudhir Rupaleria SCCAPP 10/2002**. Applicant sought extension of time within which to file an appeal out of time to appeal against the decision of the Court of appeal. Held; that court has jurisdiction to extend for the doing of an act so authorized or required. The omission, mistake or inadvertence of counsel ought to be visited on

the litigant leading to striking out his appeal thereby denying him justice. Even if the legal advisor's actions have been negligent, an extension of time has been accepted. *Read; Robert Opio & Anor V Edward Kabugo Sentengo HCMA No.166-2002 for what amounts to sufficient cause to warrant extension of time to file a defence*

In the case of *Stop & See (U) Ltd vs. Tropical African Bank HCMA No. 333/2010* held that once a party is out of time, he or she needs to seek leave of court to file the defense or affidavit in reply outside the prescribed time.

- That the legal effect of extending time to file an appeal out of time when the appeal had already been filed(out of time) is to validate that appeal or to excuse the late filing of that appeal. *See also Credit Finance Co Ltd V Makerere Properties SCC Appl No.1 of 2001.*

❖ **Effect of Failure to enter appearance:**

If the defendant without sufficient cause fails to appear in court, the plaintiff will be entitled to proceed *ex parte* by obtaining leave to prove his case or judgment may be entered in default, or interlocutory judgment may be entered depending on the nature of the claim.

The Defendant will have excluded himself from proceedings unless he applies to show cause as to why he did not file the defence within the time allowed. *Mark Graves V Balton (U) HCMA No.158 of 2008; Bukenya Vs Attorney General (Supra). Twiga Chemical Industries Ltd V Viola Bamusedde CACA No.*

9/2002; Silas Bitaitana V Emmanuel Kananura CACA No.47/1976; AG & UCB V Westmont Land (Asia) Bhd & Others. [1997-2000] UCLR 191

Generally, a defendant who fails to file a defence within the time limited by law is deemed to have excluded themselves from the proceedings in court. *Sebunya Vs Attorney General* [The Plaintiff sued the Attorney general who failed to file a WSD within the statutory period and was not represented at the hearing. A state attorney appeared for the defendant. **Held:** A defendant who files no defence could not be heard. The state attorney as in the instant case even if he had appeared in time would have had no locus standi and could not be heard. *AG & UCB V Westmont Land (Asia) Bhd & Others [1997-2001] UCLR 191*

b) **Physical appearance.**

Court can make an order for that a plaintiff or defendant appears in person.

O.3 r 1 civil procedure rules provides that if the court so directs, appearance shall be made by the party in person.

O.5 r 3 of the civil procedure rules provides that where the court sees reason to require the personal appearance of the defendant, the summons shall order him or her to appear in person in court on the day specified in the summons. Where the court sees reason to require the personal appearance of the plaintiff on the same day, it shall make an order for that appearance.

❖ **Appearance by a party.**

- **O.3 r 1** civil procedure rules appearance may be made or done by the party in person. Appearance means being physically in court and notifying court of a

party's presence. *In the case of Kyobe Ssenyange Vs Naks Ltd (1980) HCB 31:* was an application to set aside a decree granted ex parte on ground that neither applicant nor counsel appeared. Applicant was physically in court as was his advocate when the application was called for hearing though during the hearing he did not raise up his hand as requested; Held: That mere presence of the party alone does not amount to presence as the party must indicate to court that he is appearing for a matter.

c) **Appearance by a party's Advocate.**

- **O.3 r 1** civil procedure rules appearance may be made or done by an advocate duly appointed to act on a party's behalf.
- Regulation 2 (1) of the Advocates (Professional Conduct) Regulations S.1 267-2 Provides:
"No advocate shall act for any person unless he or she has received instructions from that person or his or her duly authorized agent."
- Regulation 3 (1) of the Advocates (Professional Conduct) Regulations S.1 267-2 Provides:
"An advocate may withdraw from the conduct of a case on behalf of a client where—
 - (a) the client withdraws instructions from the advocate;*
 - (b) the client instructs the advocate to take any action that may involve the advocate in proceedings for professional misconduct or require him or her to act contrary to his or her advice to the client;*
 - (c) the advocate is duly permitted by the court to withdraw;*
 - (d) the client disregards an agreement or obligation as to the payment of the advocate's fees and disbursements."*

In the case of *Kabale Housing Estates Tenants Association vs. Kabale Municipal Local Council Civil Application No. 15 of 2013* Kitumba JSC held that a suit brought without instructions is incompetent. See *Buikwe Coffee Ltd (1962) EA 327*. That counsel must appear in court with full instruction and authority from his client. Failure to do so, an advocate will be acting on his own and will not be entitled to any costs.

In the case of *Attorney General & Peter Nyombi vs. Uganda Law Society (Misc. Cause No. 321 of 2013)* the issue was whether the Attorney General can retain and instruct Kampala Associated Advocates, a private legal firm to represent it and perform legal services without complying with the Public Procurement Laws and Regulations?. Court held that by appointing Kampala Associated Advocates as counsel for the first applicant, the effect is that they were vested with the authority of duly appointed advocates for the Attorney General with full instructions to act on behalf and for the Attorney General and entitling them to remuneration by the Attorney General which comes from public coffers or the consolidated fund. In case the respondent lost the case, then the latter would be liable for the costs on a party to party basis. Consequently that it was irregular for the learned Attorney General to have retained the Kampala Associated Advocates as lawyers to provide professional services to the Attorney General without following the PPDA Act and Regulations as amended.

In the case of *Sekeyaya Vs Sebuguli*: held that as the plaintiff's counsel is present and appear on the plaintiff's behalf, then the plaintiff pursuant to O.3 r 1 will be said to be legally in court.

Harriet Kizito v Ggoloba Godfrey CA No. 65/2005; Handoni Daniel V Yolamu Egondi CACA No.67 of 2003

Kawooya Vs Naava:[1975] HCB 314 This was an appeal against a decision of a chief magistrate dismissing the appellant's application under O.9 r 24 to set aside an exparte decree passed against him. Appellant deposed that he did appear at the hearing but due to a sudden change of venue for the hearing, thus his counsel went to a wrong court. Counsel had been arrested the previous day thus was unable to appear. The Magistrate had dismissed the grounds as insufficient. Held: That a decree entered exparte will be set aside if the appellant was prevented by sufficient cause from appearing when the suit was called for hearing [O.9 r 24]. Since under O.3 r 1 any person may appear by person or by his advocate, appearance for purposes of O.9 r 24 means appearance of his advocate. That the appellant had shown sufficient cause within O.9 r 24 for his non appearance at the hearing and the exparte decree would be set aside.

- A party who empowers an Advocate for him or her is not allowed to plead ignorance of the agent /advocate's dealings.

In the case of *Twiga Chemicals Industries Ltd vs. Viola Bamusedde, CA 9/2002* held that a man or woman empowers an agent to act for him or her is not allowed to plead ignorance of his or her agent's dealings.

In the case of *Bikwere & Anor vs Namaka HCMA No. 297/2014* held that the decision in *Twiga Chemicals Industries Ltd vs. Viola Bamusedde, CA 9/2002* is

instructive that a man or woman who empowers an agent (advocate) for him or her is not allowed to plead ignorance of the agent's dealings. That the rule in our civil procedure rules is re-emphasized under the provisions of O.3 r 1 of the civil procedure rules. That in this case a person who appeared in court on behalf of the applicants was fully instructed Advocate. He had authority to act on their behalf as he did. There was no contrary court order requiring the parties to appear in person and there is no evidence of collusion, or fraud.

O.3 r 4 civil procedure rules appearance allows Service of process on **advocate**. Any process served on the advocate of any party or left at the office or ordinary residence of the advocate, whether the process is for the personal appearance of the party or not, shall be presumed to be duly communicated and made known to the party whom the advocate represents, and, unless the court otherwise directs, shall be as effectual for all purposes as if the process had been given to or served on the party in person. In the case of **Mulenga V Stanbic Bank (U) Ltd (No. 200 of 2013)** Court held that a lawyer could not receive court process on behalf of his client unless he is a duly authorized agent under the provisions of Order 3 of the Civil Procedure Rules. A lawyer cannot take action without instructions.

d) **Appearance by a party's Authorized agent.**

- **O.3 r 1** civil procedure rules appearance may be made or done by recognized agent.
- **O.3 r 2** civil procedure rules provides for recognized agents. The recognised agents of parties by whom such appearances, applications and acts may be made or

done are— (a) persons holding powers of attorney authorising them to make such appearances and applications and do such acts on behalf of parties; and (b) persons carrying on trade or business for and in the names of parties not resident within the local limits of the jurisdiction of the court within which limits the appearance, application or act is made or done, in matters connected with such trade or business only, where no other agent is expressly authorised to make and do such appearances, applications and acts.

In the case of **Jeshang Popat Shah v Meera Investments Ltd HCMA No. 747 of 2002** Court held that O.3 r 2 of the civil Procedure rules gives the list of persons who are recognized agents to cases. That they are (a) persons holding powers of attorney authorizing them to do certain acts on behalf of parties, (b) persons carrying on trade or business on behalf of foreigners, within Uganda. That O.3 r 2 CPR does not require that anyone to act as agent of any party should or should not be of any description, status, occupation or ceiling etc. The rule as it stands would be satisfied by any adult who is of sound mind. That adult may be an industrialist, a fanner, a doctor, an accountant, a lawyer, a banker etc. That agent could even be someone who is employed. That if the agent happens to be a solicitor or barrister outside Uganda and has not obtained a special practicing permit he or she cannot have right of audience in Uganda and cannot legally represent any party. That the defendant resides in the United Kingdom and the plaintiff's directors are well aware of the fact. That there is nothing in our law which obliges him to appoint a local agent, from the wording of O.3 r 2 CPR. That it is well known that a party to a case in Uganda may appear in person or through an agent given authority by a power of attorney.

- **O.3 r 3** civil procedure rules appearance allows Service of process on recognised agent. Processes served on the recognised agent of a party shall be as effectual as if they had been served on the party in person, unless the court otherwise directs. The provisions for the service of process on a party to a suit shall apply to the service of process on his or her recognised agent.
- In the case of **Jas Projects Ltd v Emiru Angose HCT - CS - 280 – 2005** Court held that in order to have effected service upon the receptionist, the receptionist would not only have to be the agent of the Defendant but a recognized one within the meaning of order 3 r 1 & 2; and in particular rule 2 thereof which states; “The recognized agents of parties by whom such... acts may be made or done are:- (a) Persons holding Powers of Attorney authorizing them to make... and do such acts on behalf of parties; (b) Persons carrying on trade or business for and in the names of parties not resident within the local limits of Jurisdiction of the Court... etc (not relevant to this case)”. That the evidence before Court does not suggest that the service of summons on the Applicant/Defendant through the receptionist was that by way of an authorized agent, indeed there is no mention of any Power of Attorney to that effect. Court further held that where service cannot be effected in the ordinary way then the Plaintiff or his Counsel should apply for substituted service rather than go ahead with an ineffective or desperate method of service to remain within time. That there was no effective service.
- In the case of **Jessy Technical Services Ltd & Anor v Ajay Industrial Corporation Ltd & Anor (Misc. Appl. NO. 0617 OF 2012 and Misc. Appli. No. 616 of 2012)** Court held that where it is not practicable to effect service on

the defendant personally, it may be made on an agent empowered to accept service. The words “empowered to accept service” is read in the context of recognized agents as prescribed by order 3 of the Civil Procedure Rules. An empowered agent is an agent recognized under order 3 of the Civil Procedure Rules. Court further held that the receptionist was not proved to be an empowered agent of the second applicant/defendant by the affidavit of service of the process server. It was not proved that the 2nd Applicant empowered the receptionist at the offices of the first Applicant to accept service on his behalf. Acceptance of service in the context of order 3 rule 1 is an "act" which is required in any court to be done by a party. This is because service has to be made on the defendant personally and therefore acknowledgement of service is an act to be done by a party i.e. the defendant. Consequently the definition of recognized agents by order 3 rule 2 of the Civil Procedure Rules is applicable. In that rule agents are defined as persons holding powers of attorney authorizing them to make appearances and applications and do such acts on behalf of the parties. Secondly it means persons carrying on trade or business for and in the names of the parties not resident within the local limits of the jurisdiction of the court. Finally order 3 rule 5 of the Civil Procedure Rules provides that besides the recognized agents described in rule 2 of the order, any person residing within the jurisdiction of the court may be appointed an agent to accept service of process. Order 3 rule 5 (2) specifically provides that the agents so appointed shall be either special or general and the appointment shall be by an instrument in writing signed by the principal and a certified copy of which shall be filed in court. That the receptionist described by the process server does not fit the description of an agent authorized or empowered to accept service by the second respondent. Court finally held that there was no

personal service on the second applicant/defendant as prescribed by the rules. In practical terms therefore the registrar was right to advise service of summons by substituted service as far as the second applicant is concerned.

TOPIC IX

PARTIES TO CIVIL ACTION:

- Procedural law governs the mode of proceeding and machinery by which the remedy is enforced while the substantive law defines the right being enforced. The determination whether a person is capable of suing or being sued is procedural and governed by the law of the forum, such as whether an action may be brought in the name of such a person.
- On commencing a proceeding, a person becomes a plaintiff in an action or an applicant on an application / cause or petitioner on a petition. On filing an action and being served with summons or other notice in an action, a person becomes a defendant without the necessity of the defence being filed or affidavit in reply or a respondent.
- In the law of pleadings, it is necessary to establish the party to sue or be sued and each pleading must contain at its head the name of the defendant and the plaintiff.

- It is pertinent to determine the necessary parties or unnecessary parties before filing a suit.
- Plaintiff as Dominae Letis: A plaintiff in civil procedure is free to sue any defendant whom he thinks he has a claim and cannot be forced to sue somebody. *See; Animal Feeds V A – G [1990] HCB;*
- In the case of *Major Roland Kakooza Mutale vs. AG [2001-2005] HCB 110*, the Inspector General of Government applied to be joined as a defendant in a suit against the Attorney General and his Lordship Yorokamu Bamwine (as he then was) declined to after setting down the principles under which an application of this nature would be allowed. I quote;-
‘Generally speaking, under O.1 r 10(2) CPR gives court wide powers to strike out or add parties to suits. However such addition cannot be for the sake of it. There must be a compelling reason to do so. The principles under which such application can be allowed are fairly known.
 1. *The plaintiff is at liberty to sue anybody he thinks he has a claim against and cannot be forced to sue somebody. Where he sues a wrong party, he has to shoulder the blame. See Bahemuka vs. Anywar & Anor [1987] HCB 71.*
 2. *Court has no jurisdiction under O.1 r 10(2) to order the addition of parties as the defendants where the matter is not liable to be defeated by non joinder when they were not persons who ought to have been sued in the first place; and where their presence as a party is not necessary to enable the court effectively to adjudicate on all questions involved.*
 3. *A defendant will not generally be added against the plaintiff's wish. See Coffee works (mugambi) ltd vs. Kayemba HCCS No. 505/1963.*

- A plaintiff is entitled to choose the person whom he/she wishes to proceed against and to leave out any person against whom he/she does not wish to proceed against. ***Read Kakooza Mutale V AG[2001-2005] HCB 110; Dairy Corporation V Morris Ogwal and Otai Samuel [2001-2005] HCB 115;***
- ❖ ***Butemuka Vs Anywar and Another. [1977] HCB 77;*** A preliminary objection was raised; that the Applicant had sued the 1st Respondent who would not have been a party to the suit and against the tenants already in occupation of premises. Held: That non-compliance with the rules of procedure must not determine the proceedings if there is no injustice caused to the parties. The present application fell under the general rule; that the plaintiff is at liberty to sue anybody he thinks he has a claim against and cannot be forced to sue somebody.
- ❖ Where a plaintiff proceeds against the wrong party, he has to shoulder the blame ***Kakooza Mutale V AG and Anor.[2001-2005] HCB 110; Read Manzur Alam V The Embassy of Saudi Arabia***
- ❖ On effect of suing a wrong party; Where a plaintiff sues a wrong party, court has to strike out the plaint ***Butemuka Vs Anywar and Another. [1977] HCB 77; Read Manzur Alam V The Embassy of Saudi Arabia;****[see the distinction between a wrong party and a non existing party and the remedies available. See O.1 r. 10CPR; See Narrottam Bhatia And Anor V Boutique Zhazim Limited HCCS No. 411 of 1992;*

- ❖ Importance of identification of parties: The choice of parties is important in determining the mode of procedure, enforcement of judgments, in obtaining remedies and costs. The parties must be correctly stated otherwise failure thereof would result in loss of the remedy against the wrong party as well as expenses.

❖ General Principles Governing Capacity to sue or be sued

- The general rule is that all parties with legal capacity can sue or be sued. *See RTD Col Dr. Kizga Besigye & Others V The DPP & AG Constitutional Petition No.12 of 2006*, the constitutional court reiterated the principle that only parties recognized by law as having a legal existence can sue or be sued. Since the DPP was not a legal entity but a department of the government that had no independent legal existence and was not a suable entity.
- ❖ It is a well established proposition that in general only legal persons can sue or be sued. Legal persons may be individuals, corporations, corporation soles or companies, firms may sue or be sued in certain circumstances. *Eddie Rodrigues V The British High Commission SCCA NO.8/87. Odoki JSC/ see Quotation in Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402 OF 2002*
- ❖ A legal person is an entity that has the legal capacity to represent its own interests in its own name, before a court of law, to obtain rights or obligations for itself, to impose binding obligations, to grant privileges for example as plaintiff or defendant; It is a status that is conferred by law and not simply assumable. A legal person exists whenever a law recognises, as a matter of policy, the personality of any entity, regardless of whether it is naturally considered to be a person or not. See *Kakooza Mutale V AG and Anor.[2001-2005] HCB 110*

- ❖ **In the case of V.G Keshwala v. M.M Sheikh Dawood (Misc. App. NO 543 OF 2011 Court held that** a suit filed by a nonentity cannot be cured by substitution of the nonentity neither can the plaint filed by a nonentity or a suit against a nonentity be sustained or amended because it discloses no cause of action. That by analogy a nonentity incorporates the legal doctrine of a capacity to sue and establishes the same that only a party with legal capacity to sue can bring an action in a court of law. The Tanzanian case of **BabubhaiDhanji Pathak V. ZainabMrekwe [1964] EA 24**, was cited where a suit was filed in the lower court in the name of a dead plaintiff 45 days after her death and an application to substitute the deceased plaintiff under order 1 rule 10 was allowed in ignorance of the fact by the Magistrate. On appeal to the High Court Law J held at page 26: “A suit instituted by a dead person is a nullity. The power to substitute a plaintiff where a suit has been filed in the name of a wrong person, conferred by Order 10, r. 1(1) in the First Schedule to the Indian Civil Procedure Code, can only be exercised where the “wrong person” was living at the date of instituting the suit, and has no application where the “wrong person” was dead at such date.

- ❖ All legal persons can sue and or be sued. There are however differences in procedure thus it is necessary to establish the right parties to the suit. *See discussion on commencement of suits*
- ❖ *Note* He/she who is empowered to sue is also made liable by necessary implication to be sued. In the case of the **Commissioner General Uganda Revenue Authority v Meera Investments Ltd Civil Appeal NO.22 OF 2007** Kanyeihamba JSC held that the rights, powers and obligations prescribed under the Uganda Revenue Authority Act are not exclusive to the Authority. That if the Commissioner General can sue to recover tax, he or she can be sued by a party

unhappy with the tax assessments made by the Commissioner General or officers under him or her.

❖ **Difference Btn Capacity & Locus to sue**

- Locus standi is the right that one has to be heard in a court of law or other proceedings. Once one has a direct interest in a matter, then one is eligible to claim relief in respect of that matter if that one's interest is being adversely affected. Such person is said to have locus standi and his or her cause of action is disclosed. See *Kithende Appolonaris Kalibogha and another vs Mrs Eleonora Wismer*, CACA No.34 of 2010. In civil matters a person must be a person aggrieved before such a person can have locus to appear in court.
- In the case of ***Sentiba Gordon & 2 Ors Vs Inspector of Government (SCCA NO 06 OF 2008)*** the appeal raised several issues of great public importance concerning the legal capacity and *locus standi* of the Inspectorate of Government, limitations on the investigative powers of the Inspectorate, the role of the Attorney General as the Principal Legal Advisor to Government and the Independence of the Judiciary. The main issue on appeal was whether the respondent has legal capacity to sue and be sued. Other related sub issues was whether the respondent had *locus standi* to bring the proceedings, whether the respondent can intervene in civil actions where the Attorney General is a party representing Government and whether it can intervene as an aggrieved third party in proceedings where it is not a party. **Odoki C.J (by then)** held that there is nothing in the Article 227 or Section 2 of the Act which confers on the respondent corporate status or legal capacity to sue or be sued. That if Parliament had wanted to confer corporate status on the respondent nothing could have stopped it from doing so, but it did not in its wisdom do so. There is no provision in the

Constitution, the Inspectorate of Government Act or any other law which confers corporate status on the respondent and it would be wrong for the Court to confer such status on the respondent when Parliament in its wisdom did not find it necessary to do so for effective enforcement of the powers of the respondent. That it is trite law that the Attorney General is the Principal Legal Advisor to Government as provided for in Article 19(3) of the Constitution, and that the legal opinion of the Attorney General is generally binding on Government and public institutions like the respondent. **See** *Bank of Uganda vs Bank Arab Espanol*. Therefore the respondent is not correct in submitting that it can intervene or take over a case where the Attorney General has decided not take action or taken a different action in order to save the Government from losing colossal sums of money. The respondent is a creature of the Constitution and Statute and its functions and powers are clearly laid down in those legal instruments. It is not the function of the Courts to confer corporate status or legal capacity or similar powers on public institutions or bodies which are not specified in the parent or enabling laws. In the present case the powers of the respondent to investigate, prosecute criminal cases, or make other orders, are not affected by the absence of legal capacity in civil cases. Indeed the respondent may make applications in appropriate cases involving corruption and abuse of office.

❖ **Individuals**

- While most individuals may sue or be sued, limitation exists with regard to certain types of persons like children, incompetent persons, aliens and convicts. Adults of sound mind are competent parties and they are competent to institute a civil action.

[See S. 117 of the Evidence Act] on competence of witnesses being persons of age and sound mind, [see also Article 31 of the constitution, on the majority age being 18; Cf age for civil proceedings being 21 before the 1995 constitution, see Article 273 of the constitution].

In the case of **George Paul Emenyu & Anor. V AG [1994] V KALR 109** Okello J held that a person is guilty of contributory negligence if he ought to have foreseen that if he did not act as a reasonable prudent man, he might hurt himself and he must take into account that others may be.

Abdul Basit Sengooba & Others V Stanbic Bank HCT -00-CC-CS 0184-2001[2006]; Read Kiga Lane Hotel Ltd V UEDCL HCT-00-CV-CS-0557-2004

- Natural persons who are full and mentally competent can sue or be sued without limitation. Upon death such a person ceases to exist as a party and actions on behalf of the estate are taken in a representative proceeding by the executors or administrators of the estate. See s.192 of the Succession Act and O.31 CPR.

❖ **Administrators and Executors**

- The Administrator of an estate of a deceased person is appointed by a grant of letters of administration, while the executor named in a will is appointed by court through grant of letters of probate. The rules provide that administrators or executors of the estate of the deceased person may sue or be sued on behalf of or representing the estate without joining any of the beneficiaries.
- Sec. 192 of the Succession Act provides for the effect of letters of administration. Letters of administration entitle the administrator to all rights belonging to the

intestate as effectually as if the administration has been granted at the moment after his or her death.

- Sec. 180 of the Succession Act provides for character and property of executor or administrator. The executor or administrator, as the case may be, of a deceased person is his or her legal representative for all purposes, and all the property of the deceased person vests in him or her as such.
- *Read O.31 CPR.*
- In the case of **Michael Mulyanti & Anor v Jackeline Batalingaya & 3 Ors** (Civil Suit No.434 of 2008) the issue was whether the Plaintiffs have locus standi to bring the suit. Court held that indeed under Section 180 of the Succession Act an administrator of a deceased person is his or her legal representative for all purposes and all property of the deceased person vests in him or her as such. Furthermore under Section 192 and 193 of the Succession Act Letters of Administration vests in the administrators all rights and interests belonging to the intestate as effectually as if administration had been granted at the moment after his or her death: *See Khalid Walusimbi v Jamil Kaaya & Another* [1993] IKALR 20. In the instant case, the Plaintiffs as administrators and beneficiaries to the estate of the late Moses Mulyanti are clothed with power to oversee the estate of the late Moses Mulyanti, including bonafide or lawful occupancy, if at all they subsisted. Prima facie therefore, the Plaintiffs capacity and the nature of their claim clearly establishes a cause of action, hence locus standi to institute and prosecute this suit. That establishing locus standi is different from proving it because the latter deals with proof by evidence whereas the former involves looking at the Plaintiff's pleadings.

❖ **Beneficiaries of deceased's estate.**

- A non-holder of Letters of Administration who is a beneficiary has *locus standi* to institute proceedings in respect of the estate. The Supreme Court in the case of **Israel Kabwa vs Martin Banoba Masiga Civil Appeal No.2 of 1995 (SC)** upheld the holding of the trial judge that the respondent's *locus standi* was founded on his being the heir and son of his late father. Tsekooko JSC held as follows: *"The editors of Williams and Mortimer on Executors, administrators and Probate (15th Edition of Williams on Executors and 3rd Edition of Mortimer on Probate) at pp. 84 and 454 et seq show that an intending applicant for Letters of Administration can institute an action to stop trespass to a deceased's land. (This ground) would still fail, in my view, even if no letters of administration had been obtained because the respondent's right to the land and his developments thereon do not depend on letters of administration."*
- In the case of **Jacob Mutabazi Vs. Seventh Day Adventist Church & Anor (Civil Suit No. 054 of 2009)** the plaintiff, a one Jacob Mutazindwa sued the first and second defendants for trespass and/or fraudulent acquisition of land situated at Kireka hill. The plaintiff contended that he is a bonafide occupant and thus lawful owner of land currently held by both defendants, being the heir and sole surviving descendant of his father, a one Enoch Mwambali, from whom he purportedly derives legal title to the land. No evidence was adduced in court to prove that the plaintiff is indeed Mwambali's customary heir. However, according to the record the plaintiff had secured a certificate of no objection to the grant of letters of administration and was on course to secure Letters of Administration in respect of Mwambali's estate. On the question of the *locus standi* of a non-holder of

Letters of Administration to institute proceedings in respect of the estate, that the Supreme Court in the case of **Israel Kabwa vs Martin Banoba Masiga Civil Appeal No.2 of 1995 (SC)** upheld the holding of the trial judge that the respondent's *locus standi* was founded on his being the heir and son of his late father. Tsekooko JSC held as follows: **“The editors of Williams and Mortimer on Executors, administrators and Probate(15th Edition of Williams on Executors and 3rd Edition of Mortimer on Probate) at pp. 84 and 454 *et seq* show that an intending applicant for Letters of Administration can institute an action to stop trespass to a deceased's land. (This ground) would still fail, in my view, even if no letters of administration had been obtained because the respondent's right to the land and his developments thereon do not depend on letters of administration.”** That on the basis of the foregoing ruling, the plaintiff does have *locus standi* to institute the proceedings.

❖ Donees of Power of Attorney

- ❖ A holder of power of attorney ought to take proceedings in the name of the owner of the property, the donor. Suit instituted in the name of a donee of a power of attorney should be struck out for being a nullity.
- ❖ In the case of *M/s Ayigihugu & Co. Advocates V Munyankindi Muteeri*;[1990-91/ KALR 194; a firm of advocates was a donee of special power of attorney which empowered it, inter alia, to commence and continue proceedings on behalf of the donor. While exercising the power of attorney the firm took on action to court against the defendant in its names. **Tsekoko J** (as he was) took note of the position and held that since the plaintiff was a donee of power of attorney he did

not have a cause of action and therefore he could not institute a suit in his own name. He was an agent and he could only sue in the name of the principal.

- ❖ A power of attorney which does not authorise the donee to institute a suit cannot be used to file a suit and the suit is bound to be struck out having been from the beginning a nullity and life cannot be subsequently breathed into it as this is not a mere defect in authority but a complete lack of it and cannot be ratified thereafter. See *Vijay Morjaria v Nansung Madhusingh Darbar Civil Appeal No. 06 of 2000*.

- ❖ The Court may however order that appropriate parties be substituted in the interest of justice. In the case of **Kateregga Paul vs Tugume Jackson HCMA No.885 of 2014** the respondent raised the issue of *locus standi* of the applicant in which he contended that the applicant/ plaintiff was not the rightful party to sue him since the applicant had instituted the main suit on the basis of a powers of attorney where he was “*the donee of the powers of attorney from which he derived his powers of attorney to institute the suit.*” The issue was whether the applicant/plaintiff has the requisite *locus standi* to institute the current application. Court held that the contested powers of attorney when read do not explicitly provide that its donee may sue or be sued in his own names. However reading of **Order 1 Rule 10 of the Civil Procedure Rules** the law therein empowers a court to order that the appropriate parties be substituted if it is in the interest of the justice of the matter to do so. That the Applicant’s names be substituted with those of the donor of the powers of attorney.

- ❖ In the case of *Bizimana David & 2 others vs. Johnson HC Civil Appeal No. 52 OF 2008* a preliminary objection raised that the claimant had no cause of action or Locus Standi to sue the Defendants and that the Suit was wrong in law in that it was brought in the names of the alleged Attorney rather than the mother who is allegedly the donor of the powers of Attorney. Court held that the test was whether the plaintiff had a cause of action. That the error was not fatal to the plaintiffs cause of action. Order 1 rule 10 of the Civil Procedure Rules, permits that at any stage of the Suit if satisfied that the suit has been instituted through a bona fide mistake, and that it is necessary for the determination of the real matter in dispute to do so the court may order for substitution or addition of parties as it thinks fit. That the Claimant's Advocate who is presumed to be more knowledgeable on the procedural Law paid no attention to these available avenues.

❖ **Companies & Directors/ Shareholders and Companies Limited by Guarantee**

- Companies are competent parties that can sue or be sued in their corporate names. The most outstanding feature of an incorporated company is its corporate personality. The corporation is a legal entity distinct from its members and directors. *Read Companies Act, 2012. Salmon —V- Salmon [1897] AC 22*, In the case of *Kabale Housing Estates Tenants Association v Kabale Municipal Local Council (CIVIL APPLICATION NO.15 OF 2013)* the main issue for determination was whether Mr. Rwaganika was duly instructed to represent the Applicant. *KITUMBA J.S.C held that* Mr. Rwaganika was only instructed by a few members of the company to represent them and not the company itself. As counsel he should have known how to proceed to represent the minority

shareholders and not the company. That his instructions as counsel for the applicant had ceased when the applicant passed the special resolution appointing Mr. Mwebesa as its counsel. That where a wrong has been done to the company and an action is brought to restrain its continuance or to recover the company's property or damages or compensation due to it, the company is the true plaintiff. *See: Gray Vs Lewis [1873] 8 Ch App 1035*. The appropriate agency to start an action on behalf of the company is the board of directors, to whom the power is delegated as to manage the affairs of the company. *See: United Assurance Co. Ltd v A.G [1995] KALR 308*. Court further held that in instances where a shareholder is aggrieved with what the directors or majority shareholders did, the share holder could bring a derivative suit on behalf of the minority.

- ❖ A company is a separate legal entity from its directors, shareholders and other members. In *Sentamu V UCB [1982] HCB*, the plaintiff was a majority shareholder and director of a company that borrowed money from the defendant bank and failed to pay prompting the defendant to cause his arrest and imprisonment. The plaintiff sued for damages arising out of unlawful arrest and false imprisonment. It was held that a company is a separate legal entity from its directors, shareholders and other members. That individual members of the company are not liable for the company debts. It was thus unlawful to arrest the plaintiff for failure by the company to pay its debts, as the proper party was the company.
- ❖ Where a plaintiff proceeds against a director of the company for actions /omissions of the company, the suit may be struck out as being against wrong party. In the case of ***Lukyamuzi James V Akright Projects Limited and Anatoli***

Kamugisha HCCS No. 319/2002; the second defendant, a director in the 1st defendant Company raised a preliminary objection to the effect that he was improperly joined as a party to the suit since the act complained of were allegedly those of the Company and therefore a separate legal entity from its Directors. **Justice Arach Amoko held** that it was clear that whatever the 2nd Defendant did in respect of the sale transaction he did in the company name and not in his name. He signed the sale agreement '*For Akright Projects Ltd*' and issued a cheque on account belonging to *Akright project Ltd* and not his personal account. Relying on the case of *Solomon vs. Solomon* that the company is at law a different person altogether from subscribers and that though it may be after incorporation the business is precisely the same as it was before, and the same persons are managers, and the same persons receive profits, the company is not in law the agent of the subscribers or trustee for them. Nor are subscribers, as members, in any shape or form, except to the extent and in the manner provided by the Act. That it follows that the 2nd defendant as a director of the 1st defendant is not liable for any acts or omissions of the 1st defendant. That he was a wrong party to the suit and his name accordingly struck out with costs.

- ❖ Corporate personality however cannot be allowed to be bluntly used as a clock for the fraudulent or improper conduct of the company's members. In the case of **Lea Associates Limited v Bunga Hill House Ltd High Court Misc. Appl. No. 348 of 2008** was an application seeking leave to amend its pleadings to include Chris Wilson a director of the Respondent as Co defendant. Court held that it is an undisputed fact that at all material times Chris Wilson was the Managing Director of the Respondent Company. That the most outstanding feature of an incorporated company is its corporate personality. The corporation is a legal entity

distinct from its members and directors. That the Applicant cannot maintain a claim for Commission from the Respondent's director Mr. Chris Wilson. Court further held that however, Corporate personality cannot be allowed to bluntly be used as a cloak for the fraudulent or improper conduct of the company's members. That in the intended Amended plaint, the Applicant has shown that it has a right to financial gain and that it has suffered loss thereof due to the fraudulent conduct of the Respondent. That whether Chris Wilson the director committed the alleged acts of fraudulent is a matter for courts determination, not at this stage but upon evidence adduced by both parties. That the intended amended Plaint discloses a cause of action against the intended 2nd Defendant. The alleged applicants financial loss; whether caused by the Respondent's breach of the Agreement between the Respondent and the Applicant or by the Intended 2nd Defendant's allege fraudulent conduct, arises from the same translation, that is the sale of the Respondents property. The amendment sought will not cause any injustice to the Respondent. Multiple suits will thereby be avoided. Considering all the above the court allowed the application to add Mr. Mr. Chris Wilson as a second defendant and to amend the plaint.



❖ **Authority to commence a suit in the names of a Company**

- ❖ Question is whether it is mandatory for a company to pass a resolution authorising commencement of a suit. To bring a suit in the names of the company there must be authority from the company. There must be a special resolution authorising the suit. In the ***Bugerere Coffee Growers V Ssebaduka***[1970] EA 147; held that when a company authorises commencement of legal proceedings, a resolution has to be

passed, either by the company's meeting or the Board of directors' meeting and recorded in the minutes. In that case, no such meeting was held to authorise the advocates to commence the suit in the company's name.

- ❖ The company must authorise the suit in its name when it is in receivership. *See Bamford vs Bamford [1961] 1 ALL ER 969.*
- ❖ Unless the law specifically required it, a resolution to authorise commencement of a suit by the company is not necessary. ***In the case of United Assurance Co. Ltd vs. AG SCCA No. 1 of 1986, Wambuzi C.J.*** held “that a resolution is one of the ways of proving the decision of the Board of Directors, and that unless the law specifically insisted on a resolution, he was not prepared to insist on it. Authority to bring action in the name of the company is not one of the instances where the Companies Act required a resolution.”
- ❖ In the case of ***Contraction Engineers & Builders Ltd V The New Vision & 3 Others [1994] III KALR 37***; Court held that the fact there are no shareholders of the Plaintiff Company in Uganda and PWI (Managing Director) is the sole director of the company in the country, and according to him when the article appeared in the newspaper he went to Nairobi and held meeting with other directors to decide on what course of action to take, and decided that the suit be filed against the defendants in the name of the Company for redress. That when he returned in Uganda and instructed a firm of advocates to file this suit in the name of the company against the defendant, and considering the authority in *United Assurance Ltd vs. A.G* and of the available evidence, the authority given by the Managing

Director to a firm of Advocates to file a suit is effective authority for the suit to be instituted.

Fam International Ltd & Anor. V Mohamed El Fatih [1994] III KALR 108 SC;
N.K Radia Vs. Kakkybhai & Co. Ltd [1995] I KALR 87

❖ **Unincorporated entities, Associations, NGOs, Churches, Registered Trustees etc**

- An unincorporated association is not a legal entity capable of suing or being sued. An association or club that has not attained corporate or quasi-corporate status by statute has no legal existence apart from its members. Actions involving an unincorporated association are brought, not in the name of the association, but in the name of members involved either personally or in a representative capacity, or against trustees of the property of the association.
- ❖ . These include clubs, associations, some NGOs and churches among others. In *Okwonga Vs Anywar & Another [1984 HCB] 45*, In this case, an action was commenced against the Church of Uganda and the 1st Respondent objected that C.O.U was not legal entity and could only be sued through representative action. **Held:** it was held that unincorporated organizations are not competent parties to suits. As a religious organisation, the C.O.U. is not a corporate body to run its own affairs. A board of trustees is constituted with the power to sue and be sued. That being so, C.O.U was wrongly sued and plaint was struck off subject to an application for amendment. [See O.1 R.10 CPR.

- ❖ Also *Makula international V Cardinal Nsubuga [1982] HCB*, where the action was commenced against the cardinal yet the contract was executed with the catholic church and court held that the action could not be sustained except through a representative suit.

- ❖ However, some churches normally have a board of trustees registered under the Trustee's Incorporation Act. The board of trustees upon registration acquires corporate status and is the suable entity. See S.4 of the Trustee Incorporation Act; Examples include the Board of Trustees of Namirembe Diocese. For the Catholic Church, it is The Trustees of Kampala Arch Diocese see also; the Uganda Muslim Supreme Council.
 In the case of **The Trustees of Rubaga Miracle Centre V. MulangiraSsimbwa (Miscellaneous Application Number 576 of 2006 and MulangiraSsimbwa A.K.A Afidra Milton V. The Board of Trustees, Miracle Centre and Pastor Robert Kayanja (Miscellaneous Application Number 655 OF 2005)** (both Applications arising from HCCS No. 768 of 2004). In the first application the defendant sought to have the plaint rejected on the ground that the defendant described as **the Board of Trustees, Rubaga Miracle Centre Cathedral** is a nonentity and had no capacity to sue or be sued. On the other hand the plaintiff in MA 655 sought leave to amend the plaint by adding Pastor Robert Kayanja. Justice RemmyKasule held that, where the amendment by way of substitution of a party purports to replace a party that has no legal existence, the plaint must be rejected as it is no plaint at all. He accordingly allowed the application to reject the plaint and dismissed the application for amendment. Justice Remmy Kasule (as he then was) went further to hold “... *The law is now settled. A suit in the names of a wrong Plaintiff or Defendant cannot be cured by amendment ... the Defendant described as The Board of Trustees Miracle Centre Cathedral does not exist in law. The attempt to add Pastor Robert*

Kayanja, is really an attempt to substitute a non existing Defendant. The law does not allow that as in reality there is no valid plaint in the suit ...”

❖ **Government**

- Government is a suable entity but suits by or against government are initiated in the name of the A-G; **Article 250(2) of the constitution** provides that civil proceedings by or against the Government shall be instituted by or against the Attorney General; and all documents required to be served on the Government for the purpose of or in connection with those proceedings shall be served on the Attorney General.
- Section 10 of the Government Proceedings Act provides for parties to proceedings. Civil proceedings by or against the Government shall be instituted by or against the Attorney General. Read **Charles Harry Twagira V AG, DPP & Sam Kyomukama [2008] HCB 28**
- In the case of **Attorney General & Peter Nyombi vs. Uganda Law Society (Misc. Cause No. 321 of 2013)** the issue was whether the Attorney General can retain and instruct Kampala Associated Advocates, a private legal firm to represent it and perform legal services without complying with the Public Procurement Laws and Regulations?. Court held that by appointing Kampala Associated Advocates as counsel for the first applicant, the effect is that they were vested with the authority of duly appointed advocates for the Attorney General with full instructions to act on behalf and for the Attorney General and entitling them to remuneration by the Attorney General which comes from public coffers or the consolidated fund. In case the respondent lost the case, then the latter would be liable for the costs on a

party to party basis. Consequently that it was irregular for the learned Attorney General to have retained the Kampala Associated Advocates as lawyers to provide professional services to the Attorney General without following the PPDA Act and Regulations as amended.

- Government is liable for acts of its employees committed in the course of their employment. See S.3 of the Government Proceedings Act. *[see procedure of commencing suits against Government]*; *See Wakiso Cargo Transporters Ltd V Wakiso District Council & AG HCT 00-CCCS 070/2004; Read Victor Juliet Mukasa & Anor. V AG [2008] HCB 168;*

❖ **Local Government Council, Town Council, Municipal Council**

- **Local Governments;** S. 6 of the Local Government Act as amended confers legal status on local Governments; they can sue or be sued. *Read S.3 LGA for the definition of a local Government.*
- Local Government council are the suable entities under the Act not Local Administrations. *See Kitgum District Administration V Print and Stationary Suppliers CACA 44 of 1998.* Action brought against District administration after the enactment of the LGA, objection that the suit was a nullity having been brought against a non-existent entity. Held; that the District Council was liable, as it had by law inherited the liabilities of the local administration. *[Inapplicable to new districts]*

- Local governments have independent existence from the central government and are liable for their acts or acts of their servants. *See Wakiso Cargo Transporters Ltd V Wakiso District Council & AG HCT 00-CCCS 070/2004*; The attorney General could not be held liable for breach of a contract executed by the district as the district had a separate legal existence from the central government. *Read Victor Juliet Mukasa & Anor. V AG [2008] HCB 168*; *Local government administrative Unit is a body corporate capable of suing and being sued in its corporate name under the Local Governments Act*
- **Alice Katungaza V AG [2002] EA.** The plaintiff claimed damages for injuries inflicted on her due to unlawful assault inflicted on her by her teacher in the course of her employment. The Defendant raised an objection that the AG was not liable as the officer concerned was an employee of a local administration; Court found that the Government and the local administration had a separate legal existence and were distinct legal bodies. The suit had thus been brought against a wrong party hence it was dismissed [*see alternative remedies under O.1 r.10.*]

❖ Statutory Corporations;

- ❖ Bodies created by statute, which confers upon them a distinct legal status. In effect, they can sue or be sued in their corporate name. Examples; URA, see [action commenced in the names of the Commissioner General of URA, *See M/S Robo and Another V Comm. Gen of URA CACA No.55 of 2003*; *Read The Commissioner General URA V Meera Investments Limited SCCA No. 22 of 2007*

- ❖ **Statutory Corporations** have a distinct legal existence from the Government;*Read; Uganda Pentecostal University Ltd V The National Council for Higher Education and AG HCCA No.36 of 2005*; appeal against decision of the National Council denying the appellant a provisional licence. Preliminary objection that the council was a body corporate with distinct legal existence from Government and with capacity to sue or be sued in its corporate name. *See S.4(2) of the Universities Act No.7 of 2001; But reas Paul Nyamarere V UEB in Liquidation [2008] HCB 126 on when a statutory corporation may cease to exist. Read also Bagamuhunda Vincent V UEB in Liquidation HCCS No. 400 of 2007*

- ❖ **Government Bodies/ Departments**

- ❖ Some Government departments are conferred with a corporate status and can sue or be sued in their corporate name. However there must be an enabling law conferring such status.
- ❖ The Registrar General is also a suable entity; See s. 4 of the Uganda National Registration Bureau
- ❖ See *The Administrator General' Act* Cap 157-sec. 2. administrator General is a corporation sole and sue or be sued in such corporate name. *Administrator General V Uganda Posts & Telecommunications Corporation; [1993] IV KALR 108*; observation by court that the Administrator General could sue the defendant/respondent to recover the benefits accruing to former employees of the defendant.

- ❖ Directorate of Public Prosecutions; just a department under the ministry of justice and has no distinct legal existence; **Charles Harry Twagira V AG, DPP & Sam Kyomukama, Civil Appeal No.61 of 2002.** That DPP is not a corporate body and therefore has no power to sue or be sued and a suit commenced against it is incompetent. *See also RTD Col Dr. Kiiza Besigye & Others V The DPP & AG Constitutional Petition No.12 of 2006.*

- ❖ In the case of *Sentiba Gordon & 2 Ors Vs Inspector of Government (SCCA NO 06 OF 2008)* Odoki C.J (by then) held that there is nothing in the Article 227 or Section 2 of the Act which confers on the respondent corporate status or legal capacity to sue or be sued. That if Parliament had wanted to confer corporate status on the respondent nothing could have stopped it from doing so, but it did not in its wisdom do so. There is no provision in the Constitution, the Inspectorate of Government Act or any other law which confers corporate status on the respondent and it would be wrong for the Court to confer such status on the respondent when Parliament in its wisdom did not find it necessary to do so for effective enforcement of the powers of the respondent. That it is trite law that the Attorney General is the Principal Legal Advisor to Government as provided for in Article 19(3) of the Constitution, and that the legal opinion of the Attorney General is generally binding on Government and public institutions like the respondent.

- ❖ **Okello Okello V UNEB [1993] 11 KALR 36;** held; that by virtue of the functions of UNEB, it was a government department since it was independent body seeking to observe the government overall objectives in education. However,

by its set up as a corporation sole, the respondent had a choice whether to sue the board as an emanation of Government or as an independent body.

- ❖ Non-statutory Bodies; only bodies conferred with a corporate status can sue or be sued; in absence of a clear provision conferring such status, then such body can't sue or be sued as a legal entity. *Amos Mugisha & Sons V Chemical Industries V DAPCB & NRM Secretariat*[1990-91/KALR 38]; That the Movement Secretariat had no distinct legal existence and could not be sued as such

- ❖ Foreign Missions and Diplomatic Agencies

- ❖ Foreign/Diplomatic Missions or Embassies; Entitled to Immunity from criminal and civil proceedings; see the Diplomatic Immunities Act. *See the category of officers entitled to Immunity; No immunity in case of commercial transactions; Eddie Rodrigues V The British High Commission SCCA NO.8/87. Held* that if a government or one of its departments goes into the market places of the world and engages in straight forward commercial transactions, then its within the territorial Jurisdiction of the courts of the foreign Sovereign. The sovereign can't claim immunity in respect of such transactions. *See Ndibarekera V The United States of America HCCS NO.786/97. [Also discusses the mode of service on a foreign Government]*
- ❖ *Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402 OF 2002* Suit for recovery of immovable property against the Embassy; issue as to whether Court had Jurisdiction to entertain the suit. *Held;* That the property in dispute being immovable and situate in Uganda, court has jurisdiction to entertain the dispute over it. As to the proper party to be sued; *Held;* that the Embassy of Saudi Arabia

should not have been sued as such. The proper defendant ought to have been the Kingdom of Saudi Arabia. That an embassy is a branch and therefore an emanation of the Government of the sending state and holds property on its behalf. The action therefore should have been brought against that Government ***Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402 OF 2002***; [see *remedies available where a wrong party is sued*; O.1r.10 CPRs. *[read full decision]*]

❖ **Partnerships**

- ❖ Suits by or Against Partnerships: O.30 R 1; A partnership has no distinct legal existence from the partners. [*Compare a company*]. See ***Benjamin Sajjabi/T/A Namataba V Timber Manufacturers Limited [1978] HCB 202***; Held; that as the defendant was not a limited liability company, it had no legal existence. ***Read; Read; Geoffrey Gatete & Anor. V William Kyobe [2007] HCB Vol.1 54***
- ❖ The suit is commenced against named persons [all normally trading as a partnership] not a suit against the firm. A suit may be brought against a partnership even though it has been dissolved. In ***Nterekeya Bus Service V Rep of Kenya 196691) ALR Comm 452***, it was held that a firm has no independent existence apart from its individual members who carry on business both as principals and as agents of each other within the scope of the partnership business. That the firm is a mere expression not a legal entity. The conviction of a firm name was thus a nullity.
- ❖ O. 30 r 1 allows partners to be sued in the firm name and it is not the partnership being sued. The plaintiff may insist on full disclosure of the names of persons

constituting a partnership. ***Horra Vs Horra [1959] EA 981 (K)***. . In that case, the defendants formerly constituting a partnership, which had been dissolved, were served personally. Three persons entered appearance but filed a joint defence. The Plaintiff applied to strike out a defence as individual persons did not describe themselves as partners in the partnership firm. Held; that a claim may be enforced against a partnership without making all the partners parties thereto. ***Held:*** The partners were not sued in the firm name in a manner envisaged under O. XXIX, r1, CPR [now O.30]. The Plaintiff should have sued the defendants trading as the Colonial Printing Works to conform to the Order. Having not done this, he decided to sue them individually and as partners of the firm on their joint liability in partnership.

- ❖ See also ***Sarwan Singh Vs Karan Singh [1963] EA 423 (K)***. Observation by **Newbold P.** that power to sue in a firm name is merely procedural but it is proper pleading to set out the names of the partners in the plaint. (See ***Kasana Produce Vs Kato [1973]***). ***Johnson VS Moss (1969) EA 654***.
- ❖ ***Maki V Saidi [1961] 1 ALL NLR 502***; That in order to succeed against a partnership, the action must be brought; against all members of the firm, against the firm in its registered name, against one or more partners as representatives of the firm. Read; ***Reliable African Insurance Agencies V NIC (1979) HCB 58***; ***Read also; Kaggwa V Sohan Singh & Co.(1972) HCB***
- ❖ **Suits By or Against Minors and Persons of Unsound Mind: O. 32.**

- ❖ In general, subject to special rules of procedure, a minor may sue or be sued but he may not in person assert his rights in a court of law as the plaintiff or applicant nor make himself liable as a defendant or respondent for costs.
- ❖ **O.32 r1.** Every suit by a minor shall be instituted in his names by a person who in such a suit shall be called the next friend of the minor. O 32 r 4 (1): Any person who is of sound mind and has attained majority age may act as a next friend of a minor or as his guardian ad litem provided that the interest of such person is not adverse to that of the minor and that he is not in case of the next friend a defendant or in case of a guardian ad litem a plaintiff.
- ❖ Who is a minor?; *Kiddu Musisi Vs Iyamulemye and Another [1965] HCD 87*; Since the word minor is not anywhere defined in order 29, the court applied common law and interpreted the word minor as being a person who has not attained the age of 21[See *Article 31 of the constitution on age of majority and Article of 274 on interpretation of existing laws.*]
- ❖ *Samwiri Iyamulenge vs Jovana's Nyirakamarande 1995] IV KALR 16* – suit by a minor the issue of whether a married woman aged 20 years was a minor required to sue through a next friend for purpose of divorce.
- ❖ Consent of the Guardian – O 32 R 4(3):No person shall be appointed as a guardian ad litem without his consent.
- ❖ Person capable of being next friend: Any adult person of sound mind within the jurisdiction whose interest is not adverse to that of the minor or is not a defendant

or plaintiff in the case involving the minor may be eligible to act as a next friend. *J. Wasswa & Anor. V Daniel Sentenza (1977) HCB 88*; that O.29 provides for the removal of a next friend whose interest is shown to be adverse to that of the person of unsound mind. The court therefore ordered the next friend to cease acting as next friend upon evidence that his interests were adverse to the person of unsound mind. [See O.32 r.4(1)]

- ❖ In the case of **Semyalo Michael versus The Registered Trustees of Kampala Arch Diocese SCCA No. 12/2009**, the appellant had contributed money to enable the diocese purchase shares in trust and further contribution was made in the names of his three infant daughter. The appellant who had also sued on behalf of the daughters as a next friend entered a compromise on their behalf without himself. Justice Tsekooko JSC held that there is no law or practice in this country which makes it mandatory for parties with similar causes of action to institute one and only one suit. However because of necessity of convenience and need to save time and cost, parties who have the same cause of action are encouraged to institute one suit and this is common practice of procedure set out in Order 1 CPR. That on the face of the appeal there can be no doubt that the cause of action of each of the 13 plaintiffs in the original suit were similar if not identical. That although the appellant acted as his daughter's next friend, which is the requirement of the law (see Order 32 r 1 CPR) each of the three daughters had her own independent though similar cause of action and accordingly each plaintiff was free to pull out of the suit before the compromise was sealed by court. That the appellant being a next friend in the same suit did not necessarily mean that if he consents to the judgement in favour of his daughters, he must necessarily also consent to the compromise judgement with regard to his own interest so long as his act is not compromising claim and did not prejudice the interest of any of his

daughters, and that there is no evidence to show that the appellant's refusal to compromise his own interest originally in the suit prejudiced the interest of his three daughters.

- ❖ Preference will be given to the father or mother or guardian. Some other of the relatives or connections of the minor or their nominees may qualify but they must be substantial and proper persons.
- ❖ Legal effect of absence of a next friend; O. 32 r 2: if a minor is made a plaintiff without a next friend, the proceedings may be set aside and the plaintiff's solicitors may be ordered to pay costs to the defendant in that suit. This principle too applies when the minor is made a co-plaintiff without a next friend otherwise the minor's solicitors may be ordered to pay the defendant the costs occasioned by the misjoinder. ***Geihuge V Gibbs [1897] ICH 479.*** This was an action instituted in court without the knowledge of the solicitors that a person joined as co-plaintiff was a minor at the commencement of the suit. **Held:** That when an action is brought in the name of the person as plaintiff without his authority and he subsequently repudiates the action, the defendant on an application may obtain an order for payment of costs by the solicitor who instituted the suit. In a case where an infant was joined as a co-plaintiff by solicitors on assumption that he was of full age, they were liable to pay the costs of the suit when the minor applied for his name to be struck out.
- ❖ ***Lui Bagyenda & Anor vs Ioyce Kikubanja Bagyenda 1994] IV KALR 46;*** suit by a minor – next friend , question whether a 19 year old co- applicant for the

grant of letters of administration without a next friend rendered the application a nullity even if the other joint applicant was an adult.

- ❖ ***Hajji Sabiti Musoke Vs Uganda L.M [1978] HCB 129.*** During the trial it came out that the 3rd Plaintiff was a minor and counsel for the defendant applied that the suit be taken out of the file under O 32, r1. **Held:** That the proceedings were irregular and could only continue if the plaint was amended to include the next friend. A plaint by a minor without authority of the next friend is improper and must be taken off the file but can be re-filed in accordance with the law.
- ❖ ***Kabatoro Vs Namatovu (1975) HCB 159;*** A plaint instituted by a minor without a next friend as required by law. **Held;** that Order 32 r 3 is mandatory and requires that a suit brought/instituted by a minor without attaching a next friend's authority is incompetent and should be struck out. When a suit is instituted by a minor without a next friend, the plaint is to be taken off the file. ***[Jingo Vs Kabagiza (1974) HCB 294 and Kiralire V Salongo MB 74 of 1964***
- ❖ *Effect of non-compliance, whether it render the suit liable to be dismissed:* Rules 1 and 2 of O 32 are only directory and not mandatory and non-compliance with them does not automatically lead to the throwing out of the suit. Court has discretion under r 2(1) to either take the plaintiff off the file or make such other order in the premises as it may deem fit e.g. amendment to include the next friend. ***Musoke Vs Uganda Co-op. Savings [1978] HCB 189.***
- ❖ ***Guardian ad Litem;*** When the defendant is a minor court shall appoint a guardian Ad litem. The rule is mandatory and a decree obtained without the appointment of

a guardian is a nullity. *Credit finance Corporation Ltd Vs Kamali [1965] EA 545 (K)*. Suit against a minor with no guardian ad litem appointed where decree was made thereof was a nullity.

- ❖ Objection under O.34 r 3 ; **Held:** That without a qualified guardian ad litem a minor can become a party to a suit and any decree ex parte without such appointment is a nullity.
- ❖ *Kiddu Musisi Vs Iyamulemye and Another [1965] HCD 87.* Held: All suits brought against a minor must be through a guardian ad litem i.e. a guardian appointed by court for the purpose of the suit.
- ❖ *Re Brockle Bank.* A man cannot be allowed to escape from payment of a debt because the person to whom it is due is an infant. In such a case the debtor will be entitled to cost if he asked for it. However an adult person named on security for costs of a summons. But he makes no such an application but allows the summons to proceed in the ordinary way.
- ❖ Removal of a Guardian: a guardian whose interest is adverse to that of the person of unsound mind may be removed under O. 32 r 9. *Wasswa Vs Senteza [1977] HCB 88.*
- ❖ NB: another next friend may be appointed where one is incompetent. No two or more guardians are allowed for one minor, O. 29 r 4 (2). A guardian appointed by court shall not be replaced unless court considers it in the best interest of the minor.

- ❖ The next friend is an officer of court appointed to look after the minor's interest and has the conduct of the proceedings in his hands but he is not actually a party to the proceedings and is not, as next friend entitled to apply them in person.
- ❖ Retirement of a next friend; O.32 r 8: A next friend may not retire without showing that it is for the minor's benefit that another next friend should be substituted for him and that his proposed successor is a fit and proper person and is not interested in the subject of the proceedings. Substitution of a next friend: Where a person has been or is next friend of a minor in any proceedings no other person is entitled to act as the minor's next friend in those proceedings unless the court makes an order appointing him as next friend for substitution of a person previously so acting.
- ❖ See; Representation of minor by next friend or guardian for the suit. O.32 r 5 (1) and (2): Every application to court on behalf of the minor other than an application under substitution rule shall be made by his next friend or by his guardian ad litem.
- ❖ Agreements on compromise by next friend or guardian for the suit, O 32 r 6. Receipt by next friend or guardian for the suit of property under decree for minor, O 32 r 6.
- ❖ Stay of proceedings for removal of a next friend O. 32 r 10.
- ❖ Retirement, Removal or death of a guardian for the suit, O32 r 11. Infant plaintiff attaining full age, O 32 r 12.

- ❖ Application of rules relating to minors to persons of unsound mind; O.32 r.15; Wasswa & Anor. V Daniel Sentenza (1977) HCB 88[see above]
- ❖ In the case of **Thomas A.K Makumbi (Through Next Friend Patrick Makumbi Vs. Josephine Katumba HCMA No. 316/2014** the applicant a 97 year old male adult sued through next friend. The issue was whether or not the next friend herein is properly before court, given that the applicant had not been adjudged to be insane as provided in O 32 CPR and the next friend allegedly had adverse interest to the said applicants interests. **Justice Monica K. Mugenyi** held that Order 32 CPR makes provision for suits by or against minors or persons of unsound mind. That O 32 r 4(1) prescribes as persons competent to serve as Next friend any adult of sound mind whose interests are not adverse to those of the minor, and who is not a defendant in the matter for which he acts as a next friend. That O 32 r 15 renders the foregoing applicable to persons adjudged to be of sound mind and to persons who, though not so adjudged are found by the court on inquiry, by reason of unsoundness of mind or mental infirmity, to be incapable of protecting their interest when suing or being sued. In the instant case the written authority by Mr. Patrick Makumbi, the next friend herein, was duly appended to the plaint as annexure A. That the said next friend is a male adult, whose mental state is not in issue and that there was no proof of any adverse interests between the present applicant and Mr. Patrick Makumbi for purposes of the latter acting as the former's next friend. That the question was whether there is need for such next friend in the first place, that is whether the applicant had either been adjudged to be of unsound mind or though not so adjudged had been found by court on inquiry by reason of unsoundness of mind or mental infirmity, to be incapable of protecting his interests. Court held that there is no evidence that the applicant has ever been adjudged to be of unsound mind. That the issue then

would be whether he has been found by court on inquiry to be incapable of protecting his interests owing to unsoundness of mind or mental infirmity. Court further held that there is a distinction between unsoundness of mind and mental infirmity. The Mental treatment Act Cap 279 defines a person of unsound mind as ‘an idiot or person suffering from mental derangement. That the question of insanity, lunacy or unsoundness of mind did not arise in the instant application. The matter before court is an application through next friend on account of mental infirmity occasioned by old age. That the mental treatment Act makes provision for the adjudication of persons of unsound mind. Section 2 thereof specifically provides for an inquiry into such persons’ state of mind. Court held that O 32 r 15 CPR is interpreted to mean that there is no need for an inquiry as provided under the Mental Treatment Act in order to invoke the applicability of rules 1 to 4 of the said Order to persons with mental infirmity. That medical evidence will be sufficient to establish such mental infirmity. In the result that the next friend herein is properly before court and there is no preliminary question to be tried in the matter.

❖ **Others like Government and Private Schools, Universities, Traditional institutions etc**

❖ The Kabaka of Buganda is also a corporation sole that can sue or be sued. *See Article 246(3) of the 1995 constitution.*

❖ In case of schools, unless owned by a company, the ordinary suable entity is the management committee or the Board of governors. *See Harriet Grace*

Bamale(suing through her next friend) Kituma Magala V The Board of Governors of Makerere College school[1994] 1KALR 10

- ❖ **Management committee Mengo primary school and Ors v Ngabo Newspaper 1993] 1 KALR 115** on the issue of whether the management committees of a primary school can sue or be sued .

- ❖ **Effect of a suit against a wrong or Non Existent Party & Remedy**

- A suit filed by a nonentity cannot be cured by substitution of the nonentity neither can the plaint filed by a nonentity or a suit against a nonentity be sustained or amended because it discloses no cause of action. A nonentity incorporates the legal doctrine of a capacity to sue and establishes the same that only a party with legal capacity to sue can bring an action in a court of law.
- In the Tanzanian case of **BabubhaiDhanji Pathak V. ZainabMrekwe [1964] EA 24**, a suit was filed in the lower court in the name of a dead plaintiff 45 days after her death and an application to substitute the deceased plaintiff under order 1 rule 10 was allowed in ignorance of the fact by the Magistrate. On appeal to the High Court Law J held at page 26: “A suit instituted by a dead person is a nullity. The power to substitute a plaintiff where a suit has been filed in the name of a wrong person, conferred by Order 10, r. 1(1) in the First Schedule to the Indian Civil Procedure Code, can only be exercised where the “wrong person” was living at the date of instituting the suit, and has no application where the “wrong person” was dead at such date.
- In the case of **Fort Hall Bakery Supply Co. Ltd V. Fredrick Muigai Wangoe [1959] EA 474**, the plaintiff's were an association consisting of 45 persons trading in partnership for gain but their firm was not registered under the Business Name Registration Ordinance. It was submitted by the defendants that the Companies

Ordinance prohibited an association or partnership of more than twenty persons. The plaintiffs were a group of persons not having legal existence under the Companies Ordinance. The plaintiffs filed the suit in the name of “Fort Hall Bakery Supply Company”. Templeton J agreed with the words of Bankes L.J in **BanqueInternationale De Commerce De Pertograd v Goukassaow (3), [1923] 2 K.B. 682** at p 688 that: “The party seeking to maintain the action is in the eyes of our law not party at all but a mere name only, with no legal existence.” He concluded by saying at page 475: "A nonexistent person cannot sue and once the court is made aware that the plaintiff is nonexistent, and therefore incapable of maintaining the action, it cannot allow the action to proceed. The order of the court is that the action be struck out, as the alleged plaintiff has no existence. Since a non-existent plaintiff neither pay nor receive costs there can be no order as to costs."

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- In the case of **Parther Vs Mpekma: Held:** That a suit instituted in the names of a dead person is a nullity and O.1 r 10 can only apply if the person was living at the time otherwise this suit was a nullity.
- **Sajjabi Vs Timber Manufacturing Ltd: Held:** That a nonexistent person cannot be sued and no amendment can be made under O.1 r 10 because the rule applies only where the suit is in existence.
- In the case of **The Trustee of Rubaga Miracle Centre vs. Mulangira Ssimbwa (MA NO. 576/2006 nas Mulangira Simbwa A.K.A Afidra Milton vs. The**

Board of Trustees, Miracle Centre Cathedral and Pastor Robert Kayanja M.A. No. 655/2005, in the first application the defendant sought to have the plaint rejected on ground that the defendant described as board of trustee, Rubaga Miracle Cathedral is a non entity and has no capacity to sue or be sued. On the other hand the plaintiff in M.A 655 sought leave to amend the plaint by adding Pastor Robert Kayanja. **Justice Remmy Kasule held** that where the amendment by way of substitution of a party purports to replace a party that has no legal existence, the plaint must be rejected as it is no plaint at all. He accordingly allowed the application to reject the plaint and dismissed the application for amendment.

- ❖ The law however empowers a court to order that the appropriate parties be substituted if it is in the interest of justice of the matter to do so under order 1 rule 10 (2) of the Civil Procedure Rules
- ❖ In the case of ***Kateregga Paul vs. Tugume Jackson HCMA No. 885/2014*** an issue of locus standi was raised by the respondent in which he contended that the applicant / plaintiff was not the right party to sue since the applicant had instituted the main suit on the basis of the power of attorney where he was ‘the done of the power of attorney from which he derives his power to institute the suit. The issue was whether the applicant /plaintiff has the requisite locus standi to institute the application. **Justice Peter Adonyo held** that O 1 rule 10 CPR is to the effect that the law therein empowers a court to order that the appropriate parties be substituted if it is in the interest of justice of the matter to do so. That in the instant case the pleadings in this matter show that there is a real dispute which must be settled on merit rather than it be scuttled and left unheard. It was therefore ordered that under O 1 r 10 CPR the applicant’s name be substituted

with those of Mr. Richard R. Stanley, the donor of the power of attorney and such substitution be done within 10 days from the date of the ruling.

Pre Entry -2017/2018.

2. Who of the following has absolutely no capacity to be a defendant to a suit?

- A. *A diplomat*
- B. *A child of tender years*
- C. *A person of unsound mind*
- D. *A company in receivership*
- E. *None of the above.*

Pre Entry- 2010/2011.

38. An infant must file a suit in court through...

Pre Entry -2012/2013.

41. How can a club which is unincorporated be sued?

TOPIC X

JOINDER OF PARTIES AND CAUSES OF ACTION

- All persons who are parties may be joined on one side as parties.
- In joining parties, the fundamental purpose is to enable court to deal with matters brought before it and avoid multiplicity of pleadings. In the case of ***Departed Asians Property Custodian Board vs Jaffer Brothers Limited [1999] 1 EA 55*** Mulenga JSC noted ‘*in order for a person to be joined to a suit on the ground that his presence was necessary for the effective and complete settlement of all the questions involved in the suit, it was necessary to show either that the orders sought would legally affect the interest of that person and that it is desirable to have that person joined to avoid multiplicity of suits, or that the defendant could not effectively set up a defense unless that person was joined or an order made that would bind that other person.*’

❖ Joinder of Plaintiffs:

- O.1 r 1 provides that persons can be joined in one suit as in whom any right of relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally, or in the alternative

where, if those persons had brought separate suits, any common question of law or fact would arise

❖ **Joinder of defendants:**

- O.1 r 3 provides that all parties can be joined as defendant against whom any right to relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally or in the alternative where, if separate suits were brought against those persons, any common question of law or fact would arise. Example, joint owners of properties.
- *Fatuma Osman Hussei vs Mahendra Umadbai Patel 1995] KALR 29* . parties to suit under O.1 r 3 whether a person against whom the plaintiff has no claim and does not desire to prosecute can be joined as a co-defendant .
- **Buikwe Estate Coffee Ltd Vs Lutabi:** At the hearing, counsel for the defendant made two preliminary objections on point of law that there was a misjoinder of parties and causes of action contrary to O.1 r 1, O.2 r 2 and 3 (authority of advocate) and that the plaintiffs were not entitled to join them. **Held:** That the right to relief existing in all 3 plaintiffs if proved by evidence arose out of the same transaction, namely, invalid resolution of the company which purported to oust the lawful directors and accordingly there had been no misjoinder of parties and no misjoinder of causes of action.
- O 1 r 7 CPR provides for a situation where a person is in doubt as to whom he may obtain relief or redress, he may join two or more defendants so that court can determine who of them is liable.

- In all cases of joinder the situation must always be that if separate suits were brought by or against each of the persons joined any common question of fact would arise.
- **Barclays Bank Vs Patel [1959] EA 214:** Plaintiff sued the defendant as guarantor of an over draft to the company. Judgment was obtained against all the defendant except the 3rd and 4th defendants. The 1st and 5th defendants were parties to the suit and the 1st, 2nd, 4th, 6th and 3rd defendants objected as the suit was not maintainable as the plaintiff had improperly joined different defendants in one action. **Held:** That different causes of action accrued on different dates against different defendant. The circumstances of liability were separate and distinct. The two causes of action could not be disposed of together. That there was a common question of law as the guarantees being identical in form but there was no common question of fact in the circumstances in which the guarantees' right to relief arose are different and binding different defendants. All conditions must be fulfilled in order to apply O.1 r 3.
- **Karimani Vs Desai:** A landlord claimed in one suit to eject two tenants from different portions of the same property. **Held;** That no right to relief arose against the tenants until they had separately ignored the notices to quit. Those were separate and distinct acts.

- **Bank of India Limited Vs Shah:** The plaintiff Bank sued 5 defendants jointly and severally as guarantors of monies lent on an overdraft to a company's claim. The 2nd, 3rd and 5th defendants submitted to judgment but the 4th defendant raised an objection that there was a misjoinder of parties and causes of action under O.1 r 3. **Held:** That O.1 r3 applied because though the plaintiff had separate remedies against the defendants, the causes of action arose from the same transaction namely, the company's overdraft raised some common question of law and fact against each of them.
- **O.T. Company Ltd Vs African Produce Agency Ltd and Another:** The 1st Defendant agreed to transport for the plaintiff 400 tones of kerosene from Kisumu to Kampala but owing to accident between the 1st defendant's bay and the 2nd defendant's bus, 367 tones were damages. The plaintiff sued the 1st defendant's in negligence and joined the 2nd defendant by 3rd party notice. **Held:** That the case of the 1st defendant collision was due solely to the negligence of the driver of the 2nd defendant's bus, there was thus a question to be decided between the defendants which could not be resolved if the 2nd defendant was dismissed from the action.
- **Semakula Vs Musoke:** The plaintiff sued the defendant for trespass and conversion of his property as well as that of his wife and children. Counsel argued that he should have included property belonging to his wife. **Held:** court found that the tort of trespass constitutes an inference with possession with the personal property of the plaintiff and his family at the plaintiff's house and could only be said to have been in his legal possession at the time. That for the plaintiff to sue

the defendants jointly there must be a common question of law or fact that could arise if separate suits were brought.

- **Order 1 r 9 civil procedure rules provides for Misjoinder and nonjoinder.** No suit shall be defeated by reason of the misjoinder or nonjoinder of parties, and the court may in every suit deal with the matter in controversy so far as regards the rights and interests of the parties actually before it.

❖ **Remedy for Misjoinder:**

- The CPR, O.1 r 10 provides for amendment. Sub rule (1); if the suit is in the name of a wrong person as plaintiff or when it is doubtful as whether it is in the right names of the plaintiff the court may at any stage of the suit if satisfied that the suit has been instituted by a bonafide mistake and it is necessary for determination of the matter in question to do so, order any person to be substituted or added. *See Buteraba V Serwanga*
- **Barclays Bank Vs Patel:** Held: 'That the plaintiff would be given leave to withdraw the suit and institute a fresh one or suits as he chose against the defendants on payment of the defendants costs. The plaint were not to be struck out as being embarrassing. *See Buteraba V Serwanga*
- In the case of **AG & Peter Nyombi vs. Uganda Law Society HCMA No. 321/2013** Justice Stephen Musota citing O1 r 2 CPR ordered that Kampala Associated Advocates be disqualified from representing the Attorney General

instead of ordering separate trials. That the instructions to Kampala Associated Advocates will only remain valid for the 2nd Applicant Mr. Nyombi in his personal capacity. That the A.G shall continue to be represented by his legal team of Attorney as presented on record.

- **Order 1 r 10 civil procedure rules provides Suit in name of wrong plaintiff; addition and removal of parties.** Where a suit has been instituted in the name of the wrong person as plaintiff, or where it is doubtful whether it has been instituted in the name of the right plaintiff, the court may at any stage of the suit, if satisfied that the suit has been instituted through a bona fide mistake, and that it is necessary for the determination of the real matter in dispute to do so, order any other person to be substituted or added as plaintiff upon such terms as the court thinks fit.
- In the case of **Lea Associates Limited v Bunga Hill House Ltd (High Court Misc. Appl. No. 348 of 2008) ((High Court Misc. Appl. No. 348 of 2008))** Court held that order 1 rule 10(2) court has discretion to order any person to be joined as a plaintiff or defendant or as a person whose presence before court may be necessary in order to enable the court effectively and completely to adjudicate upon and settle all questions involved in the matter before it . Such a person may be joined even if the plaintiff has no cause of action against him or her provided that such party's presence is necessary for effectual and complete adjudication and settlement of all the issues involved in the suit before court. See *Mullani in the Code Civil Procedures 17th Ed Vol II page 102, DAPCD Vs Jaffer Brother Ltd SCCA No 9 of 1998, Anorld Raphael Vs Tuch& Sons Ltd (1956) All ER 273*. the Application to add such a party could be by any of the parties or done by the Court or its own motion. See *Kilolo Curing Co Ltd Vs West Mengo Co – op Union Ltd (1991) HCB 60*.

The application could even be made by any person whose legal right will be directly affected by the grant of the relief claimed in the action and can show that his presence is necessary to enable court effectively and completely adjudicate all settle the suit before it. See *GoholdasLaxirioudasTana Vs Sorter Rose Munyiza HCCS No 1076 of 1987 (1990 – 99) KALR 21, Inspector General of Government Vs KibondaButema Form Ltd & A C.A Constitutional App. No. 13 of 2006 IGG Vs Blessed Constitution Ltd & Anor HCt-00-CC-MA-073 – 2007*. The aim is to bring all persons who are parties relating to the subject matter before Court so that the dispute may be determined in their presence and at the same time without any prostration, inconvenience and to avoid multiplicity of proceedings. See *Ally Route Ltd Vs Uganda Development Bank Ltd HCt-00-CC-MA-459-2007*.

- In **KakoozaMutale v, Attorney General & Another [2001-2005] HCB 110**, the high court considered the extent and intent of the provisions of order 1 rule 10 CPR. Bamwine, J (as he then was) laid down the criteria to be employed by a court exercising its powers under the rule. He ruled that first and foremost, Order 1 rule 10(2) CPR gives wide discretion to the court to strike out or add parties to suits, and that the principle under which such application can be allowed are that a plaintiffs at liberty to sue anybody that he thinks he has a claim against and cannot be forced to sue anybody; and where he sued a wrong party he has to shoulder the blame. Further that jurisdiction under Order 1 rule 10(2) to order the addition of parties as defendant where the matter is not liable to be defeated by non-joinder; when they were not persons who ought to have been sued in the first place; and where the presence as a party is not necessary to enable the court effectively to adjudicate on all questions involved. He concluded that generally, a defendant will not be added against the plaintiff's wish.

- In Gokoldas Laximidas Tanna Vs Sorter Rose Munyinda H.C.C. S. No. 7076 of 1987 (1990 – 91) KALR 21 Justice Ouma stated:- “The law is that a person whose legal right or who claims that his legal right will be directly affected by the granting of the relief claimed in the action and can therefore, show that his presence is necessary to enable the court effectually and completely to adjudicate as above stated, may be added to the suit as a party upon his own application (see the case of Dollfus Mieg Vs Bank of England (1951) Ch 33 and Amon Vs Raphael Truck and Sons Ltd (1956) 1 QB 357)”

❖ **Joinder of Causes Action:**

- Order 2 rule 4(1) CPR provides that except as otherwise provided, a plaintiff may unite in the same suit several causes of action against the same defendant or the same defendants jointly; and any plaintiffs having causes of action in which they are jointly interested against the same defendant or the same defendants jointly may unite those causes of action in the same suit.
- The rules provide for joinder of cause of action with the right of the court to order separate trials if necessary-O.2 r 5.
- A plaintiff may join in an action more than one cause of action and when the defendant contests the joinder of any cause of action, the plaintiff must justify the joinder or else the objection to this joinder will be upheld by court-O.2 r 6.

- Where causes of actions are united, the jurisdiction of the court as regards the suit shall depend on the amount or value of the aggregate subject matter at the date of instituting the suit-O.2 r 4(2).
- **Uganda Commercial Trading Co. ltd Vs Jinja Cash Stores:** Counsel raised a preliminary objection that the suit was not maintainable as the plaintiff had improperly joined separate defendants and causes of action in one suit. **Held:** That under the Bulk Sales Ordinance the plaintiff in his capacity as a creditor of the 1st defendant was entitled to have any redress against the 2nd defendant as transferee of the lorries and a common question of law and fact would have arisen if separate suits were brought. There was no misjoinder of the defendants or causes of action and the suit was maintainable.
- **Yokana Kakire Vs Lunyo Estates Ltd:** The eight (8) plaintiffs each of whom claimed to be a tenant of the defendant company sued for alleged interference with their rights of possession. The defendant contended that there was misjoinder of parties and causes of action contrary to O.1 r 1, CPR. **Held:** that the causes of action set out in the plaint did not arise out of the same act or transaction. They were of wholly distinct and different acts of dispossession and interference of rights of possession. There was no question of law or fact common to the several plaintiffs and there was a misjoinder of plaintiffs and causes of action.
- **Stroud Vs Lawson: Held:** That it is necessary that both conditions should be fulfilled and that the right to relief alleged to exist in each plaintiff should be in

respect of or arise out the same transaction and also that there should be a common question of law or fact in order that the case may be within the rule.

- **Musitwa Kyazze Vs Eunice Busingye:Held:** That no suit should be dismissed for non joinder or misjoinder of parties or causes of action.

❖ The rules also provide **CONSLIDATION OF ACTIONS / SUITS AND TEST SUITS**

- O.11 r 1 provides that where two or more suits are pending in the same court in which the same or similar questions of law or fact are involved, the court may, either upon the application of one of the parties or of its own motion, at its discretion, and upon such terms as may seem fit-
 - a) order a consolidation of those suits
 - b) direct that further proceedings in any of the suits be stayed until further order.
- The rules of court provide that the court may consolidate two or more actions which are pending in the sense that the court process has been served and judgment has not been entered and satisfied and where;
 - a) a common question of law, or fact arises in action
 - b) the right to relief arise in respect of the same transaction or series of transaction
 - c) it is otherwise desirable to approve consolidation.

- that the court in the consolidation order provide that the proceedings be tried at the same time, or immediately after one another, or have one stayed until the determination of the other, or be tried on such other terms as it thinks just.
- The courts may usually make these types of orders on application for consolidation:
 - 1) The actions be consolidated, where upon the actions are consolidated into one action and continue as such, with possibly a common counsel, one set of pleading and a single discovery, judgment and bill of costs. However the order does not require the different causes of action arising out of the same transaction be included in one suit.
 - 2) The actions are not consolidated but are heard together with the trial of one immediately following the other, with separate pleadings, discoveries and judgments. In the case of *TopistaKyebitama vs. DamyanoBatuma [1976] HCB 276* established that where two or more suits are filed involving the same parties and arising from the same cause of action, they should either be consolidated for purposes of determining liability or only one of them, first in point of time be heard first.

Usually any party in the following action, who is not a party in the earlier action, will be permitted to attend and take part in the earlier trial and cross examine the witnesses and the evidence in the earlier action may be used in the other separate decisions will be delivered or

- 3) One action will be heard with the remaining actions stayed and the decision of the first case governing the others or with any latter case being subsequently heard.

- Under the rules of court, the consolidation of actions is now within the discretion of the court or judge. The discretion of court is unlimited and consolidation may be ordered against the wishes of the plaintiff. In the case of *Stumberg & Anor vs. Potgieter [1970] EA 323* held that consolidation of suits should be ordered where there are common questions of law or fact; consolidation of suits should not be ordered where there are deep differences between the claims and defenses in each action.
- It is intended to prevent multiplicity of pleadings. The recent rules of court generally provide the same grounds for permitting consolidation are applied to the joinder of parties namely;
 - 1) Common question of fact or law
 - 2) Right to relief arising out of the same or similar transactions; of
 - 3) Whether consolidation is proper
 - 4) In cross actions between the same parties arising out of the same matter
 - 5) Same cause of action
 - 6) Consolidation will save expenses
- The court however will refuse to consolidate suits when its prejudicial to the plaintiff, impossible to save expenses, a person is plaintiff in one suit and defendant in another and consolidation will result into the plaintiff becoming a defendant, different laws applicable, different standard of proof like fraud cases, when new pleadings required, parties represented by different advocates, relevant matters arising subsequent to commencement, where actions are already set down for hearing, when different issues involved

❖ *Test suits / Actions*

- Where two or more persons have sued or been sued separately as under O.1 and could be joined in one suit, upon application of any of the parties, the court may if satisfied that the issues to be tried in each suit are precisely similar, make an order directing that the suits be tried as a test case, and staying all steps in other suits until the selected suit shall have been determined or shall have failed to be a real of the issues. O.39 r 1 and 2 CPR.
- By the agreement of the parties, one action will be heard with the remaining actions being stayed pending the decision in the test action. To have a test suit / action, all the issues and evidence in the actions should be substantially the same.

Pre-Entry Exam 2011/2012

Qn. 37 What is joinder of parties?

Pre-Entry Exam 2012/2013

Qn. 45. Define misjoinder of causes of action

Pre-Entry Exam 2014/2015

Qn. 49. Mention any advantage of joining parties and causes of action in one suit



TOPIC XI

PLEADINGS:

Pleadings are important matters for parties in early stages of proceedings called the pre-trial stage. So one should learn the rules of procedure governing exchange and relief to avoid embarrassment caused by irregular and defective pleadings. Time is of essence in serving, amending and filing any pleading.

The relevant law is contained in O.6, 7, 8, 9 CPR. The Plaintiff begins by presenting a plaint being the first pleading which is filed in court and served together with summons requiring the defendant to file his defence if he so wishes within 15 days from the date of service on him or such time as may be prescribed by court. Having been served the defendant who wishes to appear in the suit present his first pleading called a Written Statement of Defence which sets out his defence to the allegations set out in the plaint. Then a defendant who wishes to claim something from the plaintiff would add his pleadings a counter claim which has to be filed as a defense within time allowed for filing a defense. If the plaintiff wishes to reply to a defence then he files in court a reply to written statement of defence then the pleadings of the parties would be said to be completed and the pre-trial stage would come to an end.

❖ **Definition of a pleading**

- Section 2 of the Civil Procedure Act defines “*pleading*” to include any petition or summons, and also includes the statements in writing of the claim or demand of any plaintiff, and of the defence of any defendant to them, and the reply of the plaintiff to any defence or counterclaim of a defendant. See *Reliable Trustees Ltd V George Sembeguya HCCS No. 601/92 for the definition of pleadings*;
- Documents with definition of pleadings include the plaint, Written Statement of Defense, Counter claim, Reply to defense and counter claim, petition, originating summons, notice of motion, chamber summons and answer to petition.

❖ **Plaintiff's Pleadings:**

- The Plaintiff is required to serve summons together with plaint and annexures thereto upon the defendant requiring the defendant to file a Written Statement of Defence within 15 days from the service. **(O.5 r 1** and this constitutes the Defendant's pleadings. *See Mark Graves V Balton (U) HCMA No.158 of 2008 for time within which a defence should be filed; See also Rule 11 of the Government Proceedings (Civil Procedure) Rules .; AG is given 30 days within which to file a defence.*
- Plaintiff is required to serve the summons and plaint within 21 days from the date of issue unless the time is extended on application of such plaintiff; **Read; O.5 r1(3) Century Enterprises Limited V Green land Bank (In Liquidation) HCT-00-CC-CS-0877-2004 Elite International Tobacco (U) Ltd V Marchfair Stationary (U) Ltd [1997-2000] UCLR 253.**
- ❖ **General Objects of Pleadings:**
 - Knowledge of the parties as to the exact matter in dispute.
 - Knowledge of what exactly is to be proved at the trial so as to reduce cost and time of proving unnecessary facts and surprises at the trial.
 - Determination of the appropriate mode of trial on questions of fact or law to be decided by court.
 - Ensuring that parties and succession do not contest similar issues.
- ❖ **The Function, Rationale and relevancy of pleadings for parties and Court**
 - The Plaintiff is entitled to know the defence to the claim so as to reply to the disputed statements by the defendant, establish facts conceded and facts disputed to avoid procuring evidence of unnecessary facts.

- In the case of **Peter Bakaluba Mukasa Versus Betty Nambooze SCCA No.4/2009** Justice Katureebe JSC cited the statement of Order, JSC, (RIP) in the case of ***Interfreight Forwarders Case*** at page 125:-

“The system of pleading is necessary in litigation. It operates to define and deliver it with clarity and precision the real matters in controversy between the parties upon which they can prepare and present their respective cases and upon which, the court will be called upon to adjudicate between them. It thus serves the double purposes of informing each party what is the case of the opposite party which will govern the interlocutory proceedings before the trial and which court will determine at the trial.....Thus, issues are formed on the case of the parties so disclosed in the pleadings and evidence is directed at the trial to the proof of the case so set as alleged by him and as covered in the issues framed. He will not be allowed to succeed on a case not set up by him and be allowed at the trial to change his case or set up a case inconsistent with which he alleged in the pleadings except by way of amendment of the pleadings...that issues are framed on the basis of the case made out from the pleadings of parties”.

- ❖ The purpose of pleadings was to allow the parties an opportunity to prepare their case adequately ***Mbarara Coffee Curing Vs Grind lays Bank Ug. Ltd***
- ❖ That the purpose of pleadings is to let the other party know the outcome of the adversary’s case to prepare a defence. Each of the alternate pleadings must show this. ***Painetto Mubiru Vs UCB (1971) HCB 144:***
- ❖ The function of pleadings is to give a fair notice of the case, which has to be met so that the opposing party may direct his evidence to the issue disclosed by them. ***Esso petroleum Co. Ltd vs. South Port Corp (1956) AC 218***

- ❖ It is trite that the object of pleadings is to bring the parties to a clean issue and delimit the same so that both parties know beforehand the real issue for determination at the trial In *Kahwa & Anor vs. UTC [1978] HCB 318*; See *Motorcar (U) LTD V AG HCT-00-CC-CS No. 0638/05*
- ❖ Ascertainment with precision matters in contest and matters admitted to arrive at clean issues for determination by court. *H.J Stanley & sons Ltd vs Akberali Salah [1963] EA 574-*
- ❖ Rules of pleadings have been evolved in general interest so that all parties may know the allegations they have to meet and that issues may be framed and justice done without due delay *see Kebirungi Justine vs. M/s Road Trainers Ltd HCMA No. 285/2003* [Note decision of the High Court rejecting a plaint for want of disclosure of a cause of action was over ruled by the Court of Appeal but principle is still good law]
- ❖ **Cardinal rule and Justifications for Exchange pleadings:**
- ❖ **Exchange of Pleadings:** Pleadings must be exchanged in accordance with the CPR, (O.5 and O.8 r.18 CPR) the purpose being comparison of parties to clearly show immaterial facts and insisting that the opponent expressly admits or denies material facts alleged against him. The law requires each party to state his own case and answers before the hearing and this is what constitutes pleadings.
- ❖ The cardinal rule in pleadings is that the allegations must be material and thus only a summarized statement of material facts on which the party pleading relies for his

claim or defence as the case may be, but not evidence by which those parts are to be proved.

- **Kasule Vs Makere University {1975} HCB 376:** The plaintiff was assaulted by the MUK askaris and in a suit against the university he was awarded exemplary damages yet he had not prayed for it in the pleadings. **Held: Per curium:**The system of pleadings is designed not only to define with clarity and precision the issues on questions which were in dispute between the parties but also to fulfil some of the fundamental principles of natural justice. The aim that each party should have a fair and due notice of what case he has to make, that each party should have a reasonable opportunity of answering the claim or defence of his opponent and that each party should have a reasonable opportunity of preparing and presenting his case on the basis of issues disclosed in the pleadings and no others. Exemplary damages, not pleaded were wrongly awarded.
- The essence of pleadings is to give a fair notice of the case which has to be met so that the opposing party may direct his evidence to the issues disclosed by them **Nile Breweries Ltd vs Bruno Ozinga T/A Nebbi Boss stores HCT 00-CC-CS – 580 / 2006**
- That the purpose of pleadings was to allow the parties an opportunity to prepare their case adequately. **Mbarara Coffee Curing Vs Grind lays Bank Ug. Ltd [1975] HCB 57****Held:****Painetto Mubiru Vs UCB (1971) HCB 144:** **Held:** That the purpose of pleadings is to let the other party know the outcome of the adversary's case to prepare a defence. Each of the alternate pleadings must show this. **See Order 6 r(2)**

- It is trite that the object of pleadings is to bring the parties to clear issues and delimit the same so that both parties know before hand the real issues for determination at the trial *See Motorcar (U) LTD V AG HCT-00-CC-CS No. 0638/05* ; See also; *Kahwa & Anor vs. UTC [1978] HCB 318*

❖ Exchange of Pleadings and Closure of Pleadings

- ❖ The plaintiff begins by presenting his claim and the defendant may put in his written statement of defence, which besides answering the allegations of the plaintiff may set up a counter-claim or set off. *See O.4 r.1 and O.9 r.1 CPR*
- ❖ The Plaintiff may reply within 15 days from the date of service of the written statement of defence and thereafter, usually no further pleadings are made save with leave of court but there may be some more joiners, some rebuttals e.t.c. *See O.8 r.18 (1) and (2)CPR on closure of pleadings; See also notes on amendment of pleadings;*

❖ Nature of pleadings:

- ❖ Each of the pleadings must in turn either admit or deny the facts alleged in the last preceding pleadings though it may allege additional facts and admitted issues are extracted.

❖ General Requisites for Pleadings:

❖ Drafting of pleadings

- ❖ Pleadings should be drafted properly to contain all the material particulars relating to the claim but not evidence or submissions otherwise incompetently drafted pleadings may be struck out; *Re Christine Namatovu Tebajjukira (1992-93) HCB 85* it is now trite that the pleadings must only substantially comply in form with the rules and relevant practice directions;
- ❖ *Mohammad B. Kasasa vs. Jaspha Buyonga Sirasi Bwogi CACA No. 42/2009C. Kitumba; JA*; negligently drafting a plaint or incompetence in doing so is not an excuse for a client to escape being bound by his counsel's action.
- ❖ See also *Tororo Cement Co. Ltd V Frokina International Ltd SCCA No.2 of 2001Tsekooko JSC*; that Article 126 (2) (e) was not intended to encourage sloppy drafting of pleadings.
- ❖ *See also Take me Home Vs Apollo Construction* on the consequences of inadequate, sloppy and incompetent drafting of pleadings.
- ❖ **Language of Pleadings**
- ❖ Generally pleadings must be written in the English language because it is the official language; *Article 6 of the Constitution. Agago Lanoro Vs Gollam Hussein*. The Plaintiff filed a suit by his advocate. The unrepresented defendant filed a defence in a suit with a document, which was not translated, and counsel was ignorant of the language. **Held:** It was held that English was the official language of the court as per the Constitution and the magistrate ought to have ordered for the translation of the document before accepting it in court. *Read also Kasaala Growers Co-operative Society V Kakooza Jonathan & Anor. SC Civil Application No. 19/2010 on the language of court and documents executed by illiterates.*

❖ Signing of Pleadings

- ❖ Pleadings must be signed either by counsel for the party or the party if such a party draws the pleadings; 0.6.r 26 CPR; Read also *Kasaala Growers Co-operative Society V Kakooza Jonathan & Anor. SC Civil Application No. 19/2010 on the language of court and pleadings executed by illiterates.*
- ❖ In the case of **Uganda Law Society and Another v Attorney General Constitutional Petition No. 8 of 2000**, the respondent, raised a preliminary objection on ground that the first petitioner did not sign its petition as required by rule 3 (5) (b) of Legal No. 4 of 1996, that being a corporate body, cannot personally sign its petition. It has to be signed by somebody, i.e., its President or Secretary for and on its behalf. yet, in the instant case, the petition was signed by an individual as the first petitioner not for and on behalf of the corporate body. Court held that Order 6 r 25 of the CPR however, requires that "every pleading shall be signed by an advocate or by the party if he sues or defends in person." That the first petitioner's petition was signed by an individual as the petitioner. That failure to state who signed the first petitioner's petition and the capacity in which he/she signed it is a matter of technicality which is not fatal in view of article 126 (2) (e) of the Constitution. This article enjoins courts to administer substantive justice without undue regards to technicality.
- ❖ *Mugabi vs. AG [1991] HCB 66*; Pleadings drawn by counsel but signed by the plaintiff; **Held**; The plaintiff signed as counsel for the plaintiff designedly to flout the advocates act which was unethical on his part, which this court can't condone.

❖ ***Habre International trading Co. (U) Ltd vs. KCC HCT 00-CV- CS 0763 /1994***

documents prepared or filed by an advocate who did not have a valid practicing certificate at the material time are invalid and of no legal effect on the principle that courts will not condone or perpetuate illegalities.

❖ ***Prof Syed Hug v I.U.I.U SCCA No. 47/1995***. Held, On the law and the authorities the position appears to be:

- (1) that an advocate is not entitled to practice without a valid practicing certificate;
- (2) that an advocate whose practicing certificate has expired may practice as an advocate in the months of January and February but that if he does so he will not recover costs through the courts for any work done during that period. The documents signed or filed by such an advocate in such a period are valid;
- (3) that an advocate who practices without a valid practising certificate after February in any year commits an offence and is liable to both criminal and disciplinary proceedings (see sections 14 & 18 of the Advocates Act). The documents prepared or filed by such an advocate whose practice is illegal, are invalid and of no legal effect on the principle that courts will not condone or perpetuate illegalities.

❖ Counsel signing the pleadings must have a right of audience before the court where the suit is filed. ***Shokatalali Hussein Halji Vs Magnatal Punshotan***: The applicant's case that Mr. Makumbya Musoke purported to represent the plaintiff in his capacity as an advocate before the High Court. Mr. Mukumbya had signed the plaint on behalf of the plaintiff before he satisfied the statutory period of 9 months after enrolment

before he could stand before the high court. Held: That Mr. Makumbya Musoke had no right of audience before the High Court when he lodged the plaint in the High Court. According to the rules, 12 of the Advocates [Enrolment and Certification] Rules he had no right of audience before High Court until after the expiration of the period of nine months after enrolment. The plaint was incompetent and struck out.

- ❖ ***Greenland Bank Ltd V H.K Enterprises Ltd & Others [1997-2000] UCLR 283;*** All documents and instruments drawn and filed by the advocates with respect to the suit, at a time when they had no practicing certificates were invalid and of no legal effect.
- ❖ ***The registered Trustees of the Khoja vs. UMSC CACA No. 27/2002;*** The name of the person signing the pleadings or who drew the pleadings must be indicated. The omission of putting the name of the firm that drew the document at the back does not amount to an irregularity which is incurable by amendment
- ❖ An unsigned pleading has no validity in law as it is the signature of the appropriate person on the pleading which authenticates the same and an unauthenticated document is not a pleading of anybody. It is a nullity. See ***Regina Kavenya Mutuka and Ors vs United Insurance Company Ltd [2002] KLR 250.***
- ❖ Whenever a Defence is filed it must be signed by the party or his / her advocate and Countersigned by the Registrar /Magistrate. There must be provision for the court's endorsement. i.e Registrar of Magistrate. See ***Kaur v City Auto Mart [1967] EA 107.***

- ❖ However *Section 14A (1) of The Advocates (Amendment) Act 2002 is to the effect that no pleading or other document made or action taken by the Advocate on behalf of any client shall be invalidated by any such event and that in the case of any proceedings, the case of the client shall not be dismissed by reason of any such event.*

- ❖ In the case of *Maji Real Estates (U) Limited & Anor v Aulogo Cooperatives Savings and Credit Society Limited, Adjumani (Miscellaneous Civil Application No. 0028 of 2017* Justice Mubiru stated as far as the question of signing pleadings is concerned, when dealing with advocates who are otherwise professionally qualified, who have been admitted to the practice of law and have not been struck off the Roll of Advocates or suspended by the Disciplinary Committee of The Law Council but have only delayed to take out the annual practicing certificates, the decisions of court are not uniform as to whether the defects are of substance or of procedure. For example in *Standard Chartered Bank v. Mechanical Engineering Plant Ltd & Others [2009] EA 404*, it was held that a practicing certificate cannot have retrospective effect and therefore the memorandum of appeal filed by an advocate without a practicing certificate at the time of signing it was incompetent as the advocate was unqualified. Similarly in *Delphis Bank Ltd v. Behal and others [2003] 2 EA 412*, it was held that it is public policy that courts should not aid in the perpetuation of illegalities. “Invalidating documents drawn by such advocates we come to the conclusion that will discourage excuses being given for justifying the illegality. A failure to invalidate the act by an unqualified advocate is likely to provide an incentive to repeat the illegal Act.” A similar holding is to be found in where Court held that the documents prepared or filed by an Advocate whose practice is illegal, are invalid and of no legal effect on the principle that Courts will not condone or perpetuate illegalities (see also *Kabogere Coffee Factory v. Haji Twalibu Kigongo, S. C. Civil Appeal No. 10 of 1993* and *The Returning Officer, Iganga District*

and another v. Haji Muluya Mustaphar, C. A. Civil Appeal No 13 of 1997). That on the other hand, in cases like that of *Attorney General and Hon. Nyombi Peter v. Uganda Law Society, Misc. Cause No. 321 of 2013*, it was held that though the advocate may be unqualified to practice, the legality of the pleadings signed and filed by such an advocate while so disqualified is not affected because of the provisions of section 14A of *The Advocates (Amendment) Act, 2002*. Before this, it had been decided in *Prof Syed Huq v. the Islamic University of Uganda, Civil Appeal No. 47 of 1995*, that deeming such pleadings or documents to be illegal would amount to a denial of justice to an innocent litigant who innocently engaged the services of such an advocate. According to Tsekooko JSC, “the intention of the legislature appears to be aimed at punishing the errant advocate by denying him remuneration or having him prosecuted. I find nothing in the Provisions I have referred to which penalize an innocent litigant. That is why the Court would deny audience to an Advocate without a practicing certificate but should allow a litigant the opportunity to conduct his case or engage another Advocate.” That section 14A (1) of *The Advocates (Amendment) Act 2002* is to the effect that no pleading or other document made or action taken by the Advocate on behalf of any client shall be invalidated by any such event and that in the case of any proceedings, the case of the client shall not be dismissed by reason of any such event. That non-compliance with any procedural requirement relating to a pleading or application for relief should not entail automatic nullification or rejection, unless the relevant statute or rule so mandates. Procedural defects and irregularities which are curable should not be allowed to defeat substantive rights or to cause injustice. Rules of procedure, as handmaidens to justice, should never be made a tool to deny justice or perpetuate injustice, by any oppressive or punitive use. That the law saving documents filed by un-licensed advocates does not necessarily extend to those filed by persons who are not qualified at all to practice law.

❖ Pleadings and Material Facts

- ❖ The Cardinal rule in pleadings is that the allegation must be material and certain like offer, acceptance, breach etc. On materiality O6 r 1 CPR provides that pleadings must contain a brief statement of material facts on which the party relies for a claim or defence as the case may be. The elements are that;
 - i) every pleading must state material facts only;
 - ii) Every pleading must state all material facts
 - iii) Every pleading must state the material facts, but not the evidence to prove those facts
 - iv) Every pleading must state the material facts and not law; and
 - v) Every pleading must state the material facts in a summary form.
- ❖ Material means those facts necessary for the purpose of formulating a cause of action and if any material fact is missing the proceedings will be bad. Materiality depends on the circumstances of a material case.
- ❖ All the primary facts which must be proved at the trial by a party to establish the existence of a cause of action or his defense are material facts.
- ❖ Every pleading must contain only a statement of concise form of the material facts in a given format. O.6 r 1 CPR. They must allege with continuity proof of allegation. Pleadings should not be by way of avoidance through partial acceptance. The function of particulars is to carry into operation the overriding principle that the litigation between the parties and the trial should be conducted fairly and openly without surprise. ***Read Bisuti V Busoga District Admin [1971] 1 ULR 179***

❖ Pleading to contain a Prima Facie Case: A pleading must contain a prima facie case not based on anticipation of defences. *Yafeesi Katimbo Vs Grind lays Bank [supra]* **Held:** That it was well settled that so long as the statement of claim on the particulars disclosed some cause of action or raised some question of fact to be decided by a judge or jury the mere fact that the case was meant and not likely to succeed was no ground for striking it out. The action was based on the fact that civil ingredients were not pleaded thus there was no prima facie case.

❖ A pleading must state facts which in the party's opinion give him a right or imposes on a defendant a duty and it remains to the judge to consider whether on the facts proved, such rights and duties exist.

❖ Material facts are facts necessary for the founding of an action. **Sempebwa Vs Attorney General: Held:** That materiality depends on the circumstances of each case. They are facts, which must be proved for the plaintiff to succeed in his action.

❖ **Certainty of Material facts:**

❖ The object of pleadings is to ascertain definitely the question between parties and this object can only be made achieved when each of the parties states his case with precision.

- ❖ The facts pleaded must be pleaded with precision and certainty and must not be left to be inferred from vague or ambiguous expression or from statements of circumstances consistent with a different conclusion.
- ❖ **Tran slink (U) Ltd vs. Sojitra Cargo services Ltd & ors HCT -00-CC-CS No. 0561 /2006.** Held; the system of pleadings is necessary in litigation. It operates to define and deliver with clarity and precision the real matters in controversy between the parties upon which they can prepare and present the respective cases and upon which the court will be called upon to adjudicate between them. *Inter freight forwarders (U) LTD vs. EADB [1994-94] HCB 54.*
- ❖ **NB:** If one cannot be exact, be broad, as the greater includes the lesser thus each party is allowed to prove as much of the allegations as to make out a case. *Phillips Vs Phillips and Others (1878) 4 QB 127: Cotton L.J.* That it is necessary for the plaintiff to say that he claims as heir of so and so being a descendant of one his ancestors in the ascending line. What particulars must be stated depends on the facts of each case but it is absolutely essential that the pleading not to be embarrassing to the defendant in the sense that it doesn't indicate the case which they have to meet when the case comes up for trial.
- ❖ If material details are omitted, particulars of the facts relied on may be requested or ordered-O.6 r 4 CPR.
- ❖ **Relevancy and nature of particulars;**
- ❖ Material particulars in an action founded on contract.**Yafeesi Katimbo Vs Grindlays Bank International (1973) HCB**the Plaintiff sued the Defendant for specific

performance and in its WSD; the defendant raised a preliminary objection that the plaint disclosed no cause of action since no consideration had been pleaded. *Whether Consideration, Offer and Acceptance in plaint had to be averred: Held:* That what particulars had to be stated in the plaint depended on the facts of the case. Cause of action has been compendiously defined to mean every fact, which would be necessary for the plaintiff to prove his case in order to support his right to the judgment of court and it did not comprise every piece of evidence which was necessary to prove each fact but every fact which was necessary to be proved. That since the action was based on contract; consideration was a material fact and had to be pleaded except in negotiable instruments when it is proved. There was thus nothing in the pleadings to show that there was a binding contract. None of the annextures showed that the offer had been accepted. Acceptance was of the essence and had to be pleaded. The plaint did not disclose a cause of action and would be struck out under O7 r 11 CPR.

❖ **Items to accompany pleading.**

- ❖ Every pleading to be accompanied by summary of evidence, list of witnesses, list of documents and list of authorities-O.6 r 2 CPR. This rule has been interpreted as forming part of the pleadings. See *Rtd Col Kizza Besigye vs Yoweri Kaguta Museveni and Electoral Commission, Supreme Court Presidential Election No. 1 of 2006 (Justice Tsekooko)*.
- ❖ A plaint must be accompanied by a summary of evidence, list of documents and witness as per O. 6 r2; *see implications of non compliance*
- ❖ The issue is whether this requirement is mandatory. *See Sule Pharmacy Limited V The Registered Trustees of the Khoja Shia Itana Shari Jamat HCMA No. 147 of 1999.*

❖ *In the case of Eastern & Southern African Trade & Anor vs. Hassan Basajjabalaba & Anor HCT 00-CC- CS 512/2006* –Justice Yorokamu Bamwine held that one of the intention of amending O.6 CPR was to avoid surprises or ambushes in matters of this nature, that, the case of *Sule Pharmacy Limited V The Registered Trustees of the Khoja Shia Itana Shari Jamat HCMA No. 147 of 1999* covered this kind of situation. Applying the ratio decidendi in that case to the facts herein, and given the constitution of Uganda mandates to administer justice without undue regard to technicalities, he was inclined to overlook the omission in the greater interest of justice and in accordance with Article 126 (2)(e) of the Constitution.

❖ **Particulars to be specifically pleaded in some Cases:**

- In all cases in which the party pleading relies on any misrepresentation, fraud, breach of trust, wilful default or undue influence, and in all other cases in which particulars may be necessary such particulars with dates shall be stated in the pleadings-O.6 r 3 CPR.
- In the case of **Tororo Cement Co. Ltd v Frokina SCCivil Appeal No. 2 of 2001** Court held that whereas the plaint disclosed a cause of action, because of the alleged negligence, the defendant is entitled to know the particulars of negligence complained of in order to enable it to prepare its defence properly. In that regard ground one ought to fail but I would allow ground two in part. It is the common practice in cases of negligence for a party, or his advocate, who intends to rely on negligence to plead particulars of negligence either within a paragraph of the pleadings or in more than one paragraph. Reliance on the three tests in the Motokov case must be taken with care.

- In the case of Fredrick J.K. Zaabwe vs. Orient Bank Ltd and 5 others Supreme Court Civil Appeal No. 4 of 2006. In the lead judgment of Katureebe JSC had this to say at P14 of his judgment. “In my view, an allegation of fraud needs to be fully and carefully inquired into. Fraud is a serious matter, particularly where it is alleged that a person lost his property as a result of fraud committed upon him by others. In this case it was necessary to ask the following questions; was any fraud committed upon the appellant? Who committed the fraud, if at all? Were the respondents singly or collectively involved in the fraud, or did they become aware of the fraud? I find the definition of fraud in *BLACK’S LAW DICTIONARY 6TH Edition* page 660, very illustrative.
- The functions of particulars are:
 - i) To inform the other side the nature of the case they have to meet
 - ii) To prevent the other side from being taken by surprise
 - iii) To enable the other side to know what evidence they ought to be preparing and to prepare for trial
 - iv) To limit the generality of pleas or of the claim or the evidence
 - v) To limit and define issues to be tried and to which discovery is required
 - vi) To tie hands of the party so that he cannot, without leave go into any matters not included in the pleadings. *See Bisuti v Busoga DA [1971] 1 ULR 179.*
- *Read Hermesdas Mulindwa & Anor V Stanbic Bank (U) Ltd HCT-00-CC-CS-0426-2004 for the proposition that where a party relies on fraud, the particulars thereof must be given; Read Acar V Acar Aliro [1982] HCB 60*

- *Nile Breweries Ltd V Bruno Onzunga T/A Nebbi Boss Stores HCT-00-CC-CS-0580-2006*; for the proposition that order 6.r.3 is mandatory in so far as it requires particulars to be pleaded;
- *J.L Okello Okello vs. UNEB SCCA No. 12/81 [1993] 11 KALR 133 SC*; In every suit where a party relies on misrepresentation, fraud, breach of trust etc and in cases in which particulars must be stated. The rule is mandatory and non compliance renders the suit liable to be struck out **Buckley L.J. and Grant Vs Hobbs**: It is for reasons of practice and justice and convenience to require the party to tell his opponent what he is coming to court to prove otherwise he may not be allowed to rely on it.
- ❖ Particulars must be put under a definite heading. *Okello Okello Vs UNEBSCCA No.12 of 1987* It was held that O.6 r 3 is mandatory; dates must be given and must always be under a definite heading titled particulars of fraud. That it is not enough for a plaintiff in his statement of claim to allege merely that the defendant acted negligently or fraudulently and thereby caused him damage. Particulars must be given in the plaint showing precisely in what respect the defendant was negligent. *But See Tororo Cement Ltd V Frokina International Ltd SCCA No.2 of 2002/LLB Box*
- ❖ *Mbarara Coffee Curing Vs Grindlays Bank (U) Ltd (1975) HCB 57* This constituted to transfer of money on the plaintiff's account without authority to the other firm or persons. The Defendant raised two defences, one being a denial of negligence and then the fact that the action was time barred by the Limitation Act. The plaintiff in the course of the trial sought to rely on fraud as a ground before extension of time, which he never pleaded. *Held*: That fraud was a ground for a party to rely upon to extend the time of the limitation in the Limitation Act. *Where a party wished to rely on the*

fact that the defendant had by fraud concealed the information-giving rise to the cause of action, the ground must be made part of the pleadings and the particulars must be given;

- ❖ The plaintiff must first plead the particulars of negligence on which he relies which will be binding on him, before he can shift the onus of disproving negligence on to the defendant. ***Mukasa v Singh & ors 1969 EA 442; Compare; Kebirungi Justine vs M/s Road Trainers Ltd HCMA No. 285/2003***
- ❖ It is necessary to specifically state the particulars of negligence. ***See Tororo Cement Co. Ltd V Frokina International Ltd SCCA No.2 of 2001*** for the proposition that it is common practice in cases of negligence for a party or his advocate who intends to rely on negligence to plead particulars of negligence in either within a paragraph or in more than one paragraph.
- ❖ ***Patel Vs Fleet Transport Co. Held:*** An incorrect description of a particular fact should not be fatal when the particulars of the claim have been given with reasonable precision.
- ❖ **Documents to be annexed to the Pleadings**
- ❖ A party intending to rely on a document as the foundation of the cause of action is required to annex the document to the plaint, if in his possession, or power and any other document should be included in the list of documents; ***See Order 7 r. 14 and Order 6 r.2 of the CPR; UNICOF Ltd vs Interfreight forward Ltd HCCS No 912/1996.*** Where a plaintiff sues upon a document be produced in court when the plaint is presented and a copy filed with the plaint.

❖ The object of O.7 r.14 is to provide against documents being set up after institution of the suit. But where at the institution of the suit the existence of a document is not doubt, the court should as a general rule admit the document in evidence though it was not produced with the plaint or entered in the list of documents annexed to the plaint ***Lukyamuzi v House of Tenant Agencies;(1983) HCB 75*** That the object of O.7 r 13 (Now 14) is to provide the against false documents being set up after institution of the suit.

❖ Annexing a document to a pleading has the effect of incorporating the contents of the document in the pleadings; ***Non- Performing Assets Recovery Trust V Kapeeka Coffee Works Ltd SCCA No. 8 of 2001***

❖ Parties are bound by their pleadings and must lead evidence consistent with their pleadings; O.6 r. 7: No pleading shall not being a petition or application except by way of amendment raise any new ground or claim or contain any allegation of fact inconsistent with the previous pleadings of the party pleading the same.

- ***Talikuta V Nakendo (1979) HCB 275 Held:*** It is a statutory rule of pleadings that a party is bound by his pleadings. But if particulars are given in wider detail and what is proved varies from them in ways that are material, it remains the duty of court to see that justice is done.
- ***Byabazaire Grace vs Mukwano Industries HCMA No. 909 /2002;***A plaintiff is bound by his /her pleadings and must establish the 1st essential element of a cause of action Viz , a defined right enjoyed by the plaintiff . Where a plaint does not disclose a cause of action, it must be rejected and the requirement is mandatory.

- ***Aisha Nantume vs Emmanuel Lukyamizi HC Appeal No. 011 /2002;*** It is a well known principle that a party to a suit is bound by his or her pleadings
- ***Interfrieght forwarders (U) Ltd VEADB SCCA No. 13/93;*** A party is expected and is bound to prove the case as alleged by him and as covered in the issues framed. He will not be allowed to succeed on a case not set up by him and be allowed at the trial to change his case or set up a case inconsistent with what is alleged in his pleadings except by way of amendment of pleadings .
- ***H.J. Stanley and Sons Vs Alibhai: Held;*** Allegation that the hearing must not be inconsistent with the pleadings.
- ***Talikuta Vs Nakendo:*** That it is a statutory rule of pleadings that a party is bound by his pleadings.
- ***Opik Opoka Vs Muno Newspaper:*** At the hearing the defendant raised by the objection not pleaded in the defence. Court found that since new facts were raised by the objections, which were not pleaded, and accordingly inconsistent in the pleadings put in general and the objections were disallowed.
- ***Daily VS John:Held:*** That O.6 r 7 prohibits any party from raising in any pleadings on ground of claim which is new or inconsistent with his previous pleadings. That a remedy on the breach of O.6 r 7 is an application to strike out the offending pleading either before or at the hearing and that if a party commits to take that course and contents the writs of the pleadings as they stand. It may subsequently be contended that the court ought not to have determined an issue which was open for decision of the pleading as they stood although it would not have been so open had the pleadings been attacked at the proper time.

❖ **THE PLAINT;**

- ❖ **S. 19, CPA:** All suits shall be commenced in the manner prescribed in the Civil Procedure Rules, O.4 r 1. Every suit shall be instituted by presenting a plaint. *[Compare other modes of commencing a suit under the rules; see discussion on commencement of a suit]*

- ❖ **Particulars in the Plaint:**

- O.7 r1 provides for particulars in the plaint.
- The name and jurisdiction of the court. ***Mutongole Vs Nytil.*** (1971) HCB 114; Counsel for the defendant contended that the plaint did not show any averment as to jurisdiction of court. **Held:** That statement like, ‘*this court has jurisdiction over men*’, surpluses that do not bestow jurisdiction upon land and it had no magical qualities as long as the facts disclosed that a cause of action arose within the jurisdiction. That each pleading should be carefully drafted and treated individually and the advocates owned this much to the clients and court. That particular case should be taken in drafting the pleadings; *all the ‘is’ and must be crossed as pleadings are the foundation of the court case.* Once the facts showing that the court had jurisdiction had been pleaded it was not necessary to state that court had jurisdiction.

- ❖ ***CAT Bisuti vs. Busoga District Admin.*** (1971) ULR129: Under 0.7r.I (f), the plaintiff had the obligation of pleading facts showing that the court had jurisdiction and a mere assertion that the court had jurisdiction was not enough the facts showing that the court had jurisdiction had been stated in the amended plaint.

- ❖ Name, description and place work or residence of defendant so found as can be ascertained. (*See discussion on jurisdiction*)
- ❖ Name, description and place of plaintiff and address of service
- ❖ Where a plaintiff or defendant is a minor or a person of unsound mind, a statement that effect. [*See discussion on Capacity of parties*]

❖ **Plaint to Contain Facts Disclosing a Cause of Action:**

- O.7r1 (e), it is mandatory that a plaint contains the facts constituting the cause of action and when it arose. O.7 r 11 (a) provides that a plaint shall be rejected where it does not disclose a cause of action. A plaint without a cause of action is nothing as there is no basis or locus for such a party to be in court in the first place.
- Cause of action has been defined as meaning simply a factual situation, the existence of which entitles one person to obtain from the court a remedy against another person. The phrase includes every fact which is material to be proved to entitle a clamant to succeed and every fact which the defendant would have a right to traverse. *Halbury's laws of England 4th edition (re-issue) Vol 37 P.24 –.*
- ***In Auto Garage vs. Motokov (1971) EA. 314*** there are three essentials to support or sustain a cause of action;
 - i) That the plaintiff enjoyed a right.
 - ii) That the right has been violated
 - iii) The defendant is liable for the said violation.

If any of these essentials is missing, the plaint is a nullity and ought to be struck off. *See Priamit Enterprises Limited vs. A.G SCCA No. 1/2001.*

See Motorcar (U) LTD V AG HCT-00-CC-CS No. 0638/05;

- In the case of **Tororo Cement Co. Ltd v Frokina SC**Civil Appeal No. 2 of 2001 Court held that Order 7, rule 7(a) of the Civil Procedure Rules provides that the plaint shall be rejected - "(a) where it does not disclose a cause of action." That a cause of action means every fact which is material to be proved to enable the plaintiff to succeed or every fact which, if denied, the plaintiff must prove in order to obtain judgment. *See - Cooke -vs- Gull LR.8E.P. page 116 and Read -vs- Brown, 22 QBD p.31. That it is now well established in our jurisdiction that a plaint has disclosed a cause of action even though it omits some fact which the rules require it to contain and which must be pleaded before the plaintiff can succeed in the suit. What is important in considering whether a cause of action is revealed by the pleadings are the questions whether a right exists and whether it has been violated. Cotter -vs- Attorney General (1938) 5 EACA 18. That the guide-lines were stated by the Court of Appeal for East Africa in Auto Garage -vs- Motokov (No. 3) (1971) EA. 514. There* are:
(i) the plaint must show that the plaintiff enjoyed a right;(ii) that right has been violated; and(iii) that the defendant is liable. That if all three elements are present than a cause of action is disclosed and any defect or omission can be put right by amendment. That where a plaint discloses a cause of action but is deficient in particulars, the alternative is to ask for further and better particulars under 0.6 Rule 3. Or indeed, the plaintiff could have sought leave to amend the plaint so as to include particulars, say of negligence.

- ❖ ***In AG V Major General David Tinyefuza Constitutional Appeal No. 1 of 1997*** adopting the definition in Mulla on Code of Civil procedure, Volume 1, 14th Edition at page 206, Wambuzi CJ sated *the proposition that a cause of action is every fact or bundle of facts plainly appearing on the face of the plaint / petition that the plaintiff /petitioner must prove, if traversed, to be entitled to judgment against the defendant/ respondent.*

- ❖ To determine whether or not a plaint discloses a cause of action, the court must look only at the plaint and its annexure if any, and nowhere else. In the case of **Al Hajj N Sebaggala vs. A.G & Ors Const. Petion No. 1/1999** the constitutional court defined a cause of action as follows;

“A cause of action means every fact, which if traversed, would be necessary for the plaintiff to prove in order to support his right to a judgment of court. It must include some act done by the defendant and, it is not limited to the actual infringement of the right sued but includes all material facts on which it is founded. It does not comprise evidence necessary to prove the facts but every fact necessary for the plaintiff to prove to enable him to obtain a decree and everything that if proved would give the defendant a right to an immediate judgment must be part of the cause of action. It has no relation to the defense, which may be set up by the defendant, nor does it depend upon the character, of the relief prayed for by the plaintiff. The cause of action must be antecedent to the institution of the suit.”

- ❖ In the case of ***Micro Finance support centre ltd versus Uganda Micro Entrepreneurs Association Ltd HCT -00-CC-CS-1007-2004***, Justice Bamwine stated: Halsbury’s Laws of England, Vol.1 at P.6 defines a “**cause of action**” as “that particular act on the part of the defendant which gives the plaintiff his cause of complaint.” it is, so to say the fact or combination of facts which gives a person the right to judicial redress or relief against another. The rationale is that where

there is a right recognized by law, there also exists a corresponding remedy for its violation. Thus 0.6 r1 of the Civil Procedure Rules requires all pleadings generally to contain a brief statement of the material facts on which the party pleading relies for claim or defence. And under 0.7r1 (e), it is mandatory that a plaint contains the facts constituting the cause of action and when it arose.

❖ In the case of ***GW Wanendeya v Stanbic Bank Ltd - (HCT-00-CC-CS-0486-2005)***

Court held that there was no merit on the claim that this suit discloses no cause of action. That the plaint clearly sets out the rights of the plaintiff that were violated by the defendant, and that the plaintiff suffered loss as a result thereof for which relief is sought from the court. That the cause of action was a continuing cause of action with regard to the continued detention of the plaintiff's certificate of title and the maintenance of a caveat on the said title. This suit in that regard is not time barred.

❖ *In an action in Slander or libel, the plaintiff must set out all the words complained of in the plaint;*

❖ ***Erumiya Ebyatu Vs Gusbarita: [1985] HCB 63*** The Applicant sued the respondent for slander before a magistrate's court. The Pleadings stated that the respondent was a wizard who used to bewitch people, the actual words used by the applicant in the pleadings. **Held:** That in an action for slander, the precise words used must be set out in the plaint or statement of claim. The plaintiff must rely on the words set out in the plaint and not any other expression. In this case there was no allegation in the plaint that the applicant had said that the respondent had bewitched his deceased father, thus there were inconsistencies as between the pleadings and evidence in court. Further held; in an action for slander the names of persons to whom the words were uttered must be set out in the plaint otherwise

court will be reluctant to consider any publication to a person not named in the pleadings.

- ❖ *Samuel N. Nkaluba v Rev Daudi Kibirigi (1992) 2 ULR 49*, as regard libel, in all suits for libel, the actual words, complained of should be set out in the plaint.
- ❖ Where the cause of action is founded on a Statute; it is a requirement that the statute be pleaded; *Ali Mustafa Vs Sango Bus Co.:* The plaintiff sued the defendant for damages arising from the death of his brother allegedly knocked dead. Counsel for the defendant objected on ground that the plaint disclosed no cause of action as no statute was referred to [the **Law Reform Miscellaneous Provisions Act**]. As a statutory claim the relevant statute is a material fact. **Held:** That O7 r 11(a) requires a plaint to be rejected where it did not disclose a cause of action. Fatal accident claims could only be brought or based upon the Law Reform (Miscellaneous Provisions) Act and if the act was not pleaded, the plaint disclosed no cause of action.
- ❖ Where the plaintiff relies on particular documents for his cause of action, the statement of claim must allege the nature of deeds and documents upon which he relies in deciding his title; *Phillips Vs Phillips and Others (1878) 4 QB 127:* In an action for recovery of land on which the plaintiff has never been in possession, the statement of claim must allege the nature of deeds and documents upon which he relies in deciding his title and a general statement that by a party which documents and crown grants in the possession of the defendants without further describing them that the plaintiff is entitled to the land is embarrassing and liable to be struck out in accordance with the rules.

- ❖ Even if a party may seem to have a cause of action, this does not mean that he or she will automatically win the case. There are other factors which must be considered but establishing a cause of action is the first step in going to court.

- ❖ Facts constituting a cause of action and when it arose. ***Daniel Sempa Mbabali Vs. W.K. Kizza and 4 Others (1985) HCB 46;*** the plaintiff sued the Defendants for repossession of his land. In a WSD the 1st Defendant stated that the plaintiff had not shown a clear cause of action in the plaint and therefore the plaint was bad in law. **Held:** That if a plaint shows that the plaintiff enjoyed a right, that right has been violated and that the defendant is liable, then a cause of action has been disclosed. The Plaintiff alleged that the plaintiff was entitled to the land in dispute and the defendants had improperly registered it in their names. This was sufficient to show that he had a right in the property that had been violated by the defendants and thus established a cause of action and hence the plaint was not bad in law.

- ❖ That if a plaint shows that the plaintiff enjoyed a right that has been violated and that the defendant is liable then a cause of action has been disclosed. ***Auto Garage and Others Vs Motokov [1971 EA 514***

- ❖ If plaint shows that the plaintiff enjoyed a right and the right has been violated the defendant and the defendant is thus liable, a cause of action will have been shown. Otherwise if any of these essentials are missing; there is no cause of action. ***Lake***

Motors Vs Overseas Motor Transport cited Kebirungi Justine v Road Tainers Ltd & Ors [2008] HCB 72 CA

- ❖ Where a plaint discloses a cause of action but is deficient in particulars, the plaint can be amended so as to include the particulars e.g. negligence. *Tororo cement Co. ltd v Frokina International Ltd SCCA No. 2/2001.*
- ❖ A cause of action means every fact which if traversed, would be necessary for the plaintiff to prove in order to support his right to a judgment of the court. It is a bundle of facts which taken together with the law applicable to them gives the plaintiff a right to relief against the defendant. *Alhajji Nasser Ntege Ssebaggala vs. the E.C and KCC Constitutional Petition No. 1/99*
- ❖ In deciding whether a suit discloses a cause of action, one looks ordinarily only at the plaint assuming that the facts alleged therein are true. *Serapio Rukundo V AG Constitutional Case No. 3/92.*
- ❖ A cause of action means every fact, which if traversed would be necessary for the plaintiff to prove in order to support his right to a judgment in court and is said to be disclosed if three essential elements are pleaded and these include the existence of the plaintiff's rights, the violation of the right and the defendant's liability for that violation. *Baku Raphael & Anor vs. AG constitutional app. No 1/2003.*

- ❖ A suit does not disclose a cause of action if it does not show which civil right the plaintiff is entitled to that was breached by the defendant. The plaint should set out the rights of the plaintiff that were violated by the defendant and the plaintiff suffered loss as a result thereof which relief is sought from this court. ***GW Wenendeya vs. stanbic Ltd HCT-00-CC-CS-0486 – 2005***;
- ❖ The position of the law is that the cause of action remains alive until the prescribed time for filing such action has lapsed ***Idah Lteruha vs Ismail Muguta CACA No. 22/2002***
- ❖ A cause of action has been considered in the case of ***Daniel Sempa Mbabali vs W.K Kidza and 4 others (1985) HCB 46*** the court stated: if the plaint shows that the plaintiff enjoyed a right, that right has been violated and that the Defendant is liable then a cause of action has been disclosed.
- ❖ ***In the case of Micro Finance Support Centre Ltd versus Uganda Micro Entrepreneurs Association Ltd HCT -00-CC-CS-1007-2004, justice Bamwine Said: Halsbury's Laws of England, Vol.1 at P.6*** defines a “cause of action” as “that particular act on the part of the defendant which gives the plaintiff his cause of complaint.” it is, so to say the fact or combination of facts which give s a person the right to judicial redress or relief against another. The relational is that where there is a right recognized by law, there also exists a corresponding remedy for its violation. Thus 0.6 r1 of the Civil Procedure Rules requires all pleadings generally to contain a brief statement of the material facts on which he party pleading relies for claim or defence. And under 0.7r1 (e), it is mandatory that a

plaint contains the facts constituting the cause of action and when it arose. The consequences of a plaint which discloses no cause of action are grave: it must be rejected by the court. It is as serious as that. Therefore, before rejecting a plaint for non- disclosure of a cause of action, the court must be duly satisfied that the case as presented to it is un maintainable and unarguable. Court held that it is settled law that where a plaint fails to disclose a cause of action, then it is not a plaint at all. It is considered a nullity which cannot even be amended. It was so held in Auto Garage &Anor –Vs- Motokov (No. 3) [1971] EA 514 . The element of a right enjoyed by the plaintiff is lacking in this case in its current form. And if any of the elements of a cause of action, such as a right enjoyed by the plaintiff which has been violated, is lacking, the plaint is a nullity, and no amount of talking can save it, even if a decision were to be post poned on it to a later date.

- ❖ The question whether a plaint discloses a cause of action must be determined upon perusal of the plaint alone, together with anything attached so as to form part of it, and upon the assumption that any express or implied allegations of fact in it are true. *Sheriff & Co. – vs – Chotai Fancy Stores [1960] EA 374,;Kebirungi Justine v Road Tainers Ltd & Ors [2008] HCB 72 CA*
- ❖ There are three essential elements to support a cause of action in a plaint Viz; a plaintiff enjoyed, the right has been violated and the defendant is liable.
- ❖ It is settled law that the question whether or not a plaint discloses a cause of action must be determined upon perusal of the plaint alone, together with anything

attached as to form part of it.; *Jeraj Shariff & Co. Vs Chotai Fancy Stores [1960] EA at 375* *Mikidadi Kawesa-V-A-G (1973) 1 ULR 1221 ;(1973) HCB 115*

❖ **Hamis Vs National Bank of India:** That in deciding whether the plaint disclosed a cause of action or nor the court had to confine itself to the plaint assuming that what was alleged therein was true.

❖ Annexing a document to a pleading has the effect of incorporating the contents of the document in the pleadings; *Non- Performing Assets Recovery Trust V Kapeeka Coffee Works Ltd SCCA No. 8 of 2001*

❖ Where a plaint discloses a cause of action founded on an illegality, such is un maintainable and should be struck out. *John Buteraba vs Edrisa Serwanga HCC No. 222/2008-*

❖ In a cause of action founded on vicarious liability, it must be alleged that the tort feasors were servants of the defendant in the course of their employment; *Bamwayire Vs Attorney General (1973) HCB 87* This was an application by the defendant to have the suit rejected on ground that in filing to allege that the servants who arrested the plaintiff were acting as servants of the defendant in an action for false imprisonment. **Held:** That the court had to look only at the plant in deciding whether it disclosed the cause of action against the defendant was not under any obligation to ask for further and better particulars. The Plaintiff did not disclose any cause of action as it did not allege the person who arrested the Plaintiff were servants

of the defendant and that the said servants were acting in the course of their employment.

❖ ***Clementina Nayndori V E.A Railways:*** The defendant in his WSD contended that the plaintiff did not disclose a cause of action. The plaintiff alleged the mischief of the defendant's servants but did not disclose that the servants were in the course of their employment. Held: That in failing to show that the defendant's servants were acting in the scope of authority the plaintiff failed to disclose the cause of action.

❖ ***Mubiru Vs Byensiba:*** A plaintiff will be struck out if it omits to show that the defendant was working in the course of his employment. ***Wycliff Kigundu V AG [1993] V KALR 80 SC*** Read also ; ***Bamwayire-V-A-G.(1973) HCB 87***

❖ However, the above position should be contrasted with the decision in ***Brigadier Smith Opon Acake V AG [1997] 111 KALR 69***, that it is sufficient if the plaintiff indicates that they were servants of the defendants.

- **Relief, which the Plaintiff Claims.**

❖ Every plaintiff shall state specifically the relief which a plaintiff retains either simply on the alternative and it shall not be necessary to ask for general or other reliefs which court may deem fit. **O7 r 7 CPR.** This rule shall apply to the defendant in his WSD if a definite sum of money is counter-claimed. ***Read; Kasule V Makerere University [1975] HCB 376***

- ❖ *Vallabhudas & Sons Ltd & Mawangala Estate vs. Mateeka [2001 – 2005] HCB Vol. 2 68.* The law is that special damages must be specifically pleaded and strictly proved. *Read Shah V Mohamed Abdulla [1962] EA 76;* on whether it is mandatory to have a special heading “*special damages*”.
- ❖ *Take me Home Vs Apollo Construction:* Counsel for the Plaintiff asked court to award damages for breach of contract but this was not specifically pleaded in the plaint and he therefore asked court to make an award under the umbrella of any other suitable relief. **Held:** That in regard to the prayer for any other suitable relief or further and other relief that advocates seem to make a practice of adding in their plaints it has no meaning and does not add anything to what is claimed nor could be used as generally inclusive come up and make shift so as to avoid the penalties of sloppy inadequate and incompetent drafting of pleadings.
- ❖ *Kisige V BS Uzakami Batolawo:* The Plaintiff sued the defendant for wrongful amount but never included any claim in the plaint. The plaint was not amended by his advocate to accommodate such a claim and counsel sought to rely on paragraph (d) urging court to exercise its powers and award any other/further incidental relief. **Held:** That if general damages are to be awarded to the plaintiff the plaintiff must plead and prove them. Mere insertion at the end of the plaint of an omnibus clause cannot assist the plaintiff to recover any damages, special or general. This is so because even when general and special damages are prayed still the said omnibus prayer always appears, thus it cannot afford his client any reliefs. However the mansion was technical and the plaintiff being a semi illiterate and layman, it was understandable and damages will be awarded.

- ❖ The allegations set out in a plaint must support the prayers asked for in the plaint and the prayers themselves must be legally justified. *See HCT-05-CV-MA-0072 of 2000 Augustine Tibahurira & others vs. IBAKA Group CFI LTD AT Page 9. Also, Departed Asians Property Custodian Baord vs. Issa Bukenya t/a New Mars War House 1994-95 HCB 60.*

❖ Rejection of a plaint and Striking out of pleadings

- ❖ See Order 7 r. 11 for the grounds for rejection of a plaint and O.6 r.30 on the grounds for striking out a pleading; **Read; Baku Raphael Obudra & Anor. V AG Constitutional Appeal No. 1/03 Kanyeihamba JSC;** alluded to an exception to the general rule that upon an application to strike out a plaint for not disclosing a cause of action, the court ought to restrict its ruling on the defect of the plaint and not to decide on the merits of the case. The exception is where the court is satisfied that “the cause of action” disclosed is clearly not maintainable in law. *[See the dicta in Nurdin Ali Dewji & others vs. G.M.M. Megriji & others (1953) 20 EACA 132, and in Ismail Serugo’s case.*
- ❖ Question of whether a plaint does or doesn’t disclose a cause of action is a matter of law which can be raised by the defendant as a preliminary point at the commencement of the hearing of the action even if the point had not been pleaded in the written statement of defence [see O.7 r11CPR; *Tororo Cement Co. Ltd v Frokina international Ltd SCCA No. 2/2001.*
- ❖ *Mick Daddy Kaweesa Vs Attorney General (1973 1ULR 122)*; the defendant applied to have the plaint struck out/rejected under O.7 r11 on ground that it did not disclose

any cause of action. **Held:** That when deciding whether a plaint disclosed a cause of action or not the court has to counteract itself with the plaint assuming what was contained was true.

❖ NB: Plaint must allege all facts necessary to establish a cause of action. If the cause of action is disclosed any defect or omission may be put right by amendment which may be impossible if no cause of action is disclosed. **See *Tororo cement Co. Ltd v Frokina international Ltd SCCA No. 2/2001.***

❖ When dealing with preliminary point of objection, it is always important and useful, to have regard to the procedural law under which they are raised. Distinction must be made between points of objection as to the form of a pleading and those as to the substance of the case. It is one thing to object that a plaint does not disclose a cause of action, and quite another to object that the claim in the suit is not maintainable in law. That is because the outcome is different. In the latter category, the court decides on the merits of the case on basis of law only. The procedural rules applicable to this category are 0.6 r.27 and 28, and 013 r.2 of the civil procedure rules. On the face of it, the point of objection in the instant case falls in the former category, where , subject to one exception that I will revert to later in this judgment, the court decides on only the fate of the impugned pleading, without going into the merits of the case . The relevant procedural law of that category is 0.6 r. 29 and 0.7 r.11 CPR. ***Baku Raphael Obudra & Anor. V AG Constitutional Appeal No. 1/03 Kanyeihamba JSC;***

❖ An application to strike out pleadings need not need a formal application, a court will use its inherent powers to strike out a plaint or WSD where the defect is apparent on

the face of the record and where no amount of amendment will cure the defect. The procedure is intended to stop proceedings which should not have been brought to court into 1st place and to protect the parties from continuance of futile and useless proceedings; *Kayondo v AG (1988-90) HCB 127*

- ❖ Striking out a pleading for want of disclosure of a reasonable cause of action or reasonable defence or on ground of being frivolous and vexatious; Order 6 r. 30
- ❖ The term “reasonable cause of action has been defined by *Lord Pearson in Drummond Jackson versus British Medical Association & others [1970] IWLRL 688 at page 606* to mean “ a cause of action with some chance of successes, when (as required by paragraph 2 of the rule) only the allegations in the pleading are considered”.
- ❖ Frivolous and vexations proceedings are proceedings brought with no reasonable prospect of success, and with no useful or serious purpose but to annoy the other party. *See oxford dictionary of law 6th Edition at page 564*
- ❖ That the summary jurisdiction of the court to strike out pleadings was never intended to be exercised by a minute and protracted examination of documents and the facts of the case ... to do that is to usurp the position of the trial judge, ad to produce a trial of the case in chambers, on affidavits only, without discovery and without oral evidence tested by cross examination in the ordinary way *See also Norman vs. Mathews 1916 85 L.J. K.B 857. Read Tikani V Motui [2002] SBHC 10;HC-CC-029/2001 on the meaning of frivolous and vexatious suits*

- ❖ Where a plaint is rejected, it does not preclude the plaintiff in presenting a fresh plaint in respect of the same action. What is suffered is cost or limitation.

❖ THE DEFENCE:

- **S. 20 CPA:** Once a suit has been instituted, the defendant has to appear and answer the claim (O.5 r 3). *See different modes of responding to summons; vide; filing a defence, an application for leave to appear and defend, an affidavit in reply all depending on the type of summons.*
- Written Statement of Defence is a formal document in which a defendant in numbered paragraphs denies or admits the allegations in the plaint and asserts the defence to the claim. The function of defence is to state the grounds and the material facts on which the defendant relies. It is to inform the plaintiff and court what the defendant admit of the plaintiff's claim and what he denies and what grounds or fact the defendant relies on to answer the plaintiff's claim. The defendant is obliged to deal with each allegation of fact and expressly admit it or deny it, traverse it or admit it with qualification.
- The function of a WSD is to state the grounds and material facts on which the defendant relies for his defence. O. 8 r1 (a).

❖ Filing of a defence:

- **Order 8 r 1:** A defendant may, if so required by court at a time of the issued of summons or any time thereafter as prescribed by court file a defence within 15 days unless otherwise ordered by court. *See Mark Graves V Balton (U) HCMA No.158 of 2008 for time within which a defence should be filed; See also Rule 11 of the*

Government Proceedings (Civil Procedure) Rules .; AG is given 30 days within which to file a defence.

❖ **How is a defence filed**

- ❖ **O.9 r1:** This is done by delivery of a written statement of defence dated on the day it is filed, stating the name of the defendant if he is to appear in person or his advocate and the address of service. The defendant shall file and send it, showing the date and return it to the person filing it and the defence shall be served onto the plaintiff. *See copy of the defence.*

- ❖ Read Order 8 r.19 on Dismissal of suit where summons unserved and plaintiff fails for a year to apply for fresh summons.; *Read Nile Breweries Ltd V Bruno Ozunga T/A Nebbi Boss Stores HCT-00-CC-CS-0580-2006*

❖ **Extension of time to file a defence;**

- ❖ Extension of time may be when parties have consented or where the party has applied to court.[see s.96 CPA] *Godfrey Magezi & Brain Mbazira V Sudhir Rupaleria SCCAPP 10/2002*. Applicant sought extension of time within which to file an appeal out of time to appeal against the decision of the Court of appeal. Held; that court has jurisdiction to extend for the doing of an act so authorised or required. The omission, mistake or inadvertence of counsel ought not to be visited on the litigant leading to striking out his appeal thereby denying him justice. Even if the legal advisor's actions have been negligent, an extension of time has been accepted.

- ❖ On what amounts to sufficient cause to warrant extension of time to file a defence;
Read; Robert Opio & Anor V Edward Kabugo Sentongo HCMA No.166-2002

- ❖ *Read also; Mable Mulumbav Hanna Semakula 1993] IV KALR 84-* On the question of the grounds for grant of leave to file a written statement of defence out of time. **See also; AG V APKM Lutaaya SCC Appl No. 12 of 2007**

- ❖ That the legal effect of extending time to file an appeal out of time[**applicable to a defence**] when the appeal [**or defence**] had already been filed (out of time) is to validate that appeal or to excuse the late filing of that appeal. *See also Credit Finance Co Ltd V Makerere Properties SCC Appl No.1 of 2001.*

- ❖ **Object of Defence, O.5r 1 (a);** The object of a defence is to inform the plaintiff and court of what the defendant admits and denies in the plaintiff's claim and what grounds of facts the defendant relies on to answer the plaintiff's claim.

- ❖ **Mode of defence:** the defendant is obliged to deal with every allegation of fact and expressly admit or deny it. General denials may not suffice; *Joshi V Uganda Sugar Factory Limited [1968] EA 570; Ben Byabashaija & Anor. V AG [1992] 1 KALR 161; Chukwuma f. Obidegwu V Daniel B Semakadde [1992] 11 KALR 64*

- ❖ **Specific denial:** Order 8 r3 provides that every allegation of fact in the plaint, if not denied specifically or by necessary implication or stated to be not admitted in the pleading of the opposite party shall be taken to be admitted except as against a person with a disability provided that the court may in its discretion require any facts so admitted to be proved otherwise by such admissions. ***Melista Meyasi Vs National Bank of Commerce***: Held: That by order 8 r 8 CPR [TZ] each allegation of fact in the plaint which is not admitted must be specifically dealt with in the defence. A general denial is not sufficient.

❖ **Nature of a Written Statement of Defence**

- ❖ The defendant must respond to all allegations of fact and law:
- ❖ Under O 8 r 3 CPR all denials must be specific. A party who intends to contest the case has to deal with the opponent's pleadings and that may be done by-
 - a) Denial of the whole or essential part of the averments of facts contained in the pleadings. This is called traversing.
 - b) He may say that its half truth and include facts that gives the case a different complexion. This is called confession and avoidance , saying that its true but not entire truth and going on to allege facts which destroy the effects of the allegation {confession and avoidance}.
 - c) He may take a point of law e.g limitation or res judicata See ***Tororo cement Co. Ltd v Frokina international Ltd SCCA No. 2/2001.***
 - d) By admission in which case its case will be complete. ***Makerere University V Rajab Kagoro [2008] HCB 103 on what amounts to an admission***
- ❖ Denials must be specific or otherwise may be deemed to have been admitted.

❖ **The Effect of Failure to File a Defence**

- ❖ This depends on the nature of the suit and the subject matter as well as the defendant in question. Generally, a defendant who fails to file a defence within the time limited by law is deemed to have excluded themselves from the proceedings in court. *See Order 9r.6, 8 and 11 CPRs on default, interlocutory and ex parte judgements arising out of default of filing a defence; Dembe Trading Enterprises Ltd V Uganda Confidential Ltd and Anor. HCT-00-CC-CS-0612-2006*
- ❖ The Defendant will have excluded himself from proceedings unless he applies to show cause as to why he did not file the defence within the time allowed. *Mark Graves V Balton (U) HCMA No.158 of 2008; Bukenya Vs Attorney General (Supra). Twiga Chemical Industries Ltd V Viola Bamusedde CACA No. 9/2002; Silas Bitaitana V Emmanuel Kananura CACA No.47/1976; AG & UCB V Westmont Land (Asia) Bhd & Othrs. [1997-2000] UCLR 191*
- ❖ See exception where the Attorney General is the defendant Read; *Agasa Maingi v AG HCS No. 95/2002* on the procedure before a default judgement is entered against government.
- ❖ *Sebunya Vs Attorney General* [The Plaintiff sued the Attorney general who failed to file a WSD within the statutory period and was represented at the hearing. A state attorney appeared for the defendant. **Held:** A defendant who files no defence could not be heard. The state attorney as in the instant case even if he had appeared in time would have had no locus standi and could not be heard. **Held:** Further; the court has discretion to allow the defendant who has not filed a

defence to be heard but in the circumstances the discretion would not have been exercised in favour of the applicant. Sir William Duffus on O.9 r10 is silent on the procedure to be followed when the Applicant fails to file a defence. The procedure is different when a defendant fails to enter appearance in that case the action is set down for hearing *ex parte*, no notice is served on the defendant but provisions is made by r. 18 of that order that a defendant does not appear and desires to put in the proceedings then the court is given a wide discretion and has powers to allow a defendant to take part in the proceedings even though this would no doubt be on terms to that the applicant would not suffer through the defendant's default. But also given a definite and gratuitous advantage to the defendant the guilty party. Since decision would have been contrary to the elementary principles that a defendant must if ordered disclose his defence by trial; O.VII r1 and be bound by his pleadings, O.VI r 3. *See S. 96 on extension of time to file a defence; AG & UCB V Westmont Land (Asia) Bhd & Others [1997-2001] UCLR 191*

- ❖ Admission of Liability; *Elizabeth Imagara and 20rs v AG 1995*) IV KALRSThe effect of failure to file a defence whether it constitutes admission of liability.
- ❖ *Cleaves Hams Ltd Vs British Totutorial College (Africa) Ltd.; Held by Hamis:* That failure to file a defence operates as an admission of all allegations in the plaint except as to damages. **See Order 9r. 8 CPR B**
- ❖ *Badruidin and another VS Pyarali:Held:* Judgment may be given against a defendant who fails to file a defence. **See Order 9r.6 CPRHajji Asuman Mutekanga V Equator Growers (U) Ltd SCCA No. 1995**

❖ Where the defendant admits liability in his WSD, the proper remedy for the plaintiff is not to apply for the defence to be struck out but to proceed under order **13 r.6** which empowers a trial court to inter alia enter judgement against the defendant who admits liability in his defence; *Francis Sebuya V Allports Services (U) Ltd SCCA No. 6/1999*

❖ The rule that parties are bound by their pleadings applies to defences; only matters in the WSD are to be considered. *Inter freight Forwarders (U) LTD v EADB SCCA No.13/1993*

❖ In the case of **Peter Bakaluba Mukasa Versus Betty Nambooze SCCA No.4/2009** Justice Katureebe JSC cited the statement of Order, JSC, (RIP) in the case of *Interfreight Forwarders Case* quoted Wambuzi CJ (as then he was) citing the case of *SEGAMULL vs. GALSTAUN (1930) AIR PC 205*, when an issue was framed but certain particulars had not been pleaded. He said, at page 129;- “It is true that in *SEGAMULL vs. GALSTAUN (1930) AIR PC 205*, a case in which the variation of an agreement was not pleaded, but was nevertheless put in issue, contested and proved by the privy council said;

“Their lordships are satisfied that notwithstanding the form of the plaint the suit was fought by the parties deliberately upon issues substantially as framed by the trial judge and ought upon that footing to be determined.”

The judge held that the appellant ought to have shown that either the respondent had departed from her pleadings or that he, the appellant, had not known the case that he had to answer. The Judge cited Order JSC (RIP) in *UGANDA BREWERIES LTD vs.*

UGANDA RAILWAYS CORPORATION [2002] E.A 634, elaborated the issue of departure from pleadings and what the test is in determining whether a complaint should be allowed to succeed, he put it thus at page 643:

“To my mind, the question for decision under ground 2(i) of the appeal appears to be whether the party complaining had a fair notice of the case he had to meet, whether the departure from the pleadings caused a failure of justice to the party complaining; or whether the departure was a mere irregularity, not fatal to the case of the respondent, whose evidence departed from its pleadings.” That the learned judge went on to reiterate the principle he had set out in his judgment in the **Interfreight Forwarders Case** and continued thus:

“In GANDY vs. CASPAR AIR CHARTER LIMITED, Sir Ronald Sinchar said:-

‘The object of pleadings is of course to ensure that both parties know what are the points in issue between them, so that each may have full information of the case he has to meet and prepare his evidence to support his own case or to meet that of his opponent.’

The Judge further stated that the Uganda Breweries Ltd case established that even where there is irregularity in pleadings or departure from pleadings, but as long as the opposite party has a fair notice of the case he has to answer and he does answer it and adduces evidence accordingly, and has not suffered injustice, the court will not allow such irregularity or departure to frustrate the determination of the case. That bearing the principle involved under the concept of fair hearing and trial, given that the appellant did have fair notice of the case which he duly responded to, he was unable to find that the irregularity of not putting the particulars of bribery in the body of the respondent’s affidavit unduly prejudiced the appellant in any way. That the court must also bear in mind the direction of Article 126(2) (e) of the constitution that subject to the law, substantive justice must be administered without undue regard to technicalities. That in the peculiar circumstances of the case, it would defeat justice to hold that had gone through a full trial be defeated by a technicality particularly when the appellant did

not raise that technicality before, and there is no evidence that he suffered any prejudice.

- ❖ Where a Written Statement of Defence doesn't disclose a reasonable defence, it may be struck out; *Libyan Arab Bank Vs Entrap Co. Ltd.* This was an application under O.48 r 1 CPR for an order to strike out the defence and enter judgment for the applicant on grounds that the defence disclosed no reasonable or any answer to the claim and that it was frivolous and vexatious and filed merely to obstruct or delay justice. At the hearing counsel for the defendant produced two letters referred to as an affidavit but not appended thereto and sought to rely on them. **Held:** That it is well established that in considering applications under O.6 r 29 the court has to look at pleadings alone and any annexures thereto and not any subsequent affidavits. The affidavits of counsel and two letters were inadmissible for the purpose of considering the said order. On Mode of Defence: **Held:** That in its written statement of defence it was clear that the defendant denied being indebted to the plaintiff in a manner alleged by the plaintiff in the plaint. This was perfectly proper answer against the plaintiff's claim which raised triable issues of fact and law fit for trial by this court.

- ❖ The distinction given to court under O.6 r.30 to strike out pleadings should only be exercised in plain and obvious cases since such applications were not intended to apply to any proceedings which raised a serious question of law. The WSD raised a reasonable defence to the plaintiff's claim and was neither frivolous nor vexatious and an abuse of the process of court. *Nile Bank Ltd v Thomas Kato & others [1997 – 2001] UCLR 325*

- ❖ Where a Written Statement of Defence relies on fraud or misrepresentation, the particulars will have to be pleaded.

❖ A defence with a Counter claim

- A Counterclaim is substantially a cross action and not a mere defence. Every cross action can not be pleaded on a counterclaim provided that it is of such a case not as can be tried more conveniently by some other tribunal. In a counterclaim the defendant claims that he is entitled to relief or a remedy as against the plaintiff. O8 r2. a defendant may in an action set off or set up by way of counterclaim against the claim of the plaintiff.
- O.8 r 7 and 8 [Specific counter claim and title to a counter claim]: When any defendant seeks to rely upon any ground as supporting a right of counter claim he shall in his statement of defence state specifically that he does so by way of counterclaim. ***Read Nile Breweries V Bruno Ozunga T/A Nebbi Boss Stores HCT-00-CC-CS 0580-2006*** on the nature, title and consequences of a counter claim ***Geoffrey Ouma V Kaledonia Karuragire HCCS No. 418 of 2000***
- In the case of **Nampela Trading vs. Yusuf Semwanja [1973 ULR 69]**, the Court observed that O8 r 8 CPR provides that where a defendant in his defense sets up a counter claim which raises question between himself and the plaintiff together with any other person then shall add the title of his defense a further title similar to the title of the plaint setting forth the name of all persons who if such counter claim was to be enforced by all action would be defended to such cross action and shall deliver to the

court his defense or service on such of them as parties to action together with his defense for service on the plaintiff within a period required to file a defense. The court observed that where any such person is not a party to the suit he shall be summoned to appear by being served with a copy of the defence which shall be served with rules regulating service of summons and that person not already a party who is served with the defense and counter claim must appear thereto as if he had been served with summons in the suit and that person summoned must give a reply within 15 days if he wishes to take part in proceedings.

- NB: A counter claim must have a cause of action and must specify the relief sought from court; *Fernande Vs Peoples Newspaper Ltd Held*; that since contributory negligence has not been pleaded, the court should not have considered and awarded the damages.
- Separation of counter-claim: O.8 r 2: Court may on application of the plaintiff order separate trial in case the counter-claim will not be conveniently disposed in the pending action. **Uganda Wholesalers Vs Impex House Ltd**: The Plaintiff (Respondent) claimed some money as the price of goods sold and delivered to the defendant (Applicant). The defendant put forward a counter-claim against the plaintiff in two parts. The Magistrate under O.8 r 2 refused to decide on the matter and stated that the counter-claim be tried separately. The plaintiff had not applied for such separate trial of the counter-claim. **Held**: O.8 r 2 only gave the court discretion to order separate trial of a counter-claim when application had been made for such. The plaintiff did not wish the counter-claim to be tried separately and the magistrate would be directed to adjudicate upon the counter-claim.

❖ Reply to a WSD

- Where a defence is made with or without a counter claim and it raises new issues, the plaintiff / defendant to the counter claim may make reply to the defence; **Order 8 r.18** of the CPR; *In the case of Katuramu V AG (1986) HCB 39* Held; that although a plaint doesn't include a reply by the plaintiff, nevertheless a reply forms part and parcel of his case; where a reply is filed in answer to the defence, it must be considered together with the plaint with the result that it may supplement or cure any deficiency in the plaint

❖ **AMENDMENT OF PLEADINGS**

- The wide and extensive powers of amendment vested in courts are designed to prevent failure of justice due to procedural errors, mistakes and defects and serve the aims of justice. A party having filed pleadings may develop change of heart, new facts may come to light, may discover that he made a mistake or omitted some material facts in his pleadings. The rules of procedure allow a party to correct any error or cure any defect or include any omission through amendment of pleadings. This involves alterations or change of pleadings, add new facts or other wordings.
- The object of amendment of pleadings is to enable the parties alter their pleadings so as to ensure that the litigation between them is conducted, not on the false hypothesis of facts already pleaded or relief or remedy already claimed but rather on the basis of true state of facts or true relief or remedy which the parties really and finally intend to rely on or to claim.

- Order 6 rules 19, 20 and 21,22, 23, 24,25 CPR contain the relevant laws.

O 6 r 19 CPR provides that the court may, at any stage of the proceedings, allow either party to alter or amend his or her pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties. These amendments help to cure incompetence, negligence or carelessness in drafting pleadings.

❖ Amendments without leave of court

- Under O 6 r 20 CPR A plaintiff may, without leave, amend his or her plaint once at any time within twenty-one days from the date of issue of the summons to the defendant or, where a written statement of defense is filed, then within fourteen days from the filing of the written statement of defense or the last of such written statements. When he does so, he must serve the amended pleading on the opposite party. The right extends to plaint, written statement of defense, counterclaim, defense to counter claim and reply. It can only be exercised only once and only before close of pleadings. Under O 6 r 21 CPR, a defendant who has set up any counterclaim or setoff may without leave amend the counterclaim or set off at any time within twenty-eight days of the filing of the counterclaim or setoff, or, where the plaintiff files a written statement in reply to the counterclaim or set off, then within fourteen days from the filing of the written statement in reply.
- A pleading can be amended to add or change some facts once before the close of the pleadings without the leave of court being needed. A party seeks leave of court

after close of the pleadings under O.8 r 18. The amended pleading must be reprinted and the superseding words must be underlined. Where leave is needed an application must be made in court and the heading of the pleading must indicate the amendment.

- **Badru Salongo vs. Kasese Town Council [1992-93] HCB 159**, In this case court found that under O 6 r 19 (now r 20) a plaintiff may amend his plaint once without leave of court at any time within 21 days from the date specified in the summons or where a written statement of defence is filed then within 14 days from the date of filing the defence. The court observed that amendment in pleadings sought before hearing of the suit should be freely allowed if it can be done without causing injustice to the opposite party or without prejudice to its rights existing at the date of amendment.
- **Kasolo vs. Nile Bus Co. [1979] HCB 282** In that case court found that although O 6 r 18 empowered the court to allow any party to alter or amend the pleading at any stage of the proceedings, this must be within or during the period within which pleadings must be completed and not during hearing. That pleading must be complete before suit is set for hearing. For amendment of pleadings during hearing then the suit might never come to an end.

❖ **Amendment by Consent.**

The time for delivering, amending or filing any pleading, answer or other document may be enlarged by consent in writing of the parties or their advocates without application to court-O.51 r 7 CPR.

❖ **Right to amend is reciprocal.**

- Where an amendment is served on the defendant, he may if he has already served a defence, amend his defence. Where an amended defense is served on the plaintiff, he may if he has already served a reply, amend his reply. O.6 r 24 CPR.

❖ **The leave of Court**

- The Court has wide and ample power to allow the amendment of pleadings. The following principles appear to be recognized as governing the exercise of discretion or allowing amendments. In the case of **Gasco Transport Services (Bus) Limited V Martin Adala Obene SSCA No.4 of 1994**, the Supreme Court held that it is now trite law that courts are more flexible in allowing amendments whenever an application or amendments were made promptly at the earliest stage of litigation. That the more advanced the progress of litigation, the more burden will be upon the applicant to satisfy court that leave for amendment need to be granted. The court found that a belated application for amendment places a heavy burden on the applicant to convince court as to why he did not apply earlier but court generally give leave to allow amendment rather than give judgment on ignorance of facts which ought to be known before rights are definitely sighted. The Court recognized four principles governing the exercise of discretion in allowing amendments;-

1. That the amendment shouldn't work injustice to the other side. That an injury that can be compensated by award of costs is not treated as an injustice

2. Multiplicity of proceedings should be avoided as soon as far as possible and all amendments, which avoid such multiplicity, should be allowed
 3. An application made malafide must not be granted
 4. No amendment allowed where it is expressly or implicitly prohibited by law (Limitation of Action)
- The rationale behind procedure is in **Cooper vs. Smith (1883) 26 CHD 71**, the Court observed that it is a well established principle that the object of court is to decide the rights of party and not to punish them for mistakes made in the conduct of their cases by deciding otherwise than in accordance with their rights. The court knew of no error or mistake if not fraudulent or intended to over reach which court ought not to correct if it can be done without injustice to the other side. Courts do not exist for the sake of discipline but for the case of deciding matters in controversy and doesn't regard such amendment as a matter of favor or grace that as soon as it appears that the way in which a party has framed his case will not lead to a decision of real matters in controversy it is as such a matter of right on a party to have it corrected if it can be done without injustice.

Pre-Entry Exam 2011/2012

Qn. 42 A defendant was served with summons on 31st July, 2011, giving him 15 days to file a defense. He just put the papers in his drawer and forgot about them. What advice would you give him today?

Pre-Entry Exam 2012/2013

Qn. 42 The Plaintiff sued the defendant for trespass, seeking an eviction order. The defendant did not file a defense. There is an affidavit of service on record. What steps should the plaintiff take?

Pre-Entry Exam 2014/2015

Qn. 43 Explain what you understand by amendment of pleadings.

Qn. 45. A group of voters have threatened to sue their member of parliament if she does not seek re-election. What would be the likely defect in their plaint?

Pre-Entry Exam 2015/2016

Qn. 39. Explain what you understand by pleadings

Pre-Entry Exam 2016/2017

Qn. 3 Why is a party not permitted to depart from his or her pleadings?

Qn. 4 Which of the following documents does not require the signature of the applicant or counsel to be valid?

- A. Notice of Motion
- B. Plaint
- C. Written Statement of Defense
- D. Chamber Summons
- E. None of the above.

SIKIA

Law

TOPIC XII

LIMITATION OF ACTIONS

One of the most important tasks which an advocate needs to undertake in a suit is to ascertain when the limitation period will expire. It is noteworthy that court process must be filed within the limitation period. If the court process is filed out of time, the defendant will have a defense, whether or not will plead limitation in the defense. Court can also on its own discretion take cognizance of the fact of limitation.

Nature of limitation

A limitation period is a time limit during which an action may be brought thereafter a potential plaintiff is barred and may no longer bring his action. The basic reason for limitation is that the potential defendants should not have to live with the risk of legal action indefinitely if for one reason or the other the potential plaintiff does not pursue his remedy and that old actions are difficult to try when memories are clouded, and evidence has been probably lost. Statutes of limitation are in their nature strict and inflexible enactments.

The limitation statutes in Uganda are the Limitation Act Cap. 80 and the Civil Procedure and Limitation (Miscellaneous Provision) Act Cap 72. They impose a limit of time upon an existing right of action.

Basic Principles of Limitation

The different limitation periods are prescribed for different causes of action in the Limitation Act. The determination of when time begins to run depends upon the date on which the cause of action arises, and is therefore dependent upon the nature of the cause of action.

Section 3 of the limitation Act provides for six years limitation of actions of contract and tort and certain other actions. **In the case of Munde Sunday v Pearl of Africa Travels and Tours CIVIL SUIT NO 89 OF 2011** the issue was whether the Plaintiff's action was time barred under the **Limitation Act cap 80** laws of Uganda having been brought more than five years from the date the alleged cause of action arose. Court held that under **section 3 (1) (a) of the Limitation Act Cap 80** causes of action founded on contract or tort are not to be brought after the expiration of six years from the date on which the cause of action arose. The Limitation Act cap 80 laws of Uganda provides for a limitation period of six years from the date the cause of action arose in respect of contract or tort within which to file an action for

appropriate remedies. On the other hand section 3 (d) provides for actions to recover any sum of money by virtue of any enactment, other than a penalty or forfeiture or sum by way of penalty or forfeiture. That the Plaintiff filed the action on 18 March 2011 less than six years after the alleged cause of action. That the Plaintiff was within the limitation period prescribed by section 3 (1) (a) of the Limitation Act Cap 80 laws of Uganda. The only applicable provision which is section 3 (1) (d) of the Limitation Act is the proviso thereto which provides as follows: “except that in the case of actions for damages for negligence, nuisance or breach of duty (whether the duty exists by virtue of a contract or of provision made by or under an enactment or independently of any such contract or any such provision) *where the damages claimed by the Plaintiff for the negligence, nuisance or breach of duty consist of or include damages in respect of personal injuries to any person*, this subsection shall have effect as if for the reference to six years there were substituted a reference to three years.”. That a claim for damages on a cause of action of negligence, nuisance or breach of duty in respect of personal injuries to any person are the only instances where the limitation period is three years from the date the cause of action arose. There is no action for damages for negligence, nuisance or breach of duty in respect of personal injuries to any person in this suit and the limitation period for the Plaintiff's cause of action is six years. That in the premises the Plaintiff's action is not time barred.

In the case of **Rugamayo Vs Uganda Revenue Authority (LABOUR DISPUTE NO 27 OF 2014)** the industrial court stated that it was not in dispute that the Limitation Act provides for limitation of actions in a sense that one is barred from filing an action in courts of law after a specific period has elapsed from the time that the cause of action arose. In the case of causes arising from contract, the Act provides that such actions must be filed in courts of law within six years of the accrual of such cause of action. That the legal question for the court therefore is: Whether the filing

of this matter did or did not offend the provisions of the Limitation Act. Court held that in order to determine whether a matter is barred by limitation, the court must, first ascertain when the cause of action arose. That in the present case the status of the claimant was known to him through the letter of dismissal which he acknowledged within the time prescribed under the Limitation Act. That the cause of action arose on the date that the claimant was dismissed or at the latest the date that he received the said letter of dismissal. That the suit was definitely filed out of time thus offending the provisions of the Limitation Act. Court further held that unless the claimant is saved by the exemptions under the Limitation Act a matter filed outside the prescribed time must be struck out. That time limits set by statute are not mere technicalities but are of substantive law and must be strictly complied with and that therefore any matter filed outside these limits must be struck out irrespective of any merits in the case.

Section 5 of the limitation Act provides for twelve years limitation of actions to recover any land. In the case of **Hammann Ltd & Anor v Ssali & Anor** **MISCELLANEOUS APPLICATION NO. 449 OF 2013** the application was brought under Order 7 rr.11 (a) (e) and 19 of the Civil Procedure Rules (CPR) for orders that the Respondents'/Plaintiffs' plaint in be rejected. The issue was whether the plaint in H.C. C.S No. 756 of 2006 is time barred. Court held that *Section 5 of Limitation Act* which governs the limitation period for recovery of land provides as follows; *"No action shall be brought by any person to recover any land after the expiration of twelve years from the date on which the right of action accrued to him or her or, if it first accrued to some person through whom he or she claims, to that person."* That It is the established law that a suit which is barred by statute where the plaintiff has not pleaded grounds of exemption from limitation in accordance with *Order 7 r.6 CPR* must be rejected because in such a

suit the court is barred from granting a relief or remedy. See: *Vincent Rule Opio v. Attorney General* [1990 – 1992] KALR 68; *Onesiforo Bamunwayira & 2 Or's v. Attorney General* (1973) HCB 87; *John Oitamong v. Mohammed Olinga* [1985] HCB 86. Court further held that *Section 25* of the *Limitation Act*) is to the effect that in actions founded on fraud, the period of limitation shall not begin to run until the plaintiff has discovered, or could with reasonable diligence have discovered the fraud. It is also the settled position that in determining the period of limitation, court looks at the pleadings only, and no evidence is needed. See: *Polyfibre (U) Ltd v. Matovu Paul & 3 O'rs*, (*supra*); *Madhivani International S.A v. Attorney General* (*supra*). Court further held that the “extension” of the limitation period referred to under *Section 2 of the limitation Act* is not a unilateral action by court to extend the period merely because the action is founded on fraud. No such power, whether residual or inherent, resides in court to extend time fixed by statute. It is up to the plaintiff to raise a plea that conforms to the dictates of *Section 25 of the limitation Act* before he can benefit from exemption from limitation for the period he was unaware, or could not have with reasonable diligence been aware of the fraud. It is not that just because a cause of action is founded on fraud the limitation period will automatically apply. court referred to the case of *Re Application by Mustapha Ramathan, C.A. Civ. Appeal No.25 of 1996, per Berko JA.*, that the purpose of limitation is to put an end to litigation. That statutes of limitations are by their nature strict and inflexible enactments. Their overriding purpose is interest *republicaent fins litum*, meaning that litigation shall automatically be stifled after a fixed length of time, irrespective of the merits of a particular case. That also in *Hilton v. Satton Steam Laundry* [1946] IKB 61 at page 81 it was held that statutes of limitation are not concerned with merits. Once the axe falls, it falls, and a defendant who is fortunate enough to have acquired the benefit of the statute of limitation is entitled, of course, to insist on his strict rights. The effect of a suit being time barred is that it

shall be rejected. See: *Vincent Rule Opio v. Attorney General, Onesiforo Bamumwayira & 2 Or's v. Attorney General; John Oitamong v. Mohammed Olinga* .

Cause of action

A cause of action is the basic concept determining a limitation period. Action is defined to include any proceeding in a court-*S.2 of the Limitation Act*.

For a cause of action to arise for limitation purposes there must be a competent parties that is there must be a plaintiff who can succeed and a defendant against whom he can succeed if he established his case. Until this situation occurs no cause of action can arise. Time cannot run where the potential defendant is dissolved.

In the case of **M&D Timber Merchant and Transporters Ltd v Hwan Sung Ltd (MISCELLANEOUS APPLICATION NO. 0796 OF 2015)** the issue was *whether the HCT-CS-409-2013 is time barred by statute. Court held that the issue specifically and directly relates to the time when the cause of action arose. This position is premised on the principle which was enunciated in F.X Miramago vs. Attorney General [1979] HCB 24 that the period of limitation begins to run as against a plaintiff from the time the cause of action accrued until when the suit is actually filed. Once a cause of action has accrued, for as long as there is capacity to sue, time begins to run as against the plaintiff. Furthermore, Order 7 r.6 CPR also requires that; "Where a suit is instituted after the expiration of the period prescribed by the law of limitation, the plaintiff shall show the grounds upon which the exemption from that law is claimed." The above provisions were considered by the Court of Appeal in Uganda Railways Corporation vs. Ekwamu D.O & 5104 Ors CACA No.185 of 2007 [2008] HCB 61, in which it was held that if a suit is brought after the expiration of the period of limitation, and no grounds of exemption are shown in the plaint, the plaint must be rejected. The*

rationale of the law of limitation was aptly stated in Caltex Oil (U) Ltd vs. Attorney General, HCCS No. 350 of 2005 that the intention for the enactment of statutory periods of limitation was to serve several aims among which is protecting the defendant from being vexed by stale claims, and that it designed to encourage litigants to initiate proceedings within reasonable time. That for a plaintiff to benefit from the exemption from the law of limitation, he or she must plead grounds showing his or her disability to file the suit within the time prescribed by the law. The disability must be a legal disability in a sense that Section 1(3) of the Limitation Act provides that a person shall be deemed to be under a disability while he or she is an infant or of unsound mind. In my view, since the provision is very clear and specific, no other basis of disability calls for recognition under the law.

Order 11 (d) of the civil procedure rules aplaint shall be rejected where the suit appears from the statement in the plaint to be barred by any law.

In the case of Okweng Washington vs. AG & Mike Okello HCCS No. 16 of 2004, court relied on Onesifolo Bawayira & 2 O'rs vs. Attorney General (1973) HCB 87, it was held that; "In considering whether or not a plaint is time barred or discloses no cause of action, the court must look only at the plaint and nothing else." The court went on to hold that; *"A plaint that is deficient in that it shows that the action is time barred or discloses no cause of action must be rejected. See: Pearl Motors Limited vs. Uganda Commercial Bank (1998) III KARL 1. It is a prerequisite of a party who seeks to have substantial justice done to him or her that that party substantially complies with the law, more so where that law is written law."*

In the case of **Mundele Sunday v Pearl of Africa Travels and Tours CIVIL SUIT NO 89 OF 2011** Court held that the question whether a suit is barred by limitation can

be considered by a perusal of the plaint only. This is consistent with Order 7 rule 11 (d) of the Civil Procedure Rules which provide that the plaint shall be rejected where the suit *appears from the statement in the plaint* to be barred by any law. In other words it must appear from the statement in the plaint to be barred by any law. The holding in Iga versus Makerere University [1972] EA at page 65 is that of the East African Court of Appeal sitting at Kampala. Mustafa J.A. at page 66 of the Judgment considered Order 7 rule 11 (d) of the Civil Procedure Rules and held that a plaint which is barred by limitation is a plaint, in the words of that sub rule that is "barred by law". He further held that the judge in the circumstances should have rejected the plaint under Order 7 rule 11 of the Civil Procedure Code instead of dismissing it. Secondly the Court of Appeal held that a Plaintiff who seeks exemption from the law of limitation has to plead it under Order 7 rule 6 of the Civil Procedure Rules. From a consideration of Order 7 rule 11 of the Civil Procedure Rules, the issue of whether the Plaintiff's plaint is barred by law has to be considered upon perusal of the plaint only and anything attached to the plaint forming part of it.

At common law, if a potential plaintiff is an enemy alien, no cause of action can arise since he has no standing to bring his action, and this situation continues unless he ceases to be an enemy alien.

Consecutive causes of action will normally arise where the defendant is under a continuing duty which he breaches on separate occasions, possibly years apart.

An amendment introducing a new cause of action to defeat the defence of limitation should not be allowed. The court has always refused to allow a party or cause of action to be added where, if it were allowed the defence of statute of limitation would

be defeated, the court has never treated it as just to deprive a defendant of a legal defence.

Where the time to institute an action is set by legislation then court has no power to extend such time. This rhymes well with the general principle that once statute barred always statute barred. When a statute fixes time and there are no provisions within that statute to enlarge time the court's hands are tied. They cannot enlarge time. In the case of *Makula International Ltd vs. His Eminence Cardinal Nsubuga [1982] HCB 11*, held that a court has no residual or inherent jurisdiction to enlarge time laid down by a statute and therefore the judge's order extending the time within which to appeal, several months after the expiry of the statutory period, was without jurisdiction, was a nullity and would be set aside.

The running of time and commencement

Once the action has accrued as a general rule time begins to run provided that there are both competent plaintiff and competent defendant and until when the suit is filed and not when the service is effected. Exceptionally this is not the case where the action is based upon;

- i) The fraud of the defendant
- ii) Any fact relevant to the plaintiff's right of action has been deliberately concealed from him by the defendant
- iii) The action is for relief from consequences of a mistake.

The running of time is postponed until the plaintiff discovered the fraud, concealment or mistake or could, with reasonable diligence, have discovered it.

If on the date when the right of action accrued, the person to whom it accrued was under disability, action may be brought at any time before the expiration of six years from the date when he ceased to be under disability or died.

Computation of time

As a general principle the courts will disregard parts of a day in calculating the expiry of the limitation period. The day of the accident is to be excluded from the computation of the limitation period as provided under the Interpretation Act.

Section 34 provides;

(1) In computing time for the purpose of any Act—

- (a) a period of days from the happening of an event or the doing of any act of thing shall be deemed to be exclusive of the day in which the event happens or the act or thing is done;
- (b) if the last day of the period is a Sunday or a public holiday (which days are in this section referred to as “excluded days”), the period shall include the next following day, not being an excluded day;
- (c) where any act or proceeding is directed or allowed to be done or taken on a certain day, then if that day happens to be an excluded day, the act or proceeding shall be considered as done or taken in due time if it is done or taken on the next day afterwards, not being an excluded day; or
- (d) where any act or proceeding is directed or allowed to be done or taken within any time not exceeding six days, excluded days shall not be reckoned in the computation of time.

The general effect of limitation is that the remedy is barred, but the plaintiff's right is not extinguished.

Defenses to limitation.

Where the suit is instituted after expiration of the period prescribed by the law of limitation, the plaintiff shall show the grounds upon which exemption from the law is claimed-O.7 r 6 CPR. The provision of this rule is mandatory and ignorance could not be a disability for purposes of limitation.

Sec. 21 provides for extension of limitation period in case of disability. Under section 1 (3) a person shall be deemed to be under a disability while he or she is an infant or of unsound mind.

Infancy-This is another word for minor. Art. 257 (c) a child is a person under 18 yrs.

Unsound Mind-A person is of unsound mind if he is a person who by reason of mental disorder is incapable of managing and administering his property and affairs.

In the case of **M&D Timber Merchant and Transporters Ltd v Hwan Sung Ltd (MISCELLANEOUS APPLICATION NO. 0796 OF 2015)** Court held that for a plaintiff to benefit from the exemption from the law of limitation, he or she must plead grounds showing his or her disability to file the suit within the time prescribed by the law. The disability must be a legal disability in a sense that Section 1(3) of the Limitation Act provides that a person shall be deemed to be under a disability while he or she is an infant or of unsound mind. In my view, since the provision is very clear and specific, no other basis of disability calls for recognition under the law.

However in the case of *Fred Mungecha vs. A.G [1981] HCB 34* Court held that imprisonment is a disability

Disability does not does not prevent the person affected from bringing or defending an action. Although he may not do so without a next friend or guardian ad litem-**O. 33 r 1 & 3 CPR**. When a right of action accrued for which a period of limitation is prescribed, the person to whom it accrued was under disability the action may be brought at any time before the expiration of six years from the date when the person ceased to be under disability or died-**s.21(1) limitation Act**. In case of negligence, nuisance or breach of duty where damages are claimed the period of bringing action under disability shall be three years-**s.21 (2)(a) limitation Act**.

i) Acknowledgement and part payment

Acknowledgement by the defendant to the plaintiff's rights or the defendant making a part payment will revive the cause of action-**s.22 limitation Act**. The law provides that any such acknowledgement shall be in writing and signed by the person making the acknowledgement-**s.23 limitation Act**. Part payment means payment in respect of the debt.

ii) Fraud and mistake.

Sec. 25 of the limitation Act provides that where, in the case of any action for which a period of limitation is prescribed by the Act, either—

- (a) the action is based upon the fraud of the defendant or his or her agent or of any person through whom he or she claims or his or her agent;
- (b) the right of action is concealed by the fraud of any such person as is mentioned in paragraph (a) of this section; or
- (c) the action is for relief from the consequences of a mistake, the period of limitation shall not begin to run until the plaintiff has discovered the fraud or the mistake, or

could with reasonable diligence have discovered it; but nothing in this section shall enable any action to be brought to recover, or enforce any charge against, or set aside any transaction affecting, any property which—

(d) in the case of fraud, has been purchased for valuable consideration by a person who was not a party to the fraud and did not at the time of the purchase know or have reason to believe that any fraud had been committed; or

(e) in the case of mistake, has been purchased for valuable consideration, subsequently to the transaction in which the mistake was made, by a person who did not know or have reason

to believe that the mistake had been made.

In the case of **Hermezdas Mulindwa and Another v Stanbic Bank (U) Ltd****HCCS-0426-2004** the issue was whether the plaintiffs' suit was time barred. Justice Lameck N. Mukasa held that it is trite that parties are bound by their pleadings. By their pleadings the plaintiffs appear to concede that the period within which to file the suit had expired. That in *Uganda Revenue Authority Vs Uganda Consolidated Properties Ltd (1997 – 2001) UCL 142* Justice Twinomujuni JA stated. “Time limits set by statutes are matters of substantive law and not mere technicalities and must be strictly complied with” That the period of limitation where imposed begins to run from the date on which the cause of action accrues. See *Eridadi Otabong Waimo Vs Attorney General SCCA No 6 of 1990 (1992) V KALR 1*. Order 7 rule 11 (d) of the Civil Procedure Rules provides that a plaint shall be rejected where the suit appears from the statement in the plaint to be barred by any law. The claim in the instant suit appears time barred by section 3 (I) (a) of the Limitation Act. In *Francis Nansio Michael Vs NuwaWalakira (1993) VI KALR 14* the Supreme Court held that clearly if the action is time barred then that was the end of it. However, section 25 of the Limitation Act provides for postponement of the

limitation period. It states: *“Where in the case of any action for which a period of limitation is prescribed by this Act, either ---- (a) the action is based upon the fraud of the defendant or his or her agent or of any person through whom he or she claims or his or her agent. (b) the right of action is concealed by the fraud of any such persons as mentioned in paragraph (a) of this section, or (c) the action is for relief from the consequences of a mistake; the period of limitation shall not begin to run until the plaintiff has discovered the fraud or the mistake or could with reasonable diligence have discovered it, but nothing in this section shall enable any action to be brought to recover or enforce any charge against or set aside any transaction affecting, any property which ---- (d) in the case of fraud, has been purchased for valuable consideration by a person who was not a party to the fraud and did not at the time of the purchase know or have reason to believe that any fraud had been committed; or (e) in the case of a mistake has been purchased for valuable consideration, subsequently to the transaction in which the mistake was made, by a person who did not know or have a reason to believe that the mistake had been made.”*

Court further held that where a plaintiff wishes to rely on any exemption to the periods of limitation it must be specifically stated in the pleadings. If it is not the plaintiff should be rejected. See Iga Vs Makerere University (1972) EA 65. That in the instant case the plaintiffs, in paragraph 6 of the plaint, plead an exemption by mistake which they content were able to discover on or about the 26th day of May 2003. Alternatively, in paragraph 8 they plead concealment by fraud until their discovery of the UCB Board of Directors Resolution on 26th May 2003. They therefore content that the date of accrual of the cause of action was by the provisions of sections 25 of the Limitation Act postponed to the date of discovery of the mistake or the fraudulent concealment on 26th May 2003. That Section 25 (c) extends the limitation period where the plaintiffs action is for relief from the consequences of a mistake. Time begins to run from the time when the plaintiff discovered the mistake or could with reasonable diligence have discovered the mistake.

That the issue was whether the plaintiffs' action in the instant case was the consequence of the alleged mistake of omitting the long service award from the compensation package communicated to the Bank staff in the circular of invitation to apply for early termination of service.

That the plaintiffs' cause of action arose from the mistake of omitting to include it in the circular. A similar provision was considered in the English Case of *Philips Highs Vs Harper (1954) QB 411* where Pearson J. held that the section does not apply to the case of a right of action which is concealed from the plaintiff by mistake. Her Lordship stated at page 119:-

“What is the meaning of provision (c)? The right of action is for relief from the consequences of a mistake. It seems to me that this wording is carefully chosen to indicate a class of action where a mistake has been made and has had certain consequences and the plaintiff is seeking to be released from those consequences----- probably provision (c) applies only where the mistake is an essential ingredient of the cause of action, where the statement of claim sets out the mistake and its consequences and prays for relief from the consequences---“

That the plaintiff in the instant case are not seeking to be relieved from the consequences of the mistake but are seeking to recover monies they claim to be entitled to which they could not seek within the limitation period because by the mistakes of the management they were not made aware of the entitlement. The entitlement was not a consequence of the mistake. It does not arise from the mistake.

Court further held that the plaintiffs' claim based on mistake is outside the scope of the exemption in section 25 (c) of the Limitation Act. Alternatively the plaintiffs sought to rely on fraudulent concealment of the Resolution. Court held that the exemption of fraud was taken away by the provisions

of section 25 (d) of the Limitation Act. That defendant had bought for value the assets and liabilities of UCB. Section 25 postponement of limitation cannot apply against a purchaser for value without notice of the defect in title or without notice of the fraud. That the long service award is money which the plaintiff claim they are entitled to by virtue of the UCB Board of directors Resolution which they now claim from the defendant. It is thus property. This was a liability which the defendant had inherited through a purchase for a valuable consideration. The purchase was sometime in November 2001 long after the alleged fraudulent concealment or omission in 1996. It is not pleaded that the defendant was party to the alleged fraudulent concealment or omission. Further it is not pleaded that at the time of the purchase the defendant knew or had reason to know of the alleged fraudulent concealment or omission. Court further held that the plaintiffs have failed by their pleadings to show that their claim is entitled to postponement of the limitation period by the provision of section 25 of the Limitation Act and that the suit was time barred and outside the saving provisions of section 25 of the Limitations Act.

Sections 19 and 20 provides for Actions in respect of trust property or the personal estate of deceased persons. In the case of **Lukanga & Anor V Kanakulya HCCS No. 42 OF 2008** Court held that section 25 of the Succession Act vests *all property in an intestate upon the personal representative of the deceased upon trust for those persons entitled to the property*. That the defendant applied for and was granted Letters of Administration and by operation of Section 25 of the succession Act, all the property of the deceased devolved upon the said Defendant in trust for the beneficiaries and the said Defendant should accordingly be held to account by any beneficiary of the deceased. Court further held that any beneficiary claiming interest in the estate of the deceased should do so within the period prescribed by law i.e the Limitation Act Cap 80.

Section 20 of the Limitation Act provides:- *“Subject to Section 19(1) no action in respect of any claim to the personal estate of a deceased person or any share or interest in such estate whether under a Will or on Intestacy shall be brought after the expiration of twelve years from the date when the right to receive the share or interest accrued “(emphasis mine)”*. That the expression *“subject to...”* highlighted above in Section 20 has the effect of bringing Section 19 (1) into play. The subsection provides:-

(1) No period of limitation prescribed by this Act shall apply to an action by a beneficiary under trust being an action.

(a) In respect of any fraud or fraudulent breach of trust to which the trustee was a party or privy or

(b) To recover from the trustee trust property or the proceeds of the trust property in the possession of the trustee or previously received by the trustee and converted to his or her use “(emphasis mine)”. That whereas

generally, no claim to any share or interest in an estate can be brought by a beneficiary after the expiry of 12 years, that legal bar is qualified where the beneficiary claims fraud or fraudulent breach of trust by the trustee provided for in Section 25 of the Succession Act. That this in effect removes this case from the application of Section 20 of the Limitation Act and places it under the vagaries of section 19 (1) of the Act.

An action arising from death of any person through negligence shall be commenced within twelve calendar months after death of such deceased person-s.5 & 6 (3) law reform (miscellaneous provisions) Act Cap. 79.

The limitation Act provides for the following

1. Breach of Contract-6 years from date of breach
2. Torts-6 years
3. Judgement-12 years
4. Arrear of interest on judgement-6 years
5. Conversion and detention of goods-6 years
6. Recovery of land-12 years
7. Mortgage-12 years
8. Foreclosure and recovery of loans and mortgage-12 years
9. Fraudulent breach of trust-No limitation
10. Fatal accident actions-12 months
11. Action claiming personal estate of a deceased person-12 years
12. Claims for equitable relief-No limitation

Limitation Against Government and Scheduled Corporations

S.3 (1) of the civil procedure and limitation (Miscellaneous Provisions) Act no action founded on tort shall be brought against the government, a local authority and a scheduled corporation after expiration of two years from the date on which the cause of action arose- No action founded on contract shall be brought against the government or a local authority after expiration of three years from the date on which the cause of action arose.

No action founded on contract shall be brought against the government or local authority after expiration of three years from the date on which the cause of action arose-s.3 (2) of the civil procedure and limitation (Miscellaneous Provisions) Act

In the case of **Sam Kirembwe v Attorney General (Civil Suit No.73 Of 2001) Civil Suit No.73 Of 2001** the learned State Attorney raised preliminary point of law that the suit is barred by Statute in that the action was brought beyond 3 years from the time the cause of action arose contrary to S. 2(2) of the Civil Procedure (Limitation Act) because the cause of action arose in 1988 but the suit was on 30/01/2001 more than ten years later. **Court held** that under section 3(2) of the civil Procedure and limitation (Miscellaneous Provisions) Act no action founded on contract shall be brought against the Government or Local Authority after the expiration of three years from the date on which the cause of action arose. Order 7 rule (1) (d) of the C.P.R provides that in an action barred by law the plaint must be rejected. Plaints have invariably been rejected under the above provisions. See Iga vs. Makerere University (Supra) and Arua Motor Dealers vs. Attorney general HCCS 1451/1986 Reported in [1997] VKLR 32 where it was held actions against Government brought in contract after 3 years from the accrual of the cause of action are barred by the provisions of the Civil Procedure and the provisions of the Civil Procedure and Limitation (Miscellaneous Provisions) Act. That under Section 5 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act when the period within which a person has expired when such person is under a disability, he may bring the action within 12 months from the time such disability ceases. That the instant suit is barred by S. 3(2) of the Civil Procedure and Limitation (Miscellaneous Provisions) Act.

Similar principles on disability are applicable to government, scheduled corporations and local authorities within 12 months when the persons disability ceases-s.5

Also limitation is postponed in cases of fraud or mistake-section 6

In the case of **Eridad Otabong versus Attorney General Civil Appeal Number 6 of 1990** the facts were that the appellant had sued the Defendant for false arrest and unlawful detention. The suit was filed after 12 months of the date of arrest and at the hearing an objection that the suit was time barred was upheld. The court approved the passage from **Clark and Lind Sell on Tort 13th edition** paragraph 612 that: "Where there is a continuing nuisance or a continuing trespass, every fresh continuance is a fresh cause of action and therefore an injured party who sues after the cessation of the wrong may recover for such portions of it as lie within the period limited." Oder JSC held regarding the effect of limitation on unlawful detention or false imprisonment that: "Regarding the effect of limitation on unlawful detention or false imprisonment authoritative court decisions in this jurisdiction appear to be lacking, but the sum of text book statements and superior court decisions is quite clear. It is that such a wrong is necessarily a continuing tort so that the cause of action accrues continuously throughout its duration."

Pre-Entry Exam 2014/2015

Qn. 42 When is a suit said to be time barred?

TOPIC XII

INTERROGATORIES, DISCOVERY AND INSPECTION

❖ INTERROGATORIES

- **Section 22 of the civil procedure Act** provides for the power to order discovery and the like. Subject to such conditions and limitations as may be prescribed, the court may, at any time, either of its own motion or on the application of any party (a) make such orders as may be necessary or reasonable in all matters relating to the delivery and answering of interrogatories, the admission of documents and facts and the discovery, inspection, production, impounding and return of documents or other material objects producible as evidence; (b) issue summonses to persons whose attendance is required either to give evidence or to produce documents or such other objects as aforesaid; (c) order any fact to be proved by affidavit.
- **Section 22 of the Government Proceedings Act** provides that subject to and in accordance with rules of court—(a) in any civil proceedings in the High

Court or a magistrate's court to which the Government is a party, the Government may be required by the court to make discovery of documents and produce documents for inspection; and (b) in any such proceedings as are mentioned in paragraph (a) of this subsection, the Government may be required by the court to answer interrogatories. (2) Notwithstanding subsection (1), the section shall be without prejudice to any enactment or rule of law which authorises or requires the withholding of any document or the refusal to answer any question on the ground that the disclosures of the document or the answering of the question would be injurious to the public interest. (3) Any order of the court under the powers conferred by subsection (1)(b) shall direct by what officer of the Government the interrogatories are to be answered. (4) Without prejudice to subsection (2), any rules of court made for the purposes of this section shall be such as to secure that the existence of a document is not disclosed if, in the opinion of a Minister, it would be injurious to the public interest to disclose the existence of the document.

- Interrogatories are questions addressed to an opposing party in the action, aimed at discovery of facts. The power of court to administer interrogatories is derived from section 22 of the civil procedure Act and section 22 of the Government Proceedings Act. The essential requirements for proper interrogatories are that they should;
 - i) Relate to a matter in question between the parties; and
 - ii) Be necessary either for disposing fairly of the matter or for saving costs
- It is entirely in the discretion of the judge as to whether an interrogatory will be allowed or not. Order 10 rule 1 of the civil procedure rule provides that in any

suit the plaintiff or defendant may apply to court within twenty one days from the date of the last reply or rejoinder referred to in order 8 r 18(5) of the rules for leave to deliver interrogatories and discovery in writing for the examination of the opposite parties, or any one or more of those parties, and those interrogatories when delivered shall have a note at the foot of them stating which of the interrogatories each of the person is required to answer.

- Any order of court to issue interrogatories shall direct by what officer of the Government the interrogatories are to be answered- section 22(3) Government Proceedings Act.
- The application for leave to serve interrogatories should be made at a reasonable time before the trial is likely to come on. Interrogatories shall be in the form 2 of appendix B of the civil procedure rules with such variations as circumstances may require-O.10 r 4 Cpr.
- In the case of **Stop and See (U) Ltd v Tropical Africa Bank Ltd (MISC. APPLICATION NO 333 OF 2010)** Madrama J (as by then) held that under order 10 (1) the defendant or plaintiff may apply to court within twenty one days from the date of the last reply or rejoinder for leave to deliver interrogatories and discoveries in writing for the examination of the opposite parties. Interrogatories shall be answered by affidavit within ten days. Any application to strike out interrogatories on the ground of being scandalous or irrelevant, or not exhibited bona fide for the purpose of the suit or lack of materiality to the suit may be made within seven days after service of the interrogatories. Under rule 11 of order 10, where a person omits to answer or answers insufficiently,

the party interrogating may apply to court to make him answer or for a further answer by affidavit or by viva voce examination. A party may also apply for discovery and inspection of documents. A party may give notice to another to produce for inspection any documents referred to in his or her pleadings. The party on whom notice is given shall deliver within 10 days give notice specifying the time and place for the inspection excepting those that the party objects to produce.

- In the case of **Kapiriri v International Investments Ltd & 5 Ors (MISC. APPLICATION NO. 170 OF 2012)** Court held that the suit was originally based on alleged trespass by the 1st and 2nd Defendants fraudulent sale by the 3rd to 6th Defendants. That the Written statement of defence filed at the time in paragraph 16 therein categorically stated that the 1st Defendant was a bona fide purchaser for value and had the necessary documentary evidence of ownership. That at that time, the Plaintiffs should have invoked the provisions of Order 10 CPR to seek clarifications and answers by way of interrogatories to clear the issues raised in paragraph 16 of the said defence, instead of jumping into the lake for a fishing expedition by going into the hearing of the suit.

❖ Guidelines

- There are no rigid rules for determining when leave will or will not be granted to administer interrogatories, much depend on the circumstances of the individual case. However there are a number of guidelines which have been developed to be followed. These guidelines may be categorized under the following heads;
 - i) Relevance

- Interrogatories must relate to any matter in question between the parties. In the case of **Marriot v Chamberlain [1886] 17 QBD 154 at 163 Lord Esher MR** attempted to explain the meaning of relevance in this context; *“The right to interrogate is confined to facts directly in issue, but extends to any facts the existence or non existence of which is relevant to the existence or non existence of facts directly in issue.”*
- There are three important limits to the general rule regarding relevance;
 - a) Interrogatories relevant only to the credulity of witness will be disallowed
 - b) Interrogatories may be sought only as to matters relevant to the present action, questions that are relevant not to the present action but other future action should be disallowed
 - c) ‘Fishing’ interrogatories are not allowed. Fishing was defined by **Lord Esher MR in Hennesey v Wright (number 2) [1888] 24 QBD 445 at 448** thus; *“The moment it appears that questions are asked and answers insisted upon in order to enable the party to see if he can find a case, either complaint or defense of which at present he knows nothing, and which will be a different case from that which he knows nothing, and which will be a different case from which he now makes, the rule against fishing applies.”*
- ii) Facts

Interrogatories are for facts, so they will be disallowed;

 - a) Where they call upon an interrogated party to express opinion on something
 - b) Where they are aimed at discovering the evidence available to the other side; they are not intended to provide a substitute of evidence
 - c) Where they are aimed at discovering the contents of an existing document or as to what documents a party has or had in his possession or control
- iii) Necessity

Interrogatories may be administered only where they are necessary for disposing fairly of the action or for saving costs. Interrogatories will not normally be necessary for saving costs or for disposing fairly of the action if witnesses are likely to be called at trial to give evidence on the same matters.

❖ **Examples of allowable interrogatories.**

There is no list of allowable or prohibited interrogatories. However the following are some of the examples of interrogatories which have been allowed;

- a) Asking for the name of the publisher of a defendant newspaper in a libel action
- b) Asking for figure of the circulation of a newspaper in a libel action, where quantum of damages was in issue
- c) Asking whether (in an action for breach of copy right) the products in question had been copied from the plaintiff
- d) Asking whether the defendant was in possession of the vehicle at the time when it was involved in an accident
- e) Asking in order to prove the handwriting of a disputed letter, whether the interrogated party was the writer of another letter
- f) Asking for the noise level in a factory, in an industrial deafness case
- g) Asking whether contractual documents had been signed by interrogated party's authorized agent.

❖ **Answers**

- O.10 r 8 of the civil procedure rules interrogatories are answered by affidavit and are binding on the interrogated party in the sense that an answer is intended to be an admission by the party who makes it, or at any rate a

statement by which in ordinary circumstances he will be bound. In most cases answers may be a simple ‘Yes’ or ‘No’ but where explanations are included, they must be unambiguous, precise and reasonable.

- In the case of **Kyenda v SBL International Holdings N. Ltd (MISC. APPLICATION NO. 052 OF 2013)** was an application brought under section 22 and 98 CPA and Order 10 Rules 1, 2, 4, 6, 8 and 24, seeking orders that Interrogatories for examination of the Respondent be delivered to the said Respondent. The application was premised on the allegation that the Respondent in the written statement of defence in the head suit merely denied all averments in the Plaint and that it was necessary to establish the facts in the suit to save Court’s time when the trial commences. Justice Namundi held that Order 10 CPR regulates the use of Interrogatories in civil proceedings. That Under Order X r.1 (b) thereof, the Court will only allow those interrogatories which relate to the matters in question or deemed relevant to the matters in question. That under rule 7 thereof the Court will not allow those interrogatories that are vexatious, unreasonable or that they are profligate, oppressive or unnecessary. Court cited **National Social Security Fund Board of Trustee Vrs. Kario Farms Ltd & Others (2006) EA 240**, that it was observed that in the process of presenting Interrogatories, the party interrogating may put questions for the purpose of extracting from his opponent information as to the facts material to the questions between them when he has to prove on any issue raised or for purposes of securing admissions as to those facts in order that the expense and delay may be saved. That the authority above relied on **Omar Vrs. Gordhanbhai & Another (1974) EA 518**. Court further held that in deciding whether the order should be made, the Court is to be guided by: 1 Whether the Interrogatories are

necessary for disposing of the suit fairly or 2 For saving costs Ref: **Sebastian R. D'Souza & Others Vrs. Charles Clemente Ferrao (1959) EA 1000.** **Court further held that** the interrogatories in respect of the audit can only be carried out after the Court orders so in its Judgment at the end of the trial, that particular prayer cannot therefore be said to be necessary for the disposal of the suit. That the case is about whether the Defendant is liable to pay taxes/revenues to the Plaintiff. If this liability is determined or the issue is resolved in favour of the Plaintiff then the necessary audits would be carried out once the Court orders so. Court further held that the prayers in the Plaint are for declarations which essentially have among others the effect that the Defendant is liable to pay local Revenues for its quarry's activities. That the issue that the interrogatories are not addressed to particular individuals has been answered in **Stanfield Properties Ltd. Vrs. National West Minister Bank (1983)2 ALL ER 249** where it was held that a limited liability company in answering interrogatories must procure the making of proper answers from the company's officers servant or agents..... It is not what is known to the individual but what is known to the company. That the said interrogatories are correctly addressed to the Defendant/Respondent who will take responsibility to procure answers from its servants, employees or agents. That the Applicant has made out justification for an order to serve interrogatories to the Defendant and that the Defendant answers the interrogatories allowed i.e. 1-8 and 30-48 within the time limit prescribed by Order 10 CPR.

❖ **DISCOVERY OF DOCUMENTS**

- ❖ Discovery is the procedure whereby one party to an action must disclose to the other party the existence of all documents which are or have been in possession

and which are material in the action. Discovery refers to the disclosure and inspection of documents as opposed to facts. Documents include originals and copies of original documents, tape recordings and computer disk.

- ❖ The power of court to order for discovery is derived from section 22 of the civil procedure Act and section 22 of the Government Proceedings Act. O.10 r 12 of the civil procedure rules provides for application for discovery of documents. Any party may, without filing any affidavit, apply to the court for an order directing any other party to the suit to make discovery on oath of the documents, which are or have been in his or her possession or power, relating to any matter in question in the suit. On the hearing of the application the court may either refuse or adjourn the hearing, if satisfied that the discovery is not necessary, or not necessary at that stage of the suit, or make such order, either generally or limited to certain classes of documents, as may, in its discretion, be thought fit; except that discovery shall not be ordered when and so far as the court shall be of opinion that it is not necessary either for disposing fairly of the suit or for saving costs.
- ❖ In the case of **Tallikwa v Commissioner Land Registration (Registrar of Titles Wakiso) (MISC. APPLICATION NO. 1274 OF 2013)** Court held that Under Order 10 Rule 1, any party may apply to court for an order directing the other party in the suit to make discovery on oath of the documents relating to any matter in question in the suit. That upon reading Order 10 Rule 2, in order to be entitled to an order of discovery, the applicant should fulfill the following conditions:- 1. The document being sought should be, or has previously been in possession or power of the other party. 2. The party stated to be holding the document(s) should have been previously requested to avail them, but she/he declined to release them to the applicant. 3. The production

of such documents should be necessary for the court to achieve a fair and final determination of the suit or for saving costs.

- ❖ In the case of **Wanyama v Hisa & Anor (ELECTION PETITION NO. 0019 OF 2016)** Court held that discovery proceedings are generally provided for under Order 10 CPR. That both rule 12 and 15 thereof would be applicable to a party that seek discovery against another. That rule 12 [1] appears to be a rule of wider application for any party who seeks the discovery of any document, the restrictions of allowing the prayer are left to the court's discretion in rule 12[2] and the parameters that the court may consider are given. On the other hand, rule 15 appears to permit the party seeking discovery to do so against the other party in whose pleadings certain documents are mentioned. It is a more restrictive rule.

- ❖ In the case of **Stop and See (U) Ltd v Tropical Africa Bank Ltd (MISC. APPLICATION NO 333 OF 2010)** Madrama J (as by then) held that under order 10 (1) the defendant or plaintiff may apply to court within twenty one days _____ from _____ the date of the last reply or rejoinder for leave to deliver interrogatories and discoveries in writing for the examination of the opposite parties.

- ❖ The purpose of discovery is to ensure that issues which are to be decided by the trial judge are clearly defined as possible and to ensure that the trial takes place within estimated time set out in the order for directions, and discovery must be completed before a case is set down for hearing.

❖ In the case of **Mutesi v Attorney General MISCELLANEOUS APPLICATION No. 0912 OF 2016**) Court held that Discovery is a category of procedural devices employed by a party to a civil or criminal action, prior to trial, to require the adverse party to disclose information that is essential for the preparation of the requesting party's case and which the other party alone knows or possesses. It is a device used to narrow the issues in a law suit or obtain evidence not readily accessible to the applicant for use at trial and/or ascertain the existence of information that may be introduced as evidence at trial provided it is not protected by privilege. That Public policy considers it desirable to give litigants access to all material facts not protected by privilege to facilitate the speedy and fair administration of Justice. Discovery is contingent upon a party's reasonable belief that he or she has a good cause of action or defence. See: *Karuhanga & Anor Vs Attorney General & 2 Ors MISC. CAUSE NO. 0060 OF 2015*, That in view of the above clear objects of discovery, a party seeking for a production of documents from the other party must be before the Court to which the application is made and the suit must have pending issues for determination by that court. The document sought must be documents relevant to the determination of the pending suit before Court. This position is born out in the Law under the provisions of Order 12 rule 12 (1) of the Civil Procedure Rules and Order 10 rule 14 of the Civil Procedure Rules. That It is trite law that court will deny discovery if the party is using it as a fishing expedition to ascertain information for the purpose of starting an action or developing a defence. A court is responsible for protecting against the unreasonable investigation into a party's affairs and must deny discovery if it is intended to annoy, embarrass, oppress or injure the parties or the witnesses who will be subjected to it. A court will stop this

discovery when used in bad faith and if the information to be produced is not protected by privilege. On what amounts to a fishing expedition the case of *Gale Vs Denman Picture Houses Ltd* [1930] KB 588, 590 per Lord, Scrutton L. J relied upon by the respondent wherein he held *inter alia* thus: “A *plaintiff who issues a writ must be taken to know what his case is. If he merely issues a writ on the chance of making a case he is issuing what used to be called a “Fishing Bill” to try to find out whether he has a case or not. That kind of proceeding is not to be encouraged. For a plaintiff after issuing his writ but before delivering his statement of claim to say, “show me the documents which may be relevant so that I may see whether I have a case or not” is most undesirable proceeding.*”

❖ Document must be relevant.

- Documents which must be disclosed are those relating to any matter between the parties in the action. In the leading case of **Campagne Financiere vs Peruvian Guano Company** [1882] 11 QBD 55 at 63 Brett L.J gave a very wide interpretation of this phrase. He said; *‘...it seems to me that every document relates to the matter in question in the action, which not only would be evidence upon any issue, but which it is reasonable to suppose, contain information which may not which must either directly or indirectly because, as it seems to me, a document can properly be said to contain information which may enable the party requiring the affidavit either to advance his own case or to damage the case of his adversary, if it is a document which may fairly lead him to train of inquiry which may have either of those two consequences.’*
- Although discovery may be general, it must not be used as a fishing expedition or in any improper way. In the case of **Forester vs Bristish Railways Board** 1996 **The Times**, 8 April, the action related to a fatal accident on a railway. The plaintiff sought discovery relating to a wide range of aspects of train

operations including reports of accidents which had occurred as a result of doors opening on moving trains. It was held that the document required to be disclosed was too wide and clearly constituted a fishing expedition.

- The courts discourage improper use of discovered matters. Improper use include using discovered materials to start a new cause of action. Usually a party seeking discovery will give an undertaking not to use the discovered material for any purpose other than in furtherance of the present case.

❖ Privileged Documents

- A party making discovery may object to producing privileged document for inspection. Where privilege is claimed to any document, the court may itself inspect it in order to decide whether the claim is valid. The commonest types of privileged documents are:

a) Communication between Counsel / Advocate and Client

Any document written by a counsel and addressed to his client (and vice versa) is privileged, provided it is intended to be confidential and it is within the object of obtain in or giving legal advice or assistance.

b) Documents prepared with a view to litigation

All documents which are prepared for the purposes of assisting a party or his legal advisers on actual or anticipated litigation are privileged, whether they relate to obtaining the necessary evidence. Examples include expert reports, pleadings etc

c) Privileges against self incrimination

A party has a right to refuse to answer questions or produce documents tending to show that he has been guilty of offence or answers to which might expose him or her to any penalty, which is reasonably likely to be sought.

d) Without prejudice communication

Communications between the parties or their Advocate marked 'Without Prejudice' whether litigation was current or not will be privileged and may not be put in evidence unless both parties consent.

- In the case of **Kagyo Golola v Orient Bank Ltd (MISC. APPLICATION NO. 150 OF 2013) [2013] UGHCCD 115** Court held that an applications for discovery of documents are governed by O. 10 CPR. Under O.10 r 12 CPR it is provided that:- *"1. Any party may, without filing any affidavit, apply to court for an order directing any other party to the suit to make discovery on oath of the documents which are or have been in his or her possession or power relating to any matter in question in the suit. Upon hearing the application court may either refuse or adjourn the suit if satisfied that the discovery is not necessary or not necessary at that stage of the suit".* That the applicant must therefore satisfy court that it is necessary to make a discovery order at the time of application. That discovery is the process used by parties to a law suit to exchange information about the case and obtain evidence to support their claims. That Court directs the inquiry but this has to be in non privileged arrears that are relevant to the claim or defence. The bottom line, however, is full disclosure necessary for a speedy and fair trial because each party is entitled to know what documents exist for potential use at the trial. Court further held that an omnibus request for "all documents related to the loan" without the consent of the respondent's client will be a breach of confidentiality based on the Banker/Customer relationship. This is a valid exception to the grant of an

order for discovery of documents. This request amounts to a “fishing expedition” which is prejudicial to the respondent’s trade. Secondly, the applicant has not made any reply to the written statement of defence which would mark the close of pleadings. Thirdly, discovery is not necessary at this stage of the suit because all documents relevant to the determination of the suit will be exhibited during scheduling conference. Mandatory scheduling was introduced to ensure that issues are narrowed down before trial and possibilities of settlement explained and to avoid delay in trial of cases through interlocutory applications. Considering the application as a whole and the pleadings in the head suit I am not convinced that this is a proper application in which the orders sought should be granted.

- To use Order 10 r 14 of the civil procedure rules there must be proceedings pending and also court is empowered to order the production of documents. This order is narrower than rule 12 and 13 which concerns discovery before hearing commences.
- The purpose of discovery is to ensure that issues which are to be decided by the trial judge are clearly defined as possible, and to ensure that the trial takes place within estimated time set out in the order for direction, discovery must be completed before the case is set down for trial.

❖ INSPECTION

- If any document is referred to in a party's pleading or affidavit, his opponent may serve a notice on him requiring him to produce that document for inspection-O.10 r 15CPR. Within ten days of receiving such notice, the party must serve a notice stating the time within three days of receipt of the notice and a place where inspection may take place-O.10 r 17 CPR. If objection is taken to the production of any document, the notice must specify the document and state the grounds of the objection.
- This procedure may be useful where, for example a party's pleadings refers to an agreement in writing dated. Since it gives the opportunity for inspection of the document without waiting for formal discovery, which takes place after a close of pleadings. Thus the defendant may inspect a document referred to in the plaint before drafts his defense.
- If a notice served is not complied with, the applicant may move court to make an order of inspection-O.10 r 18CPR. An order for inspection may be made before filing a defense.
- Inspection thus entails both:
 - a) The examination of documents on the list or on the pleadings or affidavits; and
 - b) The taking away of copies.

❖ **NON COMPLIANCE WITH COURT'S ORDER**

- If the defendant does not comply with an order for discovery, the court may strike out the defense and enter judgment for the plaintiff; and if a plaintiff does not comply with an order, the court may dismiss the action-O.10 r 21CPR.

- In the case of *Said Tibeẓarwa vs UCB [1997-2008] UCLR 383 /HCCS No. 13/1996* during hearing of the suit, the plaintiff applied for an order requiring the Bank to produce for his inspection banker's books and other documents pertaining to his account which application was never objected to by the defendant counsel, and accordingly granted to furnish the plaintiff with its banker's book in respect of Account number 00770 of the UCB Gaba Branch and to furnish Plaintiff with copies of verified entries of the above account in the UCB's ledgers. At the next hearing the learned counsel for the Plaintiff applied for striking out the defendant written statement of defense pursuant to O.10 r 21CPR on ground of failure by UCB to obey court orders to produce banker's books / documents. The defendant counsel opposed the application on ground that the required documents are simply nonexistent at UCB having either been stolen, or lost or wilfully destroyed. Justice Ogoola held that if it was true that the documents are now nonexistent through being lost or stolen or destroyed then the development must be relatively recent. That in particular it must be subsequent to the court order. Further held that indeed the Bank's documents existed and were in safe custody at all material times but for reasons best known to itself the bank chose not to produce them as ordered by court. That it was precisely this kind of disobedience that O.10 r 21CPR was designed to remedy. Court further held that had no hesitation in granting the application to strike out a Witten statement of defense under o. 10 r 24CPR on ground of the defendant's non compliance and disobedience of the court's of the court's order for production of banker's books. That pursuant to O.21 r 21CPR the effect of striking out of a defendant's defense is to place the defendant in the same position as if he had not defended. That in light of section 101 (now 98)

CPA enabling court to make such orders as may be necessary for the ends of justice, judgment was entered for the plaintiff.

Pre-Entry Exam 2016/2017

Qn. 2 What is the usefulness of discovery in civil proceedings?

